

EUROPEAN COMMISSION & TRAFFIC

EU Wildlife Trade Regulations

Reference Guide

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About

1.1 Overview

The European Union (EU)[1] represents one of the largest markets for wild animals and plants, their products and derivatives. For many years, legislation to govern this trade has been a conservation priority in the region. Since 1984, the EU has been implementing the provisions of **CITES,** the **Convention on International Trade in Endangered Species of Wild Fauna and Flora** (or simply, "the Convention"), through common Regulations, which are referred to hereafter collectively as the **EU Wildlife Trade Regulations** (or simply, "the Regulations")[2].

The Regulations currently in force are:

- Council Regulation (EC) No 338/97 of 9 December 1996 on the protection of species of wild fauna and flora by regulating trade therein (referred to in this Guide as **Regulation (EC) No 338/97** or the **Basic Regulation**)[3], as amended[4]. The species controlled within the EU under the Basic Regulation are listed in four separate Annexes to the Regulation (Annexes A to D);
- Commission Regulation (EU) 2023/966 *amending Council Regulation (EC) No 338/97*, adopted on 15 May 2023[5]. This updated version replaced the **Annexes** to the Basic Regulation **following the listing decisions made at CITES CoP19** (Panama, 14 - 25 November 2022).
- Commission Regulation (EC) No 865/2006 *laying down detailed rules concerning the implementation of Council Regulation (EC) No 338/97*, that was adopted on 4 May 2006 (referred to in this Guide as **Regulation (EC) No 865/2006** or the **Implementing Regulation**)[6] as amended[7];
- **Commission Implementing Regulation (EU) No 792/2012** *laying down rules for the design of permits, certificates and other documents provided for in Council Regulation (EC) No 338/97 on the protection of species of wild fauna and flora by regulating trade therein and amending Commission Regulation (EC) No 865/2006* that was adopted on 23 August 2012 (referred to in this guide as ***Regulation (EU) No 792/2012 or the Permit Regulation***)[8] as amended[9].
- Commission Implementing Regulation (EU) 2025/6 **prohibiting the introduction into the Union of specimens of certain species of wild fauna and flora** that was adopted on 7 January 2025 (referred to in this guide as Regulation (EU) 2025/6 or the "**Suspensions Regulation**")[10].

1. For historical reasons, the term "European Communities" is still used in the text of *Council Regulation (EC) No 338/97*; it should be read to refer to the European Union.
2. EU legislation is published in the Official Journal of the European Union (OJ), and relevant pieces of legislation are referenced on a dedicated Commission website at https://ec.europa.eu/environment/cites/legislation_en.htm.
3. OJ No. L 61 of 3.3.97, p.1
4. Current consolidated version of 338/97 (20/05/2023) the latest amendment at the time of publication of this guide is Commission Regulation (EU) No 2019/2117 amending Council Regulation (EC) No 338/97 of 29/11/2019 and Regulation (EU) No 2019/1010 of the European Parliament and of the Council of 05/06/2019 on the alignment of reporting obligations in the field of legislation related to the environment.
5. The Basic Regulation may be amended in two ways: (i) amendments to the text of the Regulation (e.g. by Regulation (EC) 398/2009 of the European Parliament and Council of 23 April 2009); and (ii) updating of the Annexes through further Commission Regulations that are published in the Official Journal and referenced on the Commission's CITES website.
6. OJ No. L 166 of 19.6.2006, p.1
7. Current consolidated version of 865/2006 (18.02.2025)
8. OJ No. L 242 of 7.9.2012, p.13.
9. Current consolidated version of 792/2012 (18.02.2025)
10. OJ L, 2025/6, 7.1.2025

Where reference is made to these Regulations in this guide, this should be understood as being to the Regulations as last amended. Consolidated versions of these Regulations which incorporate the relevant amendments, can be consulted on the EUR-Lex website (access to European law). Please note, however, that it may take some time before the latest amendments are included in a consolidated version of the Regulations.

On 9th November 2022, the Commission adopted the **revised** EU action plan against wildlife trafficking[11] (WAP). The new action plan (2022 – 2027) builds on the previous WAP (2016 - 2020) and is structured around four priorities:

1. preventing wildlife trafficking and addressing its root causes
2. strengthening the legal and policy framework against wildlife trafficking
3. enforcing regulations and policies to fight wildlife trafficking effectively
4. strengthening the global partnership of source, consumer and transit countries against wildlife trafficking.

Each priority has several objectives and for each of the objectives a number of actions have been identified. Overall, the revised WAP has 17 objectives and 69 actions. The list of actions is not exhaustive and may be complemented by additional measures.

The implementation of the WAP will be a common effort by the Commission, Member States, EU and international organisations. On the basis of a monitoring framework, Member States will need to report annually on how the WAP is implemented at national level. The first Progress Report for 2023 was published on the CIRCABC repository in June 2025.

1.2 How do I use this guide?

CITES Management and Scientific Authorities, wildlife trade enforcement officials, wildlife traders and anyone interested in the legislation and the technicalities of the provisions of the Regulations may use this **reference guide** as background material.

This reference guide is not intended to be read sequentially. The sections are independent, so you can go directly to whichever topic is of interest. **Definitions** of key terms are provided in **Annex III** of this Guide.

The following is a summary of the topics covered:

- **Section 2** explains **which species are covered** by the Regulations, and how they are distributed among the **Annexes** to Regulation (EC) No 338/97;
- **Section 3** focuses on **trade into and out of the EU**, and the conditions that must be met. The bulk of such trade is in imports, but you may find yourself engaged in exports or re-exports – if you are an animal breeder or plant propagator, for example, or if you are leaving the EU and taking personal effects with you that originated outside of the EU;
- **Section 4** deals with **derogations from the normal import and export rules** – for example for captive-bred and artificially propagated specimens, worked “antique” specimens, personal effects and household goods, and specimens covered by streamlined certificates such as travelling exhibitions;
- **Section 5** deals with **trade within the EU**. In particular, trade in Annex A specimens is subject to strict controls, and you should be aware of these;

11. EUR-Lex - 52022DC0581 - EN - EUR-Lex (europa.eu)

- **Section 6** deals with the **transport, keeping and movement of live specimens**;
- **Section 7** deals with the **marking requirements** for certain specimens;
- **Section 8** deals with **what happens to permits and certificates after they are issued** – their **validity**, the specific circumstances where they may be issued **retrospectively**, and how they may be **amended or replaced**;
- **Section 9** deals with the **national and EU-level bodies** responsible for CITES implementation, and explains **how the Regulations are enforced**, including the role of the **European Commission**;
- **Section 10** deals with **public information and reporting requirements** for Member States and the Commission.

At the end of this guide, a number of annexes are included with additional information:

- **Annex I** is for those who want to read more about the **background** to CITES and the EU Wildlife Trade Regulations;
- **Annex II** sets out the main **differences** between **CITES** and the **EU Wildlife Trade Regulations**;
- **Annex III** sets out the **definitions** used throughout the text;
- **Annex IV** sets out the **definitions of the Opinions issued by the Scientific Review Group**;
- **Annex V** provides further information on **the status of EU dependent and other territories** with respect to the application of CITES and the EU Wildlife Trade Regulations;
- **Annex VI** sets out the **codes** to be used in the **description of specimens** and the **units of measurement** to be used for quantities when completing permits and certificates, or applications for the same;
- **Annex VII** sets out the standard **taxonomic references** for **nomenclature** that should be used to indicate the scientific names of species in permits and certificates;
- **Annex VIII** sets out the **codes** used to indicate the **purpose** of a transaction in permits and certificates;
- **Annex IX** sets out the **codes** used to indicate the **source** of specimens in permits and certificates;
- **Annex X** lists the **Annex A-listed animal species** that are **exempt** from the requirement for a **certificate** for internal trade, by virtue of abundance of captive-bred specimens;
- **Annex XI** lists the **Annex B-listed species and populations** in respect of which **import permits** must be issued by EU Member States for the first introduction into the EU of **hunting trophies** of specimens from these species/populations.
- **Annex XII** sets out the guidelines on **duties** and tasks of **Member State Scientific Authorities** and the **Scientific Review Group (SRG)**;
- **Annex XIII** lists the types of **biological samples** for which certain **procedures which are less strict** may apply;
- **Annex XIV** summarises the provisions that apply to **sturgeon and paddlefish caviar**;
- **Annex XV** sets out the **dates** of **EU membership** and **CITES** accession for the **EU Member States**, and

- **Annex XVI** lists the **Articles** in *Regulation (EC) No 338/97* and *Regulation (EC) No 865/2006* (as amended).
- **Annex XVII** provides guidance on **measuring reptiles**
- **Annex XVIII** includes the **guidance on handover of EU certificates in case of transfer of ownership of the certified specimen(s)**
- **Annex XIX** lists out the **rules on trade in protected species of wild fauna and flora following the withdrawal of the United Kingdom from the EU**

As there is considerable overlap between the topics covered; they are cross-referenced to ensure that you are directed to all areas of relevance to your query.

The electronic version of this guide and the relevant Regulations are available on the EU CITES website.

There are also a few general tips that you should be aware of:

- If you have some familiarity with the workings of **CITES** but have not dealt with the **EU Wildlife Trade Regulations** before, it is important to note that there are some significant **differences** between EU and international regulations, and that the EU regulations can be stricter in some respects. Therefore, you should not rely directly on CITES or the CITES Conference of the Parties (CoP) Resolutions for an interpretation of the laws applicable in the EU. The most important differences between the two are summarised in **Annex II**.
- Work as much as possible with the **scientific names** of the species that you are dealing with, since these are the only standard names that are accessible to all practitioners, regardless of the language they speak. **Section 2** explains how you can access these scientific names.
- Read the **instructions** carefully before completing any relevant **applications forms, permits or certificates**. This guide contains annotated instructions that may make this process easier.
- Never accept a specimen if you cannot be reasonably satisfied of its **legal origin**. At the very least, you may have trouble subsequently disposing of it, but you might also face penalties such as having the specimen confiscated, a fine or even prosecution.

Subject to these warnings and the more detailed rules in the remaining sections, there is no reason why you should be wary of dealing with CITES issues and CITES specimens, in any capacity. While unsustainable wildlife trade contributes to biodiversity loss, sustainable and well-regulated trade can be a positive force for conservation, and this is reflected also in the relevant EU legislation and its implementation.

2 What species are covered by the Regulations, and in what way?

2.1 The CITES Appendices

Under CITES, animal and plant species[1] are subject to different degrees of regulation by listing in three **Appendices** (which are referred to in this Guide as "**the Appendices**"). **Table 1** indicates the number of species that are listed in the CITES Appendices[2].

Appendix I includes **species threatened with extinction**, for which trade[3] must be subject to stricter regulation and can only be authorised in exceptional circumstances for specimens[4] of wild origin. **Commercial trade in wild taken specimens of Appendix-I listed species is generally not allowed.**

Appendix II includes species that are **not necessarily now threatened with extinction but may become so unless trade is strictly regulated**. Appendix II further lists socalled **"lookalike species"** (see Article II, paragraph 2(b) of CITES), which are controlled because of their similarity in appearance to other regulated species, thereby facilitating more effective control.

Appendix III contains species that are **subject to regulation within the jurisdiction of a CITES Party** and for which the **co-operation of other CITES Parties is needed** to prevent or restrict their exploitation.

1. According to the glossary of key terms on the CITES website, species may be defined as any species, subspecies, or geographically separate population thereof.
2. As per amendments to the CITES Appendices agreed in Geneva in August 2019, at the meeting of the 18th CITES Conference of the Parties, and that came into force on 26/11/2019 with the exception of the genus listing for *Cedrela* which came into force on 28/08/2020.
3. For definition of "trade", see **Annex III to this Guide**.
4. For definition of "specimen", see **Annex III to this Guide**.

Table 1: Numbers of species and subspecies listed in the CITES Appendices, updated 10 July 2025

	Appendix I	Appendix II	Appendix III	Total
Mammals	333	527	57	**917**
Birds	161	1300	60	**1521**
Reptiles	103	864	222	**1189**
Amphibians	24	351	5	**380**
Fish	16	224	19	**259**
Invertebrates	76	2194	31	**2301**
Sub-total Animals	**713**	**5460**	**394**	**6567**
Sub-total Plants	**411**	**33 846**	**134**	**34 391**
Total	**1124**	**39 306**	**528**	**40 958**

Source: *adapted from* http://www.speciesplus.net/ *- data downloaded on 10 July 2025.* *****The total number of plant species listed in the CITES Appendices, in particular Appendix II, are approximate due to taxonomic uncertainties surrounding certain families/ genera, in particular Orchidaceae (orchid family). *In some cases species listings are for certain populations only, or some populations are in one Appendix and others in another. In the latter cases, the species are included in the totals for the higher listing only to avoid double counting.

2.2 The Annexes to Regulation (EC) No 338/97

The implementation of CITES within the EU is governed by EU Regulations, which are directly applicable[5] in the Member States. All the relevant Regulations are listed in **Section 1**.

By default, the EU Wildlife Trade Regulations and CITES cover trade in all **specimens** of the listed species, whether alive or dead, including parts and derivatives, from animal and plant species listed in the Annexes/ Appendices[6]. **Trade** is defined in the EU Wildlife Trade Regulations as the introduction into the EU (including "introduction from the sea") and the export and re-export therefrom, as well as the use, movement and transfer of possession within the EU, including within a Member State, of species listed in the Annexes (see **Annex III** of this Guide for exact definitions). The term "trade" therefore encompasses not only trade in a commercial sense but also, for example, imports and (re-)exports for personal use. The species covered by *Regulation (EC) No 338/97* are listed in four *Annexes* (A to D), which are referred to in this Guide as "**the Annexes**" (note the difference in terminology from the CITES *Appendices*).

In some cases, entire genera or families are listed, so if you cannot see the name of the species you are looking for in the Annexes, look for it on the database of species maintained by UNEP-WCMC at http://www.speciesplus.net/, where every species in the Regulations can be found. Scientific names change from time

5. Meaning that, unlike for EU Directives, Member States do not need to take action to transpose the EU legislation into national law.
6. See definition of "specimen" in **Annex III to this Guide**. It is noted that for items such as medicinal products, if the label or packaging states that the ingredients include a listed species, the product shall be taken as containing that particular species (Article 2(t) *Regulation (EC) No *338/97).

to time, and the taxonomic references that determine the current scientific names are set out in **Annex VII** to this Guide. It is these current scientific names that are found on the Species+ website, however the database also retains the old names so that you do not have to be completely up to date with the changes in taxonomy to find the current scientific name[7]. Although common names are also listed, not all species have common names and they may vary from country to country. Therefore, if you are engaging in a transaction that may involve a CITES-listed species, you should always take care to familiarise yourself with the scientific name (as laid down in the respective taxonomic references), since this is the name that must be entered on relevant documents.

2.2.1 Annex A

Table 2 shows the number of species and subspecies listed in Annex A of the EU Wildlife Trade Regulations.

Annex A[8] contains:

- all CITES **Appendix I-listed** species except those for which EU Member States have entered a reservation (currently not applicable since there are no Appendix I-listed species subject to such a reservation);
- any species (listed in CITES Appendix II, III, or non-CITES-listed) that is, or may be, in EU or international demand and which is either threatened with extinction or is so rare that any **trade would imperil its survival in the wild**[9], and
- some species listed in CITES Appendix II, III or non-CITES-listed: If most of the species in a genus (or most of the subspecies in a species) are listed in Annex A, the remaining species can also be listed if this is considered to be essential for the effective protection of the species listed in Annex A, in order to exclude commercial trade in the entire genus or species (e.g. for reasons related to control/ enforcement).
- Finally, although there is no separate provision in *Regulation (EC) No 338/97*, **CITES-listed species** that in **1997** were subject to a **trade prohibition under EU legislation** on the protection of indigenous species (Directive on the conservation of wild birds[10] and the so-called “Habitats Directive”[11]), are automatically listed in Annex A. The names of these species in Annex A are printed in **bold**. However, species that came within the remit of those Directives with the later accession of new Member States, or that were added to the Appendices since 1997, are not included in Annex A.

7. For CITES species in general the list of standard nomenclature is laid down in Resolution Conf 12.11 (Rev. CoP19)which is updated almost each CoP. This information is also available in the Checklist of CITES Species tool.
8. Article 3(1) *Regulation (EC) No 338/97*.
9. For CITES Appendix III-listed species in Annex A, all populations of the species are subject to the corresponding provisions of the Regulations and not just the populations of the countries that listed them in Appendix III.
10. *Directive 2009/147/EC of the European Parliament and of the Council of 30 November 2009 on the conservation of wild birds* (OJ No. L 20 of 26.01.2010 p.7) (codified version of *Council Directive 79/409/EEC of 2 April 1979 on the conservation of wild birds, *as amended).
11. *Council Directive 92/43/EEC of 21 May 1992 on the conservation of natural habitats and of wild fauna and flora (OJ No. L 206 of 22.7.92 p.7).*

Table 2: Number of species and sub-species listed in Annex A of the EU Wildlife Trade Regulations, updated 10 July 2025

	Appendix I	Appendix II	Appendix I/II	Appendix III	Non-CITES	Total
Mammals	332	101	3*	0	2	438
Birds	159	74	0	2	19	254
Reptiles	103	9	0	0	1	113
Amphibians	24	0	0	0	0	24
Fish	16	0	0	0	0	16
Invertebrates	76	2	0	0	0	78
Sub-total Animals	**710**	**186**	**3**	**2**	**22**	**923**
Sub-total Plants	**399**	**11**	**0**	**0**	**0**	**410**
Total	**1109**	**197**	**3**	**2**	**22**	**1333**

Source: *adapted from* http://www.speciesplus.net/ *- data downloaded on 10 July 2025.*

Commercial trade from, to and within the EU is, as a general rule, prohibited for wild specimens of species listed in Annex A[12]. Trade to and from the EU is governed by provisions comparable to those applicable to species listed in Appendix I under CITES.

2.2.2 Annex B

Table 3 shows the number of species and subspecies listed in Annex B of the EU Wildlife Trade Regulations.

Annex B[13] contains:

- CITES **Appendix II-listed** species (if they are not already included in Annex A);
- Appendix I-listed species for which **EU Member States have entered a reservation** (currently not applicable since there are no Appendix I-listed species subject to such a reservation);
- **any species** (CITES Appendix III-listed, non-CITES-listed) subject to **levels of international trade** that may **not be compatible with the survival of populations in certain countries, or with the maintenance of its total population at a level consistent with its role in the ecosystem**[14];
- some “look-alike” species, whose listing is considered essential for the effective control of trade in other species listed in Annex A or B (see also **Section 2.1**), and

12. Captive-bred specimens of species listed in Annex A are exempted from this prohibition and can be traded for commercial purposes (see **Section 4.1**).
13. Article 3(2) *Regulation (EC) No 338/97*.
14. Once again, for Appendix III-listed species listed in Annex B, all populations of the species are subject to the corresponding provisions of the Regulations, and not just the populations of the countries that listed them in Appendix III.

- species (CITES Appendix III-listed, non-CITES-listed) known to pose an **ecological threat** to species that are indigenous to the EU (currently one species listed[15]).

Table 3: Number of species and subspecies listed in Annex B of the EU Wildlife Trade Regulations, updated 10 July 2025

	Appendix I	Appendix II	Appendix III	Non-CITES	Total
Mammals	0	427	1	0	428
Birds	0	1228	0	2	1230
Reptiles	0	855	1	1	857
Amphibians	0	350	0	1	351
Fish	0	223	0	0	223
Invertebrates	0	2192	0	9	2201
Sub-total Animals	**0**	**5275**	**2**	**13**	5290
Sub-total Plants	**0**	**33 835**	**0**	**1**	33 836
Total	**0**	**39 110**	**2**	**14**	**39 126**

Source: *adapted from* http://www.speciesplus.net/ *- data downloaded on 10 July 2025.*

Documentation is required for the import, export and (re-)export of specimens of Annex B-listed species into and from the EU. EU rules on import of Annex B-listed species are stricter than under CITES as import permits are generally required (in addition to export permits) for the import of such specimens into the EU, with some exemptions.

2.2.3 Annex C

Table 4 shows the number of species and subspecies listed in Annex C of the EU Wildlife Trade Regulations.

Annex C[16] contains:

- CITES **Appendix III-listed species** that are not already included in Annex A or B, and
- Appendix II-listed species for which **EU Member States have entered a reservation**. (This is currently not applicable since there are no Appendix II species subject to such reservation).

15. Painted Turtle (*Chrysemys picta*),
16. Article 3(3) *Regulation (EC) No 338/97.*

Table 4: Number of species and subspecies listed in Annex C of the EU Wildlife Trade Regulations, updated on 10 July 2025

	Appendix II/III	Appendix III	Non-CITES	Total
Mammals	0	49	0	**49**
Birds	0	58	0	**58**
Reptiles	0	219	5	**224**
Amphibians	0	5	0	**5**
Fish	0	19	0	**19**
Invertebrates	0	31	0	**31**
Sub-total Animals	**0**	**381**	**5**	**386**
Sub-total Plants	**0**	**134**	**0**	**135**
Total	**0**	**515**	**5**	**521**

Source: *adapted from* http://www.speciesplus.net/ *- data downloaded on 5 March 2024.*

Species listed in Annex C do not require an import permit. Imports can take place on the basis of a CITES export permit (if coming from a Party that included the species in Appendix III), a (re-)export certificate, or a certificate of origin (if coming from a Party that did not include the species in Appendix III), together with an import notification (the import notification is not a document required under CITES and is therefore a stricter EU measure). The (re-)export of specimens of Annex C-listed species from the EU requires an export permit or re-export certificate.

2.2.4 Annex D

Table 5 shows the number of species and subspecies listed in Annex D of the EU Wildlife Trade Regulations.

Annex D[17] contains:

- **Non-CITES-listed species** that are not listed in Annexes A to C which are **imported into the European Union in such numbers as to warrant monitoring**, and
- **Appendix III-listed species** for which **EU Member States have entered a reservation** (there are currently three of these (and four sub-species)[18]).

Annex D does not have a CITES equivalent. Imports of specimens of Annex D-listed species require an **import notification.** The Annex D monitoring system is intended to allow the **early detection** of possible conservation concerns to the species listed and thus is similar to the purpose of Annex B, which aims to ensure sustainable trade in species and thus prevent them from becoming Annex A candidates. Where necessary, Annex D-listed

17. Article 3(4) *Regulation (EC) No 338/97*.
18. As of February 2017.

species can be proposed for “up-listing” and brought under the trade provisions applicable to Annex B-listed species. Some former Annex D-listed species have subsequently been added to CITES Appendix II and consequently to Annex B in the EU.

Table 5: Number of species and subspecies listed in Annex D of the EU Wildlife Trade Regulations, updated on 10 July 2025

	Appendix II	Appendix III	Non-CITES	Total
Mammals	0	7	0	7
Birds	0	0	1	1
Reptiles	0	0	30	30
Amphibians	1	0	105	106
Fish	0	0	1	1
Invertebrates	0	0	1	1
Sub-total Animals	**1**	**7**	**138**	**146**
Sub-total Plants	**0**	**0**	**53**	**53**
Total	**1**	**7**	**191**	**199**

Source: *adapted from* http://www.speciesplus.net/ *- data downloaded on 10 July 2025.*

2.2.5 Annotations

As noted above, CITES and the EU Wildlife Trade Regulations cover, by default, all specimens, whether alive or dead, including parts and derivatives, from animal and plant species listed in the Appendices/Annexes. However, through an **annotation** to the listing, **some parts and derivatives may be specified or exempted from certain provisions**.[19] *Swietenia mahagoni* (Caribbean Mahogany), for example, is listed in Annex B, with an annotation that the listing applies to logs, sawn wood and veneer sheets. The trade in other parts and derivatives therefore does not fall under CITES and does not require a permit or certificate.

2.2.6 Hybrids

Hybrids between two species are **also covered** by CITES and the EU Wildlife Trade Regulations, when at least one of the two parents is of a species listed in one of the four Annexes. In cases where the parents of such animal or plant hybrids are of species listed in different Annexes, or of species of which only one is listed in the Annexes, the provisions of the **more restrictive** Annex apply. However, in the case of hybrid plants where only one parent is of a species listed in Annex A, the provisions of the more restrictive Annex will apply only when the species is annotated to that effect[20] (currently there is no such annotation in force[21]). Hybrid animals that

19. Annotations are listed under point 12 in the *Notes on interpretation of Annexes A, B, C and D* which precedes the Annexes in Regulation (EC) No 338/97.

have, in their previous four generations of the lineage, one or more specimens of species included in Annexes A or B are subject to the provisions of *Regulation (EC) No 338/97* as if they were full species, even if the hybrid concerned is not specifically included in the Annexes[22].

2.2.7 CITES listings for national populations

CITES Resolution Conf. 9.25 (Rev. COP18)[23] on the implementation of the Convention for species in Appendix III outlines that any Party can submit a species, native to its country, for listing in Appendix III. When a listing is requested, it can be done for the entire distribution range, or it can be limited to a national population. At present, there are only two cases where the listing is specific to a national population. These include:

- Freshwater stingrays (*Potamotrygon* spp.) limited to the population of Brazil; and
- a series of songbirds and the European Pond turtle (*Emys orbicularis*) limited to the populations of Ukraine.

If trade occurs in specimens of a species where only a national population is included in Appendix III and Annex C, documents are only required if it concerns export or re-export from the Party which has included its population in Appendix III. No documents are required for export, re-export or import of specimens by any Party of which their population is not included in Appendix III.

20. Article 2(t) *Regulation (EC) No 338/97*.
21. Point 13, Annex to *Regulation (EC) No 338/97 *(*Notes on interpretation of Annexes A, B, C and D*).
22. Point 11, Annex to *Regulation (EC) No 338/97 *(*Notes on interpretation of Annexes A, B, C and D*).
23. https://cites.org/sites/default/files/document/E-Res-09-25-R18.pdf

3 What are the rules governing trade into and from the EU for species covered by the Regulations?

3.1 Overview

For any animal or plant species that is listed in Annex A, B or C of *Regulation (EC) No 338/97* (or any parts or derivatives of the same), documentation is required before **trade to or from the EU** can take place (on trade *within* the EU, see Section 5). In the case of species listed in Annex D, documentation is only required for trade to the EU, unless the species is also listed in Appendix III of CITES. The required documents can only be issued if certain conditions are met. The designated Management Authority of the individual EU Member State, in collaboration with its national Scientific Authority, will verify whether these conditions are met. The documents must be presented to the relevant Customs offices before a shipment can be authorised to enter or leave the EU.

It should be noted that this Guide deals **only** with the requirements of the EU Wildlife Trade Regulations. Other documents may be needed for trade into and from the EU, for purposes other than those covered by *Regulation (EC) No 338/97* and *Regulation (EC) No 865/2006*, e.g. for sanitary purposes in the case of food products (seafood, caviar, etc.) or live animals and animal products (blood, semen, tissue, etc.), and for phytosanitary purposes for plants or plant produce/products, such as fruit, seeds for planting and cut flowers.[1]

There are different types of **documents required** under the Wildlife Trade Regulations for trade into and from the EU:

- an **import permit** for the import of specimens of Annex A or B-listed species[2] (the stamped and signed holder's copy of the import permit may also be used later as confirmation that the specimen was lawfully imported should the need arise);
- an **export permit** for the export of specimens of Annex A-, B- or C-listed species[3] [4];
- a **re-export certificate** for the re-export of specimens of Annex A, B- or C-listed species[5], 37, and
- an **import notification** form for the import of Annex C37 or D-listed species, which is to be completed by the importer[6].

In certain cases, special certificates may be used instead of import or export permits and re-export certificates – for example, **travelling exhibition certificates, personal ownership certificates** and **musical instrument certificates** (see **Section 4.6**).

In addition to documents issued by EU Management Authorities, **relevant documents may also be required from the country of (re-)export or import**. For example, for the **import** of species listed in **Annex A or B, and which are also listed in the CITES Appendices**[7], an **export permit or re-export certificate** is also needed

1. Please consult the Commission website at https://food.ec.europa.eu/index_en for an overview of relevant legislation.
2. Article 4(1) and (2) *Regulation (EC) No 338/97*.
3. Article 5(1), (2) and (4) *Regulation (EC) No 338/97*.
4. See section 2.2.3 for exemptions related to Annex C.
5. Article 5(1), (3) and (4) *Regulation (EC) No 338/97*.

from the country of origin or re-export[8]. For the **export** of species listed **in Appendix I** of CITES, an **import permit** is required from the **country of destination** before an export permit can be issued[9]. (The import permit is only required from a third country when the species is listed in Appendix I of CITES.) **Table 6** presents an overview of documents needed for trade into and from the EU.

6. Article 4(3) and (4) *Regulation (EC) No 338/97. *For specimens of species listed in Annex D an import notification is required for imports into the Community, but no documents are required for (re-)export unless the species is listed in Appendix III of CITES (see **Table 6**).
8. Article 4(1) and (2) *Regulation (EC) No 338/97*.
9. Article 5(2)(c)(ii) *Regulation (EC) No 338/97.*

Table 6: Documents needed for trade into and from the EU, in species listed in Annex A, B, C or D of the EU Wildlife Trade Regulations

Type of trade	Annex	Documents Required (*Note: documents have to be obtained before trade takes place and must be presented to Customs upon introduction into/export from the EU)*	Article of *Regulation (EC) No 338/97*
Import	A	**Export permit or re-export certificate** issued by country of export and **import permit** issued by the EU Member State of destination.*	4(1)
	B	**Export permit or re-export certificate** issued by country of export and **import permit** issued by the EU Member State of destination. *	4(2)
	C	**Export permit or re-export certificate or certificate of origin** issued by the country of export (depending on whether or not the country of export has listed the species in Appendix III of CITES) and **import notification** completed by the importer and presented to the Customs office upon introduction into the EU. No documents are required if the specimen originates from a population that is not included in Annex C (for those species where only a national population is included in Appendix III and Annex C).	4(3)
	D	**Import notification** completed by the importer and presented to the Customs office upon introduction into the EU.	4(4)
Export	A	**Export permit** issued by the EU Member State of export and **import permit** issued by country of destination. **	5(1)-(2)
	B	**Export permit** issued by the EU Member State of export.	5(4)
	C	**Export permit** issued by the EU Member State of export unless the specimen originates from a population that is not included in Annex C (for those species where only a national population is included in Appendix III and Annex C).	
	D	No documents required.	
Re-export	A	**Re-export certificate** issued by the EU Member State of re-export and **import permit** issued by the country of destination. **	5(1), 5(3), 5(5)
	B	**Re-export certificate** issued by the EU Member State of re-export.	5(4)-(5)
	C	**Re-export certificate** from the EU Member State of re-export unless the specimen originates from a population that is not included in Annex C (for those species where only a national population is included in Appendix III and Annex C).	5(4)-(5)
	D	No documents required.	

Source: *adapted from* Council Regulation (EC) No 338/97.

The export permit is only required when the species is listed in the CITES Appendices.

** Most countries require the import permit only from a third country when the species is listed in Appendix I of CITES..

Note that this overview represents the basic permitting scheme. More details, including about possible exemptions, can be found in the following subsections:

- **Section 3.2** sets out the **documents** required for the **entire range of transactions** involving trade into or out of the EU;
- **Section 3.3** deals with the documents required for **import** of specimens of species listed in **Annexes A and B**;
- **Section 3.4** deals with the documents required for **import** of specimens of species listed in **Annexes C and D**;
- **Section 3.5** deals with the documents required for the **(re-)export** of specimens of species listed in **Annexes A, B and C**;
- **Section 3.6** deals with whether specimens can be traded through **any Customs office**.

It is important to note that the Commission has, in cooperation with the competent CITES Management Authorities of the EU Member States, developed and adopted **guidance documents** for interpreting the EU Regulations on specific topics/trade. Commission guidance currently available covers the following specific cases and requirements:

- the export, re-export, import and intra-EU trade of **rhinoceros horns;**[10]
- EU regime governing **trade in ivory**;[11]
- the export, re-export and intra-EU trade of **captive-born and bred live tigers and their parts and derivatives**[12]**;**
- trade in **"worked" specimens** (see also section 3.6.3)[13];
- the **verification of legality** in **timber** trade[14];
- the **proof of legal acquisition** for **live animals** of Annex B species and necessary documentary evidence[15];
- live animals **bred in captivity** under the EU Wildlife Trade Regulations[16];
- handover of EU certificates in case of transfer of ownership of the certified specimen(s) (see Annex XVIII).

Further guidance documents by the Commission are published on the website (see fn. 2 above) as they become available.

10. https://eur-lex.europa.eu/legal-content/EN/TXT/?qid=1573810877916&uri=CELEX:52019XC1114(01)
11. https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52021XC1230%2803%29&qid=1642098277757
12. https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=OJ%3AJOC*2023135R*0001
13. https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=uriserv:OJ.C_.2017.154.01.0015.01.ENG&toc=OJ:C:2017:154:TOC
14. https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=OJ:C:2018:376:TOC
15. https://eur-lex.europa.eu/legal-content/EN/TXT/?qid=1553248802870&uri=CELEX:52019XC0321(01)
16. https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52022XC0811%2801%29&qid=1661181823099

Following the UK's withdrawal from the EU certificates for intra-EU trade (according to Article 8(3) of Regulation (EC) No 338/97) issued by the United Kingdom are no longer valid for such transactions. This may lead to the need for a management authority of an EU Member State to re-issue an Article 8(3) certificate previously issued by the management authority of the United Kingdom.

3.2 What document for what purpose?

3.2.1 Standard operating procedures

The number of Member States that is planning to move towards **e-permitting** increased from 18 Member States between 2018-2020 to 21 EU MS in the 2021-2023 reporting period of the Implementation Report. This progress toward e-permitting is largely through the **EU CITES e-permitting project**, which aims to interconnect, harmonise, and integrate EU Member State national permitting systems. Some Member States are participating in the testing phases of the pilot programme of the EU CITES e-permitting project.

3.2.2 Documents for the import of specimens of species listed in Annex A, B, C or D into the EU

The **introduction into the EU**[17] of specimens of species listed in **Annex A** or **B** to *Regulation (EC) No 338/97* requires prior issue of an **import permit**, which must be presented to the Customs office at the first point of introduction to the EU. **Table 7** indicates which documents are required as part of an import permit. An export permit or re-export certificate issued by the country of export is also required.

Table 7: Documents required as part of import permits for specimens of species listed in Annex A or B of the EU Wildlife Trade Regulations

Type of document*	Form Number	Colour
Original	Form number **1**	White with grey guilloche
Copy for the **holder**	Form number **2**	Yellow
Copy for the **exporting or re-exporting country** (only in the case of specimens of CITES Appendix I-listed species)[18]	Form number **3**	Pale green
Copy for the **issuing authority**	Form number **4**	Pink
Application form	Form number **5**	White

Source: *adapted from* Regulation (EU) 792/2012.

17. "Introduction into the EU" refers to import of species from another jurisdiction (non-EU countries) but also to introduction from marine waters outside any country's national jurisdiction (i.e. from the high seas – this is termed "introduction from the sea" under CITES and the EU Regulations).
18. "Introduction into the EU" refers to import of species from another jurisdiction (non-EU countries) but also to introduction from marine waters outside any country's national jurisdiction (i.e. from the high seas – this is termed "introduction from the sea" under CITES and the EU Regulations).

*At the time of introduction into the EU, the importer - or their authorised representative - must surrender to the border Customs office at a designated point of introduction: (i) the original import permit (Form 1), (ii) the “copy for the holder” (Form 2) and, where this is indicated in the import permit, (iii) the valid document from the (re-)exporting country[19]. The Customs office completes box 27 of the original and the “copy for the holder”, returns the latter to the importer (for later proof of legal importation) and sends the original - together with the document from the (re-)exporting country - to the Management Authority of their country. This Management Authority must then, in turn, forward the documentation to the Management Authority of the Member State which has issued the permit (if different)[20] (see **Section 3.3.7**).

The **introduction into the EU** of specimens of species listed in **Annex C** or **D** to *Regulation (EC) No 338/97* requires the completion by the importer of an **import notification**, and presentation of this import notification to the Customs officer at the first point of introduction into the EU. An export permit, re-export certificate or certificate of origin issued by the country of export is also required for species listed in Annex C. **No documents** are however required if the specimens originate from a population that is not included in Appendix III and Annex C (for those species where only a national population of a species is included in CITES). **Table 8** indicates which documents are required as part of such an import notification.

Table 8: Documents required as part of an import notification for specimens of species listed in Annex C or D of the EU Wildlife Trade Regulations

Type of document*	Form Number	Colour
Original	Form number **1**	White
Copy for the **importer**	Form number **2**	Yellow

Source: *adapted from* Regulation (EU) 792/2012.

*At the time of introduction into the EU, the importer - or their authorised representative - must surrender to the border Customs office at a designated point of introduction: (i) the original import notification (Form 1); and (ii) and the “copy for the importer” (Form 2)[21]. The Customs office completes box 14 of the original and the “copy for the importer”, returns the latter to the importer (for later proof of legal importation), and the original - together with any document from the (re-)exporting country – is submitted to the Management Authority of the country into which it has been introduced. Original notifications will also be forwarded to the Management Authority of the country of import, when it is different from the country where the specimen was introduced into the EU[22] (see **Section 3.4**).

3.2.3 Documents for the export or re-export of specimens listed in Annex A, B, C or D from the EU

The **export** from the EU of specimens of species listed in **Annex A, B or C** to *Regulation (EC) No 338/97* requires the prior issue and presentation of an **export permit** at the Customs office where export formalities are completed. In the case of specimens of species also listed in **Appendix I of CITES**, an import permit must be issued by the country of import[23] before an export permit can be issued by the relevant EU Member State[24].

19. Article 22 *Regulation (EC) No 865/2006*.
20. Articles 23 and 45 *Regulation (EC) No 865/2006*.
21. Article 24 *Regulation (EC) No 865/2006*.
22. Articles 25 and 45 *Regulation (EC) No 865/2006*.
23. If a Party to CITES.
24. Article 5 *Regulation (EC) No 338/97*.

The **re-export** from the EU of specimens of species listed in **Annex A, B or C** to *Regulation (EC) No 338/97* requires the prior issue and presentation of a **re-export certificate** at the Customs office where re-export formalities are completed. In the case of specimens of species also listed in **Appendix I of CITES**, an import permit must be issued by the country of import[25] before a re-export certificate can be issued by the relevant EU Member State[26]. This however is not required for trade in specimens that are born and bred in captivity.

No documents are however required if the specimens originate from a population that is not included in Appendix III and Annex C (for those species where only a national population of a species is included in CITES).

No documents are normally required for the **export or re-export** of species listed in **Annex D** (except in the case of the three species (and four sub-species)[27] listed in Appendix III, where the importing countries may require (re-)export documents). **Table 9** indicates which documents are required as part of export permits and re-export certificates.

Table 9: Documents required as part of export permits and re-export certificates for specimens of species listed in Annex A, B, C, or D of the EU Wildlife Trade Regulations

Type of document*	Form Number	Colour
Original	Form number **1**	White with grey guilloche
Copy for the **holder**	Form number **2**	Yellow
Copy for **return by Customs to the issuing authority**	Form number **3**	Pale green
Copy for the **issuing authority**	Form number **4**	Pink
Application form	Form number **5**	White

Source: *adapted from* Regulation (EU) No 792/2012.

*At the time of (re-)export from the EU, the (re-)exporter - or the authorised representative - must surrender: (i) the original export permit or re-export certificate (Form 1), (ii) the "copy for the holder" (Form 2), and (iii) the "copy for return to the issuing authority" (Form 3) to a designated Customs office[28]. The Customs office completes box 27 of the original, the "copy for the holder" and the "copy for return to the issuing authority", returns the first two to the (re-)exporter or authorised representative, and the latter to the Management Authority of the country in which that Customs authority is located. If this was not the original issuing authority (i.e. the permit was issued in another Member State), the document must then be passed on to the Management Authority that had issued the permit[29] (see **Section 3.5.7**).

25. If a Party to CITES.
26. Article 5 *Regulation (EC) No 338/97*.
27. As of January 2015.
28. Article 27 *Regulation (EC) No 865/2006*
29. Articles 28 and 45 *Regulation (EC) No 865/2006*

3.3 What are the rules for the issuance of import permits for specimens of Annex A or B-listed species?

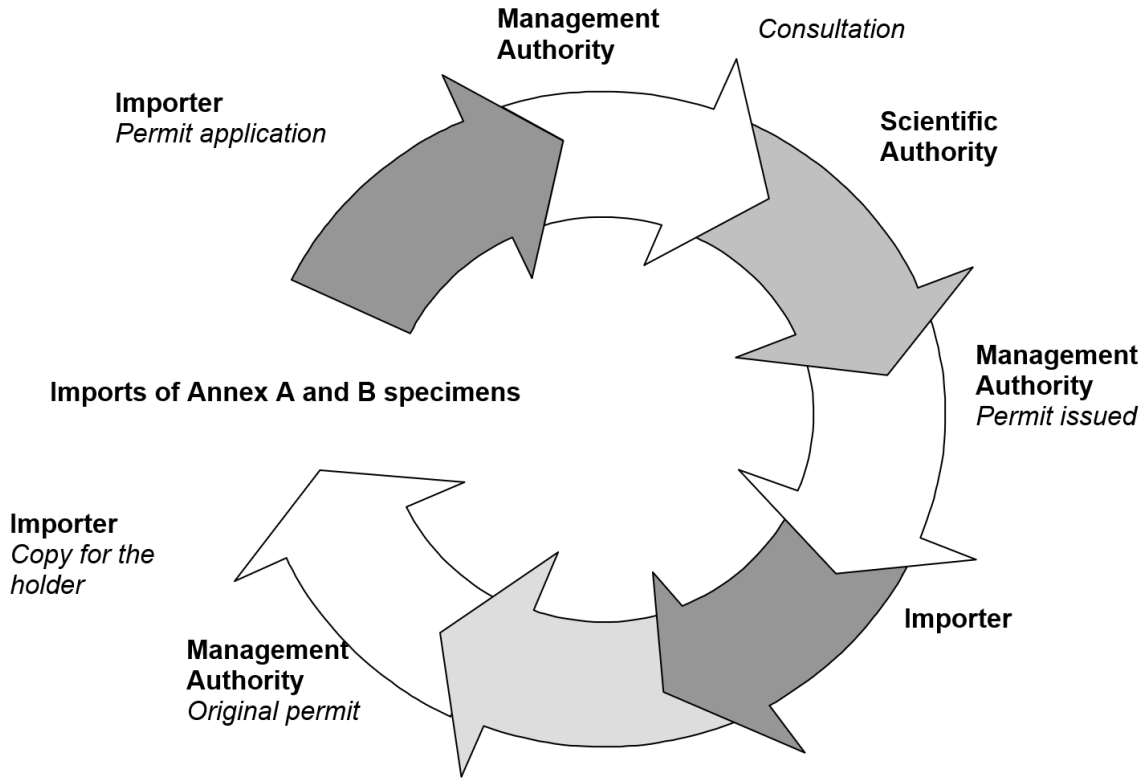
3.3.1 How do I apply to import a specimen?

The rules for the issuance of import permits for specimens of Annex A- or B-listed species, from permit application to import, are as follows (see also **Figure 1**)[30]:

- the importer must apply with an **import permit application form** (model laid down in **Annex I** to *Regulation (EU) No 792/2012*) to the Management Authority of the Member State of destination;
- import permit applications must be made in a **timely manner** to avoid shipments arriving at the EU's external border without a permit. It is the responsibility of the importer to make sure all necessary documentation is present before a shipment arrives at the EU's external border[31];
- Management Authorities are required to issue permits **within one month** from the date of submission of a **full application**[32];
- permit issuance may take longer where **third parties**, such as the country of origin, need to be consulted[33], and
- the applicant must be informed of **significant delays**[34].

30. Articles 4(1) and (2) *Regulation (EC) No 338/97*
31. Article 13(1) *Regulation (EC) No 865/2006*
32. Article 8(3) *Regulation (EC) No 865/2006*
33. Article 8(3) *Regulation (EC) No 865/2006*
34. Article 8(3) *Regulation (EC) No 865/2006*

Figure 1: A simplified procedure for obtaining an import permit for Annex A and B specimens



The procedures described in this Section are similar to those that apply when dealing with **exports**, **re-exports** (see **Section 3.5.1** and **Figure 6**) and internal trade within the EU (see **Section 5.5**).

Note that specimens will **not be authorised to be assigned to a Customs procedure until the necessary documents have been presented**[35] (as required for export and re-exports – see **Section 3.5.1**). In the absence of documents, specimens may be seized and subsequently confiscated.

Depending on the system applied in the Member State of destination, the applicant receives either the **application form only** or a **full set of forms**[36] (as is the case when applying for an export or re-export – see **Section 3.5.1**).

If only the **application form is to be completed** (model set out in **Annex I** to *Regulation (EU) No 792/2012*), the importer must fill in **boxes 1, 3 to 6 and 8 to 23**[37] in **typescript** or **legibly in manuscript** (ink and block capitals)[38]. **Erasures and alterations** in the application form should be avoided as much as possible[39]. The **application form** may relate to **more than one shipment of specimens**[40], however **each shipment of specimens** (shipped together as part of one load) will require a **separate import permit**[41]. Where a shipment contains more than one species, the applicant must obtain and complete additional **annex forms** that will be attached to the permit[42].

35. Article 13(2) *Regulation (EC) No 865/2006*
36. Article 20(1) *Regulation (EC) No 865/2006*
37. *As above.*
38. Article 4(1) *Regulation (EC) No 865/2006*
39. Article 4(2) *Regulation (EC) No 865/2006*
40. Article 20(1) *Regulation (EC) No 865/2006*
41. Article 9 *Regulation (EC) No 865/2006*
42. Article 6(2) *Regulation (EC) No 865/2006*

If the **full set of forms is to be completed**, the importer must fill in **boxes 1, 3 to 6 and 8 to 23 of the application form,** and **boxes 1, 3, 4, 5 and 8 to 22 of the original and all copies**[43]. This must be done in **typescript** and not by hand. The original and copies of the import permit may not normally contain **erasures and alterations**. Where this is the case, they must be **authenticated** by the stamp and signature of the issuing Management Authority[44]. A **separate set** of forms must be completed for each shipment of specimens shipped together as part of one load[45]. Where shipments contain **more than one species**, forms for an **annex** must be obtained and completed[46].

Special **codes** and **standard references** must be used when filling the information in permits and certificates[47] - see Annexes of this Guide as detailed below:

- Codes for the **description of the specimens and units of measurement**, e.g. kg, m², number of individuals/pieces (see **Annex VI**);
- Standard references to indicate the **scientific name** of species (see **Annex VII**);
- Codes for the indication of the **purpose** of the import (see **Annex VIII**), and
- Codes for the indication of the **source** of the specimens (see **Annex IX**).

Instructions for completing the forms can be found on the back of the original application form and all copies (see below and also **Figure 2** for the import permit form). The **omission of information** from the application must be justified to the relevant Management Authority[48].

Where an **annex** is attached to a permit, this annex as well as the number of pages must be clearly indicated on the permit. Each annexed page must include the number of the permit and the signature and stamp or seal of the issuing authority[49]. Annexes may also contain lists of numbers of identification marks (rings, tags and the like) for which there is no prescribed form.

The completed form(s) must be submitted to the **Management Authority of the Member State of destination,** together with the **documentary evidence** and information needed to allow the Management Authority to determine whether a permit may be issued[50] (see **Section 3.3.2**). The most important documentary requirement for trade in **Appendix I- or II-listed species** is an **export permit, re-export certificate, or copy thereof**, which must **accompany the shipment**[51].

Member States may require the payment of a **fee** for processing the application.

Permits may be issued in paper format or in electronic format[52].

Upon import of the shipment, the importer (or their authorised representative) must present all documents to Customs for clearance[53]. The Customs office will complete box 27 of the original import permit (form 1) and the "copy for the holder" (form 2). The "copy for the holder" will be returned to the importer and can serve as proof

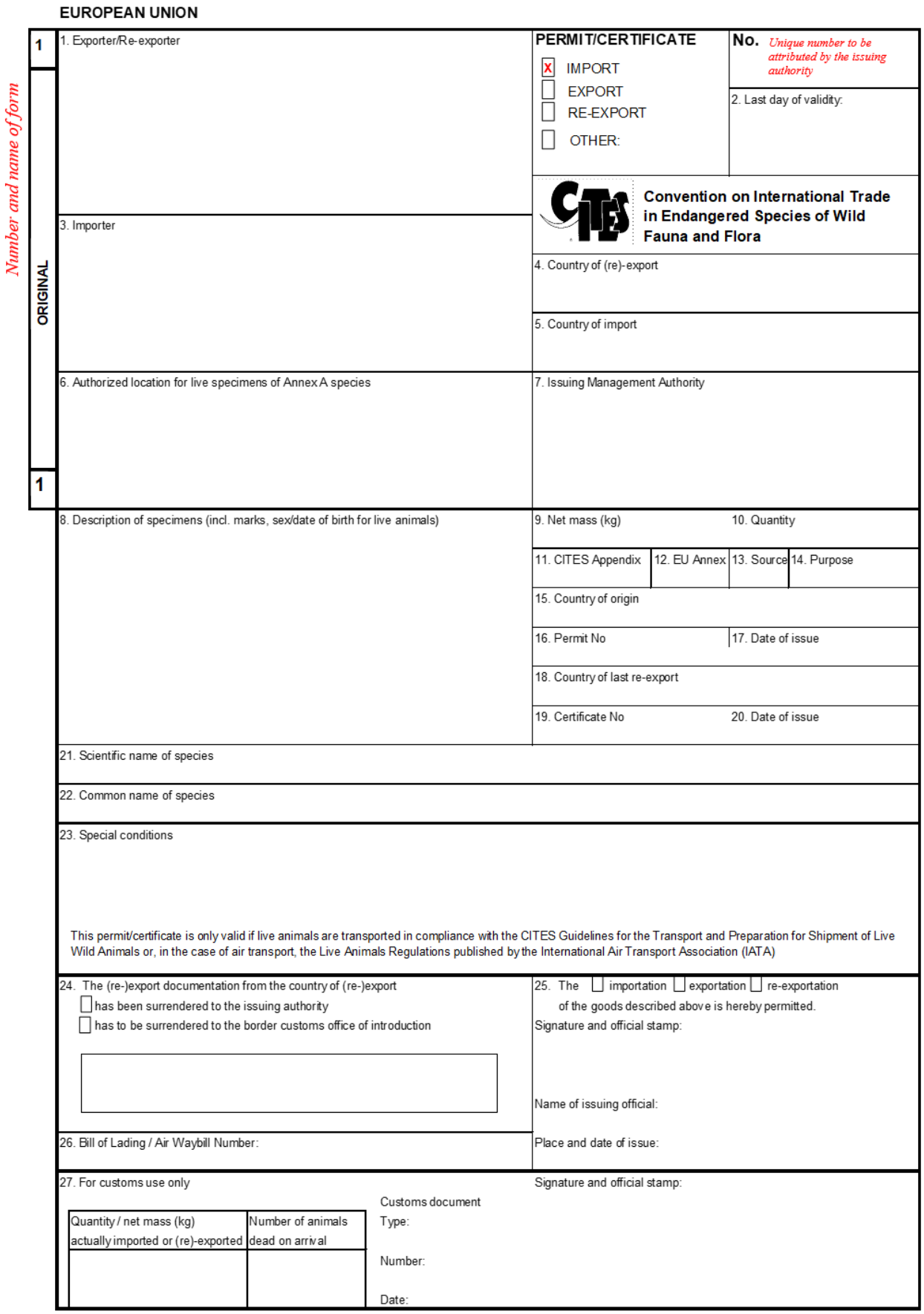
43. Article 20(1) *Regulation (EC) No 865/2006*
44. Article 4(2) *Regulation (EC) No 865/2006*
45. Articles 9 and 20(1) *Regulation (EC) No 865/2006*
46. Article 6(2) *Regulation (EC) No 865/2006*
47. Article 5* Regulation (EC) No 865/2006*
48. Article 20(2) *Regulation (EC) No 865/2006*
49. Article 6(1) *Regulation (EC) No 865/2006*
50. Article 20(2) *Regulation (EC) No 865/2006*
51. Article 4(1)(b) *Regulation (EC) No 338/97*
52. Article 8(1) *Regulation (EC) No 865/2006*
53. Article 22* Regulation (EC) No 865/2006*

of the legal import at a later stage[54]. The original import permit (form 1) as well as the export permit or re-export certificate from the country of export will be forwarded to the relevant Management Authority of the Member State[55].

> **Summary of key instructions and explanations for import permit forms**
>
> (Note: For full instructions and explanations, see Annex I to *Regulation (EC) No 792/2012*. The numbers below refer to the numbers of the boxes on the form - see also **Figure 2**.)

54. Article 23* Regulation (EC) No 865/2006*
55. Article 45 *Regulation (EC) No 865/2006*

Figure 2: Annotated import permit form



EUROPEAN UNION

Number and name of form

1 ORIGINAL 1

1. Exporter/Re-exporter

PERMIT/CERTIFICATE
[X] IMPORT
[ ] EXPORT
[ ] RE-EXPORT
[ ] OTHER:

No. *Unique number to be attributed by the issuing authority*

2. Last day of validity:

Convention on International Trade in Endangered Species of Wild Fauna and Flora

3. Importer

4. Country of (re)-export

5. Country of import

6. Authorized location for live specimens of Annex A species

7. Issuing Management Authority

8. Description of specimens (incl. marks, sex/date of birth for live animals)

9. Net mass (kg)

10. Quantity

11. CITES Appendix | 12. EU Annex | 13. Source | 14. Purpose

15. Country of origin

16. Permit No

17. Date of issue

18. Country of last re-export

19. Certificate No

20. Date of issue

21. Scientific name of species

22. Common name of species

23. Special conditions

This permit/certificate is only valid if live animals are transported in compliance with the CITES Guidelines for the Transport and Preparation for Shipment of Live Wild Animals or, in the case of air transport, the Live Animals Regulations published by the International Air Transport Association (IATA)

24. The (re-)export documentation from the country of (re-)export
[ ] has been surrendered to the issuing authority
[ ] has to be surrendered to the border customs office of introduction

25. The [ ] importation [ ] exportation [ ] re-exportation of the goods described above is hereby permitted.
Signature and official stamp:

Name of issuing official:

26. Bill of Lading / Air Waybill Number:

Place and date of issue:

27. For customs use only

Quantity / net mass (kg) actually imported or (re)-exported	Number of animals dead on arrival

Customs document
Type:
Number:
Date:

Signature and official stamp:

1. **Exporter/re-exporter:** Must contain the full name and address of the actual exporter or re-exporter and not of an agent.
2. **Last day of validity**: No later than 12 months from date of issue.
3. **Importer**: Must contain the full name and address of the actual importer and not of an agent.
4. **Country from which the goods are to be (re-) exported**: The country of export can only be the country of origin of the specimens, i.e. where they were taken from the wild, bred or propagated, see 15.
5. The **Member State of final destination** of the specimens.
6. **Authorised location for live specimens of Annex A-listed species**: The proposed housing location for live specimens of Annex A-listed species, other than captive-bred or artificially-propagated specimens must be mentioned on the application form only. The issuing authority will decide whether or not this location will be prescribed, in which case any movement of the specimens requires prior authorization.
7. **Issuing Management Authority**: The Management Authority of the Member State of the final destination of the specimens.
8. **Description of specimens**: This description must be as precise as possible and include a 3-letter code in accordance with **Annex VII** to *Regulation (EC) No 865/2006*.
9. **Net mass**: See **Annex VII** to *Regulation (EC) No 865/2006* for units to be used.
10. **Quantity**: See **Annex VII** to *Regulation (EC) No 865/2006* for units to be used.
11. **CITES Appendix**: I, II or III.
12. **EU Annex**: A or B.
13. **Source** of specimens: Use codes in Annex IX of *Regulation (EC) No 865/2006* (as amended).
14. **Purpose** of import: Use codes in Annex IX of *Regulation (EC) No 865/2006* (as amended).
15. **Country of origin**: Country where specimens were taken from the wild, bred or propagated, see 4. In the case of plant specimens that were formerly exempt from CITES controls (e.g. Appendix II-listed seeds or artificially-propagated flasked seedlings) but that ceased to be exempt (e.g. because they were grown further), the country of origin is that country where the exemption ceased to apply.
16. **Permit no.**: Provide the number of the relevant export permit.
17. **Date of issue**: Provide the date of the relevant export permit.
18. **Country of last re-export:** Re-exporting country from which import takes place, see 4.
19. **Certificate no.**: Provide details of the re-export certificate.
20. **Date of issue**: Provide details of the re-export certificate.
21. **Scientific name of species:** The standard references for nomenclature in **Annex VIII** to *Regulation (EC) No 865/2006* must be used. These are also available on the UNEP-WCMC website.
22. **Common name of species:** A common name may not be available for all species.

23. **Special conditions** (for official use only)**:** Space for the issuing authority to impose stipulations, conditions and requirements in order to ensure compliance with EU and national legislation. Where plant specimens were formerly exempt and ceased to be so, as described for **box 15** above, **box 23** shall include the statement “Legally imported under exemption from the provisions of CITES”, and shall specify which exemption applied.

24. **Surrender of documentation** (for official use only)**:** Where the original of the (re-)export document is available at the time of application, it will be held by the issuing authority. Where this is not the case, the original must be handed in to Customs. Space is provided to indicate details about the authority that has issued the (re-)export documents in order to facilitate this task for Customs.

25. This is the actual validation of the import permit (for official use only).

26. **Bill of Lading/Air Waybill no.:** To be indicated by the importer at the time of importation.

27. To be completed by the Customs office of introduction into the Union. **Quantity/net mass (kg) actually imported**: If more than in **box 9** or **10**, Customs will contact the Management Authority.

    Number of animals dead on arrival: Only relevant for shipments of live animals.

    After completion, Customs will return the original (form 1) to the Management Authority in their country and return the “copy for the holder” to the importer (form 2). The latter document serves as proof that the specimens concerned have been legally imported.

3.3.2 What documentary evidence is required by the Management Authority for imports?

For specimens coming from outside the EU, the provisions governing the documentary evidence required for their import are determined largely by the relevant provisions of CITES. The most important documentary requirement for trade in **Appendix I- or II-listed species** is an **export permit, re-export certificate, or copy thereof**, which must **accompany the shipment**[56].

In the case of Appendix I-listed species, an export permit or re-export certificate cannot be issued by the Management Authority of the country of (re-)export until the importing Member State has issued an import permit. However, the original of the import permit is withheld by the Management Authority pending presentation of the export permit or re-export certificate[57]. The importer should therefore obtain the “copy for the exporting or re-exporting country” of the import permit, or a written statement from the Management Authority that an import permit will be issued, and under which conditions[58]. On that basis the (re-)exporter can obtain the (re-)export document from the country of export/re-export. Export permits and re-export certificates issued by third countries are to be accepted only if issued by the Management Authority officially designated as competent by the exporting or re-exporting Party.

Where an export document concerns specimens of species that are subject to voluntarily **fixed annual export quotas**, or quotas allocated by the CITES Conference of the Parties, the document will only be accepted if it mentions the **total annual quota for the species** concerned, and **the total number of specimens already exported** - including those covered by the permit concerned[59]. To ascertain whether such quotas exist, and whether or not they have been accepted as meeting the conditions for import, check the CITES website or the Species+ website maintained by UNEP-WCMC.

56. Article 4(1)(b) *Regulation (EC) No 338/97*
57. Article 4(1)(b)(ii) *Regulation (EC) No 338/97*
58. Article 21 *Regulation (EC) No 865/2006*
59. Article 7(2) *Regulation (EC) No 865/2006*

Export permits and re-export certificates must be **endorsed**, with quantity, signature and stamp, by an official from the **export or re-export country**, in the export endorsement block of the document. If the export document **has not been endorsed** at the time of export, the Management Authority of the importing country should liaise with the exporting country's Management Authority to determine the acceptability of the document. Any extenuating circumstances or documents may be considered.[60]

For **Appendix III-listed** species, where export is from the **country having listed the species** in Appendix III, an **export permit** is required[61]. Where export is from any **other country**, a **certificate of origin** is sufficient[62]. However, for **re-exported** specimens of Appendix III-listed species, a **re-export certificate** will be needed[63].

Export permits and re-export certificates issued by third countries will be accepted only if the competent authority from the third country concerned provides, where requested to do so, **satisfactory information that the specimens were obtained in accordance with the legislation** on the protection of the species concerned[64]. Especially, this should be applied when timber and the *"EU Timber Regulation*[65]*"* (see Article 3 of that Regulation) are concerned. The European Commission has, in cooperation with the competent CITES Management Authorities of the EU Member States, compiled and published guidance on 'the verification of legality in timber trade', which aims to assist EU Member States and stakeholders in case of doubts as to the legality of timber from CITES-listed species imported into the EU.

In all cases, the (re-)export documents from third countries must use the scientific standard references, source and purpose codes referred to in Article 5 of *Regulation (EC) No 865/2006*[66] and in the annexes to this Guide.

Re-export certificates will only be accepted if they specify the **country of origin** of the specimens –i.e. the country from which they were taken from the wild, bred in captivity or artificially propagated- and the number and date of issue of the relevant **export permit**. Where applicable, the **country of last re-export** and the number and date of the relevant **re-export certificate** must be specified. If this information is not provided, the re-export certificate must contain a satisfactory justification for the omission[67].

3.3.3 What other conditions or requirements apply to imports into the EU under the EU Wildlife Trade Regulations?

In general, specimens of species listed in **Annex A cannot be imported for primarily commercial purposes**[68] (except for relevant derogations as set out in **Section 4**).

Imports of specimens of species listed in **Annexes A and B** are **never allowed** if such an import would have a **detrimental conservation effect**[69] - this is explained in more detail in **Section 3.3.9.3.**

60. Article 7(5) *Regulation (EC) No 865/2006*
61. Article 4(3)(a) *Regulation (EC) No 338/97*
62. Article 4(3)(b) *Regulation (EC) No 338/97*
63. *As above. *For Appendix III-listed species also included in Annex A or B, a (re-)export permit is required.
64. Article 7(6) *Regulation (EC) No 865/2006*
65. *Regulation (EU) No 995/2010* of the European Parliament and of the Council of 20 October 2010.
66. Third country documentation requirements apply equally to CITES Parties and to non-Parties. This is based on Article X of the Convention, which requires that trade with non-Parties must take place on the basis of comparable documentation, which substantially conforms with the requirements of the Convention.
67. Article 7(3) *Regulation (EC) No 865/2006*
68. Article 4(1)(d) *Regulation (EC) No 338/97*. This includes ranched specimens and so-called source "F" specimens – i.e. specimens born in captivity but not meeting the formal definition of captive-bred/artificially-propagated.
69. Articles 4(1)(a)(i) and 4(2)(c) *Regulation (EC) No 338/97*

Import permits should not be issued by Member States in cases where, despite a request to this end, they do not obtain **satisfactory information** from the exporting or re-exporting country as to the **legality of the specimens** to be imported into the EU[70].

Some specimens intended for import into the EU[71] must be **marked** in accordance with Article 66(6) of *Regulation (EC) No 865/2006* (see **Section 7**).

For live specimens, the **adequacy of proposed housing** needs to be considered. The **intended location** must be specified in **box 6** of the application form for an import permit where **Annex A specimens are concerned**, except those which have been captive-bred or artificially-propagated[72]. In the case of species with particular housing requirements, this location may be prescribed as the only authorised location for keeping the specimens. A **detailed description of the intended housing facilities** must be submitted, together with the application for **all Annex A- and B-listed** species in order to allow the competent authorities (Scientific Authority for Annex A, and Scientific or Management Authority for Annex B to judge their adequacy[73].

Furthermore, the **transport of live specimens** must be in accordance with Article 9(5) of *Regulation (EC) No 338/97,* which states that: *"When any live specimens are transported into, from or within the Community or are held during any period of transit or transhipment, they shall be prepared, moved and cared for in a manner such as to minimise the risk of injury, damage to health or cruel treatment and, in the case of animals, must be in conformity with Community legislation on the protection of animals during transport"* (see **Section 6.1**).

The transport of all live animals from, into and within the EU is governed by *Council Regulation (EC) No 1/2005 of 22 December 2004 on the protection of animals during transport and related operations*[74]. However, this does not apply to transport within the EU of animals for distances of less than 50 kilometres nor to the movement of personal pets.

CITES *Resolution Conf. 10.21 (Rev. CoP19) on the Transport of Live Specimens* recommends that the *IATA*[75] *Live Animals Regulations* (for animals), the *IATA Perishable Cargo Regulations* (for plants) and the *CITES guidelines for the non-air transport of live wild animals and plants*[76] be deemed to meet CITES transport requirements and should be followed by all CITES Parties as well as (relevant sections) incorporated into national legislation or policies (see **Section 6** for further information). *Regulation (EC) No 1/2005* provides that animals transported by air must be transported in containers, pens or stalls appropriate for the species, which comply with the *IATA Live Animals Regulations*[77].

In view of the sanctions for non-compliance, it is essential that importers of live specimens adequately inform their (re-)exporters about these transportation requirements (see also **Section 6.1**).

For **import (or re-export) of live rhinoceroses or live elephants from populations listed in Annex B,** permits and certificates will contain a condition stating that horn or ivory from those animals or from their progeny may not enter commercial trade or commercial activities within the EU, in accordance with Article 5b of *Regulation (EC) No 865/2006.*

70. Paragraph (3) of Recitals to *Regulation (EU) No 2015/870 *and Article 7(6) *Regulation (EC) No 865/2006*
71. Articles 20(4) and 64(1) *Regulation (EC) No 865/2006*
72. Ranched specimens and so-called source "F" specimens – i.e. specimens born in captivity but not meeting the formal definition of captive-bred/artificially-propagated are not exempted from this requirement.
73. Articles 4(1)(c) and 4(2)(b) *Regulation (EC) No 338/ 97*
74. OJ No. L 3 of 5.1.2005, p.1
75. International Air Transport Association (IATA)
76. https://cites.org/sites/default/files/eng/resources/transport/E-FINAL*CITES*Non-air*transport*Guidelines.pdf
77. Annex I, Chapter II (paragraph 4.1)

3.3.4 What happens if an import application is rejected?

(See also **Section 3.5.4** for similar information on export applications.)

When a Member State rejects an application for an import permit in a case of "**significance**" (in terms of the objectives of the Regulations), it must immediately **inform the Commission** of the rejection and the **reasons** for which it was rejected. The Commission must then **communicate this information to other Member States** to ensure that the Regulation **can be applied uniformly** across the EU[78].

Applicants must be **informed** of the **rejection** of an application, and the **reasons** for which it was rejected. The Management Authority should also inform the **(re-)exporting country** and the **CITES Secretariat,** when the rejection is related to the (re-)export document presented.

One of the reasons why import permit applications are sometimes rejected is that the relevant species and country are subject to a **trade suspension** by the Commission. This is dealt with further in **Section 3.3.9.**

Member States are also obliged to reject applications for import permits for **caviar and meat** of **sturgeon and paddlefish** species (Acipenseriformes spp.) from shared stocks, unless export quotas have been established for the species in question in accordance with the procedure laid down by the Conference of the Parties[79]. Details of current quotas may be found on the CITES Secretariat's website at http://www.cites.org/eng/resources/quotas/index.php.

Applicants must inform a Management Authority of **previously rejected applications** for permits relating to specimens[80]. The application form contains a pre-printed declaration by the applicant indicating that the application has not been previously rejected. This is also valid if a Management Authority of another EU Member State rejected the application.

3.3.5 Are there other requirements that can apply?

When a permit is issued, it may contain **stipulations, conditions and requirements** imposed by the issuing authority, in order to ensure compliance with the Regulations and national legislation on their implementation[81]. The use of the document issued is subject to **other necessary formalities** relating to the introduction of goods into the EU or to the documents issued for such formalities (Customs, veterinary, etc.)[82]. (See **Section 3.5.5** for similar information on (re-)exports.)

3.3.6 How long do import documents remain valid?

(See also **Section 3.5.6** for similar information on (re-)exports.)

The maximum time validity of an import permit is **12 months** (see **Section 8.2**). However, in the case of **caviar** of **sturgeon and paddlefish** species (Acipenseriformes spp.) that originated from **shared stocks** that are subject to **export quotas**, there is an additional stipulation that the permit ceases to be valid at the latest on **the last day of the year** to which the quota applies (i.e. the quota year in which the caviar was harvested and processed)[83].

78. Article 6(1) and (2) *Regulation (EC) No 338/97*
79. Article 20a *Regulation (EC) No 865/2006*
80. Article 20(3) *Regulation (EC) No 865/2006*
81. Article 8(1) *Regulation (EC) No 865/2006*
82. Article 8(2) *Regulation (EC) No 865/2006*
83. Article 10(2) *Regulation (EC) No 865/2006*

The corresponding document from the **(re-)exporting country** will only be considered valid when:

- it has been issued and **used** for (re-)export **before its last day of validity**, and
- when the introduction into the EU takes place **within six months from its date of issue**[84].

If expired, an import permit is considered void and of no legal value; it must be returned without delay to the issuing Management Authority. These expired documents may be replaced by a new document, which must indicate the number of the replaced document and the reason for its replacement. This also applies to lost, stolen, destroyed or cancelled documents[85]. Unused permits must also be returned to the Management Authority[86].

Exceptionally, documents may be issued **retrospectively**[87] (see **Section 8.3**).

3.3.7 What happens at the point of introduction into the EU?

At the time of introduction into the EU, the importer – or their authorised representative – must surrender to the border Customs office at a designated point of introduction (see **Section 3.6**)[88]:

- The **original** of the permit;
- The "**copy for the holder**" and,
- Where this is indicated in the import permit, the valid **document from the (re-)exporting country.**

Where appropriate, the number of the **Bill of Lading** or **Air Waybill** must be indicated in **box 26** of the import permit.

Export permits and re-export certificates will be endorsed, with quantity, signature and stamp, by an official from the export or re- export country, in the export endorsement block of the document. If the export document has not been endorsed at the time of export, the management authority of the importing country should liaise with the exporting country's management authority, considering any extenuating circumstances or documents, to determine the acceptability of the document.[89]

The Customs office will carry out the **necessary checks** (as also described in **Sections 3.3.2**, and **3.5.7**), including:

- a review of the documents accompanying the shipment, and
- where required by law or otherwise, the representative sampling of the shipment (i.e. examination of the specimens and, where appropriate, taking of samples for analysis or more detailed checks).

When the shipment and required documentation are in order, the Customs office completes **box 27** of the **original** and the "**copy for the holder**", returns the **latter to the importer** (for later proof of legal importation) and sends the **original** - together with the document from the (re-)exporting country - to the **Management Authority of their country**[90]. This Management Authority must then, in turn, forward the documentation to the **Management Authority of the Member State which has issued the permit** (if different)[91]. It is crucial that the

84. Article 14 *Regulation (EC) No 865/2006*
85. Article 12(1) *Regulation (EC) No 865/2006*
86. Article 10(6) *Regulation (EC) No 865/2006*
87. Article 15(1) *Regulation (EC) No 865/2006*
88. Articles 22 *Regulation (EC) No 865/2006*
89. Article 7(5) *Regulation (EC) No 865/2006*
90. Articles 23 and 45(1) *Regulation (EC) No 865/2006*

original is returned to the issuing Management Authority so that it knows whether the import has actually taken place. This in turn ensures that accurate and actual trade data is provided in the Annual Reports (see **Section 10**).

The part of the import permit to be completed by Customs must also contain information on the **number of dead animals** in the shipment at the time of arrival (see **Figure 2, box 27**). This is important in view of the possible need to improve transport conditions, or to restrict trade in live animals of species that are subject to high transport mortality[92].

Should there be a problem with the shipment (e.g. lack of documentation), the Customs office must consult with the Management Authority in that country to find a solution. **Until the necessary documents are available, specimens will not be authorised to be assigned to a Customs procedure**[93] (see also **Section 3.6**).

3.3.8 Use of import documents as proof of legal importation

After the necessary Customs checks at the point of entry have been completed and the shipment has been cleared for import, the importer will receive from the Customs office the "**copy for the holder**" of the import document (yellow document). This document can be used for **later proof of legal importation** into the EU, which **may be required for internal trade or subsequent re-exports** from the EU (see **Section 3.5** and **4.5**).

The copy for the holder will cease to be valid as proof of legal importation when[94]:

- live specimens referred to in the import document have **died, escaped or been released into the wild**;
- specimens have been **destroyed**, or
- any of the entries in the following boxes no longer reflect the accurate situation (see **Figure 2**):
  - **Box 3** ("**Name and address of importer**" – this is relevant only for specimens of Annex A species);
  - **Box 6** (**authorised location** for specimens of Annex A species), and
  - **Box 8** (**description** of the specimens).

In these cases, the copy must without undue delay **be returned to the issuing Management Authority**, which, where appropriate, may issue a certificate reflecting the changes[95].

91. Article 45(2) *Regulation (EC) No 865/2006*
92. For example, see Article 4(6)(c) *Regulation (EC) No 338/97*
93. Article 13(2) *Regulation (EC) No 865/2006*
94. Article 11(1) *Regulation (EC) No 865/2006*
95. Article 11(5) *Regulation (EC) No 865/2006*

3.3.9 Can the European Commission prohibit imports of species listed in Annexes A and B? What is the significance of Negative Opinions of the Scientific Review Group?

3.3.9.1 Overview

Article 4(6) of *Regulation (EC) No 338/97* provides the Commission with the legal authority to **prohibit imports** into the EU with regard to certain species and countries. These import prohibitions must be adopted by the whole EU. It is therefore essential that import prohibitions are uniformly implemented, i.e. it must be ensured that, at any moment in time, all Member States issue or do not issue import permits for a given species exported from a given country.

Prohibitions of imports into the EU of certain species from certain countries of origin are usually decided after the **Scientific Review Group (SRG)** (see **Section 9.2.2**) has formed a "**Negative Opinion**" on the import of a species from a particular country, and has **consulted with the relevant range State(s)** on the matter. A Negative Opinion is formed if the imports are deemed to have a harmful effect on the conservation status of the species; once a Negative Opinion is issued, import permits cannot be granted for the species from the particular range State.

Negative Opinions by the SRG are of a temporary nature and may be lifted immediately when new information on the trade or conservation status of the species in the country of concern is provided and addresses concerns raised. However, if such imports continue to be of concern and the range State in question has not provided information proving otherwise, the European Commission can prohibit imports on a long-term basis by adopting the so-called "Suspensions Regulation" which is published in the Official Journal of the European Union.

- A Negative Opinion may be triggered by concerns raised by one or more Member State or by the SRG with regard to the conservation impact of trade in a species from a particular range State, following an assessment of compliance with the relevant conditions contained in Article 4(1) and (2) of *Regulation (EC) No 338/97*.

Longer-term prohibitions of import do not always require the prior establishment of a Negative Opinion by the SRG, and the Commission may **also establish an import prohibition in the following cases** (see also **Section 3.3.9**):

- for species listed in **Annex A or B**, on the basis of other factors relating to the conservation of the species which militate against import into the EU[96];
- if it concerns **live** specimens of **species** listed in **Annex B** which have a **high mortality rate** during **transportation** or are unlikely to survive in **captivity** for a considerable proportion of their potential life span[97]; or
- if it concerns **live** specimens of species that present an **ecological threat** to wild species of fauna and flora indigenous to the EU[98] - the species currently subject to an import restriction on these grounds is the Painted Turtle (*Chrysemys picta*),[99].

96. Article 4(6)(a) and (b) *Regulation (EC) No 338/97*
97. Article 4(6)(c) *Regulation (EC) No 338/97*
98. Article 4(6)(d) *Regulation (EC) No 338/97*
99. Commission Implementing Regulation (EU) 2025/6 *prohibiting the introduction** into the Union of specimens of* ***certain species of wild fauna and flora *(the*** *Suspensions Regulation**).

3.3.9.2 What criteria are considered by Scientific Authorities and the SRG when making non-detriment findings, deciding on import prohibitions and forming Negative Opinions?

One of the tasks of the Scientific Authority under Article 4(1) or (2) of *Regulation (EC) No 338/97* is to advise its Management Authority on whether the import of certain specimens of species listed in Annex A or B is likely to have a harmful effect on the conservation of the species (see also the tabular summary in **Table 10**). This is termed a "non-detriment finding" (NDF) and is also a requirement under CITES for imports of Appendix I species. The *Guidelines on Duties and Tasks of the Scientific Authorities and Scientific Review Group under Regulation (EC) No 338/97 and Regulation (EC) No 865/2006* updated on 22 May 2025 (see **Annex XII of this Guide** and its attachments) present a more detailed overview of the factors and conditions that must be considered by a Scientific Authority when making NDFs, as appropriate. They include for example:

- **Species characteristics** (life history characteristics, habitat adaptability, migratory/shared populations, risk of mortality after capture and before export);
- **Biological and conservation status** (abundance, present/past distribution, population structure, status and trend, conservation status, quality of data, genetic status/diversity);
- **Harvest characteristics** (types, volumes, segment of population, trends, data quality, conversion characteristics, (irreversible) effects of the harvest on the habitat) and
- **Management regime** (aims of management regime, measures currently in place / proposed, adaptive management strategies, levels of compliance, tenure, effectiveness, % harvested vs. effectively protected)

In addition, they include questions related to whether there are any other factors that mitigate against the issuance of an import permit, such as serious concerns about the veracity of statements on the export permit, unbelievable claims relating to the length of time that the specimens are said to have been in a third country prior to re-export, and unrealistic captive-breeding claims and/or discrepancies in details of captive breeding.

Regarding the import of **Annex A** specimens, the Management Authority must also be satisfied that the import is taking place for **certain purposes only** and must consult the Scientific Authority in this regard. For example, the import may be taking place for **breeding or propagation** purposes that will have **conservation benefits** for the species, or for other purposes which are not detrimental to the conservation of the species, such as well-managed **trophy hunting programmes** (see **Annex XII** of this Guide)[100].

3.3.9.3 How are Negative Opinions and import restrictions established?

The usual procedures for the establishment of a Negative Opinion and, where necessary, a subsequent import prohibition for species listed in Annex A or B is described in the following paragraphs (see also **Figure 3**).

Step 1: Making a non-detriment finding at the national level

If a Scientific Authority of a Member State advises its Management Authority under Article 4(1) or (2) of *Regulation (EC) No 338/97* not to authorise imports of certain specimens on the basis that to allow such imports would be **detrimental to the conservation of the species**[101], it must be immediately ensured that no import permits are issued on the basis of Article 4(1) or (2) by any of the other Management Authorities in the EU. The Commission must therefore be informed immediately of any decision taken by a Management Authority not to authorise a particular import on this basis (**Letter A** in **Figure 3**) and, in turn, must instruct all other Member

100. Article 4(1)(a)(ii)* Regulation (EC) No 338/97.*
101. Article 4(1)(a)(i) *Regulation (EC) No 338/97.*

States to refrain from issuing import permits under Article 4(1) or (2) until the advice of the other Scientific Authorities can be sought, for example, by a written procedure or in a meeting of the SRG (**Letter B** in **Figure 3**).

In other cases where a Management Authority has decided to refuse the import of certain specimens under Article 4(1) or (2) (i.e. for reasons other than detriment to the conservation status of the species), the Management Authority must immediately inform the Commission of the rejection and the reasons for the rejection **in cases of significance in respect of the objectives of the EU Wildlife Trade Regulations**[102] (see also **Section 3.3.4** above). The Management Authority has the discretion to decide what is "significant" for these purposes.

Step 2: Uniform application at the EU level

Once EU Member States have been advised by the Commission to refrain from issuing import permits for a particular species/country combination - for example in response to the negative advice of a Scientific Authority of an EU Member State - the advice of the other Scientific Authorities in the EU (e.g. by a written procedure and/or in a meeting of the SRG) is sought (**Letter C** in **Figure 3**).

If the initial negative advice of the national Scientific Authority **is confirmed, the SRG forms a Negative Opinion**. This means that the species is in trade or is likely to be in trade and that introduction into the EU from the country of origin at current or anticipated levels of trade is likely to have a harmful effect on the conservation status of the species or the extent of the territory occupied by the species.

For as long as this Negative Opinion is in place, Member States will **reject all import permit applications** for the species/country combination of concern.

On the other hand, if the negative advice of the national Scientific Authority **is not confirmed** by the other Scientific Authorities, and the SRG concludes that the import will not be detrimental to the conservation status of the species concerned (a "non-detriment finding" has been made), it may decide whether enough evidence is available to form a **Positive Opinion** and imports can be **resumed** (**Letter D** in **Figure 3**). A Positive Opinion remains valid for subsequent import permit requests as long as the conservation and trade status of the species concerned have not changed significantly. To ensure that adequate monitoring takes place and that trade into the EU does not contribute to the decline of any species in the wild, Management Authorities consult their Scientific Authorities on every application or, at least, to keep their Scientific Authorities informed of permits issued so that the Scientific Authority can determine when circumstances have changed or a 'non-detriment finding' should be reviewed[103].

Where a high level of scrutiny is required on the basis of conservation concern for the species, each individual application can be referred to the SRG under the decision type "SRG Referral" (see Annex IV). In these cases, individual Member States cannot make the decision whether to allow or refuse an application and must wait for feedback from the SRG for each and every application.

Opinions of the SRG come into effect immediately and do not need to go through any further approval process.

Note that Positive, Negative and SRG Referral Opinions of the SRG can also originate at meetings of the SRG, for example through the regular review of trade levels of certain species from certain countries, or of trends in annual export quotas that are established voluntarily by the country of origin.

In cases where data is **insufficient, the SRG is not in a position to issue a confident Positive or Negative Opinion.** The SRG may decide that consultation with the country or exporter scientific experts to address information gaps is appropriate. Such cases are referred to as "in consultation". The EU will consult the relevant

102. Article 6(1) *Regulation (EC) No 338/97.*

country/expert to request the necessary information. To allow time for a response, the SRG will re-consider the case after 12 months but not more than 24 months. It should be noted that “In consultation” is not a formal opinion of the SRG and can be made alongside other formal SRG opinions. It is recorded in Species+. The Scientific Authorities of the Member States continue to assess all imports on a case-by-case basis.

Where a species/country combination is discussed by the SRG but a formal SRG opinion is not adopted, a record to note that the discussion took place is reflected in both the short and detailed Summary of Conclusions of SRG meetings, and also recorded in Species+.

A **Negative Opinion may be transformed** into a Positive Opinion where the conditions for establishing a Negative Opinion no longer apply. This may be based on **information received from the country of export/ relevant range State**, but it is also possible that a non-detriment finding is made on the basis of **additional scientific information**. A **Positive Opinion can also be reversed** into a Negative Opinion by the SRG if **circumstances have changed** or **additional information** has become available.

Definitions of the three types of SRG Opinions, along with further details on when and how they are applied in practice, are included in **Annex IV of this Guide.**

In some cases, it may be necessary to set size limits for the import of certain species from specific countries and for specific source codes as tool to ensure the sustainability of harvesting and trade. To ease the enforcement, it is recommended to follow these scientifically standardized measurements, as described in Annex XVII.

Step 3: Range State consultation

When the SRG has formed a **Negative Opinion**, the **Commission then consults with the affected range State** to ask for additional biological, trade, or management information on the species of concern. If the range State then responds and provides this information, the SRG reconsiders its decision on the basis of the information received and, if this leads to a positive non-detriment finding, the Negative Opinion is transformed into a Positive Opinion and imports can be resumed (**Letter E** in **Figure 3**).

Step 4: Establishment of an official import restriction

If **no new information** is provided by the range State or other sources, or if **the information received is not sufficient** to make a non-detriment finding, the Negative Opinion will be **confirmed** and may, after consultation with the SRG, be transformed by the Commission into an **official import prohibition** through publication in the Official Journal of the European Union (**Letter F** in **Figure 3**). It is important to note that published import prohibitions are also reversible if new information is received. The official import prohibition will then enter into force once the updated “Suspensions Regulation” has been published. The Suspensions Regulation currently in force is Commission Implementing Regulation (EU) 2025/6 prohibiting the introduction into the Union of specimens of certain species of wild fauna and flora. **Where an official import restriction is established by the Commission, all Member States must reject all permit applications for as long as that restriction is in place**[104].

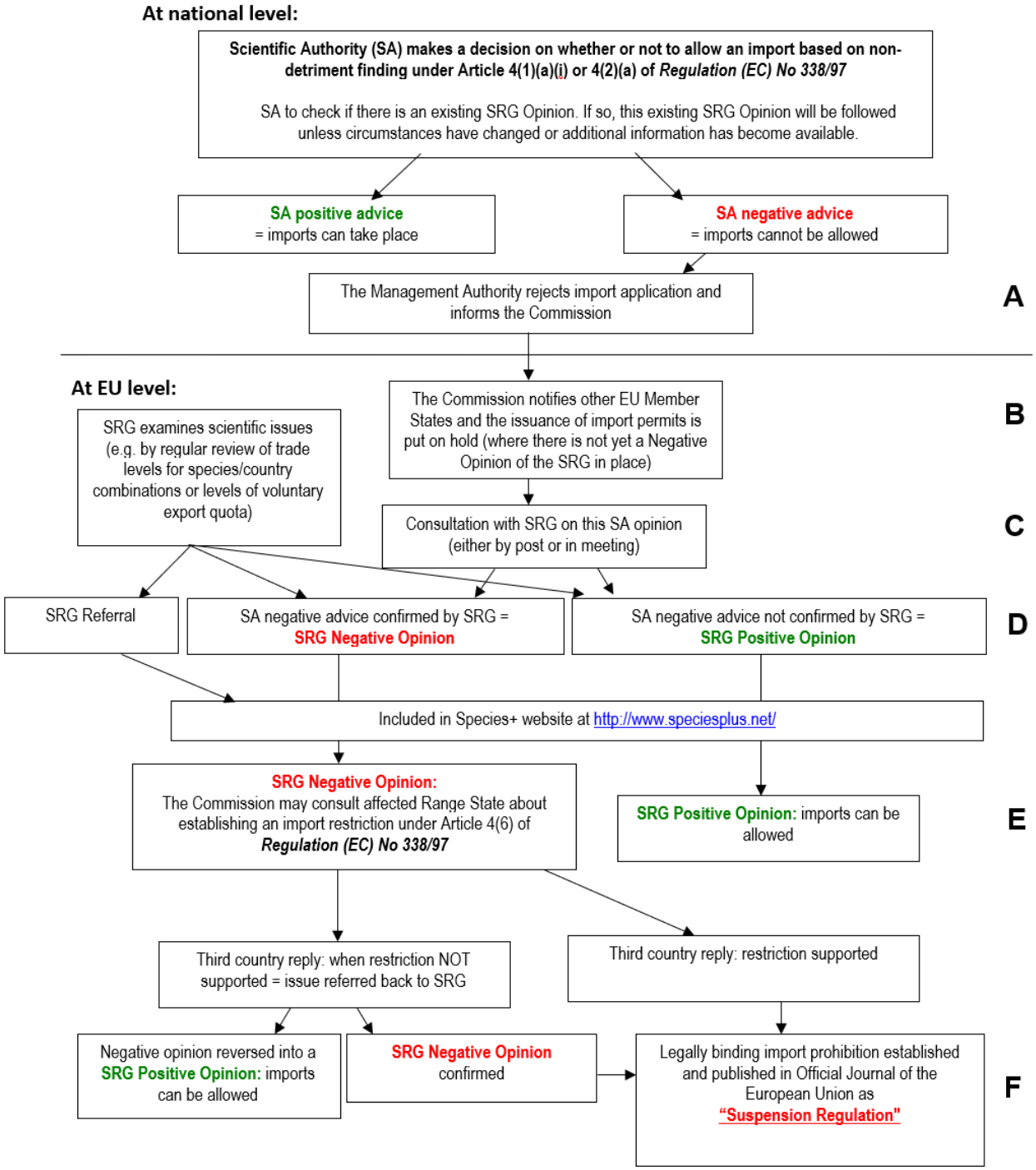
Note that in the case of import prohibitions established in respect of Annex B specimens under Article 4(6)(c) (concerns relating to high mortality rates during shipment or low prospects of survival in captivity) or (d) (specimens presenting an ecological threat), import prohibitions may be applied directly without the formation of a prior Negative Opinion by the SRG (see **Section 3.3.9.1**).

103. For definitions of SRG opinions, see **Annex IV to this Guide.**
104. Article 71(1) *Regulation (EC) No 865/2006.*

Figure 3: Overview of procedures to establish Positive and Negative Opinions and import restrictions for species listed in Annex A or B of the EU Wildlife Trade Regulations

*Letters in bold to the right of the diagram highlight stages explained in more detail above.

At national level:



Unless specifically decided otherwise, restrictions in accordance with Article 4(6) of *Regulation (EC) No 338/97* **do not apply to**[105]:

- specimens that are **born and bred in captivity** or **artificially-propagated** in accordance with the criteria laid down in Section XIII of *Regulation (EC) No 865/2006* (see **Section 4.1**);
- specimens that are being imported for **essential biomedical purposes**, for conservation-oriented **breeding/propagation programmes** or for **research or education** aimed at the preservation or conservation of the species (see **Section 5.2**); and
- specimens, alive or dead, that are part of the household possessions of persons moving into the EU to take up residence there (see **Section 4.4**).

Member States should inform **every importer** that each **application will be considered on its own merits**, and that **the absence of a Negative Opinion** or an **import restriction** at the time of the application **does not mean that a permit will be issued**. It should be advised that it would be extremely unwise to conclude definitive contracts, to pay for ordered specimens and to arrange for their shipment in the absence of an import permit or, at least, of a sufficient guarantee that a permit will be issued.

Article 71(2) of *Regulation (EC) No 865/2006* contains a "**hardship clause**" to deal with the treatment of applications that were made before an import restriction was established. It provides that an import permit may be issued:

- where an application was submitted **prior to the establishment of the restriction**, and
- where the competent Management Authority is satisfied that a **contract or order exists** for which payment has been made, or as a result of which the specimens have already been shipped.

A provision of this kind should not lead to a situation in which imports continue to take place, in spite of the fact that the conditions for import are not met. Therefore it should in general **not be used**, besides in exceptional cases, **where import permits would be rejected on the basis of concerns of conservation detriment under any normal circumstance** (see **Section 3.3.3**), and certainly not when these cases are established as a general import restriction under Article 4(6) (paragraphs (a) and (b)). To further reduce the possibility for abuse, import permits issued under this derogation will only be valid for **one month**.

3.3.9.5 Where can I access information on Negative Opinions and import restrictions?

Import restrictions under Article 4(6) are published by the Commission in the Suspensions Regulation[106]. The state of Negative Opinions and import restrictions under Article 4(6) at any given point in time can be checked on the Species+ website.

Table 10: Summary of conditions that must be fulfilled for the issue of import permits for specimens of species listed in Annexes A or B

Annex		Conditions[1]
A	B	The Commission has **not** established an **import restriction** in accordance with Article 4(6) *Regulation (EC) No 338/97*. The Scientific Review Group has **not** established a **Negative Opinion** on the import of the species and country of origin.

105. Article 71(4) *Regulation (EC) No 865/2006.*
106. Commission Implementing Regulation (EU) 2025/6- OJ L, 2025/6 (7.1.2025) (at the time of the Guide's publication – check the Official Journal or the Commission website for more recent versions).

Annex		Conditions[1]
A*		The Management Authority is satisfied that the specimens **are not to be used for primarily commercial purposes**, i.e. will be used for purposes of which the non-commercial aspects clearly predominate (Articles 4(1)(d) and 2(m) *Regulation (EC) No 338/97*). Note: This applies to **wild specimens only**; the prohibition on commercial use of Annex A specimens does not apply to captive-bred specimens (see **Sections 4.1 and 5.1**).
A*	B*	The **Scientific Authority** has advised the Management Authority of its finding (taking into account any possible Opinion of the Scientific Review Group) that: the import **would not have a harmful effect** on the conservation status of the species or the extent of the territory occupied by the species concerned (and for Annex B also "taking into account current or anticipated level of trade") (Articles 4(1)(a)(i) and 4(2)(a) *Regulation (EC) No 338/97*); Note: **for Annex B species**, the Scientific Authority does not need to advise the Management Authority of its non-detriment finding on a case-by-case basis; its advice on non-detriment is valid for subsequent imports as long as it, or the SRG, does not come to another finding (Article 4(2)(a) *Regulation (EC) No 338/97*).
A*		The **Scientific Authority** must have advised the Management Authority of its finding (taking into account any possible Opinion of the Scientific Review Group) that: the specimens are required under **exceptional circumstances for the advancement of science** or for essential biomedical purposes where the species is the only one which is suitable for those purposes and there are no specimens of the species which have been born and bred in captivity (Article 4(1)(a)(ii) (first indent) *Regulation (EC) No 338/97*); or the specimens are **intended for captive-breeding (animals) or propagation (plants)** from which conservation benefits will accrue to the species concerned (Article 4(1)(a)(ii) (first indent) *Regulation (EC) No 338/97*); or the specimens are **intended for research or education** aimed at the preservation or conservation of the species (Article 4(1)(a)(ii) (first indent) *Regulation (EC) No 338/97*); or the import is taking place **for other purposes that are not detrimental to the survival of the species** concerned (Article 4(1)(a)(ii) (second indent) *Regulation (EC) No 338/97*)[1].
A	B*	The Management Authority in consultation with the Scientific Authority is satisfied that there are **no other conservation factors against import** (Articles 4(1)(e) and 4(2)(c) *Regulation (EC) No 338/97*).
A	B*	The Scientific Authority is satisfied that the intended accommodation for live animals/plants at the place of destination is adequately equipped to conserve and care for them properly (Article 4(1)(c) *Regulation (EC) No 338/97*). Note: **for Annex B-listed specimens**, Article 4(2)(b) of *Regulation (EC) No 338/97* only requires that the applicant must provide documentary evidence that he/she has adequate housing for the specimens. The Management Authority may therefore determine this independently.
A	B*	In the case of introduction from the sea, the Management Authority is satisfied that any live specimen will be so prepared and shipped as to minimise the risk of injury, damage to health or cruel treatment.
A	B*	The applicant has provided **documentary evidence** that the **specimens were obtained in accordance with legislation** on the protection of the species concerned: for CITES specimens an export permit or re-export certificate, or copy thereof (Articles 4(1)(b) and 4(2)(c) *Regulation (EC) No 338/97*). Where a copy of an export permit or re-export certificate was the basis for the issue of an import permit, the latter will only be valid if at the time of introduction,

Annex		Conditions[1]
		it is accompanied by the valid original (re-)export document (Article 11(4) *Regulation (EC) No 338/97*).

Note: A* and B*: Does not apply to re-imports and worked specimens acquired more than 50 years before the EU Wildlife Trade Regulations came into effect, i.e. before 3 March 1947 (see **Section 4.3.1**) (Article 4(5) *Regulation (EC) No 338/97*)

3.4 How are import notifications for specimens of Annex C or D-listed species obtained?

For species listed in Annex C or D, **import notifications** are required for import into the EU[107] (see **Figure 4** for procedure).

For species listed in **Annex C and Appendix III of CITES**, **(re-)export documents must be obtained** and presented together with the import notification[108]. For **Appendix III-listed** species, where export is from the **country having listed the species** in Appendix III, an **export permit** is required[109]. Where export is from any **other country**, a **certificate of origin** is sufficient[110]. However, for **re-exported** specimens of Appendix III-listed species, a **re-export certificate** will be needed[111]. No documents are however required if the specimens originate from a population that is not included in Appendix III and Annex C (for those species where only a national population of a species is included in CITES).

The **forms** to be used for import notifications are contained in **Annex II** to *Regulation (EU) No 792/2012* and can be obtained from the competent authorities of each Member State (see also the annotated import notification in **Figure 5**). The **importer** or his/her authorised representative completes **boxes 1 to 13** of the **original** and the **copy for the importer** in accordance with the instructions given at the back of the forms, and surrenders them to a designated border Customs office at the first point of introduction into the EU[112].

Export permits and re-export certificates will be endorsed, with quantity, signature and stamp, by an official from the export or re- export country, in the export endorsement block of the document. If the export document has not been endorsed at the time of export, the management authority of the importing country should liaise with the exporting country's management authority, considering any extenuating circumstances or documents, to determine the acceptability of the document.[113]

The **transport of live specimens** must be in accordance with Article 9(5) of *Regulation (EC) No 338/97,* which states that: "*When any live specimens are transported into, from or within the Community or are held during any period of transit or transhipment, they shall be prepared, moved and cared for in a manner such as to minimise the risk of injury, damage to health or cruel treatment and, in the case of animals, must be in conformity with Community legislation on the protection of animals during transport* (see **Section 6.1**)."

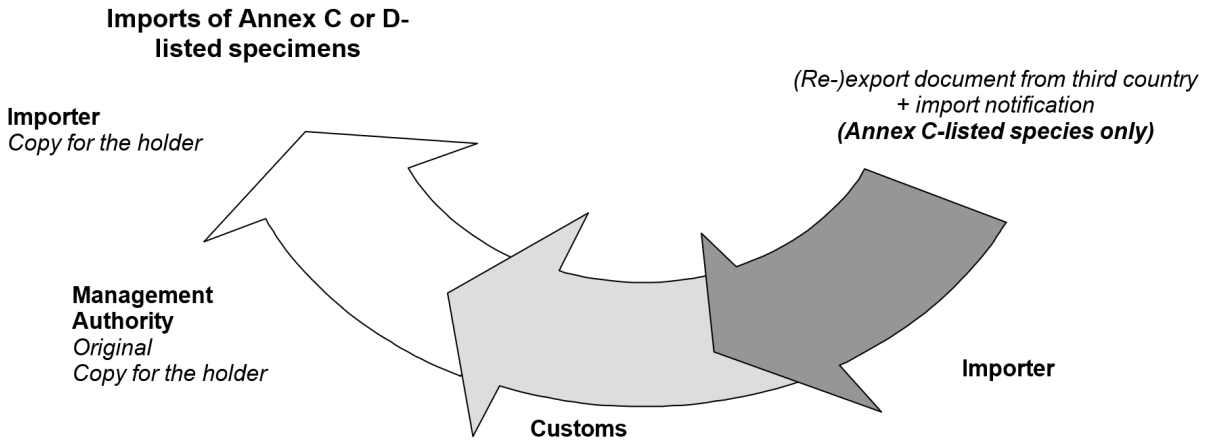
107. Articles 4(3) and 4(4) *Regulation (EC) No 338/97.*
108. Article 4(3)(a) *Regulation (EC) No 338/97.*
109. Article 4(3)(a) *Regulation (EC) No 338/97*
110. Article 4(3)(b) *Regulation (EC) No 338/97*
111. *As above.*
112. Article 24(1) *Regulation (EC) No 865/2006*
113. Article 7(5) *Regulation (EC) No 865/2006*

As described above in **Section 3.3.3**, the transport of all live animals from, into and within the EU is governed by *Council Regulation (EC) No 1/2005 of 22 December 2004 on the protection of animals during transport and related operations*. However, this does not apply to transport within the EU of animals for distances of less than 50 kilometres nor to the movement of personal pets.

CITES *Resolution Conf. 10.21 (Rev. CoP19) on the Transport of Live Specimens* recommends that the *IATA Live Animals Regulations* (for animals), the *IATA Perishable Cargo Regulations* (for plants) and the CITES guidelines for the non-air transport of live wild animals and plants be deemed to meet CITES transport requirements and should be followed by all CITES Parties as well as (relevant sections) incorporated into national legislation or policies (see **Section 6** for further information). *Regulation (EC) No 1/2005* provides that animals transported by air must be transported in containers, pens or stalls appropriate for the species, which comply with the *IATA Live Animals Regulations*[114].

In view of the sanctions for non-compliance, it is essential that importers of live specimens adequately inform their (re-)exporters about these transportation requirements (see also **Section 6.1**).

Figure 4: A simplified procedure for the import of Annex C or D-listed specimens

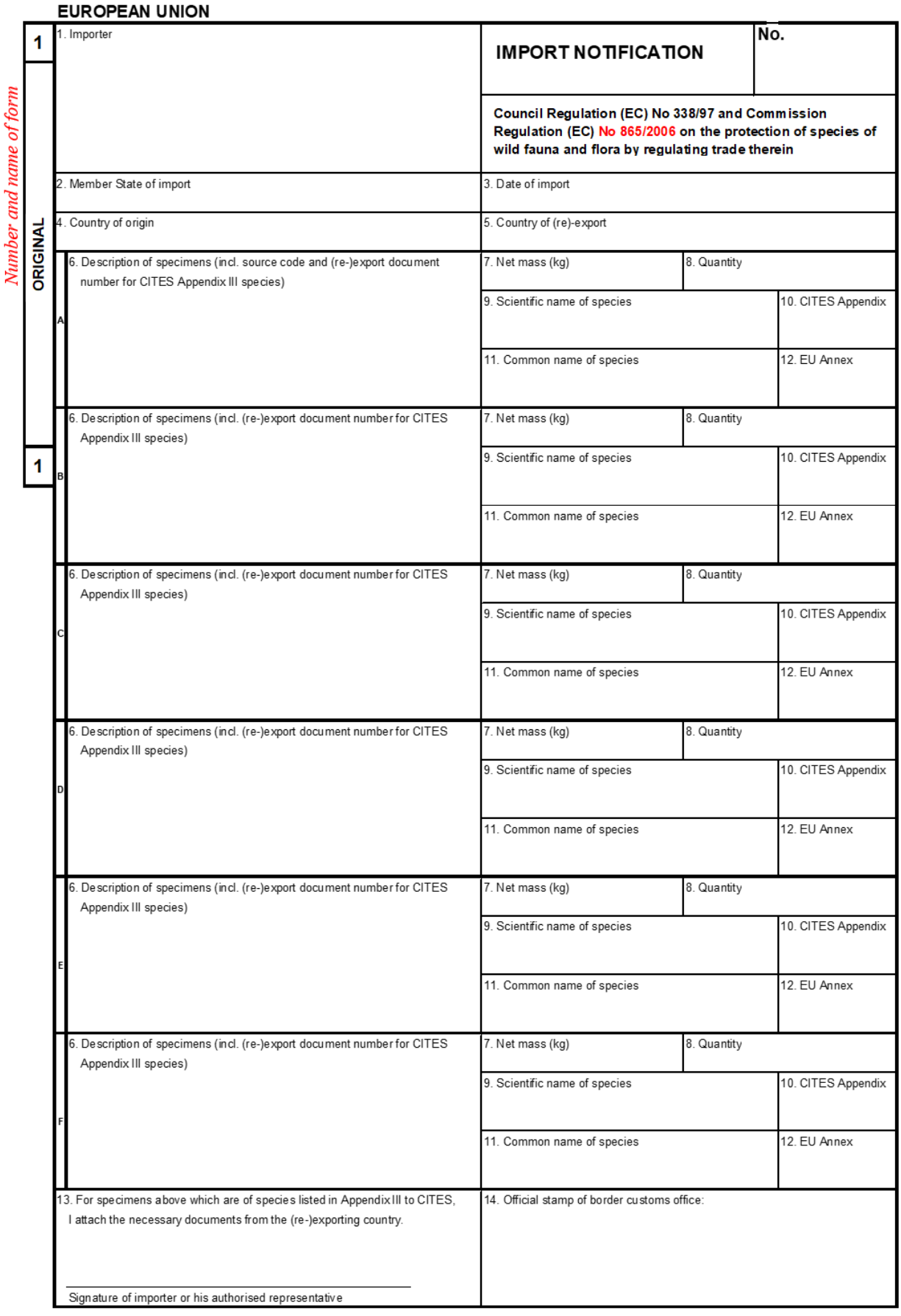


At the point of introduction into the EU, the Customs office will carry out the necessary checks (as also described in **Sections 3.3.7 and 3.5.7**), including a review of the necessary documents and, where required by law or otherwise, representative sampling of the shipment (i.e. examination of the specimens and, where appropriate, taking of samples for analysis or more detailed checks).

Customs then completes **box 14** of the **original** and the **copy for the importer**, returns the latter to the importer (for later proof of legal importation), and the original - together with any document from the (re-)exporting country – is submitted to the Management Authority of the country into which it has been introduced. Original notifications will also be forwarded to the Management Authority of the country of import, when it is different from the country where the specimen was introduced into the EU[115]. Returning the originals and any related documents to the Management Authority is essential for the compilation of Annual Reports on trade by the Management Authority. The Customs office must inform the Management Authority of their country of any problems with the shipment/permit and consult on next steps (see also **Section 3.6**).

114. Annex I, Chapter II (paragraph 4.1)
115. Article 25 *Regulation (EC) No 865/2006 *and Article 45(1) *Regulation (EC) No 865/2006*

Figure 5: Annotated import notification form



EUROPEAN UNION

Number and name of form

1

ORIGINAL

1

1. Importer

IMPORT NOTIFICATION

No.

Council Regulation (EC) No 338/97 and Commission Regulation (EC) No 865/2006 on the protection of species of wild fauna and flora by regulating trade therein

2. Member State of import

3. Date of import

4. Country of origin

5. Country of (re)-export

A

6. Description of specimens (incl. source code and (re-)export document number for CITES Appendix III species)

7. Net mass (kg)

8. Quantity

9. Scientific name of species

10. CITES Appendix

11. Common name of species

12. EU Annex

B

6. Description of specimens (incl. (re-)export document number for CITES Appendix III species)

7. Net mass (kg)

8. Quantity

9. Scientific name of species

10. CITES Appendix

11. Common name of species

12. EU Annex

C

6. Description of specimens (incl. (re-)export document number for CITES Appendix III species)

7. Net mass (kg)

8. Quantity

9. Scientific name of species

10. CITES Appendix

11. Common name of species

12. EU Annex

D

6. Description of specimens (incl. (re-)export document number for CITES Appendix III species)

7. Net mass (kg)

8. Quantity

9. Scientific name of species

10. CITES Appendix

11. Common name of species

12. EU Annex

E

6. Description of specimens (incl. (re-)export document number for CITES Appendix III species)

7. Net mass (kg)

8. Quantity

9. Scientific name of species

10. CITES Appendix

11. Common name of species

12. EU Annex

F

6. Description of specimens (incl. (re-)export document number for CITES Appendix III species)

7. Net mass (kg)

8. Quantity

9. Scientific name of species

10. CITES Appendix

11. Common name of species

12. EU Annex

13. For specimens above which are of species listed in Appendix III to CITES, I attach the necessary documents from the (re-)exporting country.

Signature of importer or his authorised representative

14. Official stamp of border customs office:

Summary of key instructions and explanations for import notification forms

(Note: For full instructions and explanations, see Annex II to *Regulation (EC) No 792/2012*. The numbers below refer to the boxes on the form - see **Figure 5**.)

1. **Importer:** Enter the full name and address of importer or authorized representative.
2. **Member State of import:** Enter the name of the Member State into which the specimens are being imported.
3. **Date of import:** Enter the date on which the import took place.
4. **Country of origin:** The country of origin is the country where the specimens were taken from the wild, born and bred in captivity, or artificially propagated. In the case of plant specimens that were formerly exempt from CITES controls (e.g. seeds or artificially-propagated flasked seedlings), but that ceased to be exempt (e.g. because they were grown further), the country of origin is that country where the exemption ceased to apply.
5. **Country of re-export:** Only applies where the country from which the specimens are imported is not the country of origin.
6. **Description of specimens:** Description must be as precise as possible.
7. **Net mass (kg):** The net weight of the specimens in kilograms.
8. **Quantity:** The quantity (count) of specimens.
9. **Scientific name of species:** The scientific name must be the name used in Annex C or D to *Council Regulation (EC) No 338/97*.
10. **CITES Appendix:** Enter III for species listed in Appendix III to CITES.
11. **Common name of species:** The common name of the species.
12. **EU Annex:** Enter the letter (C or D) of the Annex to *Council Regulation (EC) No 338/97* in which the species is listed.
13. **For specimens of Annex C-listed species:** The importer has to submit the signed original and “copy for the importer”, where appropriate together with CITES Appendix III documents from the (re-) exporting country to the Customs office of introduction into the Union.
14. **Official stamp of border Customs office:** The Customs office shall send the stamped ‘original’ to the Management Authority of their country and return the stamped ‘copy for the importer’ to the importer or their authorized representative.

3.5 What documents are required for (re-)export of specimens of species listed in Annex A, B or C?

An **export permit** is required for specimens **taken from the wild, bred in captivity or artificially propagated in the EU**[116].

A **re-export certificate** is required for specimens of species that were **previously imported** into the EU[117].

116. Article 5 *Regulation (EC) No 338/97.*
117. *As above.*

No documents are however required if the specimens originate from a population that is not included in Appendix III and Annex C (for those species where only a national population of a species is included in CITES).

The export permit or the re-export certificate must be issued by the **Management Authority** of the Member State **in which the specimens are located**, and presented by the carrier at the **Customs office at which the export formalities (including endorsement) are completed** (i.e., where the shipment leaves the EU - not necessarily at the border nor necessarily in the same Member State).

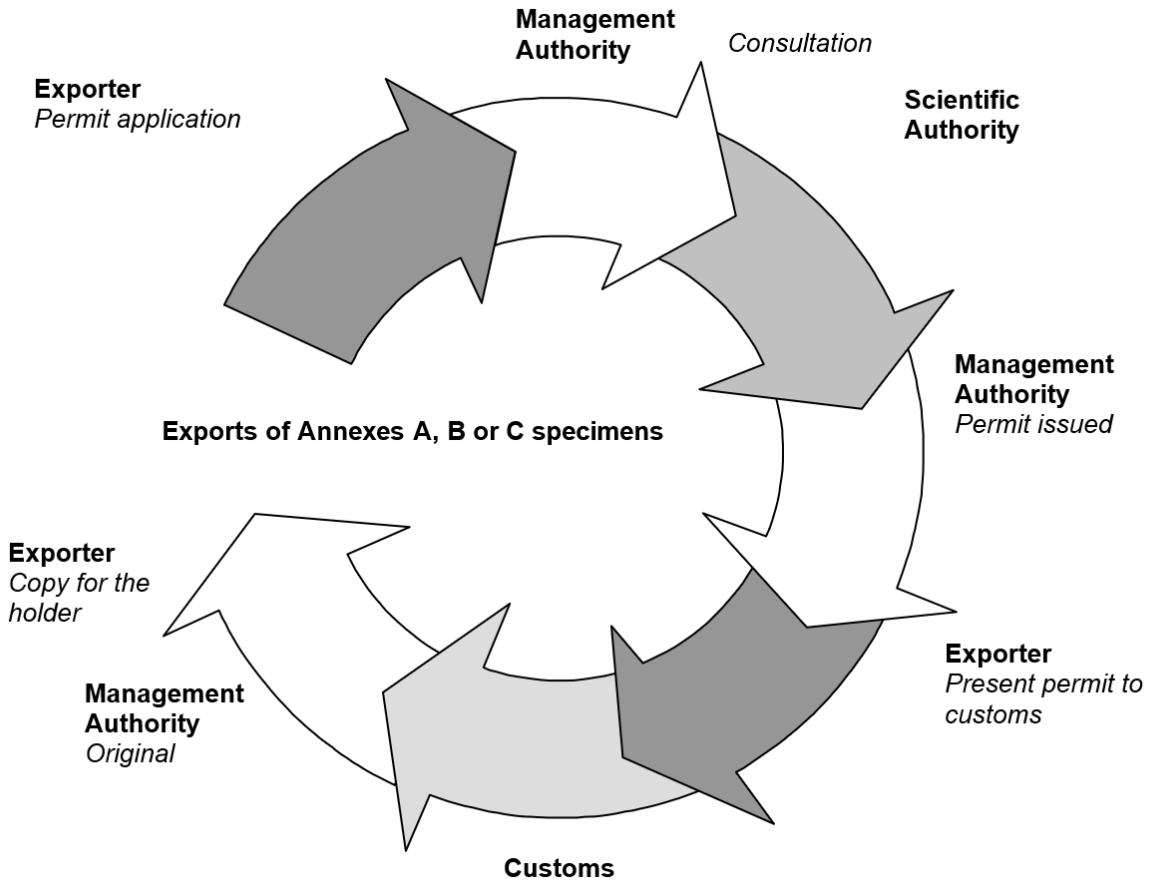
3.5.1 How do I apply to export or re-export a specimen?

(See also **Figure 6**.)

- The (re-)exporter must apply with an **export permit/(re-)export form** (the model is set out in Annex I to *Regulation (EU) No 792/2012*) to the Management Authority of the Member State in which the specimens are located.
- Management Authorities are required to **issue** an export permit or a re-export certificate within the same timeframe as for the issuance of an import permit (see **Section 3.3.1**), namely **one month** from the date of submission of a full application[118].
- However, this may take longer where **third parties** need to be consulted. Where a Management Authority of **another Member State** is **consulted** by one of its counterparts, it must respond **within one week**[119].
- Applications for export permits or re-export certificates must therefore be made in a **timely manner,** in order for the document to be issued prior to the (re-)export of shipments from the EU[120].
- The applicant must be **informed** of significant delays[121].

118. Article 8(3) *Regulation (EC) No 865/2006.*
119. Article 26(10) *Regulation (EC) No 865/2006.*
120. Article 13(1) *Regulation (EC) No 865/2006.*
121. Article 8(3) *Regulation (EC) No 865/2006.*

Figure 6: Steps required for obtaining an export permit or re-export certificate for specimens of species listed in Annex A, B or C of the EU Wildlife Trade Regulations



The procedures described in this Section are similar to the ones related to imports (see **Section 3.3.1** and **Figure 1**) and internal trade within the EU (see **Section 5.5**).

Presentation of the necessary documentation is required before specimens can be cleared by Customs[122]. Specimens may be seized and subsequently confiscated in the absence of such documents.

Depending on the system applied in the relevant EU Member State, and as is the case for imports, the applicant either receives a **full set of forms** (the application form, the original and all three copies), or **just the application form**[123].

If only the application form is to be completed, the applicant must fill in **boxes 1, 3 to 5 and 8 to 23** in **typescript** or **legibly in manuscript** (ink and block capitals)[124]. **Erasures and alterations** are to be **avoided**[125]. Although **each shipment of specimens requires a separate (re-)export document**, the **application form**

122. Article 13(2) *Regulation (EC) No 865/2006*
123. Article 26(1) *Regulation (EC) No 865/2006*
124. Article 4(1) *Regulation (EC) No 865/2006*
125. Article 4(2) *Regulation (EC) No 865/2006*

may relate to more than one shipment[126]. Where a shipment contains **more than one species**, the applicant must obtain and complete **additional annex forms** that are needed to complete the annexes that will be attached to the permit or certificate[127].

If the full set of forms is to be completed, the applicant must fill in **boxes 1, 3 to 5 and 8 to 23** of the **application form** and **boxes 1, 3 to 5 and 8 to 22** of **the original and all copies**. The forms must be completed in **typescript** and not in manuscript[128]. The original and copies may not normally contain **erasures and alterations**. Where this is the case, they must be **authenticated** by the stamp and signature of the issuing Management Authority[129].

A **separate set** of forms must be completed for **each shipment** of specimens shipped together as part of one load.

Instructions for completing the forms are contained on the back of the application form, the original and all copies (see also the export permit/re-export certificate form, **Figure 7**).

The **annex** attached to a permit and the number of pages must be **clearly indicated on the permit**. Each annexed page must include the number of the permit and the signature, and stamp or seal of the issuing authority[130]. Annexes may also contain lists of numbers of identification marks (rings, tags and the like) for which there is no prescribed form for the annex.

The completed form(s) must be **submitted to the Management Authority** of the Member State in which the specimens are located, together with the documentary evidence necessary to allow the Management Authority to determine whether a permit/certificate should be issued (see also **Table 11** on exports, and **Table 12** on re-exports)[131].

Member States may charge a **fee** for processing the application.

Upon (re-)export of the shipment, the (re-)exporter (or their authorised representative) must present the original export permit or re-export certificate (form 1), the copy for the holder (form 2) and the copy for return to the issuing authority (form 3) to Customs for clearance[132]. The Customs office will complete box 27 on the different forms. The original export permit or re-export certificate and the “copy for the holder” will be returned to the (re-)exporter[133]. The “copy for return to the issuing management authority” will be forwarded to the relevant Management Authority of the Member State[134].

3.5.2 What documentary evidence is required by the Management Authority for (re-)exports?

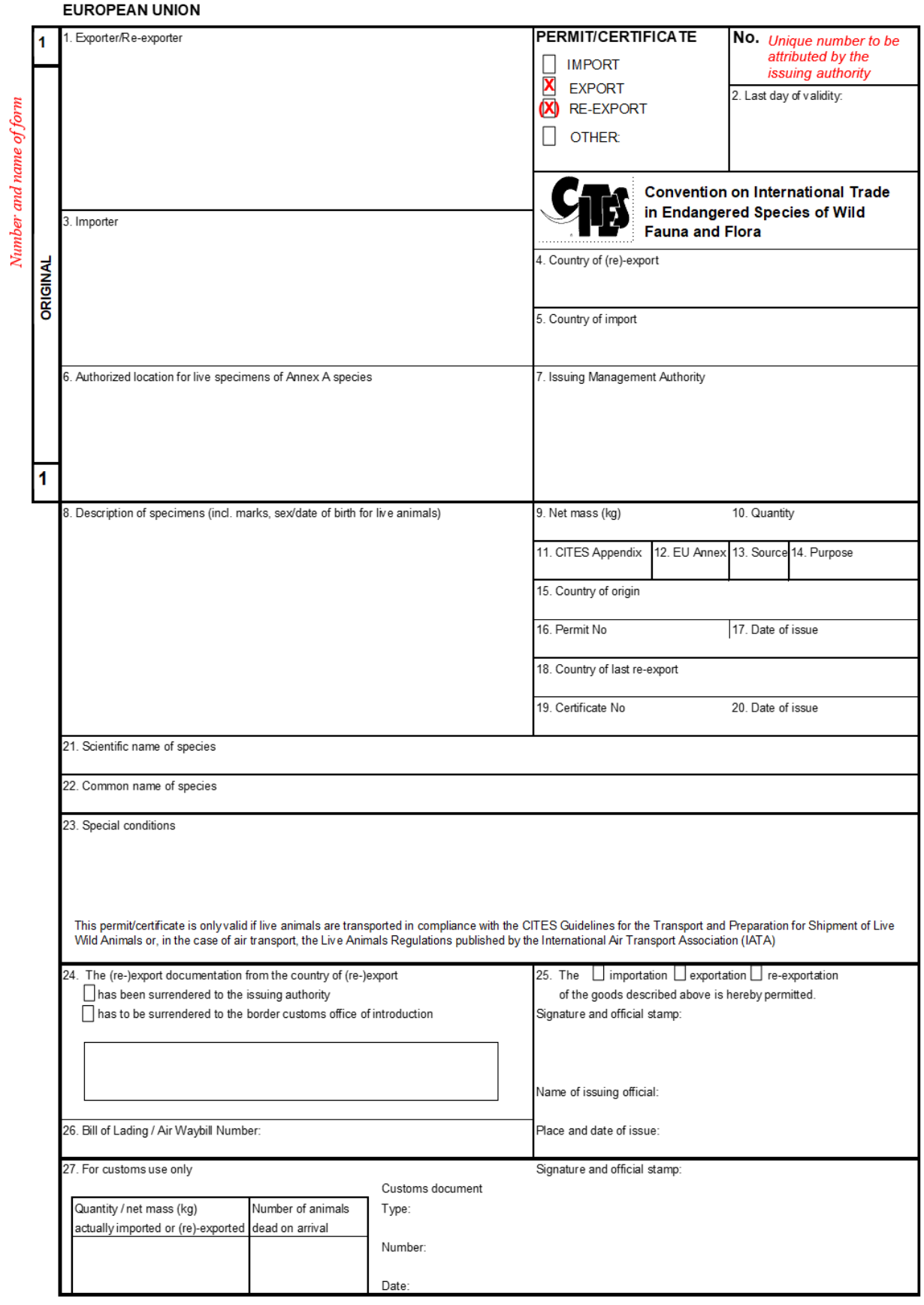
In order for an export permit to be issued, the applicant must provide documentary evidence that the specimens were obtained in accordance with legislation on the protection of the relevant species in the Member State in question. Where the specimen to be exported **originates in another Member State** (than the Member State of export), a **certificate** (for specimens of species listed in Annex A) or other documentation (for specimens of species listed in Annex B) is required to prove legal acquisition (see **Section 5.5**)[135].

126. Article 26(1) *Regulation (EC) No 865/2006*
127. Article 6(2) *Regulation (EC) No 865/2006*
128. Article 4(1) *Regulation (EC) No 865/2006*
129. Article 4(2) *Regulation (EC) No 865/2006*
130. Article 6(1) *Regulation (EC) No 865/2006*
131. Article 26(2) *Regulation (EC) No 865/2006*
132. Article 27* Regulation (EC) No 865/2006*
133. Article 28* Regulation (EC) No 865/2006*
134. Article 45 *Regulation (EC) No 865/2006*
135. Article 5(2)(b) *Regulation (EC) No 338/97*

For the re-export of specimens, documentary evidence of legal introduction into the EU is required for a re-export certificate to be issued. Where the specimen was **imported into another Member State** (than the Member State of re-export), a "**copy for the holder**" of the relevant **import permit**, or a **certificate** (for specimens of species listed in Annex A) or other documentation (for specimens of species listed in Annex B) must be available to prove the **legal introduction** into the EU[136]. These documents are the most appropriate for this purpose, also containing the necessary information on country of origin, country of re-export, relevant document numbers and dates thereof, all of which are to be included in the application for (re-)export.

136. Article 5(3) *Regulation (EC) No 338/97. *Note also the requirement for the Management Authority receiving the application to consult the Management Authority, which issued the import permit originally (Article 5(5) *Regulation (EC) No 338/97*).

Figure 7: Annotated export permit/re-export certificate



EUROPEAN UNION

Number and name of form

1

ORIGINAL

1

1. Exporter/Re-exporter

PERMIT/CERTIFICATE

☐ IMPORT
☒ EXPORT
☒ RE-EXPORT
☐ OTHER:

No. *Unique number to be attributed by the issuing authority*

2. Last day of validity:

Convention on International Trade in Endangered Species of Wild Fauna and Flora

3. Importer

4. Country of (re)-export

5. Country of import

6. Authorized location for live specimens of Annex A species

7. Issuing Management Authority

8. Description of specimens (incl. marks, sex/date of birth for live animals)

9. Net mass (kg)

10. Quantity

11. CITES Appendix | 12. EU Annex | 13. Source | 14. Purpose

15. Country of origin

16. Permit No | 17. Date of issue

18. Country of last re-export

19. Certificate No | 20. Date of issue

21. Scientific name of species

22. Common name of species

23. Special conditions

This permit/certificate is only valid if live animals are transported in compliance with the CITES Guidelines for the Transport and Preparation for Shipment of Live Wild Animals or, in the case of air transport, the Live Animals Regulations published by the International Air Transport Association (IATA)

24. The (re-)export documentation from the country of (re-)export
☐ has been surrendered to the issuing authority
☐ has to be surrendered to the border customs office of introduction

25. The ☐ importation ☐ exportation ☐ re-exportation of the goods described above is hereby permitted.
Signature and official stamp:

Name of issuing official:

26. Bill of Lading / Air Waybill Number:

Place and date of issue:

27. For customs use only

Quantity / net mass (kg) actually imported or (re)-exported	Number of animals dead on arrival

Customs document
Type:
Number:
Date:

Signature and official stamp:

Summary of key instructions and explanations for (re-)export permit/certificate forms

(Note: For full instructions and explanations, see Annex I to *Regulation (EC) No 792/2012*. The numbers below refer to the numbers of the boxes on the form - see **Figure 7**)

1. **Exporter/re-exporter:** Must contain the full name and address of the actual exporter or re-exporter, and not of an agent.
2. **Last day of validity**: No later than 6 months from date of issue.
3. **Importer**: Must contain the full name and address of the actual importer, and not of an agent.
4. **Member State from which the goods are to be (re-)exported**: The country of export can only be the country of origin of the specimens, i.e. where they were taken from the wild, bred or propagated (see 15).
5. The **country of final destination** of the specimens.
6. **Authorised location for live specimens of Annex A-listed species**: Not applicable for export and re-export.
7. **Issuing Management Authority**: The Management Authority of the Member State in which the specimens are located.
8. **Description of specimens**: This description must be as precise as possible and include a 3-letter code in accordance with **Annex VII** to *Regulation (EC) No 865/2006*.
9. **Net mass**: See **Annex VII** to *Regulation (EC) No 865/2006* for units to be used.
10. **Quantity**: See **Annex VII** to *Regulation (EC) No 865/2006* for units to be used.
11. **CITES Appendix:** I, II or III.
12. **EU Annex:** A, B or C.
13. **Source** of specimens: Use codes in Annex IX of *Regulation (EC) No 865/2006* (as amended).
14. **Purpose** of import: Use codes in Annex IX of *Regulation (EC) No 865/2006* (as amended).
15. **Country of origin**: Country where specimens were taken from the wild, born and bred in captivity or propagated (see 4). In the case of plant specimens that were formerly exempt from CITES controls (e.g. seeds or artificially-propagated flasked seedlings from species listed in Appendix II), but that ceased to be exempt (e.g. because they were grown further), the country of origin is that country where the exemption ceased to apply.
16. **Permit no.**: Not to be completed if country of origin is a Member State.
17. **Date of issue**: Not to be completed if country of origin is a Member State.
18. **Country of last re-export:** In the case of re-export from the EU, the country of last re-export is the third country from which the specimens were imported before being re-exported from the EU (boxes 19 and 20 to contain details of relevant re-export certificate).
19. **Certificate no.**: Provide the number of the relevant re-export certificate.
20. **Date of issue**: Provide the date of the relevant re-export certificate.
21. **Scientific name of species:** The standard references for nomenclature in **Annex VIII** to *Regulation (EC) No 865/2006* must be used. These are also available on the UNEP-WCMC website.
22. **Common name of species:** A common name may not be available for all species.

23. **Special conditions**: (for official use only) Space for the issuing authority to impose stipulations, conditions and requirements in order to ensure compliance with EU and national legislation.
24. **Surrender of (re-)export documentation:** (for official use only) Not applicable for export and re-export.
25. This is the actual validation of the import permit (for official use only).
26. **Bill of Lading/Air Waybill no.:** To be indicated by the exporter at the time of export.
27. **Quantity/net mass (kg) actually exported or re-exported:** If more than in **box 9** or **10**, Customs will contact the Management Authority.

    Number of animals dead on arrival: Not applicable for export and re-export.

    After completion, Customs will return the copy for return by Customs to the issuing authority (form 3) to the Management Authority in their country, and return the original (form 1) and the "copy for the holder" (form 2) to the (re-)exporter.

3.5.3 What other requirements apply for (re-)export under the EU Wildlife Trade Regulations?

In general, specimens of species listed in **Annex A cannot be (re-)exported for primarily commercial purposes**[137] (except for relevant derogations as set out in **Section 4**).

Exports of specimens of species listed in **Annexes A, B and C** are **never allowed** if such an export would have a **detrimental conservation effect**[138] - this is explained in more detail in **Section 3.3.3.**

Certain specimens need to be **marked** before (re-)export[139] in accordance with Article 66(6) of *Regulation (EC) No 865/2006* (see **Section 7**).

As in the case of imports (see **Sections 3.3.3 and 3.4**), the **transport of live specimens** must be in accordance with Article 9(5) of *Regulation (EC) No 338/97,* which states that: "*When any live specimens are transported into, from or within the Community or are held during any period of transit or transhipment, they shall be prepared, moved and cared for in a manner such as to minimise the risk of injury, damage to health or cruel treatment and, in the case of animals, must be in conformity with Community legislation on the protection of animals during transport* (see **Section 6.1**)."

The transport of all live animals from, into and within the EU is governed by *Council Regulation (EC) No 1/2005 of 22 December 2004 on the protection of animals during transport and related operations*. However, this does not apply to transport within the EU of animals for distances of less than 50 kilometres nor to the movement of personal pets.

CITES *Resolution Conf. 10.21 (Rev. CoP19) on the Transport of Live Specimens* recommends that the *IATA Live Animals Regulations* (for animals), the *IATA Perishable Cargo Regulations* (for plants) and the CITES guidelines for the non-air transport of live wild animals and plants be deemed to meet CITES transport requirements and should be followed by all CITES Parties as well as (relevant sections) incorporated into national legislation or policies (see **Section 6** for further information). *Regulation (EC) No 1/2005* provides that animals transported by air must be transported in containers, pens or stalls appropriate for the species, which comply with the IATA *Live Animals Regulations*[140].

137. Article 5(2)(c)(ii) *Regulation (EC) No 338/97*
138. Articles 5(2)(a) and 5(4) *Regulation (EC) No 338/97*
139. Article 26(4) and Article 65 *Regulation (EC) No 865/2006*
140. Annex I, Chapter II (paragraph 4.1)

The **omission of information** from the application must be **justified**[141].

3.5.4 What happens when (re-)export applications are rejected?

(See also **Section 3.3.4** for similar information on import applications.)

Applicants must be **informed** of the **rejection** of an application, and the **reasons** for which it was rejected.

Member States are obliged to reject applications for export permits for **caviar and meat** of **sturgeon and paddlefish** species (Acipenseriformes spp.) with source code "W" from **shared stocks,** unless **export quotas** have been established for the species in question in accordance with the procedure laid down by the Conference of the Parties[142]. Details of current quotas may be found on the Secretariat's website at https://www.cites.org/eng/resources/quotas/index.php.

Applicants must **inform** a Management Authority of **previously rejected applications** for permits relating to specimens[143]. The application form contains a pre-printed declaration by the applicant indicating that the application has not been previously rejected. This is also valid if a Management Authority of another EU Member State rejected the application.

3.5.5 Are there any other requirements than can apply?

(See **Section 3.3.5** for similar information on imports.)

Where a permit/certificate is issued, it may contain **stipulations, conditions and requirements** imposed by the issuing authority, in order to ensure compliance with the EU Regulations and national legislation on their implementation[144]. The use of the document issued is subject to **other necessary formalities** relating to the (re-)export of goods from the EU or to the documents issued for such formalities (tariffs health, etc.)[145].

3.5.6 How long do (re-)export documents remain valid?

The **maximum** time validity of an export permit or re-export certificate is **six months** (see **Section 8.2**).

However, in the case of **caviar** of **sturgeon and paddlefish** species (Acipenseriformes spp.) with source code "W" that originated from **shared stocks** which are subject to **export quotas**, there is an additional stipulation that the export permit ceases to be valid on **the last day of the year** to which the quota applies (i.e. the quota year in which the caviar was harvested and processed) – if this is earlier than the normal maximum 6-month period. As regards caviar of sturgeon species (Acipenseriformes spp.) covered by a re-export certificate, the certificate ceases to be valid **on the last day of the period of 18 months after the date of issuance of the relevant original export permit** or the last day of the normal six-month period, whichever is earlier[146].

Documents may exceptionally be issued **retrospectively** (see **Section 8.3**). If **expired**, an export permit or re-export certificate is considered **void** and of no legal value; it must be **returned** without undue delay to the issuing Management Authority. The same is true for **unused permits** (also see **Section 3.3.6**)[147].

141. Article 26(2) *Regulation (EC) No 865/2006*
142. Article 26a of *Regulation (EC) No 865/2006*
143. Article 26(3) of *Regulation (EC) No 865/2006*
144. Article 8(1)* Regulation (EC) No 865/2006*
145. Article 8(2) *Regulation (EC) No 865/2006*
146. Article 10(2) *Regulation (EC) No 865/2006*
147. Article 10(6) *Regulation (EC) No 865/2006*

Expired documents such as these may be **replaced** by a new document, which **indicates the number of the replaced document** and the reason for its replacement. This also applies to **lost, stolen, destroyed or cancelled documents**. The issuing **Management Authority** must inform the **country of destination** and the **CITES Secretariat** of any cancelled, lost, stolen, or destroyed export permits and re-export certificates[148].

3.5.7 What happens at the point of (re-)export?

At the time of (re-)export from the EU, the **(re-)exporter** – or the authorised representative – must **surrender** the **original** of the permit, the "**copy for the holder**" and the "**copy for return to the issuing authority**" to a designated Customs office[149]. Where appropriate, the number of the **Bill of Lading or Air Waybill** must be indicated in **box 26** of the export permit or re-export certificate.

The Customs office will carry out the **necessary checks** (also described in **Section 3.3.7**), including a review of the necessary documents and, where required by law or otherwise, representative sampling of the shipment (i.e. examination of the specimens and, where appropriate, taking of samples for analysis or more detailed checks).

When the shipment and documents are found to be **in order**, the Customs office completes **box 27** of the **original**, the "**copy for the holder**" and the "**copy for return to the issuing authority**", returns the **first two** to **the (re-)exporter** or authorised representative, and the **latter** to the **Management Authority** of the country in which that Customs authority is located[150]. If this was not the original issuing authority (i.e the permit was issued in another Member State), the document must then be passed on to the Management Authority that had issued the permit[151]. It is crucial that documents are returned to the Management Authorities, since if documents are not returned, the Management Authority lacks information on whether the export or re-export has actually taken place. This makes annual reporting (see **Section 10**) on the basis of permits used very difficult. The (re-)exporter or his authorised representative must join the original of the permit with the shipment so the importing country has proof of the legality of the (re-)export. The "copy for the holder" can be kept by the (re-exporter as proof that the items have legally left the EU.

Should there be a problem with the shipment (e.g. lack of documentation), the Customs office must **inform the Management Authority** of their country and may consult them on the next steps to take.

Until such time as the requisite documents are available, **specimens will not be authorised to be assigned to a Customs procedure**[152] (see also **Section 3.6**).

3.5.8 Summary of the conditions that must be fulfilled for the issue of export permits and re-export certificates for species listed in Annex A, B or C

In order for an export permit or re-export certificate to be issued by an EU Management Authority for specimens of a species listed in Annex A, B or C, the conditions detailed in **Tables 11 and 12** below must be fulfilled:

148. Article 12 *Regulation (EC) No 865/2006*
149. Articles 27 *Regulation (EC) No 865/2006*
150. Articles 28 and 45 *Regulation (EC) No 865/2006*
151. Article 45(1) *Regulation (EC) No 865/2006*
152. Article 13(2) *Regulation (EC) No 865/2006*

Table 11: Conditions to be fulfilled for the issue of export permits for species listed in Annexes A, B or C

A*, B*, C*: Does not apply to worked specimens acquired before 3 March 1947 (see **Section 4.3.1**), and dead specimens legally acquired before *Regulation (EC) No 338/97*, *Regulation (EEC) No 3626/82*, or the Convention became applicable to them (Article 5(6) *Regulation (EC) No 338/97*).

Annex			Conditions[1]
A*	B*	C*	The Scientific Authority has advised its Management Authority in writing that the capture or collection of the specimens in the wild and their **export will not have a harmful effect on the conservation status of the species**, or extent of the territory occupied by the relevant population of the species (Articles 5(2)(a) and 5(4) *Regulation (EC) No 338/97*)[1].
A	B	C	The Management Authority has received **documentary evidence from the applicant** that the specimens were **obtained in accordance with legislation on their protection**; where specimens originate in another Member State, a certificate is required (Articles 5(2)(b) and 5(4) *Regulation (EC) No 338/97*), except where specimens have been **individually marked** under the supervision of a Management Authority so as to facilitate reference to the documents concerned (Article 26(8) *Regulation (EC) No 865/2006*). In the absence of supporting documentary evidence, the Management Authority shall determine legal acquisition, where necessary in consultation with a Management Authority of another Member State (Article 26(9) *Regulation (EC) No 865/2006*).
A	B	C	The Management Authority is satisfied about **preparation for shipment** and **transport** arrangements (Article 5(2)(c)(i) and 5(4) *Regulation (EC) No 338/97*).
A*			The Management Authority is satisfied that specimens **will not be used for primarily commercial purposes** by the intended importer. Where a CITES Appendix I-listed species is concerned, an import permit must have been issued by the country of destination (Article 5(2)(c)(ii) *Regulation (EC) No 338/97*). Note: The prohibition on commercial use of Annex A specimens applies only to **wild specimens** and **not captive-bred specimens** (see **Sections 4.1 and 5.1**).
A	B	C	The Management Authority is satisfied, following consultation with the Scientific Authority that there are **no other factors which militate against export** (Article 5(2)(d) and 5(4) *Regulation (EC) No 338/97*).

Table 12: Conditions to be fulfilled for the issue of re-export certificates for species listed in Annexes A, B or C

A*: Does not apply to worked specimens acquired before 3 March 1947 (see **Section 4.3.1**), and dead specimens legally acquired before *Regulation (EC) No 338/97*, *Regulation (EEC) No 3626/82*, or the Convention became applicable to them (Article 5(6) *Regulation (EC) No 338/97*).

Annex			Conditions[1]
A	B	C	The Management Authority is satisfied with **preparation for shipment and transport arrangements** (Articles 5(2)(c)(i), 5(3) and 5(4) *Regulation (EC) No 338/97*).
A*			The Management Authority is satisfied that specimens **will not be used for primarily commercial purposes** by the intended importer. Where a CITES Appendix I-listed species is concerned, an import permit must have been issued by the country of destination (Article 5(2)(c)(ii) and 5(3) *Regulation (EC) No. 338/97*).
A	B	C	The Management and Scientific Authorities are satisfied that there are **no other factors which militate against export** (Article 5(2)(d), 5(3) and 5(4) *Regulation (EC) No 338/97*).
A	B	C	The Management Authority is satisfied that the **specimens were introduced into the EU in accordance with *Regulation (EC) No 338/97*, *Regulation (EEC) No 3626/82* or CITES**, or were **legally introduced** into a Member State before applicability of these Regulations/the Convention to the species or in the Member State concerned (Articles 5(3)(a)-(d) and 5(4) *Regulation (EC) No 338/97*) (see **Section 4.3.2**). In addition: Where import into the EU took place under an import permit issued by another Member State, the Management Authority of that Member State must be consulted (Article 5(5) *Regulation (EC) No 338/97*). Where specimens have been individually marked under the supervision of a Management Authority to facilitate reference to the documents concerned (Article 26(8) *Regulation (EC) No 865/2006*), the physical presentation of such documents shall not be required in support of an application for a re-export certificate, provided that their number is included in the application. In the absence of supporting documentary evidence, the Management Authority shall determine legal introduction into the EU, where necessary in consultation with a Management Authority of another Member State (Article 26(9) *Regulation (EC) No 865/2006*).

3.6 Can specimens be traded through any Customs office?

Member States are obliged to **designate Customs offices** for carrying out the checks and formalities required under the Regulation and to **state which offices are specifically intended to deal with live specimens**[153]. The latter will necessarily have to be the same as those designated under EU veterinary legislation. The list of designated Customs offices must be communicated to and published by the Commission in the Official Journal. The list can also be obtained on the EU CITES website[154].

Designated offices must have **sufficient and adequately trained staff**. They must further have **accommodation for live animals** in accordance with EU legislation on the transport and accommodation of live animals. Member States must also take adequate steps with regard to accommodating **live plants** at designated Customs offices[155].

153. Article 12(1) *Regulation (EC) No 338/97*
154. 48f59731-eb47-4ea7-8285-9bf1439834b4_en (europa.eu)
155. Article 12(2) *Regulation (EC) No 338/97*

Regulation (EC) No 338/97 provides that, in exceptional cases, the Commission may allow for introduction into/ (re-)export from the EU at a Customs office other than one designated in accordance with the above[156]. Up until to September 2020, no provisions for the implementation of this possibility had been established.

It is important for checks on shipments introduced into the EU to take place at the **first point** of introduction **irrespective** of the shipment's **final destination** within the EU[157]. An **exception** to this rule is possible for a shipment that is introduced into the EU and which arrives at a border Customs office by **sea, air, or rail** and that will be **dispatched** by the **same mode of transport** and **without intermediate storage** to another designated Customs office[158]. In this case, the completion of the necessary checks and the presentation of the import documents will take place at the second Customs office (which must be designated in accordance with Article 12(1) *Regulation (EC) No 338/97*).

Shipments are frequently dispatched from a first Customs office at the outside border to another Customs office where the scope for physical checks is greater. In these cases the second Customs office will require presentation of the "copy for the holder" (Form 2) of an import permit or the "copy for the importer" (Form 2) of an import notification and may carry out any checks it deems necessary in order to establish compliance with the provisions of the Regulations[159].

156. Article 12(4) *Regulation (EC) No 338/97*
157. Article 4(1) *Regulation (EC) No 338/97*
158. Article 4(7) *Regulation (EC) No 338/97* and Article 53 *Regulation (EC) No 865/2006*
159. Article 53(2) *Regulation (EC) No 865/2006*

4 Are there derogations from the normal import and export rules?

4.1 What procedures apply to import and (re-)export of captive-bred animals and of artificially propagated plants?

Because trade in animals that were born and bred in captivity and plants that were artificially propagated does not have the same potential impact on wild populations of fauna and flora, CITES and the EU Wildlife Trade Regulations include provisions that are less strict for trade in these specimens.

Specimens of **Annex A-listed animal or plant species** are **treated as specimens of Annex B-listed species** if they were bred in captivity or artificially propagated in accordance with Chapter XIII of *Regulation (EC) No 865/2006*[1]. In such cases, there are **no restrictions on the purpose** of the import or (re-)export of captive-bred or artificially propagated specimens. This means that a specimen produced by a non-commercial captive breeding/artificial propagation operation can be imported or (re-)exported for commercial purposes, and vice-versa, i.e. produced by a commercial operation and imported/(re-)exported for non-commercial purposes. Furthermore, whereas import permits for specimens of Annex A-listed animal or plant species generally only authorise the specimen to be held at a **specified address**, this restriction does not apply to captive-bred/ artificially propagated specimens.

Import restrictions established under Article 4(6) of *Regulation (EC) No 338/97* do normally not apply to captive-bred or artificially propagated specimens[2] (see **Section 3.3.9.4**).

4.1.1 How are the terms “captive-bred” and “artificially propagated” defined?

Article 1 of *Regulation (EC) No 865/2006* provides definitions that relate to specimens that were born and bred in captivity or artificially propagated:

- *Date of acquisition* means the date on which a specimen was taken from the wild, born in captivity or artificially propagated, or, if such date is unknown, the earliest provable date on which it was possessed by any person;
- *Second-generation offspring (F2)* and “subsequent generation offspring (F3, F4, etc.)” means specimens produced in a controlled environment from parents that were also produced in a controlled environment (it should be noted that **first-generation offspring (F1)** specimens that are produced in a controlled environment from **parents** - at least one of which was **conceived in or taken from the wild** - are **not covered** by this definition);
- *Breeding stock* means all the animals in a breeding operation that were or are used for reproduction, and

1. Article 7(1)(a) *Regulation (EC) No 338/97. *This does not apply to ranched specimens and so-called source “F” specimens – i.e. specimens born in captivity but not meeting the formal definition of captive-bred/artificially-propagated.
2. Article 71(4) *Regulation (EC) No 865/2006.*

- *A controlled environment* means an environment that is manipulated for the purpose of producing animals of a particular species, that has boundaries designed to prevent animals, eggs or gametes of the species from entering or leaving the controlled environment, and the general characteristics of which may include, but are not limited to: artificial housing, waste removal, health care, protection from predators and the artificial supply of food.

In order for **an animal specimen to qualify as** "**born and bred in captivity**" (rather than merely captive-born, which carries no special advantage), a competent Management Authority, in consultation with a competent Scientific Authority of the Member State, must be satisfied that all of the following conditions have been met[3]:

- the specimen is, or is derived from:
  - the offspring born – or otherwise produced – in a **controlled environment** – of either:
    - parents that **mated** (or had gametes otherwise transferred – e.g. by artificial fertilisation) in a **controlled environment** – if reproduction is sexual; or
    - parents that were in a **controlled environment when development of the offspring began** – if reproduction is asexual;
- the breeding stock was established in accordance with the **legal provisions that applied in the place and time when it was first obtained** (even if this pre-dates the Regulations or the Convention), and in a manner not detrimental to the survival of the species in the wild; and
- the breeding stock is maintained without **the introduction of new specimens from the wild**, except (and given that any new specimens are obtained in a legal and non-detrimental way) for the following purposes:
  - to prevent **deleterious inbreeding** (in which case the amount of the new addition must be determined by the need for new material);
  - to **dispose of confiscated specimens**; or
  - **exceptionally**, for use as breeding stock.
- the breeding stock has either:
  - itself produced **second or subsequent generation offspring** (so-called F2, F3 and so on) in a controlled environment, or otherwise; or
  - is managed in a manner that has been **demonstrated to be capable of reliably producing second generation offspring** in a controlled environment (e.g. for species where husbandry and breeding techniques are long established and widely documented).

Similarly, in order for **a plant specimen to qualify as artificially propagated,** a competent Management Authority, in consultation with a competent Scientific Authority of the Member State, must be satisfied that all of the following conditions have been met[4]:

- the specimen is, or is derived from, plants grown from seeds, cuttings, divisions, callus tissues or other plant tissues, spores or other propagules under **controlled conditions** (i.e. a non-natural environment that is heavily manipulated by such practices as tillage, fertilisation, weed control, irrigation, potting, bedding, protecting from weather etc.)[5];

3. Article 54 *Regulation (EC) No 865/2006.*
4. Article 56 *Regulation (EC) No 865/2006.*

- the cultivated parental stock was established in accordance with the **legal provisions that applied in the place and time when it was first obtained** (even if this pre-dates the Regulation or the Convention), and in a manner not detrimental to the survival of the species in the wild;
- the cultivated parental stock is managed in such a way that its **long-term maintenance is guaranteed**, and
- in the case of grafted plants, both the **root stock and the graft have been artificially propagated** in accordance with the preceding conditions.

The following are also considered “artificially propagated":

- **Timber** taken from trees grown in **monospecific plantations**[6];
- Trees of agarwood-producing taxa grown in cultivation such as:
  1. gardens (home and/or community garden);
  2. state, private or community production plantations, either monospecific or mixed species[7].

The above definitions for captive-bred animals and artificially propagated plants also apply to specimens of species listed in **Annex B.** Provided the above criteria are met, this will be a relevant factor to be considered by the Scientific Authority when assessing whether or not the import or export is harmful to the conservation of the species.

If there is doubt as to whether a plant or animal specimen was born and bred in captivity or artificially propagated, the Management or Scientific Authority can request proof through, for example, **DNA testing** of blood or other tissue for animal species[8]. In such cases the analysis, or the necessary samples, must be made available to the Management or Scientific Authority.

The European Commission has, in cooperation with the competent CITES Management Authorities of the EU Member States, compiled and published a guidance on ‘on live animals bred in captivity’, which aims to help EU Member States assess whether captive-bred specimens of species listed in the Annexes to the Basic Regulation meet the conditions for issuing the documents required for importing, (re-)exporting or internal trade.

4.1.2 What rules apply for captive-bred animals of Annex A-listed species?

The EU has initiated legislative steps to ensure compliance with *Resolution Conf. 12.10 (Rev. CoP15)* and the associated SC77 recommendations with regard to restrictions on trade in specimens of Appendix I-listed animal species produced by commercial captive-breeding operations. This means that, an MA can only grant an import or (re)export permit for commercial purposes for transactions of specimens listed in Appendix I to the Convention into or out of the EU, if the breeding facility has been included in the CITES Register of captive-breeding facilities. This new rule will apply after a transitional period, ending on 31 December 2026, to enable the MAs in the EU Member States and the CITES Secretariat to process the expected large number of applications for registration.

5. For agarwood producing taxa, which are grown from seeds, cuttings, grafting, marcoting-air-layering, divisions, callus tissues or other plant tissues, spores or other propagules, “under controlled conditions” refers to a tree plantation, including other non-natural environment that is manipulated by human intervention for the purpose of producing plants or plant’s parts and derivatives (Article 56(1) *Regulation (EC) No 865/2006*).
6. Plantations containing one species.
7. Article 56(3) *Regulation (EC) No 865/2006.*
8. Article 55 *Regulation (EC) No 865/2006.*

4.1.3 What special provisions apply for artificially propagated plants?

For artificially propagated Annex B and C-listed plants, and hybrids of unannotated[9] Annex A-listed plants, **phytosanitary certificates may be used instead of export permits**[10].

In these cases, the certificate must include the **scientific name at species level** or, **if this is not possible**, at the **genus** level, but **only** for **those taxa** for which **the entire family is listed in the Annexes** to the Regulations[11].

Artificially propagated Annex B-listed orchid and cacti species need only be referred to at the family level – i.e. simply as “orchids” or “cacti”. Phytosanitary certificates must also include the **type and quantity** of specimens and bear a **stamp, seal or other specific indication** stating that:

“ …*the specimens are artificially propagated as defined by CITES”*[12].

As explained in **Section 3.5** above, a permit is required for the export of artificially propagated specimens of plant species listed in Annexes A or B of the Regulation. However, nurseries that artificially propagate plants listed in Annex A, and which have been registered in accordance with the guidelines outlined in **CITES *Resolution Conf. 9.19 (Rev. CoP15)***[13], may obtain **pre-issued export permits** from the relevant Management Authority for species listed in Annexes A or B. The **registration number of the nursery,** as well as the **following statement**[14] must be included in these pre-issued certificates:

“*Permit valid only for artificially propagated plants as defined by CITES* Resolution Conf. 11.11 (Rev. CoP18). *Valid only for the following taxa:…”*

4.2 What rules apply to specimens in transit through the EU?

Specimens of species listed in the Annexes that are in **transit** between two **“third” countries** (i.e. two non-EU countries) **do not need an import permit or notification** for entering the EU **or a re-export certificate** to leave the EU[15]. However, for those species listed in EU Wildlife Trade Regulations Annexes that are also listed in CITES **Appendices I and II**, a valid CITES **export permit** or **re-export certificate,** that clearly indicates the **final destination** of the shipment, must have been issued by the exporting country[16]. Without such a valid (re-)export document, or proof of its existence, **specimens must be seized** and may be confiscated, provided that a document is not issued retrospectively[17] (see also **Section 8.3**).

“**Transit**” refers only to specimens that **remain in Customs control,** and are **in the process of being shipped** to a named consignee. Introduction into **bonded warehouses** equals **import** into the EU and therefore **requires a permit**. For a definition of “transit” under the EU Wildlife Trade Regulations see **Annex III of this Guide**.

9. See **Section 2.2.6**.
10. Article 7(1)(b)(i) *Regulation (EC) No 338/97 *and Article 17(1) *Regulation (EC) No 865/2006.*
11. Article 17(2) *Regulation (EC) No 865/2006*
12. *As above.*
13. *Guidelines for the registration of nurseries exporting artificially-propagated specimens of Appendix I-listed species.*
14. Article 29 *Regulation (EC) No 865/2006.*
15. Article 7(2)(a) *Regulation (EC) No 338/97*
16. Article 7(2)(b) *Regulation (EC) No 338/97*
17. Article 7(2)(c) *Regulation (EC) No 338/97***.*

If the shipment in transit is not accompanied by valid CITES documents (or the comparable documents from a non-Party) it will be **seized**. In the past, it was often the case that CITES documents did not necessarily travel with the associated shipments and this was tolerated if a valid document could be produced on demand. However, the EU has now taken the collective view that the original of the export permit and the copy of the import permit must accompany shipments of Appendix I species.

Resolution Conf. 9.7 (Rev. CoP15) of the CITES Conference of the Parties recommends that, when an illegal shipment in transit or being transhipped is discovered but cannot be seized, the **country of final destination** and the **CITES Secretariat** are provided with all **relevant information on the shipment as soon as possible**.

4.3 Are specimens exempted by acquisition date?

4.3.1 What rules apply to trade in wildlife “antiques”?

Under the EU Wildlife Trade Regulations, “**worked” specimens** of species listed in Annex A, B, C or D that were acquired more than 50 years before the Regulations entered into force (i.e. **before 3 March 1947**[18]), are **considered antiques** and are **exempted** from some of the controls that govern other types of specimens[19].

Worked specimens of species listed in the Annexes of *Regulation (EC) No 338/97* (or containing parts or derivatives of the same) are defined as:

- specimens that were removed from the wild and **significantly altered from their natural state** for jewellery, adornment, art, utility or musical instruments, **before 3 March 1947**, and
- have been **acquired in this condition** and require no further carving, crafting or manufacture to effect their purpose (see **Annex III of this Guide**)[20].

Antiques acquired before that date but that remain substantially unaltered from their natural state do not qualify for these exemptions. For example, a raw unworked rhino horn would not qualify even if it could be shown to have been acquired before 1947. Similarly, a tiger skin ‘rug’ acquired before 1947 may qualify if it could be shown that it was a genuine rug in its own right and not merely a skin which could also be fashioned into some other item at a later date. Stuffed animals - for example mounted and stuffed birds - are also considered to be worked specimens and may qualify for the exemption if they have been acquired before 3 March 1947.

Worked specimens that have been acquired before 3 March 1947 **must, in general, remain in their original state** and should not be subsequently altered. In practice, this means that specimens that have been altered subsequently for some other use may no longer qualify for the exemptions. For example, crocodile skin watch straps made from old handbags would not qualify. However, the definition does not necessarily exclude “renovation” (an inevitable part of any object’s life), therefore worked specimens that are **restored** using **material** from specimens of Annex-listed species that **dates from before 3 March 1947 may qualify** for this exemption.

18. The relevant date for application of the “worked specimens” derogation has been changed from 1 June 1947 to 3 March 1947 (see Summary Record of COM 59, Point 14). Article 2(w) of *Regulation (EC) No 338/97* defines a “worked specimen” as one which was “acquired more than 50 years before the entry into force of this Regulation”. Previously, 1 June 1947 was used as the relevant date based on Article 22 of *Regulation (EC) No 338/97 *which states that the Regulation shall apply from 1 June 1997. However, Article 22 also states that “this Regulation shall enter into force on the date of its publication in the Official Journal” (i.e. 1 March 1997). In light of this, the European Commission has confirmed that the correct date which should be used is 3 March 1947 (i.e. 50 years before the Official Journal publication date of 3 March 1997).
19. Articles 4(5) and 5(6) *Regulation (EC) No 338/97* and Article 62(3) *Regulation (EC) No 865/2006. *
20. Article 2(w) *Regulation (EC) No 338/97.*

A couple of additional points to note with regard to the definition of wildlife “antiques” are:

- it is not necessary that the person who acquired the specimens before 3 March 1947 is also the present owner for the purpose of the definition; and
- “acquired” also means receiving a specimen as a gift, inheriting it, or killing the animal or plant and taking possession of the specimen.

The European Commission has, in cooperation with the competent CITES Management Authorities of the EU Member States, compiled and published guidance on ‘worked specimens’, which aims to assist EU Member States and stakeholders in assessing what may or may not qualify as a ‘worked specimen’.

This derogation does not apply to antiques made of elephant ivory. For these items a permit is required [21].

4.3.1.1 What documents are required for trade in pre-1947 worked specimens (i.e. “antiques") into and from the EU?

Import

For worked specimens of species listed in **Annex A or B,** an **import permit** issued by the Management Authority of destination is required. However, such specimens are exempt from certain of the conditions for issuance of an import permit, i.e. the requirements that must be fulfilled are less strict (see **Section 3.3.11**). For example, the prohibition on imports for commercial purposes does not apply to imports of worked specimens that comply with the criteria outlined above.

Before the Management Authority can issue an import permit for specimens of species listed in **Annex A,** it needs to be satisfied that:

- the specimen was **legally obtained** in the country of origin, through the presentation of an export permit; and
- there are **no other conservation factors** that prevent the issue of an import permit[22].

Therefore, for specimens of species listed in **Annex A,** a **copy of the permit** issued by the **(re-) exporting country** is required prior to issuance of an import permit.

For the **import** of specimens of **Annex B-listed species**, **prior sight of the export permit or (re-) export certificate is not required**, nor does the Management Authority have to consider whether there are any conservation reasons why the permit should not be issued[23].

For specimens of species listed in **Annex C and D,** an **import notification** is required.

(Re-)export

For **(re)export** of specimens of species listed in **Annex A, B or C**, an **export permit** or **re-export certificate** is needed. However, as above for imports, worked specimens that fulfil the above criteria are exempt from certain of the conditions for issuance of an export permit/re-export certificate contained in *Regulation (EC) No 338/97.*

21. Art. 62(3) Regulation (EC) No. 865/2006
22. Articles 4(1) and 4(5) *Regulation (EC) No 338/97.*
23. Article 4(5)(a) *Regulation (EC) No 338/97.*

Before the Management Authority can issue an export permit/re-export certificate, it must be satisfied that there are no other factors relating to the conservation of the species which prevent issuance of the export permit[24]. In addition, evidence must be presented that:

- for **exports**, confirms that the specimens were **acquired before 3 March 1947**; or
- for **re-exports,** shows that the specimens were **imported** into the EU in accordance with the **relevant regulations**, or if the import occurred **before 1984**, in accordance with **CITES**, or **before the Convention became applicable to them**[25] (see **Section 4.3.2**).

It is noted that for the **(re-)export** of CITES **Appendix-I-**listed species, **prior checking** of the **import permit** issued by the country of destination is **not required** for such specimens[26].

For **internal trade** in worked specimens, see **Section 5.2.**

4.3.2 What about trade in “pre-Convention” specimens?

Export or re-export from the EU

Legal basis

Article VII(2) of CITES establishes an exemption from the rules applying to species listed in an Appendix to the Convention for “pre-Convention” specimens:

"2. Where a Management Authority of the State of export or re-export is satisfied that a specimen was acquired before the provisions of the present Convention applied to that specimen, the provisions of Articles III, IV and V shall not apply to that specimen where the Management Authority issues a certificate to that effect”.

This exemption has been transposed (with a slightly different wording) into *Regulation (EC) No 338/97* through Article 5(6)(ii) of *Regulation 338/97*, which states that export permits or re-expert certificates can be issued without the production of a Non-detriment finding and for commercial purposes for*:*

"dead specimens and parts and derivatives thereof for which the applicant provides documentary evidence that they were legally acquired before the provisions of this Regulation, or of Regulation (EEC) No 3626/82 or of the Convention became applicable to them”.

The implementation of this provision (both under CITES and the EU Wildlife Trade Regulations) has given rise to uncertainties over interpretation. CITES Resolution Conf. 13.6 (Rev. CoP18) was adopted in order to remove any ambiguity on how these CITES provisions should be interpreted. In particular, with regards to how the terms when “the provisions of the present Convention applied to that specimen” should be interpreted, it recommends that

"a. the date from which the provisions of the Convention apply to a specimen be the date on which the species concerned was first included in the Appendices"

Commission Regulation 865/2006 incorporates this definition of “pre-Convention” into EU law in its Article 1(10).

24. Article 5(2)(b) and (d) *Regulation (EC) No 338/97*
25. Article 5(3) *Regulation (EC) No 338/97.*
26. Articles 5(6)(i) and 5(2)(c)(ii) *Regulation (EC) No 338/97*

Article 5(6)(ii) of *Regulation 338/97* should therefore be interpreted in the same way, i.e. **the date when a species was first included in one of the CITES Appendices should be the reference to determine from when the provisions of the Convention/Regulations became applicable to dead specimens, parts and derivatives subject to an application for export or re-export documents.**

This is also consistent with the definition of "pre-Convention specimen", which, according to Article 1(10) of *Commission Regulation 865/2006*, "*means a specimen acquired before the species concerned was first included in the Appendices to the Convention*".

Practical considerations

In line with the "background information" above, there exists a special derogation from certain conditions for issuance of **export permits** or **re-export certificates** for **dead specimens**, as well as **parts and derivatives**, of species listed in **Annexes A, B and C**, that were **acquired before the date on which CITES or the EU Wildlife Trade Regulations**[27] **became applicable to them**.

In the case of **dead Annex A specimens** (as well as **parts and derivatives**) which fulfil the **"pre-Convention"** criteria (discussed below), an **export permit or re-export certificate** can be issued:

- for commercial purposes;
- without the prior sight of an import permit; and
- without reference to the Scientific Authority for advice on whether the (re-)export will have a detrimental effect on the conservation status of the species (only relevant in the case of **exports** of Annex A specimens, not **re-exports**[28]. Note that the Scientific Authority will still need to be consulted by the Management Authority regarding whether there are other factors relating to conservation of the species that militate against the (re-)export[29].

The main rationale for the inclusion of the pre-Convention derogation in *Regulation (EC) No 338/97* is to **permit commercial exports and re-exports of non-living Annex A specimens** acquired before CITES became applicable to those species.

Although not subject to a prohibition on commercial exports, the derogation still has implications for exports of **dead Annex B and C specimens** (and **parts/derivatives**) which fulfil the **"pre-Convention"** criteria as an export permit can be issued in such cases without reference to the Scientific Authority for advice (as above for Annex A specimens[30]. The Scientific Authority's advice on non-detriment does not need to be sought for re-exports of dead Annex B and C specimens[31]. For information on the other requirements for issuance of an export permit/re-export certificate for Annex A, B and C specimens that still apply, see **Section 3.5** above.

Import into the EU

It is noted that the same derogation **does not apply** for **imports** into the EU. Consequently, import permits are required for specimens acquired before CITES or the EU Wildlife Trade Regulations became applicable to them, and the full range of conditions for issuance will need to be satisfied. However, where such specimens are being reintroduced into the EU, or where the specimens are considered worked specimens acquired before 3 March 1947 (see **Section 4.3.1**), certain conditions for issuance of the import permit will not apply[32].

27. Including *Regulation (EEC) 3626/82* that entered into force in 1984 - see Article 5(6) *Regulation (EC) No 338/97.*
28. Article 5(6)(ii) *Regulation (EC) No 338/97. *Note: if the specimen is considered a "worked" specimen and has been acquired before 3 March 1947, the conditions outlined in **Section 3.**6.3 **may apply.
29. Article 5(2)(d) *Regulation (EC) No 338/97*
30. Article 5(6)(ii) *Regulation (EC) No 338/97. *
31. Article 5(6) *Regulation (EC) No 338/97*
32. Article 4(5) *Regulation (EC) No 338/97*

4.4 What is the situation regarding personal effects and household goods (including hunting trophies)?

4.4.1 What are the general rules regarding personal and household effects?

The EU Wildlife Trade Regulations contain **less strict** provisions and permit requirements for trade to and from the EU, in specimens of species listed in the Annexes that are considered **personal and household effects**[33]. However, this only applies to specimens comprising/made of dead animals or plants which are:

- contained in the **personal luggage** of travellers coming from or going to a third country; or
- contained in the personal property of a person **transferring her or his normal place of residence** to or from the EU; or
- in the case of hunting trophies[34], taken by a traveller and imported into the EU at a later date[35] (see also **Section 4.4.3** on the rules for hunting trophies).

To qualify as personal effects, the goods must be **carried on the person,** or **contained in personal luggage** of the traveller. Only **hunting trophies** (imported for non-commercial purposes) and **house removal containers** for persons **taking up residence** in the EU may be transported **separately from the importer,** and introduced in the EU at a later date, i.e. after the importer's own arrival.

The derogation **does not apply** to:

- **live animals and plants** (although live, personally owned pets may obtain a special certificate – see **Section 4.6.3**); or
- goods imported or exported by any other transport method such as by post or by courier (e.g. goods purchased over the **Internet**) even if the purchaser only intends them for personal use.

It is also noted that the derogation for personal and household effects **only applies to certain imports, exports and (re-)exports** of specimens of species listed in the Annexes. For example, the derogation **does not apply to exports of specimens of Annex A or B-listed species**[36], to **the first import of specimens of Annex A-listed species by EU residents**[37] or to the **first import of hunting trophies of certain Annex B-listed species/populations by EU residents**[38] (see **Section 4.4.3**). Therefore normal documentation requirements will apply in these cases.

In addition, specific requirements apply to the re-export of **rhino horn and elephant ivory** contained in personal and household effects. Further explanation is provided under ***(b) (Re)exports*** below.

The "personal and household effects" derogation **does not normally apply** to dead specimens or parts and derivatives that are to be given away as a **gift,** or used for **commercial purposes** (this includes use for commercial gain, sale, display for commercial purposes, keeping for sale, offering for sale or transport for sale)[39]. The exception to this is for caviar derived from sturgeon species (Acipenseriformes spp.) when such specimens brought into the customs territory of the Union are considered as a "personal and household effect"

33. Article 7(3) *Regulation (EC) No 338/97*, Articles 57 and 58 *Regulation (EC) No 865/2006.*
34. For definition, see **Annex III of this Guide.**
35. Article 57(1) and 58(1) *Regulation (EC) No 865/2006.*
36. Article 58(2) *Regulation (EC) No 865/2006*
37. Article 57(2) *Regulation (EC) No 865/2006*
38. Article 57(3a) *Regulation (EC) No 865/2006*
39. Articles 57(1) and 58(1) *Regulation (EC) No 865/2006*

if they are intended to be offered as a gift to a third party, provided that there is no evidence of a commercial purpose[40]. Furthermore, specimens of Annex B-listed species that are introduced into EU under the personal and household effects derogation may be authorised for commercial use at a later date by a Member State Management Authority provided that:

1. the applicant can demonstrate that the specimen was introduced into the EU **at least two years** previously; and
2. the Management Authority is satisfied that the specimen **would have fulfilled the conditions for commercial import** (and hence would have been granted an import permit) at the time it was introduced into the EU[41].

In contrast, the **sale** of specimens of **Annex A**-listed species (or of specimens of species listed in **CITES Appendix I or in Annex C1 to *Regulation (EEC) No 3626/82***) introduced into the EU under this derogation is **not allowed**[42] (even if they could be considered under one of the exemptions to the internal trade prohibition set out in Article 8(3) of *Regulation (EC) No 338/97*).

Subject to the above exceptions, **tourist souvenirs** made of dead specimens of species listed in the Annexes may fall within the scope of the definition of personal and household effects and will be subject to the provisions outlined below.

There are **differences** in the treatment of **persons normally residing in the EU** (or **taking up residence there**) and of persons that are **residents of third countries**. A person **normally residing in the EU** is a person who lives in the EU for at least **185 days** in each calendar year because of occupational ties, or if there are no occupational ties, because of personal ties which show close links between that person and the place where s/he is living[43].

Table 13 provides an overview of the documents needed by **EU and non-EU residents**, for trade into and from the EU in specimens considered as personal effects and household goods under CITES and the EU Wildlife Trade Regulations. It is also noted that, for the import and export to/from the EU of certain specimens of Annex B-listed species, general exemptions may apply (see **Section 4.4.2**)[44].

Imports

EU residents:

EU residents introducing into the EU for the **first time** personal or household effects:

- which are specimens of species listed in **Annex A**, are required to have both an **export permit and an import permit**[45] (in other words, the “personal and household effects” derogation does not apply in such cases);
- which are hunting trophies of specimens of **Annex B-listed species/populations** which are **also listed in Annex XIII** to *Regulation (EC) No 865/2006*, are required to have both an **export permit and an import permit**[46] (again, in other words, the “personal and household effects” derogation does not apply in such cases); or

40. CURIA - C-87/20 - Ruling ECJ on caviar
41. Article 58a(1) *Regulation (EC) No 865/2006*
42. Article 58a(2) *Regulation (EC) No 865/2006*
43. Article 1(5) *Regulation (EC) No 865/2006*
44. Article 57(5) and 58(4) *Regulation (EC) No 865/2006*
45. Article 57(2) *Regulation (EC) No 865/2006.*
46. Article 57(3a) *Regulation (EC) No 865/2006*

- which involve specimens of **Annex B**-listed species (including hunting trophies – with the **exception** of those specimens to which **point (ii)** above applies), are required to present to Customs **either**: (i) an **export permit** issued by a third country; **or** (ii) in case such an export permit is not issued by the third country[47], an **import permit**[48].

The **reintroduction** into the EU by an **EU resident** of personal or household effects (including hunting trophies) that are specimens of species listed in **Annex A or B** does not require presentation of an import permit to Customs. However, one of the following must be presented[49]:

- a Customs-endorsed “copy for the holder” (**Form 2**) of a previously used EU import or export permit;
- the copy of the (re-)export document presented upon first introduction into the EU;
- proof that the specimens were acquired within the EU.

Non-EU residents:

Persons that are **not normally residing in the EU** do **not** require an **import permit** for personal effects of dead specimens listed in **Annex A or B**, as long as they are **not used for commercial purposes** or to be given away as gifts, and as long as they are contained in the personal luggage of the traveler[50].

***Both EU and non-EU residents**:*

No documentation is required for the **import** of dead specimens of **Annex C or D-listed species** as personal or household effects to the EU, provided the conditions outlined above are satisfied.

(Re-)exports

The derogation for personal and household effects **does not apply** to the **export** from the EU of specimens of species listed in **Annexes A or B**, regardless of **whether being carried out by an EU or non-EU resident**[51]. Therefore, an **export permit** will be required (unless the export falls within the more general exemption outlined at **Section 4.4.2**) and the full set of conditions for issuance of the permit detailed in **Table 11** will need to be fulfilled.

The derogation for personal and household effects **does apply** to the **re-export** from the EU of specimens of species listed in **Annexes A or B**. The re-export by an **EU resident** of personal or household effects (including personal hunting trophies) that are specimens of species listed in Annexes A or B **will not require the presentation of a re-export certificate** provided that one of the following is presented:

- a Customs-endorsed “copy for the holder” (**Form 2**) of a previously used EU import or export permit;
- the copy of the (re-)export document presented upon first introduction into the EU;
- proof that the specimens were acquired within the EU[52].

This **does not**, however, apply to the **re-export by an EU resident of rhino horn and elephant ivory** contained in personal or household effects. For these specimens, the **presentation of a re-export certificate is required**[53].

47. For example, due to the fact that country is not a Party to CITES.
48. Article 57(3) *Regulation (EC) No 865/2006*
49. Article 57(4) *Regulation (EC) No 865/2006*
50. Res. Conf. 13.7 (Rev. CoP17)* – *Control of trade in personal and household effects
51. Article 58(2) *Regulation (EC) No 865/2006.*
52. Article 58(3) *Regulation (EC) No 865/2006.*
53. Article 58(3) *Regulation (EC) No 865/2006*

In the case of **non-EU residents, re-export certificates** from the EU will be required for the re-export of personal or household effects (including hunting trophies) that are specimens of species listed in **Annex A** which were acquired outside that person's state of usual residence[54]. The same requirement applies to the re-export as personal or household effects of **rhino horn** or **elephant ivory** from specimens from populations listed in **Annex B**[55].

For **both EU and non-EU residents**, no documentation is required for the (re-)export of dead specimens of **Annex C or D-listed species** as personal or household effects to/from the EU, provided the conditions outlined above are satisfied. These rules apply unless the importing country requires an (re)export permit or certificate of origin.

4.4.2 Are there any general exemptions for certain personal and household effects?

For certain items made of species listed in Annex B, **no documents are required** for (re-) introduction and (re-)export. That is currently the case for the following items up to the stated maximum quantity[56]:

1. Caviar of sturgeon and paddlefish species (Acipenseriformes spp.) - up to a maximum of 125 grams per person (containers to be individually marked in accordance with Article 66(6) of *Regulation (EC) No 865/2006*);
2. Rainsticks of Cactaceae (cacti) - up to three per person;
3. Dead worked specimens of Crocodylia (crocodile) (excluding meat and hunting trophies) - up to four per person;
4. Shells of *Strombus gigas* (Queen Conch) - up to three per person;
5. *Hippocampus* spp. (seahorses) – up to four dead specimens per person, and
6. Shells of Tridacnidae spp. (Giant Clam) – up to three specimens per person, not exceeding 3 kg in total, where a specimen may be one intact shell or two matching halves.
7. Specimens of agarwood (*Aquilaria* spp. and *Gyrinops* spp.) – up to 1 kg woodchips, 24 ml oil, and two sets of beads or prayer beads (or two necklaces or bracelets) per person.

Following the ruling of the European Court of Justice[57] it has been confirmed that if the abovementioned maximum quantities are exceeded and the importer is not in possession of a permit issued for the purpose of the importation effected, the entire quantity imported must be confiscated by the competent authority.

54. i.e. acquired outside the EU, or bought in the EU but which were previously imported into the EU from a third country, e.g. rhino horn bought in the EU by a Vietnamese national who wants to take the rhino horn back home with them as a personal and household effect: Article 58(3a) *Regulation (EC) No 865/2006*
55. Article 58(3a) *Regulation (EC) No 865/2006*
56. Article 57(5) and 58(4) *Regulation (EC) No 865/2006*
57. CURIA - C-87/20 - Ruling ECJ on caviar

4.4.3 What is the situation for the import of hunting trophies into the EU?

Hunting trophies[58] that are introduced into the EU for **non-commercial purposes** are considered to be **personal effects** under the EU Wildlife Trade Regulations – even if they do not accompany the importer and are shipped at a later date (in order to allow for them to be preserved or cured)[59]. Hence, the provisions described above for personal effects and household goods apply to the import of these specimens into the EU (see **Table 13**).

However, the **first introduction** into the EU **by EU residents** of hunting trophy specimens of **AnnexB listed species/populations** that **are also listed in Annex XIII to *Regulation (EC) No 865/2006* do not fall within the derogation** for personal and household effects[60]. Therefore the normal import documentation requirements will apply in these cases. The species/populations for which more stringent control of imports has been deemed necessary are those for which there are **concerns as to the sustainability** of trade in hunting trophies or for which there are **indications of significant illegal trade**[61] (see **Annex XI** of this Guide for the current list of species/populations).

It should also be noted that **many of the popularly hunted species** are listed in **Annex A** of the EU Wildlife Trade Regulations and are very often **also subject to national legislation** in the country of origin. In addition, the **Scientific Review Group** has imposed import **prohibitions** on the import of **certain species** that may be subject to hunting, and hence trophies of these species cannot be imported (as no import permit will be issued: see **Section 3.3.9**).

Persons importing hunting trophies should also check that there are no considerations regarding **veterinary legislation** that might affect the import. In addition, **EU health legislation** on animal by-products[62] includes restrictions on the import of certain game trophies, which may need to be accompanied by a health certificate and processed by a registered establishment in a third country for import into the EU to be permitted. Further information can be found on the European Commission's "Animal by-products" website.

4.4.4 Are the EU Wildlife Trade Regulations requirements the same as those in CITES?

It should be noted that the provisions of CITES governing personal and household effects are somewhat different compared to those of the EU Wildlife Trade Regulations. Therefore, the Convention text and relevant Resolutions are not an adequate guide to the provisions of the Regulations in this regard.

58. For definition, see **Annex III of this Guide**.
59. Article 57(1)(c) of *Regulation (EC) No 865/2006*
60. Article 57(3a) *Regulation (EC) No 865/2006.*
61. Paragraph (3) of Recitals to *Regulation (EU) 2015/870*
62. *Regulation (EC) No 1069/2009 of the European Parliament and of the Council of 21 October 2009 laying down health rules as regards animal by-products not intended for human consumption with animal by-products *and *Regulation (EC) No 142/2011 of the Commission of 25 February 2011 implementing Regulation (EC) No 1069/2009 of the European Parliament and of the Council laying down health rules as regards animal by-products and derived products not intended for human consumption and implementing Council Directive 97/78/EC as regards certain samples and items exempt from veterinary checks at the border under that Directive.*

Table 13: Documents needed by EU and non-EU residents for the trade in personal effects and household goods made of animal and plant species regulated under CITES and the EU Wildlife Trade Regulations

Annex	Article	Import into and/ or export from EU	EU residents	Non-EU residents
			Documents Required: *Issued before travelling and presented to Customs officer*	**Documents Required: *Issued before travelling and presented to Customs officer***
Regulation (EC) No 865/2006				
A	57(2)	**Introduction** (1st import into the EU)	Export permit **(issued by country of origin of specimen) (a)** AND **Import permit** (issued by an EU Member State)	No permit required
A	57(4)	**Re-introduction** (returning again to the EU)	**"Copy for the holder"** of an EU export/import permit (presented at first exit from or entry in the EU), OR **Evidence of purchase** in the EU (when applicable), e.g. invoice / receipt, OR **Stamped copy of a (re-) export document** (presented at first entry in the EU), OR Import permit (**issued by an EU Member State**)	No permit required
A	58(2)	**Export** (originally acquired in the EU)	Export permit **(issued by an EU Member State)** AND Import permit **(issued by country of destination) (b)**	Export permit **(issued by an EU Member State)** AND Import requirements to be checked
A	58(3)	**Re-export** (previously introduced into the EU)	"**Copy for the holder**" of an EU export/import permit (presented at first exit from or entry in the EU) OR **Evidence of purchase** in the EU (when applicable), e.g. invoice / receipt, OR **Stamped copy of a (re-) export document** (presented at first entry in the EU) OR **Re-export certificate** (issued by country of re-export) (c)	Re-export certificate **(only for specimens of Annex A-listed species which were acquired outside of the non-EU resident's state of usual residence, i.e. bought whilst in the EU but previously imported from a third country, or acquired outside of the EU)**[1] **Import permit (issued by country of destination) (b)**
B	57(3)	**Introduction** (1st import into the EU)	Export permit **(issued by country of origin of specimen) (a), (d), (e)**	No permit required

Annex	Article	Import into and/ or export from EU	EU residents	Non-EU residents
			Documents Required: *Issued before travelling and presented to Customs officer*	**Documents Required: *Issued before travelling and presented to Customs officer***
Regulation (EC) No 865/2006 (continued)				
B	57(4)	**Re-introduction** (returning again to the EU)	"**Copy for the holder**" of an EU export/import permit (presented at first exit from or entry in the EU) OR **Evidence of purchase** in the EU (when applicable), e.g. invoice / receipt OR **Stamped copy of a (re-)export document** (presented at first entry in the EU) OR **Import permit** (issued by an EU Member State)	No permit required
B	58(2)	**Export** (originally acquired in the EU)	Export permit **(issued by an EU Member State)**	Export permit **(issued by an EU Member State)**
B	58(3)	**Re-export** (previously introduced into the EU)	"**Copy for the holder**" of an EU export/import permit (presented at first exit from or entry in the EU) OR **Evidence of purchase** in the EU (when applicable), e.g. invoice / receipt OR **Stamped copy of a (re-)export document** (presented at first entry in the EU) OR **Re-export certificate** (issued by country of re-export)	No permit, certificate or notification required (c) (f)
Regulation (EC) No 338/97				
C	7(3)		No permit, certificate or notification required.	No permit, certificate or notification required.
D	7(3)		No permit, certificate or notification required.	No permit, certificate or notification required.

1. If the exporting country is not able to issue an export permit (e.g. country that is not a Party to CITES), an import permit from the EU Member State of destination should be obtained prior to importation.
2. The import permit is only required when the species is also listed in Appendix I of CITES.

3. A re-export certificate issued by EU MSs will always be required for the re-export of rhino horn or elephant ivory contained in personal or household effects by an EU resident. In the case of non-EU residents, the same requirement applies to the re-export of rhino horn or elephant ivory contained in personal or household effects which were acquired outside that person's state of usual residence.
4. General exemptions apply for certain specimens of Annex B (see details in **Section 4.4.2**).
5. In addition, an import permit will be required for the first introduction of hunting trophies of those Annex B-listed species/populations that are also listed in Annex XIII to *Regulation (EC) No 865/2006* (see **Annex XI** of this Guide).
6. However, a re-export certificate will be required for the re-export of personal or household effects of rhino horn or elephant ivory from Annex B-listed populations, which were acquired outside of the non-EU resident's state of usual residence, i.e. bought whilst in the EU but previously imported from a third country, or acquired outside of the EU.

4.5 Are there simplified procedures for registered institutions?

4.5.1 How is exchange between scientific institutions facilitated?

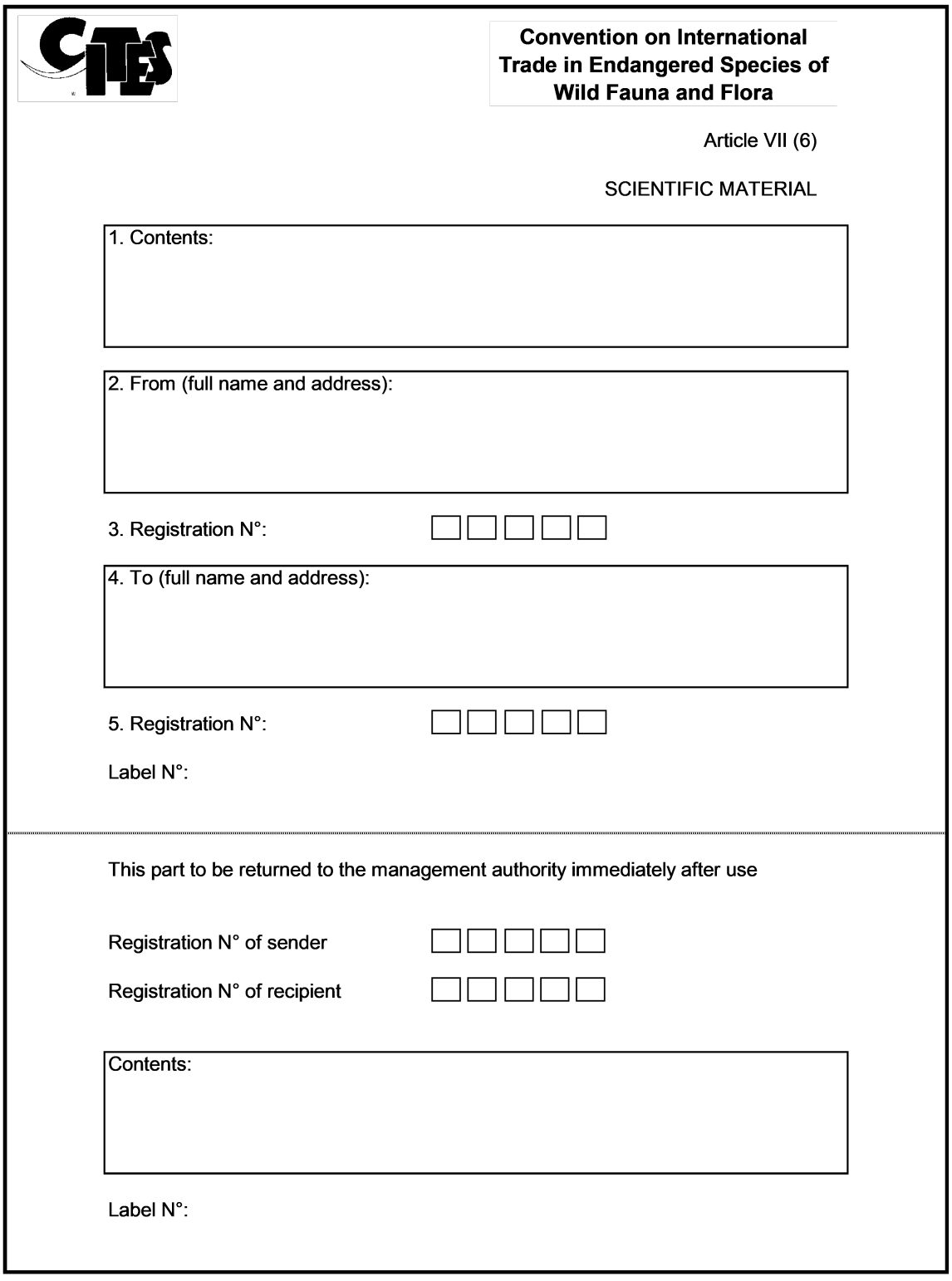
Scientists and scientific institutions often exchange specimens of species listed in the CITES Appendices or in the Annexes of *Regulation (EC) No 338/97*, as part of a non-commercial loan or donation. In order to facilitate this exchange and minimise the administrative burden, Article 7(4) of *Regulation (EC) No 338/97* provides for simplified procedures for the movement of dead animal and plant specimens as well as for live plants, and allows the use of **labels instead of permits** or certificates. Annex VI of *Regulation (EU) 792/2012* lays down the model for the label (see **Figure 8**) and Article 52 of *Regulation (EC) No 865/2006* contains further details.

The label will only be used for the movement between **registered** scientists and scientific institutions of **non-commercial loans**, donations and exchanges of herbarium specimens; preserved, dried or embedded museum specimens; and live plant material **for scientific study**[63]**.** The registration **of the scientist or scientific institution must be done by** the Management Authority of **the Member State in which they reside**.

The scientists or scientific institution will then be attributed with a **unique registration number** consisting of five digits to be indicated on each label. The first two digits of that number will be the 2-letter ISO country code for the Member State concerned, and the last three digits a unique number assigned to each institution by the competent Management Authority[64].

63. Article 52(1) *Regulation (EC) No 865/2006*
64. Article 52(2) *Regulation (EC) No 865/2006*

Figure 8: Label provided for in Article 2(6) of Regulation (EU) No 792/2012 and Article 52 of Regulation (EC) No 865/2006



Convention on International Trade in Endangered Species of Wild Fauna and Flora

Article VII (6)

SCIENTIFIC MATERIAL

1. Contents:

2. From (full name and address):

3. Registration N°: ☐☐☐☐☐

4. To (full name and address):

5. Registration N°: ☐☐☐☐☐

Label N°:

This part to be returned to the management authority immediately after use

Registration N° of sender ☐☐☐☐☐

Registration N° of recipient ☐☐☐☐☐

Contents:

Label N°:

4.5.2 Can permits and certificates be pre-issued for trade in biological samples?

In certain circumstances, such as for **biomedical research** or screening of fresh tissues for **poisons**, specimens of Annex-listed species must be **prepared and shipped as fast as possible**. To expedite this process, Article 18 of *Regulation (EC) No 865/2006* provides for **pre-issued permits and certificates** regarding certain trade in biological samples of specimens of species listed in the Annexes or the CITES Appendices. The type of samples covered by pre-issued permits and certificates and their use, are specified in Annex XI of *Regulation (EC) No 865/2006* (included in this Guide as **Annex XIII**).

Pre-issued and **partially completed** permits and certificates may be issued by the Management Authority to **designated** persons and bodies, provided that such persons and bodies have been **approved by the Scientific Authority,** and that a **register** of these persons and bodies is maintained by the Management Authority. The main criterion for approval by the Scientific Authority is that multiple transactions involving such biological samples would **not have a harmful effect on the conservation status** of the species in question[65].

In addition to noting the **names of persons and bodies** registered to use pre-issued permits and certificates, the **register** should also include the **species** that the person/body may trade under the simplified procedures. This register must be **reviewed** by the Management Authority every **five years**[66].

Registered persons and bodies must be **authorised** by the Management Authority to enter **specific information** on the permit/certificate provided that the Management Authority has entered into **box 23**, or in an appropriate annex to the permit/certificate, the following:

1. a list of the boxes that registered persons or bodies are authorised to complete for each shipment, and
2. a place for the signature of the person who completed the document[67].

The **container** in which biological samples are shipped must also bear a label that specifies "**CITES Biological Samples**" and the CITES document number[68].

4.5.3 What about the use of pre-issued documents for the (re-)export of dead specimens of species listed in Annexes B and C?

The **export or re-export** of **dead** specimens of species listed in **Annexes B and C**, including parts and derivatives thereof, may also be carried out with **pre-issued permits or certificates**[69], provided that such trade is otherwise in accordance with Article 5(4) and Article 5(5) of *Regulation (EC) No 338/97*[70] (provisions on export and re-export). The Scientific Authority must also advise that such export/re-export will **not be detrimental** to the conservation status of the species concerned[71].

Only **registered persons or bodies** may make use of these simplified procedures, and the register of persons and bodies must be reviewed by the Management Authority every five years[72].

65. Article 18(2) *Regulation (EC) No 865/2006*
66. Article 18(1)(a) *Regulation (EC) No 865/2006*
67. Article 18(1)(c) *Regulation (EC) No 865/2006*
68. Article 18(3) *Regulation (EC) No 865/2006*
69. Article 19(1) *Regulation (EC) No 865/2006*
70. Article 19(2) *Regulation (EC) No 865/2006*
71. Article 19(1)(a) *Regulation (EC) No 865/2006*
72. Article 19(1)(b) *Regulation (EC) No 865/2006*

It is at the discretion of the Management Authority to determine who is eligible for inclusion in the list of "registered persons and bodies". Registered persons and bodies must be authorised by the Management Authority to enter **specific information** on the permit/certificate **into boxes 3, 5, 8 and 9 or 10**, provided that they:

1. **sign** the completed permit or certificate in **box 23**;
2. immediately **send a copy** of the permit or certificate to the **issuing Management Authority**, and
3. **maintain a record**, which must be produced to the competent Management Authority on request and which will contain details of the specimens sold (including the species name, type and source of specimen), the date of sale, and the names and addresses of the persons to whom they were sold.

4.6 Are there streamlined certificates for specific types of specimen movement?

4.6.1 Are there streamlined procedures for travelling exhibitions?

Travelling exhibition certificates[73] are used for specimens of species listed in the Annexes that are **frequently transported across borders** in order to be **displayed to the public** in travelling exhibitions.

A travelling exhibition is a sample collection, circus, menagerie, plant exhibition, orchestra or museums exhibition that is used for commercial display for the public[74].

A travelling exhibition certificate makes travelling with specimens of species listed in the Annexes of the EU Wildlife Trade Regulations much easier, because it **may be used more than once** providing that all the required conditions are met. Therefore, it **precludes** the need for application for **CITES permits** each time an international border is crossed, since it is accompanied by a **continuation sheet** which can be endorsed by Customs offices more than once. The type and colour of the paper used for the travelling exhibition certificates should be as detailed in **Table 14**.

Table 14: Documents required as part of a travelling exhibition certificate[75]

Type of document	Form Number	Colour
Original	Form number 1	Yellow with grey guilloche
Issuing Management Authority	Form number 2	Pink
Application form	Form number 3	White
Continuation sheets & labels		White

73. Articles 30 to 36 *Regulation (EC) No 865/2006*
74. Article 1(6) *Regulation (EC) No 865/2006*
75. *Articles 2 and 3 Regulation (EU) No 792/2012*

4.6.1.1 In which cases can travelling exhibition certificates be used?

Travelling exhibition certificates can only be used for specimens which were **legally acquired** and which were:

- **born and bred in captivity** in accordance with Articles 54 and 55 of *Regulation (EC) No 865/2006*;
- **artificially propagated** in accordance with Article 56 of *Regulation (EC) No 865/2006* as amended by paragraph 14 of *Regulation (EU) No 791/2012*, or
- acquired or introduced into the EU **before CITES provisions or EU Regulations** were applicable to them (see also **Section 4.3.2** on "pre-Convention specimens)[76].

In the case of **live animals**, a travelling exhibition certificate will cover **one specimen only**[77]. On the other hand, for dead specimens, parts and derivatives, one certificate can cover more than one specimen.

In the case of **ivory**, at the 28th Meeting of the Group of Experts of the Competent CITES Management Authorities the group agreed that travelling exhibition certificates cannot be issued for any items, except within the framework and conditions of the **two existing exemptions for international trade** (**musical instruments and antiques sold to museums**).

4.6.1.2 How are travelling exhibition certificates used?

A travelling exhibition certificate **may be used in place of an import permit, export permit or re-export certificate**. It may also be used as an **internal trade certificate**, exempting the holder from the prohibition to **display** the specimens to the public for commercial purposes (see **Section 5.1**)[78].

4.6.1.3 Where can travelling exhibition certificates be obtained, and what requirements apply when using them?

If the travelling exhibition **originates in the EU**, the applicant should apply to the **Management Authority of the Member State** from which the travelling exhibition originates. Detailed steps regarding application and issuance of a travelling exhibition certificate are provided in **Figure 9**[79].

If the travelling exhibition **originates in a country outside the EU**, the **Management Authority of the EU Member State that is the first country of destination** for the travelling exhibition should issue the travelling exhibition certificate. In this case, a travelling exhibition certificate should be issued only when **equivalent documentation has been provided by the country of export**[80].

Figure 10 provides an example of a travelling exhibition certificate.

If an **animal** covered by a travelling exhibition certificate **gives birth** whilst the exhibition is in a Member State, the **Management Authority of that State must be notified** and a certificate issued, or a permit issued (as appropriate), if the offspring is to be used for purposes other than the travelling exhibition[81].

76. Article 30(1) *Regulation (EC) No 865/2006*
77. Article 30(2) *Regulation (EC) No 865/2006*
78. Article 31 *Regulation (EC) No 865/2006*
79. Article 32(1) *Regulation (EC) No 865/2006*
80. Article 32(2)* Regulation (EC) No 865/2006*
81. Article 32(3) *Regulation (EC) No 865/2006*

Specimens which are covered by a travelling exhibition certificate **must be:**

- **uniquely and permanently marked** either in accordance with Article 66 of *Regulation (EC) No 865/2006* in the case of live animals (see **Section 7** on marking methods), or in a way which enables the authorities of each Member State to verify that the animal covered by the travelling exhibition certificate corresponds to the specimen;
- **registered by the issuing Management Authority,** unless the specimens originated from a country outside the EU;
- **returned to the Member State in which they are registered prior to the expiry of the certificate** unless they originated from a country outside the EU[82].

Where the specimens originated from outside the EU (i.e. from a third country), the certificate must include the following text in **box 20** of the form:

> This certificate is not valid unless accompanied by an original travelling exhibition certificate issued by a third country[83].

The forms for travelling exhibition certificates, and the accompanying continuation sheet that must be endorsed by Customs whenever a border is crossed, are provided respectively in **Annexes III and IV** of *Regulation (EU) No 792/2012*, and also for reference as **Figures 10 and 11** of this Guide.

Travelling exhibition certificates issued by an EU Management Authority are valid for **three years**[84] (see **Section 8.2**)

82. Article 33(1) *Regulation (EC) No 865/2006*
83. Article 33(2) *Regulation (EC) No 865/2006*
84. Article 10(3) *Regulation (EC) No 865/2006*

Figure 9: Steps involved in the application and issuance of a travelling exhibition certificate

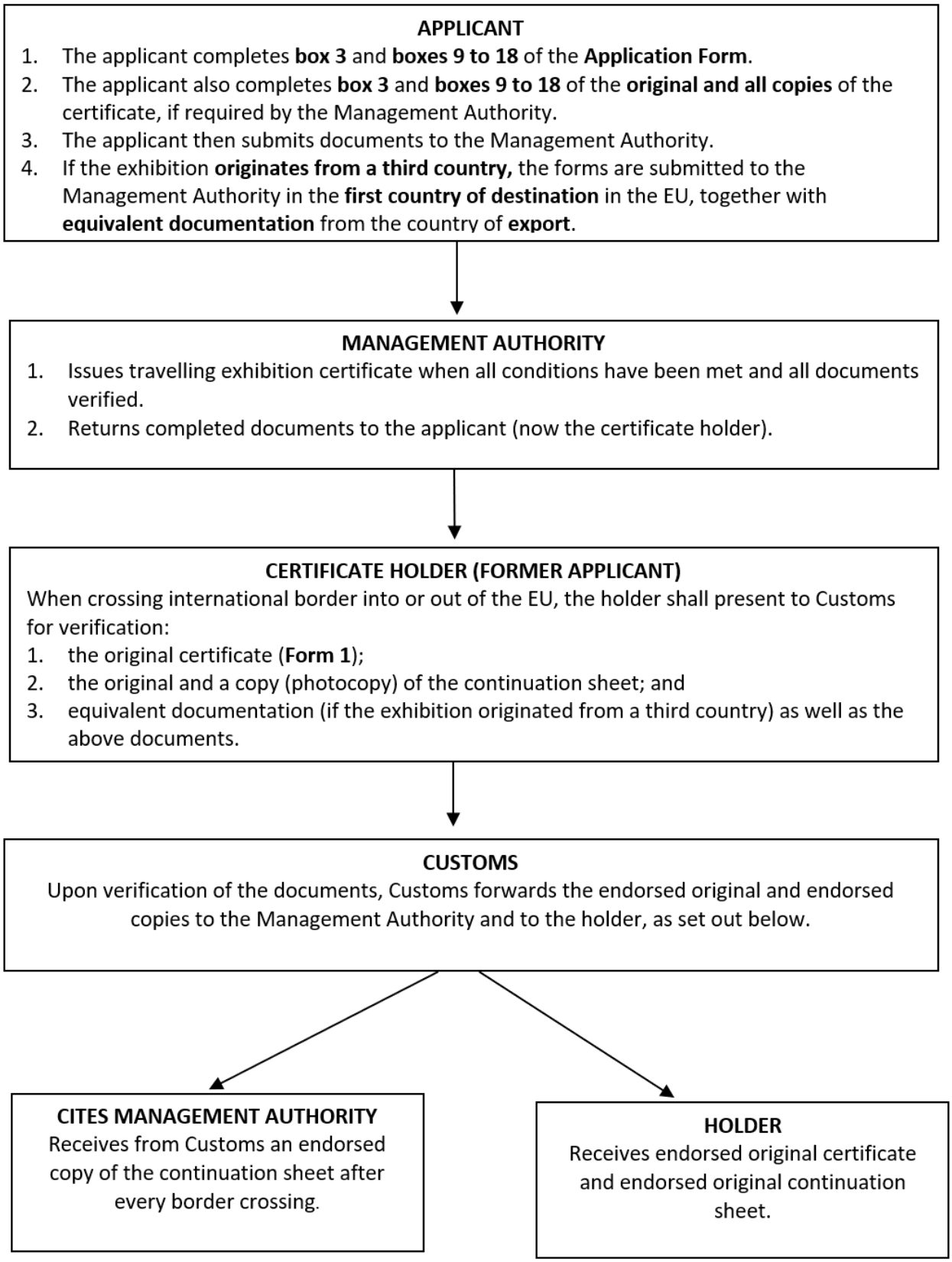


Figure 10: Travelling exhibition certificate

EUROPEAN UNION CONVENTION ON INTERNATIONAL TRADE IN ENDANGERED SPECIES OF WILD FAUNA AND FLORA	TRAVELLING-EXHIBITION CERTIFICATE Original	
	1. Certificate No	2. Valid until
3. Owner of specimen(s) (name, permanent address and country of registration) Signature of owner	4. Issuing management authority	

5. Special conditions:

a) Valid for multiple cross-border movements and allowing the specimens to be displayed to the public in accordance with Art. 8 (3) Regulation (EC) No 338/97. Owner to retain original form.

b) The specimen(s) covered by this certificate may not be sold or otherwise transferred, in compliance with the provisions of Regulation (EC) No 338/97, in any State other than the State in which the exhibition is based and registered. This certificate is non-transferable. If the specimen(s) dies, is stolen, destroyed, lost, sold or otherwise transferred, this certificate must be immediately returned by the owner to the issuing Management Authority.

c) This certificate is not valid unless accompanied by a continuation sheet.

d) The certificate shall in no way affect the right of states to adopt stricter domestic measures regarding restrictions or conditions for the certified specimens, especially the holding/keeping of live animals.

This certificate is valid only if the transport conditions conform to the Guidelines for Transport of Live Animals or, in the case of air transport, to the IATA Live Animal Regulations

6. Country of import **Various**	7. Purpose of the transaction **Q**	8. Security stamp no
9. Scientific name (genus and species) and common name of species	10. Description of specimen/s, including identifying marks or numbers, age, sex	

11. Quantity	12. CITES Appendix	13. EU Annex	14. Source
15. Country of origin	16. Permit No and date	17. Exhibition registration number	18. Date of acquisition (if specimen originated in a Member State of the Union)

19. This certificate is issued by:

Place	Date	Signature and official seal

20. Additional conditions

21. Customs endorsement (see Continuation sheet)

Figure 11: Continuation sheet for travelling exhibition, musical instrument and personal ownership certificates

EUROPEAN UNION CONVENTION ON INTERNATIONAL TRADE IN ENDANGERED SPECIES OF WILD FAUNA AND FLORA	TRAVELLING-EXHIBITION CERTIFICATE PERSONAL OWNERSHIP CERTIFICATE CONTINUATION SHEET Page _____ of _____
1. Original certificate No	4. Issuing Management Authority
8. Security stamp No	
3. Owner of specimen(s) (name, permanent address and country of registration)	
Customs office of import / Date / Signature / Official stamp	Customs office of (re)export / Date / Signature / Official stamp
Customs office of import / Date / Signature / Official stamp	Customs office of (re)export / Date / Signature / Official stamp
Customs office of import / Date / Signature / Official stamp	Customs office of (re)export / Date / Signature / Official stamp
Customs office of import / Date / Signature / Official stamp	Customs office of (re)export / Date / Signature / Official stamp
Customs office of import / Date / Signature / Official stamp	Customs office of (re)export / Date / Signature / Official stamp
Customs office of import / Date / Signature / Official stamp	Customs office of (re)export / Date / Signature / Official stamp

4.6.2 Are there streamlined procedures for the non-commercial cross-border movement of musical instruments?

Musical instrument certificates[85] can be used for the **non-commercial cross-border movement of musical instruments** for purposes including, but not limited to, personal use, performance, production (recordings), broadcast, teaching, display or competition. Such certificates may be used for instruments derived from species listed in Annexes A, B or C of the Regulations, with the exception of specimens of species listed in Annex A that were acquired after the species was included in the CITES Appendices.

A musical instrument certificate makes travelling with instruments derived from species listed in the Annexes of the EU Wildlife Trade Regulations much easier, because it **may be used more than once,** providing that all the required conditions are met. Therefore, it **precludes** the need for application for **CITES permits** each time an international border is crossed, since it is accompanied by a **continuation sheet** that can be endorsed by Customs offices more than once. The type and colour of the paper used for the musical instrument certificates should be as detailed in **Table 15**.

Table 15: Documents required as part of a musical instrument certificate[86]

Type of document	Form Number	Colour
Original	Form number 1	White with grey guilloche
Copy for the holder	Form number 2	Yellow
Copy for return by Customs to the issuing authority	Form number 3	Pale green
Copy for issuing authority	Form number 4	Pink
Application form	Form number 5	White
Continuation sheets		White

4.6.2.1 In which cases can musical instrument certificates be used?

Musical instrument certificates can only be used for **non-commercial** cross-border movements of musical instruments, where the specimen used in the manufacture of the musical instrument concerned has been **legally acquired** and where the musical instrument is **appropriately identified** (see **Section 4.6.2.3**)[87].

A musical instrument certificate may only be issued for an instrument derived from an Annex A-listed species when pre-Convention acquisition of the specimen has been proven.[88] Musical instruments derived from an Annex A-listed species for which pre-Convention acquisition cannot be proven may be (re-)exported or imported from/into the EU as “personal effects or household goods” provided certain conditions are met (see **Section 4.4**).

85. Articles 44h to 44p *Regulation (EC) No 865/2006 *
86. *Articles 2 and 3 Regulation (EU) No 792/2012*
87. Article 44h(1) *Regulation (EC) No 865/2006*
88. Article 44h(1) *Regulation (EC) No 865/2006*

A musical instrument certificate may also be used for instruments that are transported together in a freight or cargo consignment of an orchestra if the instruments are intended to be used for performances by the musicians travelling with the orchestra. A separate musical instrument certificate must be issued for each instrument in the consignment. It is advised that each musician provides an informal power of attorney authorising the orchestra to include their instrument in the orchestra's freight or cargo consignment.

4.6.2.2 How are musical instrument certificates used?

A musical instrument certificate **may be used in place of an import permit, export permit or re-export certificate**[89].

4.6.2.3 Where can musical instrument certificates be obtained, and what requirements apply when using them?

The applicant should apply to the **Management Authority** in their **Member State of usual residence**[90]. Detailed steps regarding application and issuance of a musical instrument certificate are provided in **Figure 12**.

The **form** to be used for a musical instrument certificate is the **same as for an import or export permit or a re-export certificate** (see **Figure 2** and **Table 7**). However, the **box** '**Other**' should be crossed. The **description of the instrument** in the form (**box 8**) should allow the competent authority to verify that the certificate corresponds to the specimen being imported or exported, and the description should include elements such as the **manufacturer's name, the serial number or other means of identification such as photographs**[91].

The form is accompanied by a **continuation sheet** similar to that used with a travelling exhibition certificate[92] (see **Figure 11**), that is endorsed by Customs whenever a border is crossed. **Musical instrument certificates** issued by an EU Management Authority are valid for **three years**[93] (see **Section 8.2**).

In **box 23** of the musical instrument certificate, or in an **appropriate annex** to the certificate, the following text must be inserted[94]:

> *Valid for multiple cross-border movements. Original to be retained by holder.*
>
> *The musical instrument covered by this certificate, which permits multiple cross-border movements, is for non-commercial use for purposes including, but not limited to, personal use, performance, production (recordings), broadcast, teaching, display or competition. The musical instrument covered by this certificate may not be sold or possession of it transferred whilst it is outside the State in which the certificate was issued.*
>
> *This certificate must be returned to the management authority of the State which issued the certificate before the expiration of the certificate.*
>
> *This certificate is not valid unless accompanied by a continuation sheet, which must be stamped and signed by a customs official at each border crossing.*

89. Article 44i *Regulation (EC) No 865/2006*
90. Article 44j(1) *Regulation (EC) No 865/2006*
91. Paragraph 8 of the Instructions and explanations to Annex I *Regulation (EU) No 792/2012*
92. Article 44h(2) *Regulation (EC) No 865/2006 *and Annex IV *Regulation (EU) No 792/2012*
93. Article 10(3) *Regulation (EC) No 865/2006*
94. Article 44j(2) *Regulation (EC) No 865/2006*

A specimen which is covered by a musical instrument certificate **must be**[95]**:**

- **registered** by the certificate-issuing Management Authority;
- **returned** to the Member State in which it is registered **prior to the expiry** of the certificate**;** and
- **appropriately identified.**

A specimen covered by a musical instrument certificate may not be sold or possession of it transferred whilst outside the applicant's State of usual residence[96]. If an owner wishes to **sell** the specimen covered by a musical instrument certificate, they must first **surrender** the certificate to the issuing management authority. In order to keep/offer a specimen listed in Annex A for sale in the EU, the owner must apply to the relevant authority for a certificate in accordance with Article 8(3) of *Regulation (EC) No 338/97*[97] (see **Section 5**). For sale outside of the EU, the provisions of *Regulation (EC) No 338/97* on exports (and associated documentation) will apply – for further information see **Section 3.5** above.

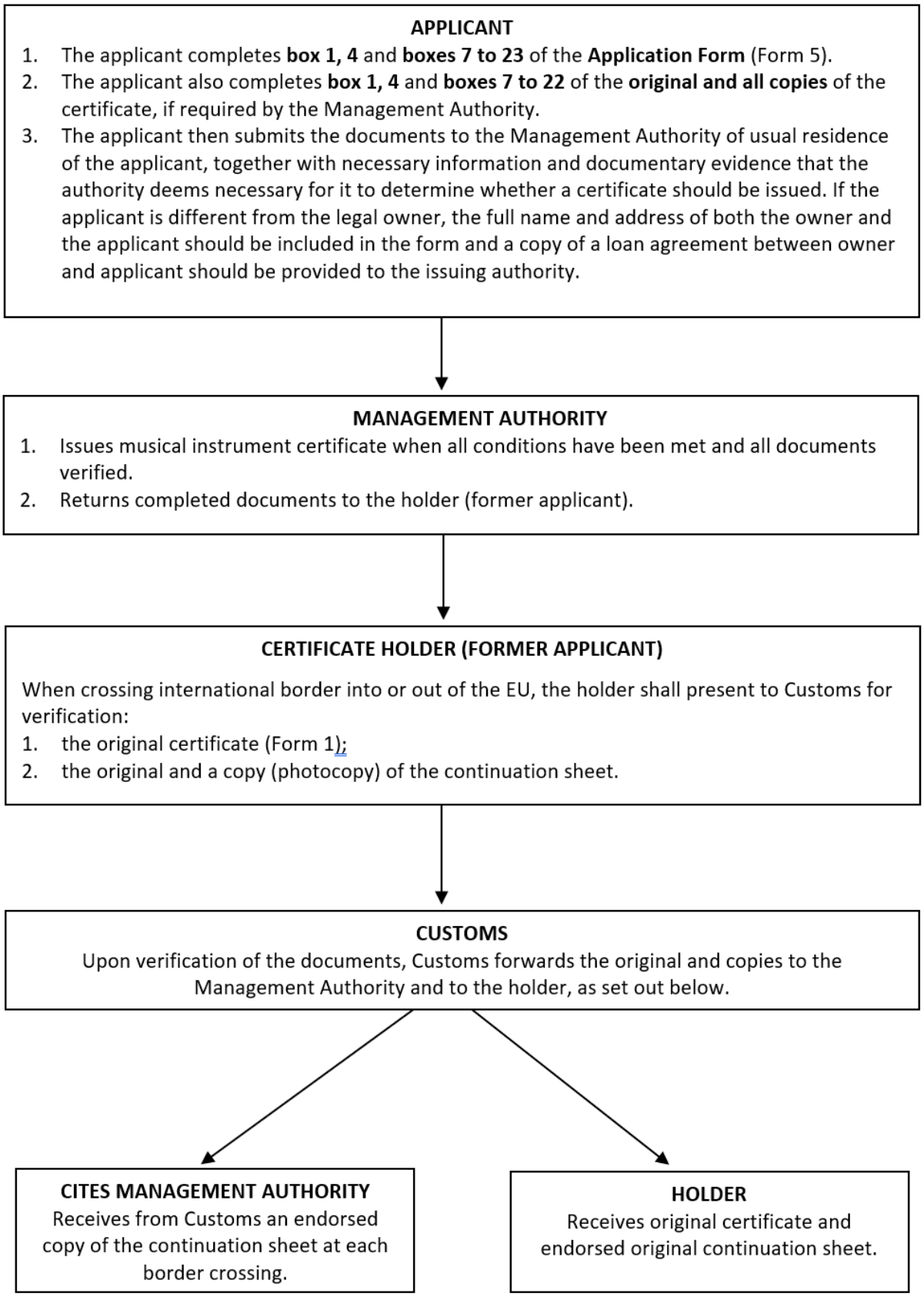
The forms on which musical instrument certificates should be drawn up must conform to the model set out in Annex I and, for the continuation sheet, to the model set out in Annex IV of *Regulation (EU) No 792/2012* (see also **Figures 2** and **11**).

4.6.2.4 How does the EU treat musical instrument certificates issued by third (non-EU) countries?***

An instrument covered by a musical instrument certificate issued by a third country may be introduced into the EU, or re-exported from the EU, without requiring the presentation of a (re)export document or an import permit, **provided that** the musical instrument certificate was issued by the third country under similar conditions to those described in Articles 44h and 44j of *Regulation (EC) No 865/2006* (see above).

95. Article 44k *Regulation (EC) No 865/2006*
96. Article 44k(c) *Regulation (EC) No 865/2006*
97. Article 44n *Regulation (EC) No 865/2006*

Figure 12: Steps involved in the application and issuance of a musical instrument certificate



4.6.3 Are there simpler procedures for personally owned live animals (e.g. pets, etc.)?

Personal ownership certificates[98] can be used to facilitate travel with **personally-owned live animals** of species listed in Annexes A, B or C of the Regulations, provided that those animals are held for **personal non-commercial purposes** only. A personal ownership certificate may be **used more than once**, providing that all conditions are met, thereby precluding the need for application for CITES permits each time an international border is crossed.

Personal ownership certificates are not issued for plants or dead animals, or their parts or derivatives.

4.6.3.1 When can personal ownership certificates be used?

Personal ownership certificates may only be issued for legally acquired **live animals** held for **personal, non-commercial purposes**[99].

A personal ownership certificate can only cover **one specimen**[100].

4.6.3.2 How are personal ownership certificates used?

A personal ownership certificate may be used **in place of an import permit**. If the **country of destination agrees** (Management Authority will advise on this), it may also be used as an **export permit or re-export certificate**[101].

The specimen **must be accompanied by the owner** when crossing an international border.

4.6.3.3 Where can a personal ownership certificate be obtained, and what requirements apply?

The **form** to be used for a personal ownership certificate is the **same as for an import or export permit or a re-export certificate** (see **Figure 2** and **Table 7**). However, the **box** '**Other**' should be crossed. Detailed steps on application and issuance are provided in **Figure 13**. The form is accompanied by a continuation sheet similar to that used with a travelling exhibition certificate[102] (see **Figure 11**), that is endorsed by Customs whenever a border is crossed. **Personal ownership certificates** issued by an EU Management Authority are valid for **three years**[103] (see **Section 8.2**).

If the specimen **originates from within the EU**, the applicant should apply to the **Management Authority of the Member State** where the specimen is located[104].

If the specimen originates from a country **outside of the EU**, the Management Authority of the **EU Member State that was the first country of destination** for the specimen issues the personal ownership certificate, on the condition that **equivalent documentation from the country of export** has been provided by the holder to that EU Management Authority[105].

98. Articles 37 to 44 *Regulation (EC) No 865/2006.*
99. Article 37(1) *Regulation (EC) No 865/2006 *
100. Article 37(2) *Regulation (EC) No 865/2006*
101. Article 38 *Regulation (EC) No 865/2006*
102. Annex IV *Regulation (EU) No 792/2012*
103. Article 10(3) *Regulation (EC) No 865/2006*
104. Article 39(1) *Regulation (EC) No 865/2006*

In **box 23** of the personal ownership certificate, or in an **appropriate annex** to the certificate, the following text must be inserted[106]:

> *Valid for multiple cross-border movements where the specimen is accompanied by its owner. Legal owner to retain original form.*
>
> *The specimen covered by this certificate may not be sold or otherwise transferred except in accordance with Article 43 of Commission Regulation (EC) No. 865/2006. This certificate is non-transferable. If the specimen dies, is stolen, destroyed, or lost, or if it is sold or ownership of the specimen is otherwise transferred, this certificate must be immediately returned to the issuing Management Authority.*
>
> *This certificate is not valid unless accompanied by a continuation sheet, which must be stamped and signed by a Customs official at each border crossing.*
>
> *This certificate shall in no way affect the right of States to adopt stricter domestic measures regarding restrictions or conditions for the holding/keeping of live animals*.

If an animal covered by a personal ownership certificate **gives birth** whilst in a Member State, the **Management Authority** of that State must be **notified** and a certificate issued (or a permit if the offspring is to be used for purposes other than as a personal pet), as appropriate[107].

4.6.3.4 What other conditions apply to a personal ownership certificate

All live animal specimens must be **uniquely and permanently marked** in accordance with Article 66 of *Regulation (EC) No 865/2006* (see **Section 7** on marking methods), in order that the authorities may verify that the animal covered by the personal ownership certificate corresponds to the animal being imported/exported[108].

Specimens which are covered by a personal ownership certificate must be **registered** by the certificate-issuing authority, and **returned** to the Member State in which they were registered prior to the expiry of the certificate, unless they originated from a country outside of the EU[109]. Where the specimens originated from outside of the EU (a third country), the certificate must include the following text in **box 20** of the form[110]:

> *This certificate is not valid unless accompanied by an original personal ownership certificate issued by a third country and unless the specimen to which it relates is accompanied by its owner*.

Specimens covered by a personal ownership certificate may not be used for commercial purposes[111]. If the owner wishes to **sell** the specimen, they must first **surrender** the certificate to the issuing authority. In order to keep/offer a specimen listed in Annex A for sale in the EU, the owner must apply to the relevant authority for a certificate in accordance with Article 8(3) of *Regulation (EC) No 338/97*[112] (see **Section 5**). Such a certificate will also be required in the case of Annex B specimens for which it is not possible to prove they were legally

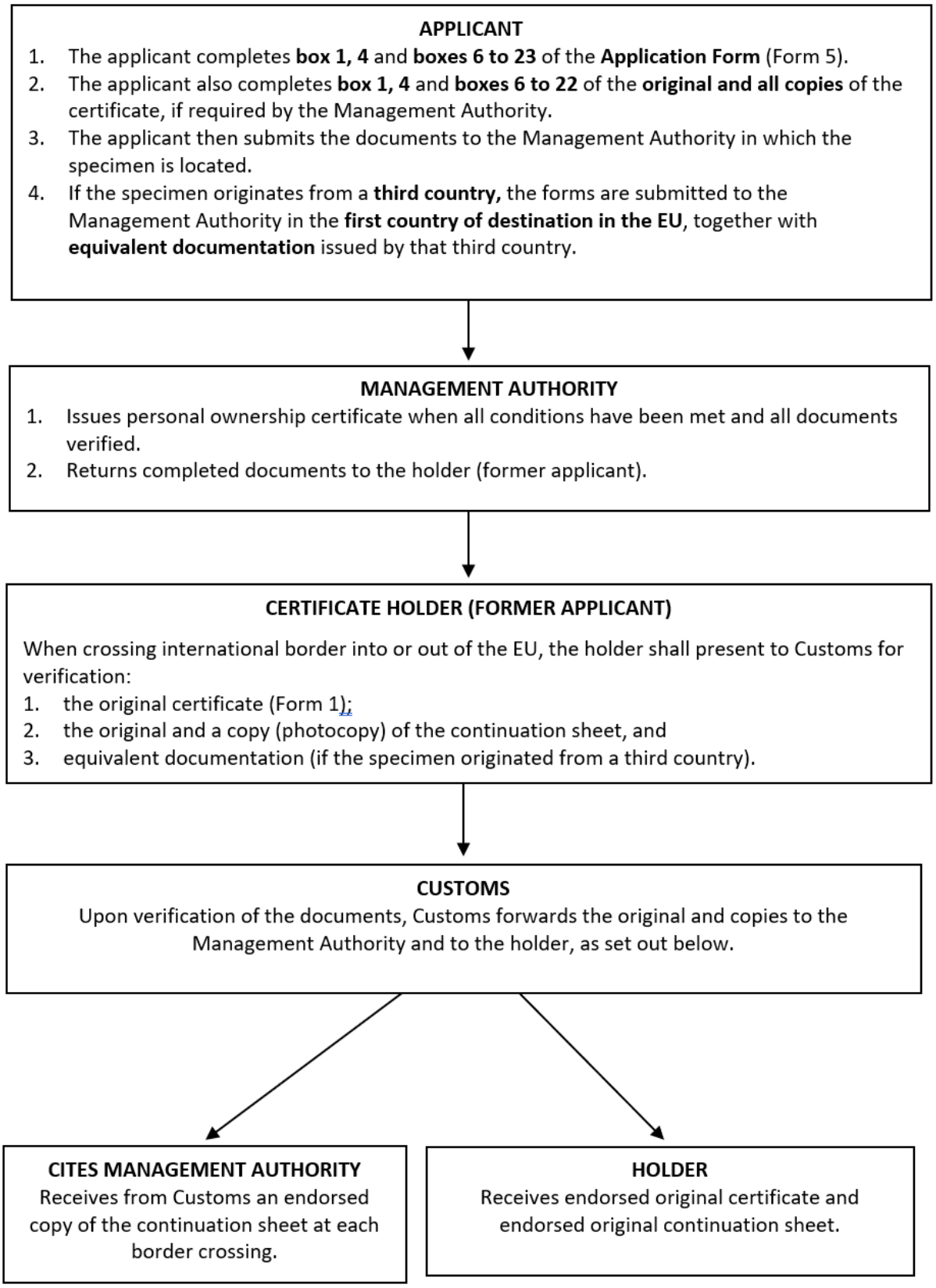
105. Article 39(2) *Regulation (EC) No 865/2006*
106. Article 39(3) *Regulation (EC) No 865/2006*
107. Article 39(4) *Regulation (EC) No 865/2006*
108. Article 40(1)(d) *Regulation (EC) No 865/2006*
109. Articles 40(1)(a) and (b) *Regulation (EC) No 865/2006*
110. Article 40(2) *Regulation (EC) No 865/2006*
111. Article 40(1)(c) *Regulation (EC) No 865/2006*
112. Article 43 *Regulation (EC) No 865/2006*

acquired in (and, if originating outside of the EU, introduced into) the EU[113]. For sale outside of the EU, the provisions of *Regulation (EC) No 338/97* on exports (and associated documentation) will apply – for further information see **Section 3.5** above.

The forms on which personal ownership certificates should be drawn up must conform to the model set out in Annex I and, for the continuation sheet, to the model set out in Annex IV of *Regulation (EU) No 792/2012* (see also **Figures 2** and **11**).

113. Article 8(5) *Regulation (EC) No 338/97*

Figure 13: Steps involved in the application and issuance of a personal ownership certificate



4.6.4 Are there simplified procedures for sample collections?

Sample collection certificates[114] may be issued in respect of sample collections, provided those collections are accompanied by a **valid ATA carnet**[115].

4.6.4.1 When can sample collection certificates be used?

Sample collection certificates can be used for collections of legally acquired dead specimens of species listed in Annexes A, B or C of *Regulation (EC) No 338/97* (as well as parts and derivatives thereof) which are transported across borders for presentation purposes[116]. Specimens, parts or derivatives of species listed in Annex A must also:

- in the case of animal specimens, be **of captive born and bred origin** in accordance with Articles 54 and 55 of *Regulation (EC) No 865/2006*, or
- in the case of plant specimens, be **artificially propagated** in accordance with Article 56 of *Regulation (EC) No 865/2006*.

4.6.4.2 What can sample collection certificates be used for?

A sample collection certificate may be used in place of[117]:

- an **import permit;**
- an **export permit** or **re-export certificate** (if the country of destination recognises and allows the use of ATA carnets), and
- an **internal trade certificate**, exempting the holder from the prohibition to **display** the specimens to the public for commercial purposes (see **Section 5**).

4.6.4.3 How are sample collection certificates obtained and what requirements apply when using them?

The **form** to be used for a sample collection certificate is the **same as for an import or export permit or a re-export certificate**[118] (see **Figure 2 and Table 7**). However, the certificate must indicate that the document is for "**Other: Sample Collection**" and the number of the accompanying **ATA carnet** should be included in **box 23**[119]. The following text should also be included in **box 23** or in an appropriate annex to the certificate:

> *For sample collection accompanied by ATA carnet No. xxx.*
>
> *This certificate covers a sample collection and is not valid unless accompanied by a valid ATA carnet. This certificate is non-transferable. The specimens covered by this certificate may not be sold or otherwise transferred whilst outside the territory of the State that issued this document.*

114. Articles 44a to 44g *Regulation (EC) No 865/2006*
115. The ATA carnet is an international Customs document that can be used in different countries around the world to cover temporary use of goods without payment of Customs charges. Using a carnet simplifies Customs clearance of goods in exporting and importing countries by replacing Customs documents that would normally be required (https://iccwbo.org/resources-for-business/ata-carnet/).
116. Article 44a *Regulation (EC) No 865/2006*
117. Article 44b *Regulation (EC) No 865/2006*
118. Annex I *Regulation (EU) No 792/2012*
119. Article 44d(4) *Regulation (EC) No 865/2006*

> *This certificate may be used for (re-)export from [indicate country of (re-) export] via [indicate countries to be visited] for presentation purposes and import back to [indicate country of (re-)export].*

Detailed steps on application and issuance are provided in **Figure 14**.

If the sample collection **originates in the EU**, the applicant should apply to the **Management Authority of the Member State** in which the collection originates[120].

If the sample collection **originates in a country outside of the EU**, the **Management Authority of the EU Member State that is the first country of destination** for the collection should issue the sample collection certificate[121]. In the latter case, a sample collection certificate should be issued only when **equivalent documentation has been provided by the country of export** and the certificate must include the following text in **box 23** of the form (instead of that set out above)[122]:

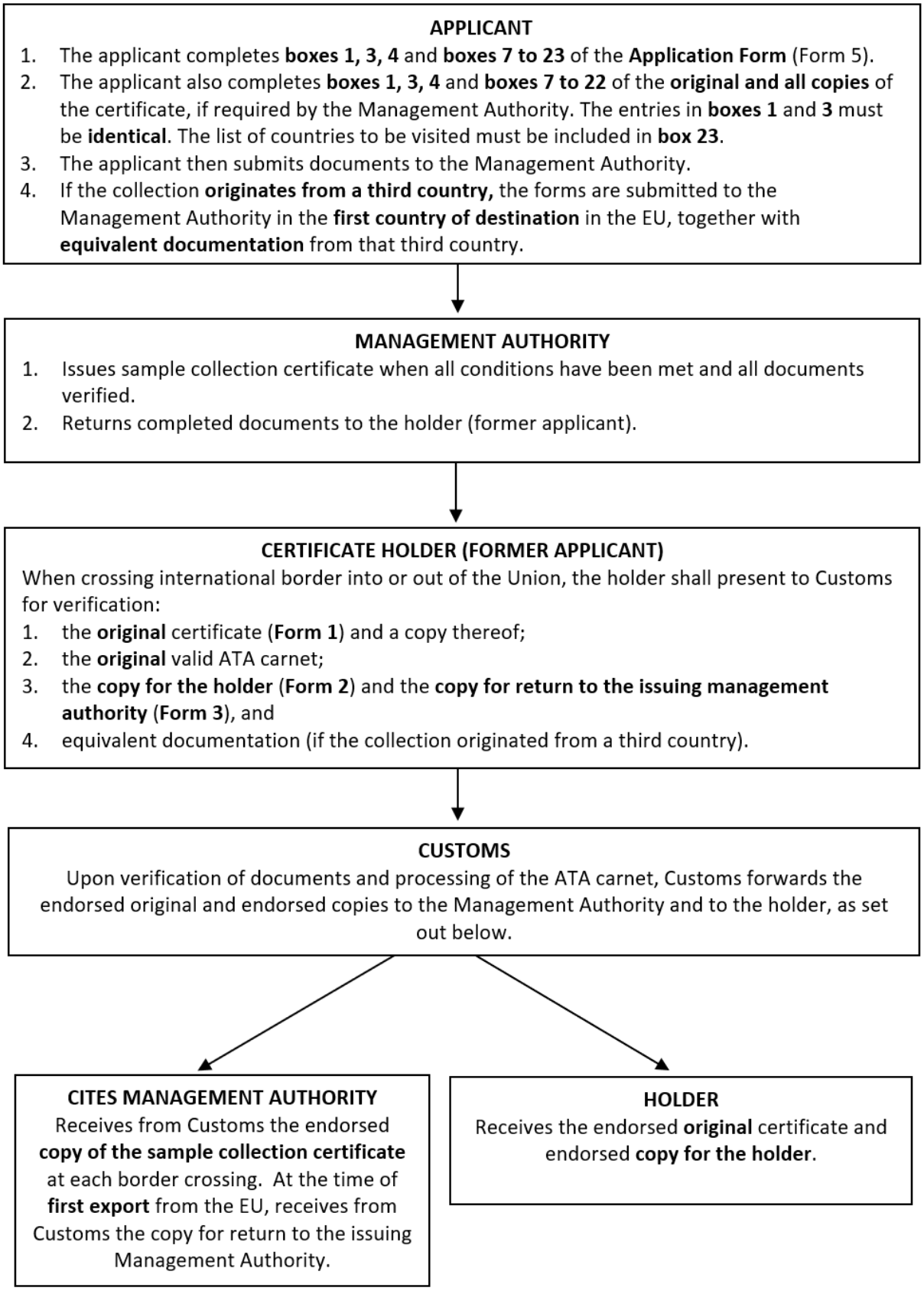
> *This certificate is not valid unless accompanied by an original CITES document issued by a third country in accordance with the provision established by the Conference of the Parties to the Convention*.

A sample collection covered by a sample collection certificate must be **re-imported into the EU before the date of expiry** of the certificate. The specimens **may also not be sold or otherwise transferred** whilst outside the territory of the EU Member State that issued the certificate. If the **specimens** covered by the certificate are **stolen, destroyed, or lost,** the issuing Management Authority and the Management Authority of the country in which this occurred will be immediately informed[123].

Sample collection certificates issued by an EU Management Authority are valid for **six months**[124].

120. Article 44c(1) *Regulation (EC) No 865/2006*
121. Article 44c(2) *Regulation (EC) No 865/2006*
122. Article 44d(5) *Regulation (EC) No 865/2006*
123. Article 44d *Regulation (EC) No 865/2006*
124. Article 10(3a) *Regulation (EC) No 865/2006*

Figure 14: Steps involved in the application and issuance of a sample collection certificate



4.7 Trade involving EU dependent and other territories

When considering trade involving a **dependent or other territory** of an EU Member State, it is important to note that the **territory may or may not be treated as within the EU for the purposes of EU law, including the Wildlife Trade Regulations**. At the time of this Guide's publication, a number of Member States have such territories, including Denmark, France, Italy, the Netherlands and Portugal. The Treaty on the Functioning of the European Union[125] provides the framework governing the application of the EU Treaties to the EU dependent and other territories, and the relationship between such territories and the EU Member States.

Annex V contains further information on the application of CITES in the EU, with particular reference to the status of dependent and other territories. For territories considered part of the wider **EU territory** (and to which the EU Treaty applies), the EU Wildlife Trade Regulations are applicable and **import and (re-)export documents are not required** for trade with EU Member States. For dependent and other territories forming part of the **EU Customs territory**, **Customs checks are not required** for intra-EU trade.

In light of these complexities, it is advised that the **Management Authority of the relevant EU Member State be contacted in the first instance** when contemplating trade in an Annex-listed species **to, from or within an EU dependent or other territory**. Contact details of the relevant Management Authority for the territory in question can be found on the National Contacts and Information page of the CITES website[126]. The Management Authority should be able to advise on any trade restrictions that may apply, as well as relevant documentation requirements.

125. OJ No. C 83 of 30.3.2010, p.47.
126. https://cites.org/eng/parties/country-profiles/national-authorities

5 What rules govern internal EU trade?

5.1 What are the general principles?

Internal trade in the EU includes trade **within one EU Member State** and trade **between individual EU Member States**. Given the nature of the EU single market, there are no regular border controls inside the EU and generally, wildlife goods can be moved and traded freely inside the EU, subject to the restrictions imposed by the Regulations.

Wild specimens of species listed in **Annex A** (and any others that do not meet the formal definitions of captive-bred or artificially propagated) are **generally not allowed to be used for commercial purposes** and their **movement** inside the EU is also regulated[1]. Commercial purposes include the purchase, offer to purchase, acquisition for commercial purposes, display to the public for commercial purposes, use for commercial gain, sale, keeping for sale, offering for sale, or transport for sale[2]. The **prohibitions** applicable to specimens of Annex A-listed species **also apply** to specimens of species listed in **Annex B** for which it **cannot be proven** to the satisfaction of the competent authorities of Member States that they were **acquired** (and where applicable, **introduced** into the EU) **in accordance with CITES, the Regulations and relevant national conservation legislation**[3].

Additionally, for species listed in **Annex A**, any **movement of live specimens** (which were not bred in captivity and for which the location of the specimen is specified in an import permit/certificate issued in compliance with the Regulations) **requires prior authorisation from and issuance of a certificate by a Management Authority** of the Member State where the specimen is located (see **Section 6.3**). This certificate will only be granted when the competent Scientific Authority of the relevant Member State is satisfied that the intended accommodation for a live specimen at the place of destination is adequately equipped to conserve and care for it properly.

As a general rule, **no permits or certificates** are needed for **keeping or moving** a specimen of a species listed in **Annex B, C or D inside the EU**, although individual EU Member States have the power to restrict the holding of certain types of specimens (in particular, live specimens of species listed in Annex A[4]). Likewise, permits are **generally not required for commercial activities** inside the EU involving specimens of species listed in **Annex B**, but it is necessary to provide documentary evidence showing that the specimens kept and/or used commercially were legally obtained or introduced. Specific guidance is developed detailing which proof of legal acquisition is needed for live animals of Annex B species[5]. Also, for specimens of species listed in **Annex C or D**, it can be necessary, in certain instances, to provide documentary evidence showing that the specimens kept and/or used commercially were legally obtained or introduced. Therefore, it is advisable to keep copies of the import documents (i.e. import permits for Annex B, import notifications for Annex C and D) or other proof that the specimens were legally obtained (i.e. a certificate from a national CITES Management Authority).

It should be noted that the rules governing internal EU trade in Annex-listed species may, in some cases, also apply to dependent and other territories of the European Union (see **Section 4.7** and **Annex V**). It is therefore advised that the **Management Authority of the relevant EU Member State be contacted** in the first instance when contemplating trade in an Annex-listed species **within an EU dependent and other territory**. Contact

1. Article 8(1) *Regulation (EC) No 338/97*
2. Article 8(1) *Regulation (EC) No 338/97*
3. Article 8(5) *Regulation (EC) No 338/97*
4. Article 8(2) *Regulation (EC) No 338/97*
5. https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:52019XC0321(01)&from=EN

details of the relevant Management Authority for the territory in question can be found on the National Contacts and Information page of the CITES website. The Management Authority should be able to advise on any trade restrictions that may apply, as well as relevant documentation requirements.

5.2 Are there any exemptions from the internal trade prohibition for Annex A-listed species?

5.2.1. Exemptions where no certificate is needed

There are a number of **general exemptions** contained in Article 62 of *Regulation (EC) No 865/2006* which provide that, for certain specimens, **no certificate is required** whatsoever for commercial transactions within the EU. These are:

a. **Animal species commonly bred in captivity in the EU**

No certificates are needed for specimens of **captive born and bred animal species** listed in Annex X of *Regulation (EC) No 865/2006,* and hybrids thereof.[6] That Annex is reproduced as **Annex X** of this Guide. To date, the Annex has principally been used to list bird species that are bred in such numbers that it is felt unnecessary for them to be uniquely marked. The general exemption therefore represents no risk for the conservation of the species concerned, which would make the need for specific exemptions and certificates an unnecessary administrative burden.

b. **Artificially propagated plants listed in Annex A**

No certificates are required for internal trade in, and commercial use of, **artificially propagated plants** listed in Annex A[7]. However, where there is doubt about the origin of the specimen, the owner may have to provide evidence of artificial propagation when he/she intends to use the plant for any of the commercial purposes referred to in Article 8(1) of *Regulation (EC) No 338/97*.

c. **Worked specimens acquired prior to 3 March 1947 (“antiques”)**

Worked specimens of species listed in the Annexes that were acquired more than 50 years before the Regulations entered into force (i.e. **before 3 March 1947**) are considered antiques (see also **Section 4.3.1**). Commercial trade in these specimens, where they are from species listed in **Annex A**, is permitted and **no certificate is required** to sell such specimens[8]. However, the vendor of the specimens may be asked to provide documentary evidence to the Management Authority that the specimen meets the conditions of a worked specimen acquired before 3 March 1947.

This derogation does not apply to antiques made of elephant ivory. For these items a permit is required [9].

d. **Dead specimens of Annex A-listed Crocodilians bred in captivity for commercial purposes by operations registered in accordance with *CITES Resolution Conf. 12.10 (Rev. CoP15)***[10]

No certificate is required for commercial trade in these specimens within the EU, provided they are marked or identified via other means in accordance with Regulation (EC) 865/2006.

6. Article 62(1) *Regulation (EC) No 865/2006. *Provided that specimens of annotated species are marked in accordance with Article 66(1) of *Regulation (EC) No 865/2006* (see **Section 7**). At present none of the species are annotated, so marking is not required.
7. Article 62(2) *Regulation (EC) No 865/2006.*
8. Article 62(3) *Regulation (EC) No 865/2006.*
9. Art. 62(3) Regulation (EC) No. 865/2006
10. Article 62(4) *Regulation (EC) No 865/2006*

e. **Caviar of *Acipenser brevirostrum* and its hybrids bred in captivity for commercial purposes (as above), provided that the container is labelled in accordance with *Regulation (EC) No 865/2006***[11]

No certificate is required for commercial trade in these specimens within the EU.

5.2.2 Exemptions which can be granted through issuance of a certificate

In addition to the general exemptions detailed above, there are a number of **specific exemptions** from the internal trade prohibition and, under certain conditions, specimens of species listed in Annex A are allowed to be used for internal trade – including for commercial purposes – inside the EU through the issuance of an **"internal trade certificate"** (see **Figure 15**, below) and on a **case-by-case basis**[12]. The conditions that must be fulfilled for issuance of such a certificate are described in more detail below.

Some of the specific exemptions for which internal trade certificates (issued in accordance with Article 10 of *Regulation (EC) No 338/97*) are required relate to specimens from **certain sources**, in which case there are **no restrictions on the purpose** for which they are to be used. Others, meanwhile, apply to specimens from **any source**, provided that there is **no conservation detriment** arising from the use of the specimen, but in these cases the **purposes are restricted** to those of a primarily non-commercial nature. In each case, for the specific exemption to apply the applicant must be able to prove to the satisfaction of the competent Management Authority that the specimens have been legally acquired[13].

The **conditions** set out in Article 8(3) *Regulation (EC) No 338/97* for granting **specific exemptions** include:

- the specimens were **acquired** in or introduced into the EU **before** the provisions relating to **Annex A** of *Regulation (EC) No 338/97*, **Annex C1** of *Regulation (EEC) No 3626/82*, or **Appendix I** of CITES became applicable to them (in this case there is **no restriction on their purpose**);
- the specimens are **worked specimens** that were acquired **before 3 March 1947** (again, there are **no restrictions on their purpose** - see **Section 4.3.1**)[14]; however, note that such specimens are now subject to a general derogation (see above, Section 5.2.1.c)) meaning that no internal trade certificates are required for commercial use within the EU[15]; this general exception is not valid for worked specimens containing ivory[16].

  (NB: The above two provisions, together with the provisions relating to the import of specimens of Annex A-listed species imply that any wild-taken[17] specimen of a species already listed in Annex A when it arrives in the EU, is subject to the prohibition on import for primarily commercial purposes (see **Section 3.3**), and subsequent internal commercial use **no matter when it was first acquired in its country of origin**. The EU does therefore not recognise pre-Convention certificates issued by third countries. An exception is only made for specimens acquired before 3 March 1947, which, as discussed, are in addition subject to a general derogation[18].)

11. Article 62(5) *Regulation (EC) No 865/2006*
12. Article 8(3) of *Regulation (EC) No 338/97* provides that a Management Authority of a Member State where the specimens are located may grant exemptions from the prohibition contained in Article 8(1). These exemptions must be in accordance with the requirements of other EU legislation on the conservation of wild fauna and flora such as the Wild Birds Directive (*Council Directive 2**009/147/**EC*) and Habitats Directive (*Council Directive 92/43/EEC*), and other relevant national legislation.
13. Article 59(1a) *Regulation (EC) No 865/2006*
14. Article 8(3)(b) *Regulation (EC) No 338/97*
15. Article 62(3) *Regulation (EC) No 338/97*
16. Article 48(1)(e) Regulation (EC) No 865/2006
17. Or ranched or captive-born, but not captive-bred
18. Article 62(3) *Regulation (EC) No 865/2006*

- the specimens were introduced in compliance with *Regulation (EC) No 338/97* and are to be used for **purposes** that are deemed **non-detrimental** to the species, e.g. an animal imported for a captive-breeding programme which has become redundant can be sold for the same or another non-detrimental purpose (**no restrictions on source** but there are **restrictions on purpose**)[19];
- the specimens were **born and bred in captivity** in compliance with the criteria laid down in Articles 54 of *Commission Regulation (EC) No 865/2006* (**no restrictions on purpose** - see **Section 4.1**)[20]. A certificate (for commercial use of animals born and bred in captivity) can only be issued if the applicant has satisfied the Management Authority, the latter having consulted the Scientific Authority, that the conditions are met[21];
- the specimens are required under **exceptional circumstances** for the **advancement of science** or **essential biomedical purposes** (*Directive 86/609/EEC* (animal experimentation)). The specimens must be of the **only species suitable for those purposes** and there must be **no suitable captive-born and bred specimens available**[22]. A certificate can only be issued if the applicant has satisfied the Management Authority, the latter having consulted the Scientific Authority, that the conditions are met (**source is not restricted** but the purpose is)[23];
- the specimens are intended for **breeding/propagation** from which **conservation benefits** will accrue to the species concerned. A certificate can only be issued if the applicant has satisfied the Management Authority, the latter having consulted the Scientific Authority, that the conditions are met (**source is not restricted** but the purpose is)[24]. It should also be noted that breeding programmes of a primarily commercial nature cannot make use of this exemption – nor can hobbyists who are offloading surplus progeny. Many such cases have a too restrictive gene pool to be of real conservation value.
- the specimens are intended for **research or education** aimed at the **preservation or conservation** of the species[25]. Normally display to the public for commercial purposes is prohibited (with the exception of cases where travelling exhibition certificates apply) but zoos, dolphinaria and other fauna and flora exhibitions may use specimens of **any source** for display purposes if: (i) they are also engaged in conservation-oriented captive-breeding, artificial propagation or research with conservation benefits for the species involved, or (ii) if they contribute to an educational programme aimed at the conservation of the species (in these cases, the **source is not restricted** but the purpose is). The judgment of whether these requirements are met is a matter for the Scientific and Management Authorities of the Member State concerned[26]; and
- the specimens were taken **legally from the wild in a Member State**, i.e. in accordance with the **Birds and Habitats Directives and national legislation** on the conservation of the species concerned[27].

In addition to the above, display for commercial purposes of specimens of species listed in the Annexes, which are part of a travelling exhibition, is allowed with the prior issuance of **a travelling exhibition certificate** (see **Section 4.6.1**). A travelling exhibition certificate may be used as an **internal trade certificate**, exempting the

19. Article 8(3)(c) *Regulation (EC) No 338/97*
20. Article 8(3)(d) *Regulation (EC) No 338/97*
21. Article 59(2) *Regulation (EC) No 865/2006*
22. Article 8(3)(e) *Regulation (EC) No 338/97*
23. Article 59(3) *Regulation (EC) No 338/97*
24. Article 8(3)(f) *Regulation (EC) No 338/97. *It should also be noted that breeding programmes of a primarily commercial nature cannot make use of this exemption – nor can hobbyists who are offloading surplus progeny. Many such cases have a too restrictive gene pool to be of real conservation value.
25. Article 8(3)(g) *Regulation (EC) No 338/97*
26. Article 59(3) *Regulation (EC) No 865/2006*
27. Article 8(3)(h) *Regulation (EC) No 388/97 *and Article 59(4) *Regulation (EC) No 865/2006*

holder from the prohibition to **display** the specimens to the public for commercial purposes. However, this exemption applies only to specimens that were captive-bred artificially propagated or were introduced into or acquired in the EU before they were listed in Annex A/Annex C1 or Appendix I.

Certificates are "**transaction-specific**" unless the specimens covered by such certificates are **uniquely and permanently marked** in accordance with *Regulation (EC) No 865/2006* (see **Section 7**) or, in the case of dead specimens which cannot be marked, identified by other means[28]. In the certificate it must be specified which "other means" are used (for example a picture, tag, …). For live specimens identified by photo-identification, a systematic renewal of these pictures may be necessary. This should be mentioned on the certificate, together with an indication at what point in time the specimen can be permanently marked. A **transaction-specific** certificate is normally valid for specified transactions **within the territory of the issuing Member State**. It must be indicated in **box 20** whether it is for one or more transactions. If the specimen moves to another Member State the certificate is valid for **one transaction only**[29].

Management Authorities are recommended to include specific conditions not only in their national language, but also in one of the three CITES languages (English, French, Spanish), to improve understanding of these conditions in other Member States. If possible, the same can be done with any text in the descriptive box (box 4), to maximize understanding within the EU.

Management Authorities can also restrict a certificate to a **specific holder**. Whether or not must be explicitly indicated on the certificate by ticking a "Yes" or "No" sub-box between boxes 19 and 20 of the certificate. In such cases a certificate is transaction-specific by default.

In cases where the specimens are uniquely and permanently marked (especially relevant for live vertebrates), a "**specimen-specific**" certificate that remains with the specimen can be issued[30]. However, if there are other factors relating to the conservation of the species that lead the Management Authority to conclude that a specimen-specific certificate would not be appropriate, it can decide to issue a transaction-specific certificate in such circumstances. A specimen-specific certificate is to be **passed on to the purchaser** along with the specimen at the time of the sale. Specimen-specific certificates are valid for the **first and subsequent sales** of a live vertebrate specimen, provided that the **description** of the specimen (see **box 4** of the certificate in **Figure 15**) has **not changed**[31]. Specimen-specific certificates issued in any EU Member State are **valid throughout the EU**.

The Management Authority of a Member State may accept an import permit as an internal trade certificate without the need for issuance of a new document if the permit states that the specimens are exempted from one or more of the prohibitions of commercial use (laid down in Article 8(1) of *Regulation 338/97*)[32].

28. Article 11(3) *Regulation (EC) No 865/2006 *
29. *As above. *The Management Committee has clarified that the text "valid in [issuing Member State]" serves to clarify that the certificate: (i) was issued in accordance with Article 11(3) of *Regulation (EC) No 865/2006*; and (ii) is valid for more than one transaction in the issuing Member State, and for one transaction in a Member State other than the issuing Member State only.
30. *As above.*
31. Article 11(2) *Regulation (EC) No 865/2006*
32. Article 48(2) *Regulation (EC) No 865/2006*

Figure 15: Annotated internal trade certificate form (Annex V Regulation (EU) No 792/2012)

Number and name of the form

EUROPEAN UNION

1	1. Holder	CERTIFICATE ***Not for use outside the European Union*** ☐ Certificate of legal acquisition ☐ Certificate for commercial activities ☐ Certificate for movement of live specimen	**No.** *Unique number to be attributed by the issuing authority*
		Council Regulation (EC) No 338/97 and Commission Regulation (EC) No 865/2006 on the protection of species of wild fauna and flora by regulating trade therein	
ORIGINAL	2. Authorized location for live specimens of Annex A species	3. Issuing Management Authority	
	4. Description of specimens (incl. marks, sex/date of birth for live animals)	5. Net mass (kg) / 6. Quantity 7. CITES Appendix / 8. EU Annex / 9. Source 10. Country of origin 11. Permit No / 12. Date of issue	
1	16. Scientific name of species	13. Member State of import	
	17. Common name of species (if available)	14. Document No / 15. Date of issue	

18. It is hereby certified that the specimens described above:

a) ☐ were taken from the wild in accordance with the legislation in force in the issuing Member State

b) ☐ are abandoned or escaped specimens that were recovered in accordance with the legislation in force in the issuing Member State

c) ☐ are captive born-and-bred or artificially propagated specimens

d) ☐ were acquired in or introduced into the Union in compliance with the provisions of Council Regulation (EC) No 338/97

e) ☐ were acquired in or introduced into the Union before 1 June 1997 in accordance with Council Regulation (EEC) No 3626/82

f) ☐ were acquired in or introduced into the Union before 1 January 1984 in compliance with the provisions of CITES

g) ☐ were acquired in or introduced into the issuing Member State before the provisions of Regulations (EC) No 338/97 or (EEC) No 3626/82 or of CITES became applicable in this territory

19. This document is issued for the purpose of :

a) ☐ confirming that a specimen to be (re-) exported has been acquired in accordance with the legislation in force on the protection of the species in question

b) ☐ exempting for sale Annex A specimens from the prohibitions relating to commercial activities listed in Article 8.1 of Regulation (EC) No 338/97

c) ☐ exempting for display to the public without sale Annex A specimens from the prohibitions relating to commercial activities listed in Article 8.1 of Regulation (EC) No 338/97

d) ☐ using the specimens for the advancement of science/breeding or propagation/research or education or other non-detrimental purposes

e) ☐ authorising the movement within the Union of a live Annex A specimen from the location indicated in the import permit or in any certificate

Certificate valid only for holder named in box 1 Yes ☐ No ☐

20. Special conditions

This part is either the application or the certification/authorisation. Some Member States may print originals which only contain the applicable certification/authorisation instead of "tick boxes"

Name of issuing official | Place and date | Signature and stamp

Summary of key instructions and explanations for internal trade certificates

(Note: For full instructions and explanations, see Annex V to *Regulation (EC) No 792/2012.* The numbers below refer to the boxes on the form – see **Figure 15**.)

1. **Holder**: Complete name and full address of the holder of the certificate, not of the agent.
2. **Authorised location for live specimens of Annex A-listed species**: Only to be completed in case the import permit for the specimens concerned prescribes the location at which they are to be kept, or where specimens that were taken from the wild in a Member State shall be required to be kept at an authorised address. Any movement, except for urgent veterinary treatment and provided that the specimens are returned directly to their authorized location, from the location indicated shall then be subject to prior authorization from the competent Management Authority (see **box 19**).
3. **Issuing Management Authority**: The Management Authority of the Member State in which the specimens are located.
4. **Description of specimens**: Description must be as precise as possible and include one of the 3-letter codes provided for in **Annex VII** to *Regulation (EC) No 865/2006*.
5. **Net mass**: Use units mentioned in **Annex VII** to *Regulation (EC) No 865/2006*.
6. **Quantity**: Use units mentioned in **Annex VII** to *Regulation (EC) No 865/2006*.
7. **CITES Appendix:** I, II or III.
8. **EU Annex**: A or B (normally A).
9. **Source**: Use codes in **Annex IX** of *Regulation (EC) No 865/2006* (as amended).
10. **Country of origin**: Country where specimens were taken from the wild, born and bred in captivity or propagated.
11. **Permit no.**: Only applicable where country of origin is not a Member State.
12. **Date of issue**: Only applicable where country of origin is not a Member State.
13. **Member State of import**: Details of the import permit issued by importing Member States. Only applicable for specimens originating outside of the EU.
14. **Document no.** : Details of the import permit issued by importing Member States. Only applicable for specimens originating outside of the EU.
15. **Date of issue**: Only applicable where country of origin is not a Member State.
16. **Scientific name**: Use name in accordance with standard references referred to in **Annex VIII** to *Regulation (EC) No 865/2006* (as amended) or refer to the Species+ website.
17. **Common name**: Not available for all species, see Annexes to *Regulation (EC) No338/97* or Species+ website.
18. **Declaration**: This states the grounds for granting the certificate so it is important that it is filled out correctly.
19. **Purpose of certificate**: This states whether the certificate is intended: (i) as evidence of legal origin (ii) to grant an exemption from the prohibition on commercial activities (sale or display to public); (iii) to allow use for particular non-detrimental purposes; or (iv) to allow movement of a specimen of an Annex A-listed species from its authorised address.

> 20. **Special conditions**: Space for the issuing authority to impose stipulations, conditions and requirements in order to ensure compliance with EU and national legislation.

5.3 What about trade on the Internet?

The provisions of the EU Wildlife Trade Regulations also apply to "**cyber trade**" (trade via the Internet) in specimens of species listed in the Annexes. That means that **specimens of Annex A-listed species** offered via the Internet must be still **accompanied by valid certificates** issued by the Member State **in whose territory the specimen is located**. Specimens of Annex B-listed species offered via the Internet must be accompanied by the necessary documentation. For live specimens, this is described in the guidance document on proof of legal acquisition. For trade in specimens located outside the EU, import and export permits are needed.

5.4 Derogations for the benefit of scientific institutions and the use of pre-issued certificates

5.4.1 Approved scientific institutions

Bona fide[33] **zoos**, **botanical gardens**, **museums** or similar establishments, which are considered to be "scientific institutions"[34] can be exempted from the prohibition on the use of specimens of **Annex A-listed species** for commercial purposes (which includes the display of a specimen to the public) by its Management Authority[35]. However, these exemptions can only be granted to institutions that have been **approved by the Management Authority**, in consultation with a Scientific Authority as being involved in **captive-breeding, artificial propagation or research** with conservation benefits for the species concerned, or if they provide an **educational programme** aimed at the conservation of the species.

Under this exemption, a Management Authority may grant a **single certificate** to the scientific institution it has approved for the purpose of this exemption, which allows it to carry out **any of the activities** referred to in Article 8(1) of *Regulation (EC) No 338/97* that would **normally require the issuance of a certificate on a case-by-case basis**. Note, however, that if there is a **prescribed location** for live specimens of Annex A-listed species, the **movement** of such specimens still requires **prior authorisation** from the Management Authority (see **Section 6.3**)[36]. Another limitation is that **sale or exchange** without specific authorisation can only be to another scientific institution holding a **certificate** under this exemption.

Discretion as to whether or not this simplified provision may be used rests with the competent Management Authority, and is not an entitlement of the scientific institution.

33. Meaning "authentic" or "true".
34. The term "scientific institutions" is used more loosely here than for the circumstances where institutions can exchange labelled specimens (see **Section 4.5.1**).
35. Article 60 *Regulation (EC) No 865/2006*
36. Article 9(1) *Regulation (EC) No 338/97*

5.4.2 Bona fide breeders

In certain circumstances, certificates may be pre-issued for the purposes of allowing commercial activities that comply with the conditions set out in Article 8(3) *Regulation (EC) No 338/97*[37]. Pre-issued certificates only become valid once they have been completed and a copy of the certificate is transmitted to the issuing Management Authority by the applicant[38].

Management Authorities can provide pre-issued certificates to breeders of Annex A-listed animal species which **need a certificate** if they intend to use these specimens for commercial purposes[39]. Certificates may also be required for the **parents**, even if only the offspring is to be used commercially. In addition, the parents will be subject to **marking requirements** (see **Section 7**).

These breeders must be approved by the relevant Management Authority and must maintain breeding records, which must, on request, be produced to the competent Management Authority. Such certificates should, in **box 20**, include the following statement:

> *CERTIFICATE ONLY VALID FOR THE FOLLOWING TAXON / TAXA: …*

5.4.3 Dead captive-bred or wild specimens of Annex A-listed species

A Management Authority can also provide **pre-issued certificates** to persons that have been **approved** to sell **dead captive-bred specimens of Annex A-listed species** and/or **small numbers of dead specimens** that were **legally taken from the wild within the EU**. However, traders are required to **maintain records** of the specimens sold and acquired and submit an **Annual Report** to the Management Authority[40].

This general derogation allows for the use of pre-issued certificates by **taxidermists** approved for that purpose by a Management Authority.

5.5 How are internal trade certificates obtained and used in practice?

5.5.1 What are internal trade certificates used for?

Internal trade certificates (see **Figure 15**, above) are issued in accordance with Article 10 of *Regulation (EC) No 338/97*. They are issued for a number of purposes, which are set out in box 19 of the certificate:

- Letter a) EU certificate required for export or re-export
- Letters b) to d) EU certificate for commercial use:
  - Letter b): with no restriction,
  - Letter c): for the purpose of display to the public only,
  - Letter d): for the purpose of using the specimens for the advancement of science/breeding or propagation/research or education or other non-detrimental purposes,
- Letter e): EU certificate for the movement of live specimens.

37. Article 63 *Regulation (EC) No 865/2006*
38. Article 63(3) *Regulation (EC) No 865/2006*
39. Article 63(1) *Regulation (EC) No 865/2006*
40. Article 63(2) *Regulation (EC) No 865/2006*

5.5.1.1. As documentary evidence that the specimen was legally obtained for the purpose of application of (re-)export documents

- **Documentary evidence** may be required to prove that a specimen of an **Annex A, B or C-listed species** which is acquired in one Member State, and is to be exported from another, was **taken from the wild** in accordance with the **legislation** of the Member State of origin (see **Section 3.5.8**)[41].

Likewise, **documentary evidence** may also be required for the purpose of re-export, to prove that specimens of Annex A, B or C-listed species were **imported in accordance with** *Regulation (EC) No 338/97* (after 3 March 1997), *Regulation (EEC) 3626/82* (between 1 January 1984 and the last day of validity of an import permit issued under that Regulation), before 1984 in accordance with CITES, or before any of these became applicable to the species or in the Member State of acquisition (see **Section 3.5.8**)[42].

Certificates issued for that purpose will state that specimens[43]:

a. were **taken from the wild** in accordance with the legislation in force on its territory; b. are **abandoned or escaped specimens** that were recovered in accordance with the legislation in force on its territory; c. were **acquired in, or were introduced** into, the EU in accordance with the provisions of ***Regulation (EC) No 338/97***; d. were **acquired in, or were introduced** into, the EU before **3 March 1997** in accordance with *Regulation (EEC) No 3626/82*; e. were **acquired in, or were introduced** into, the EU before **1 January 1984** in accordance with the provisions of the **Convention**; or f. were **acquired in, or were introduced** into the territory of a Member State **before** the provisions of the current Regulations (referred to in (c) above), the old regulations (referred to in (d)) or the Convention (referred to in (e)) became applicable to the species, or became applicable in that Member State.

5.5.1.2. To grant a specific exemption from the prohibition of trade in Annex A-listed species in accordance with Article 8(3) of Regulation (EC) No 338/97

Certificates issued in accordance with Article 10 for this purpose will state that specimens of species listed in Annex A are exempted from one or more of the prohibitions of Article 8(1) because they[44]:

1. were acquired in, or were introduced into, the EU when the provisions relating to species listed in Annex A or in Appendix I to the Convention or in Annex C1 to *Regulation (EEC) 3626/82* were **not applicable to them**;
2. **originate in a Member State** and were taken from the wild in accordance with the legislation in force in its territory;
3. are, or are parts of, or are derived from, **animals born and bred in captivity**; or
4. are authorised to be used for one of the purposes referred to in Article 8(3)(c) and (e) to (g) of *Regulation (EC) No 338/97*, namely:
   - unspecified non-detrimental purposes;
   - advancement of science or biomedical research where the species is the only one suitable for those purposes and where there are no specimens of the species which have been born and bred in captivity available;

41. Articles 5(2)(b), 5(4) and 8(3)(h) *Regulation (EC) No 338/97*
42. Articles 5(3) and 5(4) *Regulation (EC) No 338/97*
43. Article 47 *Regulation (EC) No 865/2006*
44. Article 48(1) *Regulation (EC) No 865/2006*

- breeding/propagation programmes of conservation benefit for the species; or
- research or education of conservation benefit for the species.

5.5.1.3. To authorise the movement of live specimens of Annex A-listed species from a prescribed location

(See **Section 6.3**).

The requirement for a certificate to authorise the movement of live specimens of Annex A-listed species from a prescribed location is contained in Article 9 of *Regulation (EC) No 338/97.* Certificates issued for that purpose will state that the movement of live specimens of a species listed in Annex A from the prescribed location indicated in the import permit, or in a previously issued certificate, is authorised (see **Section 6.3**)[45].

5.5.2 What are the procedures from application to issuance of an internal trade certificate?

The applicant must obtain a **form** for a certificate application (model laid down in Annex V to *Regulation (EU) No 792/2012* – see **Figure 15**) from the Management Authority of the Member State in which the specimens are located. Management Authorities are required to issue certificates **within one month** from the date of submission of a full application, but this may take **longer** where third parties need to be **consulted**[46]. Applications must therefore be made in a **timely fashion**. The applicant must be informed of significant delays. The applicant must also be informed of the rejection of his/her application and the reasons for which it was rejected.

Table 16 indicates the documents that are required for an internal trade certificate within the EU. The procedures described in this Section are similar to those that apply to imports (see **Section 3.3.1** and **Figure 1**) as well as exports or re-exports (see **Section 3.5.1** and **Figure 6**).

Table 16: Documents required as part of an internal trade certificate

Type of document	Form Number	Colour
Original	Form number 1	Yellow with grey guilloche
Copy for the issuing authority	Form number 2	Pink
Application	Form number 3	White

Depending on the system applied in a particular Member State, the applicant either receives a full set of forms or just the application form.

If only the application form is to be completed, the applicant must fill in **boxes 1, 2 and 4 to 19** in typescript or legibly in manuscript (ink and block capitals)[47]. Erasures and alterations should be avoided[48].

45. Article 49 *Regulation (EC) No 865/2006*
46. Article 8(3) *Regulation (EC) No 865/2006*
47. Articles 50(1) and 4(1) *Regulation (EC) No 865/2006*
48. Article 4(2)* Regulation (EC) No 865/2006*

If the full set of forms is to be completed, the applicant must fill in **boxes 1, 2 and 4 to 19** of the application **form** and **boxes 1 and 4 to 18** of the **original** and the **copy for the issuing authority**[49]. This must be done in **typescript** and not in manuscript[50]. The original and copies of the certificate **may not normally contain erasures and alterations** and where this is the case they must be authenticated by the stamp and signature of the issuing Management Authority[51].

Where a certificate is required for **more than one species**, forms for an **annex** must be obtained and completed. Where an annex is attached to a certificate, this as well as the number of pages must be clearly indicated on the certificate[52]. Each annexed page must include the number of the certificate and the signature and stamp or seal of the issuing authority.

Instructions for completing the forms are found on the back of the application form and the original.

The completed form(s) must be **submitted to the Management Authority** of the Member State in which the specimens are located together with all the **documentary evidence** and information that is necessary to allow the Management Authority to determine whether a certificate should be issued[53].

Member States may charge a **fee** for processing the application.

For **live specimens of Annex A-listed species** that are **taken from the wild in a Member State** and for live wild-taken specimens[54] of Annex A species for which a **location was prescribed in the import permit** or an earlier certificate, the **proposed address for keeping the specimen must be specified in box 2** of the application for a certificate. In the case of species with particular housing requirements, this address may then be prescribed as the only authorised location for keeping the specimens (see also **Section 6.2**).

The **omission** of information from the application must be **justified**[55].

When an application is made for a certificate relating to specimens for which such an application has previously been **rejected** (whether in that country or in any other EU Member State), the applicant must inform the Management Authority of that fact[56]. The Management Authority must inform the applicant of the **rejection** of his application and the reasons thereof.

When an internal trade certificate is issued, it may contain **stipulations, conditions and requirements** imposed by the issuing authority in order to ensure compliance with the EU Regulations and national legislation on their implementation[57]. The use of the document issued is without prejudice to **other necessary formalities** or provisions of related documents[58].

49. Article 50(1) *Regulation (EC) No 865/2006*
50. Article 4(1) *Regulation (EC) No 865/2006*
51. Article 4(2)* Regulation (EC) No 865/2006*
52. Article 6(1) *Regulation (EC) No 865/2006*
53. Article 50(2) *Regulation (EC) No 865/2006*
54. Or ranched, or captive born, but not meeting the full definition of captive-bred
55. Article 50(2) *Regulation (EC) No 865/2006*
56. *As above.*
57. Article 8(1) *Regulation (EC) No 865/2006*
58. Article 8(2) *Regulation (EC) No 865/2006*

6 What are the rules governing transport, keeping and movement of live specimens?

6.1 What are the rules for transport of live specimens

Article 9(5) of *Regulation (EC) No 338/97* states that **live specimens** that are transported into, from or within the EU, or that are held during any period of transit or transhipment, must be **prepared, moved and cared for** in a manner such as to **minimise the risk** of injury, damage to health or cruel treatment. In the case of animals, this must be in conformity with Community legislation on the protection of animals during transport.

This requirement applies to **all live specimens of Annex A-, B-, C- or D-listed species**.

The transport of **all live animals** from, into and within the EU is governed by *Council Regulation (EC) No 1/2005 of 22 December 2004 on the protection of animals during transport and related operations*. However, this does not apply to transport within the EU of animals for distances of less than 50 kilometres nor to the movement of personal pets.

All **live specimens of animal species** listed in the Annexes must be transported in compliance with the ***IATA Live Animals Regulations*** for air transport and the CITES Guidelines for the non-air transport of live wild animals and plants[1] adopted at CITES CoP16 for other modes of transport. This is a condition governing the issuance of all relevant permits and certificates so they are **rendered invalid** if it is not complied with. Also in view of the sanctions on non-compliance it is essential that importers of live specimens adequately inform their (re-)exporters about these requirements.

Live plants listed in the Annexes must be transported in compliance with the ***IATA Perishable Cargo Regulations*** for air transport and the CITES Guidelines for the non-air transport of live wild animals and plants for other modes of transport.

The CITES Parties have adopted several CITES Resolutions and Decisions dealing with the transport of live animal and plant species. Among these, the most relevant is **CITES *Resolution Conf. 10.21 (Rev. CoP19) on the Transport of Live Specimens***. This resolution recommends that the IATA *Live Animals Regulations (for live animals)*, the *IATA Perishable Cargo Regulations (for live plants)* and the CITES Guidelines for the non-air transport of live wild animals and plants be deemed to meet CITES transport requirements*,* and should be followed by all CITES Parties as well as (relevant sections) incorporated into national legislation.

6.2 What about the keeping of live specimens?

One of the **import conditions** for live specimens of Annex A or B-listed species is the availability of **adequate housing facilities** at the place of destination[2]. For specimens of species listed in **Annex A,** other than those that **fully meet** the definitions of born and bred in captivity or artificially propagated[3], the intended **housing location** must be **specified** on the **application form**; in the case of species with particular housing requirements this location may be prescribed as the only authorised location for keeping the specimen.

1. https://cites.org/sites/default/files/eng/resources/transport/E-FINAL*CITES*Non-air*transport*Guidelines.pdf
2. Article 4(1)(c) and 4(2)(b) *Regulation (EC) No 338/97*
3. Article 7(1) *Regulation (EC) No 338/97*

For **all live specimens** of species listed in **Annex A or B,** a **detailed description** of the intended **housing facilities** must be submitted together with the application in order to allow the competent authorities to judge their adequacy.

In addition, for **live specimens of species listed in Annex A**, any **subsequent housing facilities** must also be **approved** and authorised by a **Scientific Authority**, if a location is prescribed in the import permit or in a certificate[4]. This, however, does not apply to live specimens of species listed in Annex B.

Nonetheless, Article 9(4) of *Regulation (EC) No 338/97* prescribes that the **holder** of live specimens of **Annex B-listed** species may only **relinquish** the specimen to a new owner after he/she has ensured that the intended recipient is **adequately informed** of the required accommodation, equipment and practices to ensure that the specimen will be properly cared for.

This provision is meant to encourage pet traders and sellers of live animals and plants to provide information on the keeping and caring of the specimens concerned to their potential customers, for example through care sheets, books and expert advice on the specific requirements of the animal or plant. Although the above provisions are mainly designed to provide for the welfare of animals, it is in fact based on conservation considerations and intended to contribute to the long-term survival of live specimens in captivity, in particular animals, and thereby reducing the replacement needs which may cause a drain on certain wild populations.

Where specimens are known to be imported for a specific purpose, e.g. sale to private individuals, the Commission can restrict imports for species that are unlikely to survive in captivity for a considerable proportion of their potential life span (see **Section 3.3.9**)[5]. However, no such restrictions are in place at present[6].

6.3 Movement of live specimens within the EU

The movement of live specimens of **Annex A-listed** species within the EU requires the prior authorisation by the Management Authority of the Member State in which the specimen is located when the import permit or certificate indicates the location at which the specimen must be kept[7] (**not required in the case of specimens which are born and bred in captivity or artificially propagated**[8]). This authorisation is confirmed by the Management Authority by means of a certificate (**Figure 15** and **Section 5.5**) and, where applicable, must be immediately communicated to the Management Authority of the **Member State** in which the specimen is to be located[9].

It will not be necessary in every case to specify on an import permit or certificate the location at which the specimen must be kept, for example, for specimens of species with no particular housing requirements or where the purpose of the import implies the frequent movement of the animals or plants concerned (e.g. for breeding exchanges or in the case of falconry).

Where a specimen is to be moved from a prescribed location, the **new location** for the specimen must have been approved by the **Scientific Authority** (prior to the Management Authority issuing the authorisation for movement) in either the Member State where the specimen is currently located or the Member State to which the specimen is to be moved[10].

4. Articles 9(1) and 9(2)(a) *Regulation (EC) No 338/97*
5. Article 4(6)(c) *Regulation (EC) No 338/97*
6. Commission Implementing Regulation (EU) 2025/6 of 6 January 2025
7. Article 9(1) *Regulation** (EC) No 338/97*
8. Article 7(1)(a) *Regulation (EC) No 338/97*
9. Article 9(2) *Regulation (EC) No 338/97*
10. Article 9(2)(a) *Regulation (EC) No 338/97*

Live animals that require **urgent veterinary treatment** are **exempted** from the requirement to obtain prior authorisation for their movement **if they are returned directly** to their authorised location afterwards[11].

These provisions apply only to live specimens of species listed in Annex A. Live specimens of species listed in Annex B, C or D can be moved without prior authorisation, however the transport requirements outlined in **Section 6.1** still apply to all live specimens of species listed in the Annexes. Note also the obligation on holders of specimens of Annex B-listed species to ensure that the intended recipient is adequately informed of the accommodation, equipment and practices required to ensure the specimen will be properly cared for[12].

6.4 What about the holding and movement of live specimens [subject to import restrictions]

The Commission may establish restrictions on the holding and movement of live specimens of species under Article 4(6)(d) of *Regulation (EC) No 338/97*, which are known to pose an ecological threat to species that are indigenous to the EU[13] (see **Section 3.3.9**). While the Commission has not exercised this power to date, Regulation (EU) No 1143/2014 on Invasive Alien Species[14] includes measures aimed at preventing the intentional or unintentional introduction of certain species into the EU.

11. Article 9(3) *Regulation (EC) No 338/97*
12. Article 9(4) *Regulation (EC) No 338/97*
13. Article 9(6) *Regulation (EC) No 338/97*
14. Official Journal L 317/35 (04/11/2014)

7 What are the rules regarding marking of specimens?

There are certain specimens of species listed in the Annexes of *Regulation (EC) No 338/97* that have to be **uniquely marked**, for **internal EU trade control purposes** (e.g. live Annex A-listed vertebrates[1]) or for the purposes of **controlling trade to and from the EU** (e.g. crocodilian skins and caviar[2]). Specimens of species covered by certain certificates, such as **specimen-specific certificates**[3], **travelling exhibition certificates**[4] and **personal ownership certificates**[5] are also required to be uniquely marked.

These marking requirements have been developed to prevent fraud and to curtail illegal trade in specimens and products that are controlled by the EU Wildlife Trade Regulations. The **details of the mark,** such as the unique number code, have to be provided on the **permit or certificate** of the specimens to ensure that the specimens are indeed those referred to in the accompanying document.

7.1 In what circumstances must specimens be marked?

7.1.1 What general rules on the marking of specimens apply?

All **live vertebrate specimens** (mammals, birds, reptiles, amphibians and fish) of species listed in **Annex A** that are **exempted** from the **prohibition of commercial** use[6], for example captive-bred specimens, must be **uniquely marked** in accordance with the criteria described in Article 66 of *Regulation (EC) No 865/2006* before a specimen-specific internal trade certificate can be granted for their commercial use.

Furthermore marking is required for issuance of **travelling exhibition certificates**, **personal ownership certificates** or **export permits** for live vertebrates of species listed in Annex A[7]. The full details of the mark have to be provided on the permit or certificate of the specimen[8].

In addition to the requirements outlined above, certain **other specimens** of species listed in **Annex A or B** of *Regulation (EC) No 338/97* have to be **uniquely marked** before they can be **imported** into the EU, i.e. before the Management Authority can issue an import permit. For these specimens, the Conference of the Parties to CITES has determined the approved or recommended marking method and information on these can be obtained through the **relevant CITES Resolutions**. The marking requirements for **imports into the EU** currently apply to the following specimens:

1. those derived from a **captive-breeding operation**[9] that was approved by the Conference of the Parties to the Convention;

1. Article 59(5) *Regulation (EC) No 865/2006*
2. Article 64(1)(e) and (g) *Regulation (EC) No 865/2006*
3. Article 11(3) *Regulation (EC) No 865/2006 *
4. Article 33(1)(c) *Regulation (EC) No 865/2006*
5. Article 40(1)(d) *Regulation (EC) No 865/2006*
6. Article 8(3) *Regulation (EC) No 388/97*
7. Articles 65(4), 33(1)(c) and 40(1)(d) *Regulation (EC) No 865/2006*
8. Article 68(2) *Regulation (EC) No 865/2006*
9. There are only vague recommendations on the use of a uniform marking system by registered commercial breeding operations for Appendix I-listed species (*Resolution Conf. 12.10 (Rev. CoP15)*)

2. those derived from a **ranching operation** that was approved by the Conference of the Parties to the Convention [10];
3. specimens from a population of a **species listed in Appendix I** to the Convention for which an **export quota has been approved** by the Conference of the Parties to the Convention[11];
4. **raw tusks of African elephant** and **cut pieces** thereof that are both over 20 cm in length and 1 kg in weight[12];
5. raw, tanned or finished **crocodilian skins**, flanks, tails, throats, feet, back strips and other parts thereof that are exported to the EU and entire raw, tanned, or finished crocodilian skins and flanks that are re-exported to the EU[13];
6. **live vertebrates** of species listed in Annex A that belong to a **travelling exhibition**, and
7. any container of **caviar** (tin, jar, or box into which caviar of Acipenseriformes spp. is directly packed) based on the application of non-reusable labels on each primary container[14] that is imported into the EU.

For all **commercial activities involving caviar**, caviar containers must be marked[15] in accordance with the method approved or recommended by the Conference of the Parties to the Convention[16]. This labelling requirement also applies to caviar produced for non-commercial purposes. Additional provisions concerning the registration of caviar processing and (re-)packaging plants are set out in Article 66(7) of *Regulation (EC) No 865/2006* (see also **Annex XIV of this Guide**).

7.1.2 Are there exemptions from the marking provisions?

In some cases, certain live animals are exempt from the marking requirement of Article 66 of *Regulation (EC) No 865/2006*:

- ***Certain commonly-bred species:*** These are captive-born and bred species (and hybrids thereof) that are listed in Annex X of *Regulation (EC) No 865/2006* (at present they are all birds), unless they are annotated in Annex X[17]. At present none of the Annex X listed species are annotated, so marking of these species is not required. These species are bred in such numbers that it is felt unnecessary for them to be uniquely marked unless annotated. The bird species listed in Annex X (reproduced as **Annex X** of this Guide) are also covered by a general exemption and no specific trade certificate is needed for the commercial use of these specimens[18] (see **Section 5.2** above).
- ***For animal welfare reasons***[19]: An exception may also be made in cases where the physical properties of the animal do not allow the safe application of the required marking method. This may for example be the case for juvenile specimens. In such cases, the Management Authority may apply an alternative

10. Marking requirements currently contained in *Resolution Conf. 11.16 (Rev. CoP15).*
11. Universal tagging system for crocodilian skins currently in *Resolution Conf. **11.12 (Rev. CoP15)*. The marking requirements for leopard skins *Panthera pardus *(hunting trophies and skins for personal use) are currently in *Resolution Conf. 10.14(hunting trophies and skins for personal use) are currently in Resolution Conf. 10.14Resolution Conf. **11.12 (Rev. CoP15)*. The marking requirements for leopard skins Panthera pardus (hunting trophies and skins for personal use) are currently in Resolution Conf. 10.14(hunting trophies and skins for personal use) are currently in Resolution Conf. 10.14 (Rev. CoP19)**,* and for hunting trophies of Markhor Capra falconeri from Pakistan, in CITES Resolution Conf. 10.15 **(Rev. CoP14)***. There is no recommended marking methods for cheetah *Acinonyx jubatus *hunting trophies.*
12. In *Resolution Conf. 10.10** (Rev. CoP18**).*
13. In *Resolution Conf. 11.12 (Rev. CoP15).*
14. Article 66(6) *Regulation (EC) No 865/2006*
15. For the purpose of proving that the caviar was legally acquired and, if relevant, introduced into the EU, as required for commercial activities involving specimens of species listed in Annex B under Article 8(5) *Regulation (EC) No 338/97.*
16. In *Resolution Conf. 12.7 (Rev. CoP17**).*
17. Article 65(4) *Regulation (EC) No 865/2006 *
18. Article 62(1) *Regulation (EC) No 865/2006*

appropriate marking technique. It should be noted that animal welfare regulations and deduced marking conditions are not harmonised within the EU[20]. In some cases the Management Authority will exempt the animal from the marking requirement and will record this on the transaction specific certificate or, where marking can be carried out at a later date, a special condition may be included, for example, specifying when the animal has to be marked**. Specimen-specific certificates, travelling exhibition certificates and personal ownership certificates cannot be issued for such live specimens**[21].

7.2 What are the prescribed marking methods?

7.2.1 What are the specific marking methods approved for live animals?

There are specific marking provisions for live specimens of bird species and for all other live vertebrate species subject to marking requirements.

- **Captive-born and bred birds as well as other birds born in a controlled environment subject to marking requirements** must be marked with a uniquely marked seamlessly **closed leg-ring**. In cases where this is **not possible** due to the physical or behavioural characteristics of the bird, an **unalterable microchip transponder** conforming to ISO Standards 11784:2024 (E) and 11785:1996 (E) should be used[22].
- **All other live vertebrates subject to marking requirements** should be marked with an **unalterable microchip transponder** conforming to ISO Standards 11784:2024 (E) and 11785:1996 (E). In cases where this is **not possible** due to physical or behavioural characteristics of the animal, **a ring, band, tag, tattoo or another appropriate method** should be used[23].

The marking must be undertaken with **due regard** to the humane care, well-being and natural behaviour of the specimens concerned[24]. In cases where this can not be guaranteed (e.g. for juveniles), Member State Management Authorities can both authorise and recognise alternative methods or procedures.

Marking methods **approved in one EU Member State** should be **recognised** by the Management Authority of **another** EU Member State[25].

7.2.2 Are there alternative marking methods?

In cases where the required marking method (i.e. closed ring for birds and microchip for all other live vertebrates) **cannot be safely applied** to a specimen, EU Member States can apply alternative marking methods for live vertebrates of Annex A-listed species. Some Member States have developed **guidelines** (e.g. Italy) that specify which marking method can be used for which species and specimens, and some Member States have developed **specific national legislation** (e.g. Austria, Germany) with regard to the marking of live animals and the approved method to be used. In some instances, these guidelines and legislation go beyond the requirements of the EU Wildlife Trade Regulations.

19. See also Article 67 *Regulation (EC) No 865/2006*
20. Therefore, invasive marking methods in particular (such as microchip transponders) may be differently applied by Member States depending on the size or weight of the live animal concerned.
21. Article 66(4) *Regulation (EC) No 865/2006*
22. Article 66(2) *Regulation (EC) No 865/2006*
23. Article 66(3) *Regulation (EC) No 865/2006*
24. Article 67 *Regulation (EC) No 865/2006*
25. Article 68 *Regulation (EC) No 865/2006*

8 What happens to permits and certificates after they are issued?

8.1 Validity of permits elsewhere in the EU

In principle, permits and certificates **issued by one Member State** in accordance with the EU Wildlife Trade Regulations are **valid throughout the EU**[1]. Import permits are issued by the Member State of destination and export permits by the Member State where the specimens are located. However, the **actual import or export can**, and often does, **occur at the border Customs office of another Member State**.

Permits or certificates may, however, **not be valid for import into another Member State** when that Member State has **stricter measures** in place with regard to the specimens concerned. The latter Member State may have regulations – especially as regards live specimens, that effectively preclude the specimen from being kept in that country, even if, technically, the import is permissible.

8.2 How long do permits and certificates remain valid and in what circumstances may they become invalid?

Article 10 of *Regulation (EC) No 865/2006* lays down rules with regard to the **time validity** of permits and certificates, such as:

- **Import permits** issued by an EU Management Authority (and the copy for the holder) are valid up to **twelve months**. However, they are not valid in the absence of a **valid export permit** or **re-export certificate**[2]
- **Export permits/re-export certificates** (and the copy for the holder) issued by an EU Management Authority are valid up to **six months**[3]. **Travelling exhibition certificates, personal ownership certificates** and **musical instrument certificates** issued by an EU Management Authority are valid up to **three years**[4].
- **Sample collection certificates** issued by an EU Management Authority are valid up to **six months**[5].
- **Internal trade certificates** generally do not have a time validity. They remain valid as long as the information contained in the document still corresponds to reality, unless a specific time restriction is mentioned on the certificate (for example a certificate issued for a live specimen that could not be marked at that time, but which can be marked in future: in box 20 a condition will stipulate when the marking should take place and/or at which point in time the certificate will cease to be valid (see also further down this chapter).

After their **expiration**, these documents will be considered as **void**[6] and can no longer be used to authorize trade in the specimens covered by these documents.

1. Article 11(1) *Regulation (EC) No 338/97*
2. Article 10(1) *Regulation (EC) No 865/2006*
3. Article 10(2)* Regulation (EC) No 865/2006*
4. Article 10(3) *Regulation (EC) No 865/2006*
5. Article 10(3a) *Regulation (EC) No 865/2006*
6. [^7]: Article 10(1) and (2)* Regulation (EC)No 865/2006*

However, in the case of **caviar** of **sturgeon and paddlefish** species (Acipenseriformes spp.) that originated from **shared stocks** subject to **export quotas**, import and export permits cease to be valid on **the last day of the quota year** to which the quota applies (quotas run from 1 March to the last day of February of the following year for Acipenseriformes spp.), if this is earlier than the normal maximum period[^7]. Special time limits also apply to certificates for the re-export of caviar from such stocks: re-export certificates cease to be valid on the last day of the period of 18 months after the date of issuance of the relevant original export permit, if this is earlier than the normal maximum period[7].

Permits and certificates **will also cease to be valid** in the following cases (i.e. other than due to expiration), which are set out in Article 11 of *Regulation (EC) No 865/2006*:

- **Copies for the holder of used import permits, internal trade certificates** and **pre-issued certificates for breeders** where[8]:
    - the live specimens referred to have died or, in the case of live animals, have escaped or have been released to the wild;
    - the specimens referred to have been lost, destroyed or stolen;
    - the details of the importer, the authorised location for the keeping of live Annex A specimens, or the description of the specimen contained in the permit (e.g. the unique mark) no longer reflect the actual situation; or
    - any of the special conditions specified by the issuing Management Authority are no longer fulfilled (NOTE: applies in the case of internal trade certificates and pre-issued certificates for breeders, only).
- **Travelling exhibition certificates, personal ownership certificates and musical instrument** certificates if the specimen is **sold, lost, destroyed or stolen** (and in the case of a live specimen, if it has died, escaped or been released into the wild), or if the **ownership** of the specimen is otherwise **transferred**[9].

Specimen-specific certificates will generally **not cease** to be valid when the **holder** changes (as specified in **box 1**) as long as the **other information contained in the permit has not changed**. However, there are exceptions to this[10], including for

- specimens required under exceptional circumstances for the advancement of science or for essential biomedical purposes[11];
- specimens required for **research, education, breeding or propagation purposes** of benefit to the conservation of the species[12], or
- the **exchange** of specimens between designated **scientific institutions** under certificates issued in accordance with Article 60 of *Regulation (EC) No 865/2006*.

7. *As above.*
8. Article 11(1) and (2) *Regulation (EC) No 865/2006*
9. Article 10(5) *Regulation (EC) No 865/2006*
10. Article 11(4) *Regulation (EC) No 865/2006*
11. Article 48(1)(d) *Regulation (EC) No 865/2006*
12. Article 60 Regulation (EC) No 865/2006

The holder will **return** the original and all copies of expired or unused documents, or those which are no longer valid, to the issuing Management Authority without undue delay[13]. The issuing Management Authority may then, if appropriate and after an application was made to that respect, issue a new certificate reflecting any changes that may be required[14].

Annex XVIII outlines **guidance on the handover of EU certificates** in the case of transfer of ownership of the certified specimen(s). In general, original EU certificates, especially specimen specific certificates, are handed over to the purchaser/acquirer/new owner of the certified specimen and must stay with the certified specimen. This enables the new owner to provide evidence for legal acquisition by an original document. However, in view of Article 11(5) of *Regulation (EC) No 865/2006,* it is possible that misunderstanding could arise when a certificate ceases to be valid after the transfer of ownership. Annex XVIII deals with the interpretation of Article 11(5) of *Regulation (EC) No 865/2006* and how the holder of a certificate, the owner of certified specimens and relevant authorities should proceed, especially when a certificate ceases to be valid.

Note that permits and certificates will be deemed **void** if it is established (by a competent authority or the Commission, in consultation with the issuing authority) that they were issued on the **false premise** that the **conditions for their issue were met**. The specimens covered by such a document will be **seized** and may subsequently be confiscated[15]. It is important to note, however, that in relation to Article 11 of *Regulation (EC) No 338/97*, the European Court of Justice has ruled that an import permit which does not comply with the conditions laid down in *Regulation (EC) No 338/97* **must be considered void only in respect of the specimens affected by the ground of invalidity** of that import permit. Accordingly, the competent authority of the Member State where the specimens concerned are situated **may seize and confiscate only the specimens actually affected by the ground of invalidity** of the import permit (i.e. the other specimens travelling legally in the same consignment cannot be confiscated).[16]

8.3 When can permits and certificates be issued retrospectively?

It is possible that an importer receives an **unexpected shipment** (e.g. before the scheduled date of arrival and before he/she has been able to apply for a permit) at an EU border for which the bill of lading indicates that s/he is the consignee. In such cases, s/he must immediately **inform the competent Management Authority** of the relevant Member State of the arrival of the shipment. Only in such **exceptional cases** may a Management Authority issue **the relevant documents** in retrospect for species listed in **Annexes A, B or C**. In addition, for specimens of **Annex A-listed** species, the document may only be issued retrospectively if the specimens are being **reintroduced** into the EU (i.e. not imported for the first time) or are **worked specimens** that were acquired before **3 March 1947** (see **Section 4.3.1**)[17].

Before retrospectively issuing a permit the **Management Authority** must be satisfied, where appropriate in consultation with the competent authorities of the **third country** involved, that any of the occurred **irregularities** are **not attributable** to the **(re-)exporter and/or the importer** and that the transaction concerned is **otherwise in compliance** with the provisions of EU Regulations, the Convention and the relevant legislation of the third country involved[18].

13. Article 10(6) *Regulation (EC) No 865/2006*
14. Article 11(5) *Regulation (EC) No 865/2006*
15. Article 11(2) *Regulation (EC) No 338/97*
16. Judgment No. C-532/13 of the Court of Justice, 4 September 2014
17. Article 15(1) *Regulation (EC) No 865/2006*
18. Article 15(2) *Regulation (EC) No 865/2006*

Simple **declarations about the legality** of exports or re-exports by authorities of the third country involved are **not acceptable**, nor are declarations about the validity of documents that **do not meet the requirements** of the Regulations and/or the provisions of CITES.

It should be noted that an importer's or (re-)exporter's **claim** that he or she was **unaware of the permit/ certificate requirement is not normally an acceptable reason** for the retrospective issuance of documents. This is particularly unacceptable where commercial traders are concerned. Importers should allow sufficient time (four weeks) when applying for an import permit from EU authorities to allow its issuance prior to the arrival of the shipment[19].

However, *Regulation (EC) No 865/2006* recognises that **private individuals** can make mistakes and so provides that retrospective permits/certificates may be issued to such persons in respect of **personally owned live animals**, which are legally acquired and held for personal non-commercial purposes, and, in exceptional cases, as regards **imported dead specimens listed in Annex B** to Regulation (EC) No 338/97 which are legally exported, where the competent Management Authority is satisfied that:

- a **genuine error** has been made and there was **no intention to deceive**, and
- the import/(re-)export is **otherwise in compliance** with the provisions of EU Regulations, the Convention and the relevant legislation of the third country involved[20].

This derogation shall not apply if the importer or (re-)exporter has made a similar error before.

Where a permit is issued retrospectively for the **import of a personally-owned live animal** of a species listed in **Annex A** (only permitted if a reintroduction – see above) or **Annexes B or C**, **commercial activities** within the EU will be **prohibited for 2 years** from the date of issuance of the permit. No exemptions for specimens of Annex A species provided for in Article 8(3) of *Regulation (EC) No 338/97* (see **Section 5.2** above) will be granted during that period. This latter restriction applies equally where import permits were issued retrospectively **for personal effects** consisting of Annex A-listed specimens – only possible for **worked specimens acquired prior to 3 March 1947** (see above)[21].

Retrospectively issued permits and re-export certificates must clearly **indicate that they have been issued retrospectively** and **why**[22].

8.4 Can permits and certificates be amended or replaced?

Import permits, **export** permits and **re-export** certificates can be **replaced** in cases where they have been **cancelled, lost, stolen, destroyed, or expired**[23]. In such cases the new permit or certificate will indicate the **number of the replaced document** and the **reason** for the replacement in the box reserved for the entry of special conditions (**box 23**). When an **export** permit or **re-export** certificate has been **cancelled, lost, stolen, or destroyed**, the issuing Management Authority will **inform** the Management Authority of the country of **destination** and the **Secretariat** of the Convention of this fact[24].

Internal trade certificates can also be replaced if they have been **cancelled, lost, stolen, destroyed**[25].

19. Article 13(1) *Regulation (EC) No 865/2006*
20. Article 15(2) *Regulation (EC) No 865/2006*
21. Article 15(3a) *Regulation (EC) No 865/2006 *
22. Article 15(3) *Regulation (EC) No 865/2006*
23. Article 12(1) *Regulation (EC) No 865/2006*
24. Article 12(2) *Regulation (EC) No 865/2006*
25. Article 12(1) *Regulation (EC) No 865/2006*

A permit, notification or certificate that has been lost, stolen or destroyed can **only be replaced by the authority that issued it**[26]**,** provided the specimen covered by the permit, notification or certificate is located in the territory of that authority. A Management Authority can only issue an export permit or re-export certificate[27] or an internal trade certificates related to specimens on their territory[28]. If a permit or a certificate, issued by another Member State, is lost, stolen or destroyed, the Management Authority of the Member State in which the specimen is located must inform the issuing Management Authority. Unless the latter objects to a replacement, the Management Authority of the Member State where the specimen is located, can issue a new document. When certificates are issued to replace an import permit, import notification or a previously issued certificate the '**old'** document will be **retained** by the Management Authority[29].

Documents that **cease to be valid in accordance with Article 11 of *Regulation (EC) No 865/2006*** (see **Section 8.2** above) must be returned to the issuing Management Authority without undue delay, which, where appropriate, may issue a certificate reflecting the required changes.

Amendments to permits, notifications and certificates may be made by a Management Authority in the following cases[30]:

- where a shipment covered by a "copy for the holder" (Form 2) of an import permit, a "copy for the importer" (Form 2) of an import notification, or a certificate, is split; or
- where, for other reasons, the entries in the document no longer reflect the actual situation.

Any amendments made by the Management Authority must be authenticated with its stamp and signature[31]. However, this can only be done for document issued by that same Management Authority. If changes would be required on a document issued by a Management Authority from another Member State, it is advised to replace the document and return the no longer valid original to the issuing authority. Alternatively, in such cases, the Management Authority may decide to issue one or more corresponding internal trade certificates[32], where the purpose of the document is to **prove either legal acquisition or to authorise commercial activities** in relation to a specimen/specimens. However, the Management Authority must first establish the validity of the document to be replaced, where necessary in consultation with a Management Authority of another Member State. This authority must respond within a period of one week to such a request[33].

It is noted elsewhere in this Guide that permits and certificates may stipulate conditions and requirements imposed by the issuing authority, to ensure compliance with the applicable legal provisions on the implementation of the Regulations[34]. For example, imports of specimens of **Annex A-listed** species can only be authorised for a **specified purpose**[35], and for live specimens there may be a **prescribed housing location**[36]. Such permits must therefore **contain conditions and stipulations** to ensure that the destination of specimens is not changed after import without prior authorisation of the relevant Management Authority. Any changes that may be necessary must be made in accordance with the provisions described in this Section (see **Section 8.4**).

26. Article 51(3) *Regulation (EC) No 865/2006*
27. Article 26* Regulation (EC) No 865/2006*
28. Article 46* Regulation (EC) No 865/2006*
29. Article 51(2) *Regulation (EC) No 865/2006*
30. Article 51(1) *Regulation (EC) No 865/2006*
31. Article 4(2) *Regulation (EC) No 865/2006*
32. For example, where a captive-bred specimen has been imported and the import permit is used for trade within the EU. If the import permit is subsequently lost, the Management Authority may decide to issue an internal trade certificate instead which grants the same trading rights.
33. Article 51(4) *Regulation (EC) No 865/2006*
34. Article 11(3) *Regulation (EC) No 338/97* and Article 8(1) *Regulation (EC) No 865/2006*
35. Articles 4(1)(a)(ii) and 4(1)(d) *Regulation (EC) No 338/97*
36. Article 4(1)(c) *Regulation (EC) No 338/97*

9 How are CITES duties organised at national and EU levels between the relevant authorities?

9.1 How are duties organised at the national level?

9.1.1 Management Authority structure and function

The complexity of the Regulations and the workload involved in ensuring their proper implementation and enforcement requires an **adequately staffed and equipped Management Authority**. Its work is clearly not limited to the **issue of permits and certificates**, although this aspect may absorb a significant part of the available human resources. The joint development of systems for computerised issuance of documents, production of **Annual Reports** and electronic means of communication between the Management Authorities and the many other actors involved in implementation and enforcement of the Regulations and CITES should be a clearly established priority.

CITES Resolution Conf. 18.6 on the Designation and role of Management Authorities (see https://www.cites.org/sites/default/files/document/E-Res-18-06.pdf) further contains useful recommendations on the tasks to be carried out by the Management Authority under the Convention.

Each Member State must designate **at least one Management Authority**, which will have primary responsibility for the implementation of the Regulations and for communication with the Commission[1]. A representative of the primary Management Authority also represents his or her Member State in the **Committee on Trade in Wild Fauna and Flora** ("the Committee") and in the **CITES Expert Group** at the EU level, which meet 3-4 times per year (see **Section 9.2.1** and **Figure 16**). Member States may also include experts in particular sectors in their Management Authorities (e.g. fisheries or timber experts) if they find this useful.

Additional Management Authorities and other authorities competent to assist in implementation may be designated, in which case the primary Management Authority will be responsible for providing them with all information necessary for a correct application of the Regulation[2]. Representatives of additional authorities may attend Committee meetings.

The **contact details** of the primary Management Authorities of the Member States are available on the website of the CITES Secretariat.

9.1.2 Scientific Authority structure and function

Each Member State must designate **at least one Scientific Authority** which must have **appropriate qualifications** and for which **duties must be separate** from those of any designated Management Authority[3]. At least one representative of the Scientific Authority also represents his or her Member State in the Scientific

1. Article 13(1) *Regulation** (EC) No 338/97. *A similar requirement exists under CITES, and concerns communication with the CITES Secretariat and the Parties to the Convention.
2. Article 13(1)(b) *Regulation (EC) No 338/97*
3. Article 13(2) *Regulation (EC) No 338/97*

Review Group (**Figure 16**), depending on the agenda and the expertise required to ensure a proper scientific input (see **Section 9.2.2**)[4]. Member States may also include experts from particular sectors in their Scientific Authorities (for example, fisheries or timber experts) if they find this useful.

Member States may have additional Scientific Authorities, or as is the case in several Member States, have one for animals and one for plants. There are also Member States where the Scientific Authority consists of a committee of scientists from various scientific institutions. In that case the existence of a permanent secretariat would appear to be essential in order to ensure proper co-ordination and a fixed partner for dialogue with the Commission and the Scientific Authorities of the other Member States.

The absence of a properly designated and notified Scientific Authority may lead third countries to refuse imports – see CITES Resolution Conf. 10.3: Designation and role of Scientific Authorities. This Resolution further contains useful recommendations on the tasks to be carried out by the Scientific Authority under the Convention.

It is, however, important to note that the Regulations – and Article 4 of *Regulation (EC) No 338/97* in particular – contain a large number of additional tasks to be carried out by the Scientific Authorities (see **Annex XII of this Guide**). The most significant example is the need for Scientific Authorities to be able to provide the Management Authority with advice on the conservation aspects regarding potential imports of over 30 000 plant and animal species.

9.1.3 What about Enforcement Authorities?

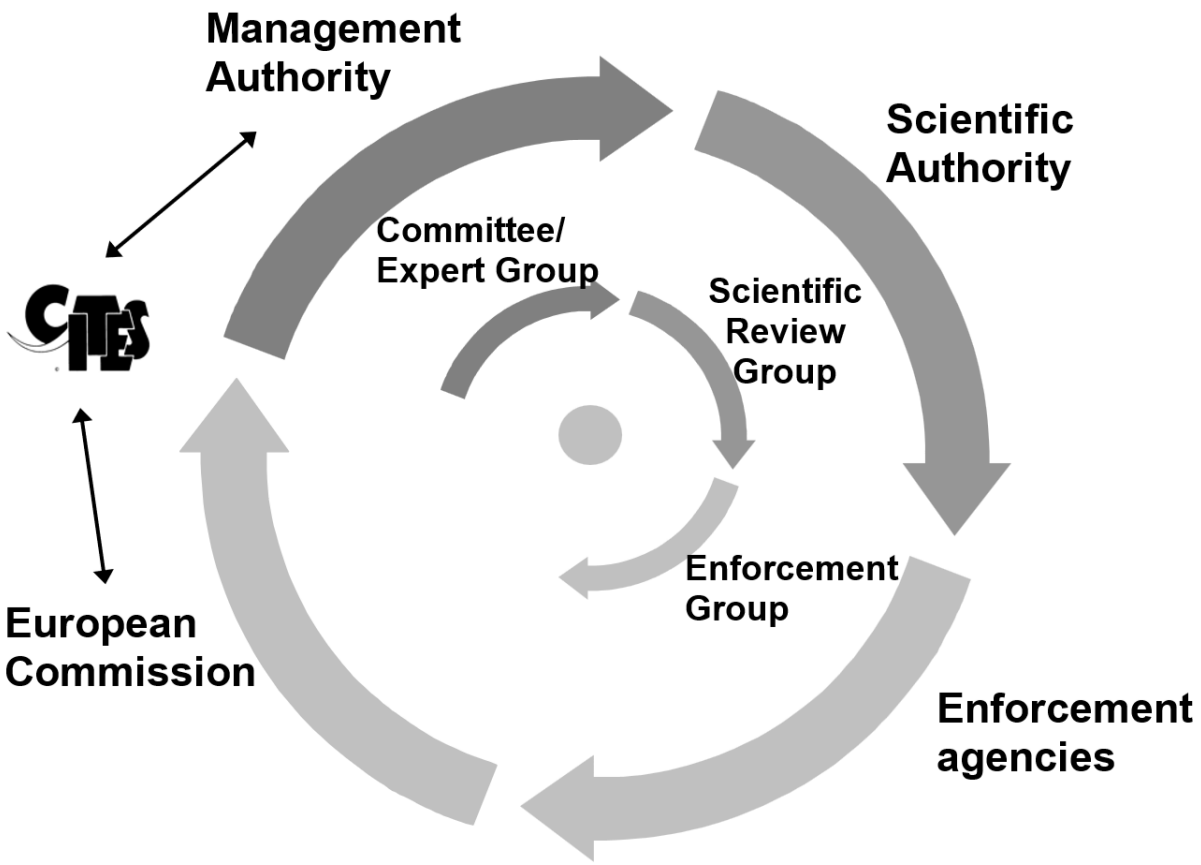
Normally there are **several authorities** in each EU Member State that are responsible for the enforcement and monitoring of the compliance with the provisions of the Regulations, including **Customs, police and environmental inspection** services. These authorities must take the appropriate steps to ensure compliance or to instigate legal action if they have reason to believe that provisions are being infringed[5].

Regulation (EC) No 338/97 establishes an Enforcement Group consisting of representatives of each of the Member State's authorities that have responsibility for monitoring compliance with the Regulations, such as Customs, Police and Wildlife Inspectorates. The Group is chaired by the European Commission and meets on average twice a year. For further details regarding the role of the Enforcement Group, see **Section 9.2.3** below.

4. Article 17 *Regulation (EC) No 338/97*
5. Article 14(1) *Regulation (EC) No 338/97*

9.2 Which bodies operate at EU level?

Figure 16: EU-level bodies for CITES implementation



9.2.1 What is the role of the Committee and the Expert Group?

Article 18 of *Regulation (EC) No 338/97* establishes a ***Committee on Trade in Wild Fauna and Flora*** that consists of representatives of Member States' competent authorities (usually these would be the Management Authorities) and is chaired by a representative of the Commission. As of 2015, a division was made between the Committee on Trade in Wild Fauna and Flora ("Management Committee") and the Group of Experts of the Competent CITES Management Authorities ("Expert Group").

The role of the Committee is the elaboration and adoption of draft implementing acts as well acts adopted via the regulatory procedure with scrutiny, pursuant to Article 19 of Regulation (EC) No 338/97 – commonly referred to as "Comitology". All other matters related to the EU Wildlife Trade Regulations, the Convention, and their implementation are tasks for the Expert Group, which is composed of the same delegates as the Committee. Generally, both meetings are held back-to-back and are organised three to four times a year in Brussels. The meeting agenda and summaries can be obtained from the CIRCABC repository for the Committee and Register of Commission expert groups[6] for the Expert Group on CITES..

6. Register of Commission expert groups and other similar entities (europa.eu)

Many of the Articles of *Regulation (EC) No 338/97* refer to implementation issues and, in particular, to measures to be adopted by the Commission as **Commission Regulations** in accordance with a regulatory procedure in which it is assisted by the Committee – known as "Comitology". These include:

- **amendments to the Annexes** (other than amendments to Annex A that do not arise from amendments to Appendix I of the Convention);
- changes in the detailed **implementation rules** (regarding issuance of documents, derogations, marking, etc.), and
- **prohibition of imports** of certain species from certain countries.

Proposals for such measures require a **positive opinion from the Committee**, established by a qualified majority, before they can be adopted by the Commission.

9.2.2 What is the role of the Scientific Review Group?

Article 17 of *Regulation (EC) No 338/97* establishes a **Scientific Review Group** (SRG) that consists of representatives of each Member State Scientific Authority and is chaired by a representative of the Commission. The SRG meets three to four times a year in Brussels and examines all scientific questions related to the application of the EU Wildlife Trade Regulations. It also assesses whether trade has a harmful effect on the conservation status of species. The meeting agenda and summaries can be obtained from the European Commission's Register of Commission Expert Groups.

The SRG can also **form opinions** on whether or not imports of certain species from a particular country of origin comply with the conditions set out in the Regulations (see **Section 3.3.9**). In cases where an import restriction is established by the Commission[7] based on the advice of the SRG, import of the particular specimens from a certain country of origin will not be allowed. Opinions of the SRG are to be conveyed to the Committee by the Commission.

9.2.3 What is the role of the Enforcement Group?

Article 14(3) of *Regulation (EC) No 338/97* establishes the **Enforcement Group** that consists of **representatives** of Member States authorities in charge of wildlife trade controls (e.g. **Customs, police services and environmental inspectorates**) and is **chaired** by a representative of the **Commission**. Representatives of other relevant EU and international bodies and organisations (Europol, Interpol, CITES Secretariat etc.) also participate in meetings of the Group. The Enforcement Group meets on average twice a year. While the Enforcement Group does not adopt formal Opinions in the same way as the SRG does, the outcomes of its deliberations are also conveyed to the Committee by the Commission.

> The task of the group is to monitor enforcement policy and practice in the EU Member States and make recommendations to improve the enforcement of wildlife trade legislation. It also catalyses the exchange of information, experience and expertise on wildlife trade control related topics between the Member States (trends in illegal trade, significant seizures and investigations), including sharing of intelligence information and establishing and maintaining databases. The Enforcement Group also plays an important role in promoting and monitoring the implementation of the EU Wildlife Action Plan.

7. And in accordance with the procedure laid down in Article 18 of *Regulation (EC) No 338/97* (Article 4(6) *Regulation (EC) No 338/97*)

9.2.4 What is the role of the European Commission?

The European Commission monitors the **implementation** of the EU Wildlife Trade Regulations in co-operation with the Member States. One of the main roles of the Commission is to **prepare proposals for amendments to EU CITES legislation and to adopt implementing measures**. Representatives of the Commission **chair the meetings** of the Committee, the Expert Group, the Scientific Review Group and the Enforcement Group. The Commission **facilitates communication between Member States** and also communicates with **third parties**, in particular where mandated to do so by any of the above-mentioned groups. The Commission ensures that the EU Member States act on the basis of a **common position** at meetings of the CITES **Conference of the Parties**.

9.3 How are the Regulations enforced?

9.3.1 How is compliance monitored and communicated?

There are several Articles of *Regulation (EC) No 338/97* that deal with aspects of enforcement and the co-ordination thereof. These are, for example, Articles 14 (Monitoring of compliance and investigation of infringements), 15 (Communication of information) and 16 (Sanctions).

Under Article 14, the competent authorities of the Member States are responsible for monitoring compliance with the provisions of the Regulations. These authorities must take the appropriate steps to **ensure compliance,** or to **instigate legal action** if they have reason to believe that provisions are being infringed. The **Commission** and (where CITES-listed species are concerned) the **CITES Secretariat** must be **informed** of any steps taken in relation to **significant infringements** of the Regulations. These significant cases include seizures and confiscations. The **Commission**, in turn, can **draw the attention** of the competent authorities of the Member States to matters where it **considers investigation necessary**. The result of any subsequent investigation must be provided to the Commission and, where appropriate, to the CITES Secretariat.

Article 14(3) of *Regulation (EC) No 338/97* establishes the Enforcement Group, which consists of representatives of each Member State's authorities with responsibility for monitoring compliance with the Regulations (see **Section 9.2.3**).

Article 15 more generally addresses communication and requires that **Member States and the Commission will communicate to one another the information necessary to implement the Regulation**. The Commission must further communicate with the CITES Secretariat, to ensure that CITES is effectively implemented throughout the territory to which the Regulations apply.

9.3.2 What sanctions apply to infringements?

Article 16 is one of the most significant assets of *Regulation (EC) No 338/97,* where enforcement is concerned. It provides that Member States will take appropriate measures to ensure the imposition of **sanctions** for **infringements** and contains a minimum list of infringements to be sanctioned, as follows:

1. **introduction** into, or **export or re-export** from, the EU of specimens **without** the **appropriate permit or certificate** or with a **false, falsified or invalid** permit or certificate or **one altered without authorization** by the issuing authority;

2. **failure to comply** with the **stipulations** specified on a permit or certificate issued in accordance with the Regulation;
3. making a **false declaration** or knowingly providing **false information** in order to obtain a permit or certificate;
4. using a **false, falsified or invalid permit or certificate** or **one altered without authorization** as a basis for **obtaining an EU permit or certificate** or for any other official purpose in connection with this Regulation;
5. making **no import notification** or a **false import notification**;
6. **shipment of live specimens not properly prepared** so as to minimize the risk of injury, damage to health or cruel treatment;
7. **use** of specimens of species listed in **Annex A other than in accordance** with the **authorization** given at the time of issuance of the import permit or subsequently;
8. **trade in artificially propagated plants contrary to the provisions** laid down in accordance with the Regulation;
9. **shipment** of specimens **into or out of or in transit through** EU territory **without the appropriate permit or certificate** issued in accordance with this Regulation and, in the case of export or re-export from a third country party to the Convention, in accordance therewith, or without satisfactory proof of the existence of such permit or certificate;
10. purchase, offer to purchase, acquisition for **commercial purposes**, use for commercial gain, display to the public for commercial purposes, sale, keeping for sale, offering for sale or transporting for sale of Annex A or B specimens **in contravention of Article 8** of the Regulation;
11. **use** of a permit or certificate for any **specimen other than one** for which it was issued;
12. **falsification** or alteration of any permit or certificate issued in accordance with this Regulation, and
13. failure to **disclose rejection** of an application for an EU import, export or re-export permit or certificate.

9.3.3 What happens to seized or confiscated specimens?

Article 16 further provides that **sanctions will be appropriate to the nature and gravity of infringements and must include provisions on seizure and, where appropriate, confiscation**.

Article 16(3) of *Regulation (EC) No 338/97* provides that, where specimens are **confiscated**, they will be entrusted to a **competent authority** of the Member State concerned, which will - after consultation with its Scientific Authority - place or otherwise **dispose** of them under appropriate conditions, which are consistent with the purposes and provisions of CITES and the Regulations. According to Article 8(6) of *Regulation (EC) No 338/97*, confiscated specimens **of Annex B-, C- or D-listed** species may be sold by the competent authorities of the Member States, provided they are not directly returned to those from which they were confiscated or who were party to the offence. They may then be treated as legally acquired specimens. Live specimens may, after consultation with the State of export, be returned to that state at the expense of the convicted[8].

8. Article 16(3) *Regulation (EC) No 338/97*

Article 16(4) of *Regulation (EC) No 338/97* provides that **live specimens of Annex B or C-listed** species arriving **without valid permits or certificates** must be **seized/confiscated**, or that – where the consignee refuses to acknowledge the specimens – the competent authority may require the carrier to **return the specimens** to the place of departure.

The CITES Conference of the Parties devoted a lot of attention to the confiscation and disposal of confiscated specimens and adopted comprehensive recommendations on the issue which can currently be found in *Resolution Conf. 17.8 (Rev. CoP19)*. This also contains CITES Guidelines for the disposal of confiscated live specimens (see https://cites.org/sites/default/files/documents/COP/19/resolution/E-Res-17-08-R19.pdf).

10 What information must be provided by Member States and the Commission?

10.1. What information must be provided to the public?

Article 15(1) of *Regulation (EC) No 338/97* requires the **Commission and the Member States** to take the necessary steps to ensure that the **public is sufficiently informed** of the provisions regarding implementation of CITES and the Regulations.

The European Commission website on wildlife trade issues provides relevant information to stakeholders and citizens involved in wildlife trade in the EU. It contains information on the regulation of wildlife trade in the EU, including permit requirements, national legislation as well as information on, captive-breeding, keeping of live specimens and other welfare aspects.

In addition, Article 12(5) of *Regulation (EC) No 338/97* specifically states that **Member States** will ensure that the **public is informed** of the implementing provisions at **border crossing points**.

Furthermore, several Member States, often in co-operation with non-governmental organisations, have undertaken campaigns at national level or contributed in different ways to raising the public awareness regarding the EU Wildlife Trade Regulations and CITES. Further information can be found in the implementation report, previously known as biennial Report, of the Member States or obtained directly from the relevant authorities.

10.2 What are the reporting obligations for Member States?

Each Management Authority is required to report **annually** on **all reported trade** and **illegal trade** in specimens of species covered by the EU Wildlife Trade Regulations. These reports are called the "**Annual Report**" and "**Annual Illegal Trade Report**" respectively. One year before each meeting of the Conference of the Parties (CoP), by 15 June of that year, an additional report, the "**Implementation Report"** (formerly known as "Biennial Report") must be submitted to report on **legislative, regulatory and administrative** measures adopted by the country to implement and enforce the regulations. Analyses and compilations of EU Member State Annual Reports, Annual Illegal Trade Reports and Implementation Reports are published via the European Commission's website.

10.2.1 Annual Reports

Article 15(4)(a) of *Regulation (EC) No 338/97* prescribes that the Management Authorities of the Member States will **submit their Annual Report** (referred to in Article VIII(7)(a) of the Convention) for the **previous year** to the Commission **before 15 June** each year. The Commission must publish an Annual Report on EU trade in wildlife covered by the Regulations before 31 October of each year. Member States must report on trade in CITES and non-CITES species listed in the Annexes.

Article 69 of *Regulation (EC) No 865/2006* provides further details on the information that must be contained in these reports:

- The reports will contain data and information on **imports** into, as well as **exports and re-exports** from, the EU that have taken place on the basis of **permits and certificates issued** by CITES Management Authorities, irrespective of the actual place of introduction or (re)export.
- The information will be submitted in a **computerised form** and in accordance with the guidelines for the preparation and submission of CITES Annual Reports issued by the CITES Secretariat.

The information is to be presented in **two separate parts**[1]:

1. on imports, exports and re-exports of specimens of species listed in the **Appendices** to the **Convention**, and
2. on imports, exports and re-exports of specimens of **other species listed in Annex A, B or C** to *Regulation (EC) No 338/97,* and on the introduction into the EU of specimens of species listed in **Annex D**.

With regard to imports of shipments containing **live animals**, Member States must – where possible – maintain records of the **percentage of specimens** of species listed in Annex A or B to *Regulation (EC) No 338/97* which were **dead at the time of introduction** into the EU[2].

The above information must be communicated to the Commission for each calendar year before 15 June of the following year on a species-by-species basis and per country of (re-)export[3].

10.2.2 Implementation Reports

Article 15(4)(c) of *Regulation (EC) No 338/97* requires that one year before each meeting of the Conference of the Parties – i.e. generally every three years – Member States also prepare a report, relating to the relevant preceding period, required for drawing up the reports referred to in Article VIII(7)(b) of CITES. These Implementation Reports (formerly known as Biennial Reports) include details on **legislative, regulatory and administrative measures** taken to implement and enforce the provisions of the EU Wildlife Trade Regulations[4].

The Commission establishes the **format** for the Implementation Reports, based on the standard format laid down by the CITES Secretariat, and subsequent additional guidelines for information to be submitted under the EU Wildlife Trade Regulations.

The Commission publishes these reports on its website.

Annual Illegal Trade Report

Article 15(4)(e) of Regulation (EC) No 338/97 prescribes that the Management Authorities of the Member States will communicate to the Commission before 15 June each year all the information relating to the preceding year for drawing up the annual **illegal trade** report referred to in CITES Resolution Conf. 11.17 (Rev. CoP19).

1. Article 69(2) *Regulation (EC) No 865/2006*
2. Article 69(3) *Regulation (EC) No 338/97 *
3. Article 69(4) *Regulation (EC) No 338.97*
4. Article 15(4)(c) *Regulation (EC) No 338/97*

The Commission established the **format** for the Illegal Annual Trade Reports, based on the standard format laid down in the guidelines for the preparation and submission of the CITES annual illegal trade report[5] and making use of the **EU-TWIX** database.

Each Member State is required to submit an annual illegal trade report on all seizures for violations involving CITES-listed species, irrespective of whether the seizure was made at an international border, or at domestic level for example during the search of a private or business property or during inspections at domestic markets.

5. Notification 2023/132: Guidelines for the preparation and submission of annual reports and of annual illegal trade reports

Annexes

This section contains the reference annexes to the EU Wildlife Trade Regulations Guide.

Annex I

What is CITES?

CITES, the Convention on International Trade in Endangered Species of Wild Fauna and Flora, entered into force in 1975 and has since become one of the most prominent international agreements in the field of species conservation. To date, there are 183 Parties to the Convention, including the EU and all EU Member States.

What are the core functions of CITES?

The aim of CITES is:

To ensure that international trade in wild animals and plants is not a threat to the conservation of the species in the wild.

CITES currently regulates trade in more than 37 000 species of fauna and flora, and works through a system of permits and certificates that must be obtained before international trade in specimens of species covered by the Convention can take place. Species are listed in three Appendices based on their conservation status and levels of international trade.

How is CITES governed?

CITES provides for a **Secretariat** and a **Conference of the Parties (CoP)**, which play a major role in the functioning of the Convention. The CoP, which meets every three years, has established a number of permanent committees which play a significant role in between its triennial meetings. The CITES permanent committees are:

- the Standing Committee, which deals with policy, budgetary, administrative and enforcement issues;
- the Animals Committee, which deals with scientific issues relating to animals, and
- the Plants Committee, which deals with scientific issues of relevance to plants.

The provisions of CITES establish procedures for amending the Convention and its Appendices address enforcement measures to be taken by the Parties, the Convention’s effects on domestic legislation and on other international conventions, the resolution of disputes, ratification, accession and denunciation, and allow for the entry of reservations. The listing of species in Appendices I and II requires a two-thirds majority decision by the CoP. Parties can, however, list native species in Appendix III of their own initiative.

How do the Parties implement CITES?

Each Party must designate one or more **Management Authorities** responsible for issuing CITES permits and certificates, subject to the advice from one or more Scientific Authorities designated for that purpose (see also **Section 9.1.2**). The contact details of the competent Management and Scientific Authorities for each Party can be found on the website of the CITES Secretariat.

How are decisions made on the issuance of permits?

Conditions for the issue of permits and certificates for international trade in a species listed in the CITES Appendices include:

- questions with regard to whether or not trade will be detrimental to its survival;
- whether the specimens were legally acquired;
- the preparation for shipment of live specimens, and
- for Appendix I-listed species, whether the importer has suitable facilities to house and care for live specimens.

What permits are needed under CITES?

For **specimens of species listed in Appendix I** an **import permit** issued by the Management Authority of the importing country and an **export permit** (or **re-export certificate**) issued by the Management Authority of the (re-)exporting country will be required. These may be issued only if the specimen is not to be used for primarily commercial purposes and if the trade will be for purposes that are not detrimental to the survival of the species.

For **specimens of species listed in Appendix II** an **export permit** or **re-export certificate** issued by the Management Authority of the State of export or re-export is required. No import permit is needed unless required by national law.

For **specimens of species listed in Appendix III** either an **export permit** (if exported from the country that included the species in Appendix III) **or a certificate of origin** (if exported from any other country) is needed.

Are there any exemptions?

The Convention provides for several conditioned exemptions and derogations from its provisions (see **Section 4**). They concern transit and transhipment, specimens acquired before the Convention became applicable to them (pre-Convention specimens), certain specimens that are personal or household effects, captive-bred animals and artificially propagated plants, the exchange of specimens between scientists and scientific institutions, trade in biological samples, certificates for travelling exhibitions, certificates for the frequent non-commercial cross-border movement of musical instruments and CITES certificates for personal ownership. Such transactions/specimens are less strictly regulated.

How does CITES keep track of trade levels?

The monitoring of trade is an essential tool for achieving the aims of the Convention. The CITES monitoring system is based on the trade records to be kept by all Parties and to be reported to the CITES Secretariat on an annual basis. The Annual Reports (see **Section 10.2.1**) of all Parties together should provide statistical information on the total volume of legal and reported world trade in CITES species, which is an invaluable

element for the assessment of their conservation status. These Annual Reports further reflect the “performance” of Parties regarding CITES implementation when all reported exports and reexports are compared with all reported imports.

This system is also of immediate use to Scientific Authorities, which must take into consideration the trends and actual level of trade in Appendix II-listed species. They have to advise their Management Authorities of suitable measures to control the export of certain species whenever they determine that the export should be limited in order to maintain a species throughout its range at a level consistent with its role in the ecosystems and well above the level at which it might become eligible for inclusion in Appendix I.

What about Non-Parties?

There are a number of countries that are not Parties to CITES. The Convention addresses this situation by providing that Parties will require documentation from non-Parties that substantially conforms to the requirements for CITES permits and certificates.

Are there rules beyond the Convention itself?

The Convention text is further interpreted and elaborated upon by Resolutions that are passed by the CoP, as well as by operational Decisions that may recommend specific action by Parties. These Resolutions and Decisions are non-binding and lead to significant differences in implementation between Parties. The European Union (EU) implements most of them, except in a few cases where there are policy objections or where they conflict with the provisions of *Regulation (EC) No 338/97*, which can only be amended by the EU Council of Ministers and the European Parliament. *Regulation (EC) No 865/2006* (and *Regulation (EC) No 100/2008*, *Regulation (EU) No 791/2012, Regulation (EU) No 2015/870* and *Regulation (EU) No 2023/966* which amend it) and *Regulation (EU) No 792/2012* as amended (which also deleted and replaced certain provisions of *Regulation (EC) No 865/2006*) give effect to those Resolutions which the EU is implementing at present.

The EU in CITES

The initial text of the CITES Convention only foresaw membership by States, which meant that the EU (and before it the EC), as a regional organisation, could not become a Party to the Convention and was only an Observer. This has changed with the entry into force in November 2013 of an amendment to the Convention allowing Regional Economic Integration Organizations (REIO), such as the European Union, to become Contracting Parties to the Convention (“the Gaborone amendment”).[1]

On that basis, the EU became a Party to CITES on 8 July 2015 and is the first (so far the only) REIO to accede to CITES since the coming into effect of the Gaborone amendment. The basis for EU accession to CITES is *Council Decision (EU) No 2015/451*[2]. As a Party to CITES, the EU plays a full role in the work of the Convention. In cases of votes at CITES Conferences of the Parties on issues of EU relevance, the EU votes instead of the individual EU Member States (its vote counting for the number of Member States of the Union, in line with Article XXI(5) of the CITES Convention), on the basis of positions agreed in advance with the Member States.

1. http://cites.org/eng/eu*181st*party
2. *Council Decision (EU) 2015/451 of 6 March 2015 concerning the accession of the European Union to the Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES),* OJ No. L 75 of 19.3.15, p.1.

How did CITES become part of EU law?

The EU has been implementing the Convention through common Regulations since 1984 (*Council Regulation (EEC) No 3626/82*[3] and *Commission Regulation (EEC) No 3418/83*[4]). In 1982, only five of the – at that time – 10 Member States were Party to CITES (see **Annex XV**). The absence of systematic border controls between Member States, as a result of the Customs union, made implementation of CITES by individual Member States impossible. The two new Regulations entered into force on 1 January 1984 and were applicable in all EU Member States, including those that had not yet joined CITES at that time.

In December 1991, the Commission proposed that the Council replace the 1982 Regulation by a more comprehensive Regulation as of 1 January 1993, the date of completion of the "Single Market". The almost total disappearance of internal trade controls of goods, capital, persons and services on that date made the revision of the 1982 Regulation necessary (particularly in order to increase the effectiveness of external border controls). There were other reasons for redesigning EU wildlife trade legislation. Disparate implementation by Member States of the EU Regulations and recommendations of the CoP had led to confusion and an increasing lack of harmonisation. Furthermore, the Regulations needed to be adapted to the evolution of wildlife trade control techniques and policies and to modern conservation and management policies.

It took the Council of the EU longer than expected to reach agreement on this new legislation. On 9 December 1996, the Council of Ministers adopted *Council Regulation (EC) No 338/97*[5] *on the protection of species of wild fauna and flora by regulating trade therein.* Early the following year, the Commission adopted *Commission Regulation (EC) No 939/97, laying down detailed rules for the implementation of Council Regulation (EC) No 338/97*[6] *on the protection of species of wild fauna and flora by regulating trade therein.* Both Regulations entered into force on 1 June 1997.

Since then, the above-mentioned Commission Regulation, has been replaced twice in order to take into account new provisions adopted at the meetings of the CoP. The most recent is *Commission Regulation (EC) No 865/2006* of 4 May 2006, which entered into force on 9 July 2006. This was subsequently amended – but not replaced – by *Commission Regulation (EC) No 100/2008*, *Commission Regulation (EU) No 791/2012*, *Commission Regulation (EU) No 2015/870* and *Commission Regulation (EU) No 2023/966*. In addition, Articles 2 and 3, as well as Annexes I to VI, of *Regulation (EC) No 865/2006* (regarding the design of permits certificates and other documents provided for in *Regulation (EC) No 338/97*) were deleted and replaced by the provisions of *Commission Implementing Regulation (EU) No 792/2012.*

Regulation (EC) No 338/97 is directly applicable[7] in all EU Member States and, together with *Regulation (EC) 865/2006* (as amended), forms the legal basis for the implementation of CITES in the EU. These legal texts regulate international as well as EU internal wildlife trade and contain additional provisions to CITES.

Although the EU Wildlife Trade Regulations are directly applicable in all EU Member States, necessary enforcement provisions must be transferred into national legislation and supplemented with national laws for matters that remain under the sovereignty of each Member State, such as penalties. In addition, the EU has a range of veterinary and phytosanitary provisions, while each EU Member State has national and/or regional legislation relevant to biodiversity and species conservation, animal and plant welfare, and Customs matters.

3. OJ No. L 384 of 31.12.82, p.1.
4. OJ No. L 344 of 7.12.83, p.1 .
5. OJ No. L 61 of 3.3.97, p. 1.
6. OJ No. L 61 of 3.3.97, p. 1.
7. Meaning that Member States do not need to take action to transpose the legislation into national law. In contrast to Regulations, EU Directives are not directly applicable and must be transposed by Member States into their national laws.

Annex II

What are the main differences between CITES and the EU Wildlife Trade Regulations?

If you are already familiar with the workings of the Convention but not with those of the EU Wildlife Trade Regulations governing CITES, you should be aware that there are important differences between the former and the latter. Nor, as has already been said, can you rely on CITES Resolutions and Decisions for correct interpretation of the Regulations.

The EU Wildlife Trade Regulations not only implement the provisions of CITES but go beyond the Convention in some respects, for example:

- Annexes contain non-CITES listed species: the EU Wildlife Trade Regulations have four Annexes of which A, B and C largely correspond to the first three Appendices of the Convention but also contain some non-CITES listed species protected under EU internal legislation.
- Some species are listed in a “higher” equivalent Annex in the EU, i.e. they are listed in CITES Appendix II, but in EU Annex A, and trade in these species is consequently more strictly controlled by EU Member States than by other CITES Parties.
- Annex D has no equivalent in CITES and contains species for which import levels are monitored.
- The EU has stricter import conditions: import permits are required also for Annex B-listed species (not required under CITES for Appendix II-listed species). Import notifications are required for Annex C and D.
- Proper housing conditions are required for live specimens of species listed in Annex A and in Annex B; CITES requires suitable care and housing only for imports of live specimens of Appendix I-listed species.
- Internal EU trade in Annex A and Annex B-listed species is also controlled; CITES only regulates international trade.
- The EU can restrict imports of species from certain countries: *Regulation (EC) No 338/97* enables the Commission to suspend imports with regard to certain specimens even if the trade is allowed under CITES.

Annex III

Definitions

Article 2 of *Regulation (EC) No 338/97* contains the following definitions:

(a) *‘**Committee’*** shall mean the Committee on Trade in Wild Fauna and Flora, established under Article 18;

(b) ***‘Convention’*** shall mean the Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES);

(c) ***‘country of origin’*** shall mean the country in which a specimen was taken from the wild, captive-bred or artificially propagated;

(d) ***'import notification'*** shall mean the notification given by the importer or his agent or representative, at the time of the introduction into the EU of a specimen of a species included in Annex C or D, on a form prescribed by the Commission in accordance with the procedure laid down in Article 18;

(e) ***'introduction from the sea'*** shall mean the introduction into the EU of any specimen which was taken in, and is being introduced directly from, the marine environment not under the jurisdiction of any State, including the airspace above the sea and the sea-bed and subsoil beneath the sea;

(f) ***'issuance'*** shall mean the completion of all procedures involved in preparing and validating a permit or certificate and its delivery to the applicant;

(g) ***'management authority'*** shall mean a national administrative authority designated, in the case of a Member State, in accordance with Article 13(1)(a) or, in the case of a third country party to the Convention, in accordance with Article IX of the Convention;

(h) ***'Member State of destination'*** shall mean the Member State of destination mentioned in the document used to export or re-export a specimen; in the event of introduction from the sea, it shall mean the Member State within whose jurisdiction the place of destination of the specimens lies;

(i) ***'offering for sale'*** shall mean offering for sale and any action that may reasonably be construed as such, including advertising or causing to be advertised for sale and invitation to treat;

(j) ***'personal or household effects'*** shall mean dead specimens, parts and derivatives thereof, that are the belongings of a private individual and that form, or are intended to form, part of his normal goods and chattels;

(k) ***'place of destination'*** shall mean the place at which, at the time of introduction into the EU, it is intended that the specimens will normally be kept; in the case of live specimens, this shall be the first place where specimens are intended to be kept following any period of quarantine or other confinement for the purposes of sanitary checks and controls;

(l) ***'population'*** shall mean a biologically or geographically distinct total number of individuals;

(m) ***'primarily commercial purposes'*** shall mean all purposes whose non-commercial aspects do not clearly predominate;

(n) ***'re-export from the EU'*** shall mean the export from the EU of any specimen that has previously been introduced;

(o) ***'reintroduction into the EU'*** shall mean the introduction into the EU of any specimen that has previously been exported or re-exported;

(p) ***'sale'*** shall mean any form of sale. For the purposes of the Regulation, hire, barter or exchange shall be regarded as sale; cognate expressions shall be similarly construed;

(q) ***'scientific authority'*** shall mean a scientific authority designated, in the case of a Member State, in accordance with Article 13(1)(b) or, in the case of a third country party to the Convention, in accordance with Article IX of the Convention;

(r) ***'Scientific Review Group'*** shall mean the consultative body established under Article 17;

(s) ***'species'*** shall mean a species, subspecies or population thereof;

(t) ***'specimen'*** shall mean any animal or plant, whether alive or dead, of the species listed in Annex A, B, C or D, any part or derivative thereof, whether or not contained in other goods, as well as any other goods which appear from an accompanying document, the packaging or a mark or label, or from any other circumstances, to

be or to contain parts or derivatives of animals or plants of these species, unless such parts or derivatives are specifically exempted from the provisions of this Regulation or from the provisions relating to the Annex in which the species concerned is listed by means of an indication to that effect in the Annex concerned.

A specimen will be considered to be a specimen of a species listed in Annex A, B, C or D if it is, or is part of or derived from, an animal or plant at least one of whose 'parents' is of a species so listed. In cases where the 'parents' of such animal or plant are of species listed in different Annexes, or of species only one of which is listed, the provisions of the more restrictive Annex shall apply. However, in the case of specimens of hybrid plants, if one of the 'parents' is of a species listed in Annex A, the provisions of the more restrictive Annex shall apply only if that species is annotated to that effect in the Annex;

(u) ***'trade'*** shall mean the introduction into the EU, including introduction from the sea, and the export and re-export therefrom, as well as the use, movement and transfer of possession within the EU, including within a Member State, of specimens subject to the provisions of this Regulation;

(v) ***'transit'*** shall mean the transport of specimens between two points outside the EU through the territory of the EU which are shipped to a named consignee and during which any interruption in the movement arises only from the arrangements necessitated by this form of traffic;

(w) ***'worked specimens that were legally acquired more than fifty years previously'*** shall mean specimens that were significantly altered from their natural raw state for jewellery, adornment, art, utility, or musical instruments more than 50 years before the entry into force of this Regulation (i.e. before 3 March 1947) and that have been, to the satisfaction of the Management Authority of the Member State concerned, acquired in such conditions. Such specimens shall be considered as worked only if they are clearly in one of the aforementioned categories and require no further carving, crafting or manufacture to effect their purpose. See also the guidance document on 'worked specimens'[8]

(x) ***'checks at the time of introduction, export, re-export and transit'*** shall mean documentary checks on the certificates, permits and notifications provided for in this Regulation and – in cases where EU provisions so provide or in other cases by representative sampling of the consignments – examination of the specimens, where appropriate accompanied by the taking of samples with a view to analysis or more detailed checks.

Article 1 of *Regulation (EC) No 865/2006* (as amended) contains additional definitions:

1. ***'date of acquisition'*** means the date on which a specimen was taken from the wild, born in captivity or artificially propagated, or, if such date is unknown, the earliest provable date on which it was possessed by any person;
2. ***'second-generation offspring'*** (F2) and 'subsequent generation offspring (F3, F4, etc.)' shall mean specimens produced in a controlled environment from parents that were also produced in a controlled environment (first-generation (F1) specimens that are produced in a controlled environment from parents at least one of which was conceived in or taken from the wild are not covered by this definition);
3. ***'breeding stock'*** means all the animals in a breeding operation that were or are used for reproduction;
4. ***'a controlled environment'*** means an environment that is manipulated for the purpose of producing animals of a particular species, that has boundaries designed to prevent animals, eggs or gametes of the species from entering or leaving the controlled environment, and the general characteristics of which may include but are not limited to: artificial housing, waste removal, health care, protection from predators and the artificial supply of food;

8. http://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:52017XC0517(02)&from=EN

5. ***'cultivated parental stock'*** means the ensemble of plants grown under controlled conditions that are used for reproduction, and which must have been, to the satisfaction of the designated CITES authorities of the exporting country:
   (i) established in accordance with the provisions of CITES and relevant national laws and in a manner not detrimental to the survival of the species in the wild; and
   (ii) maintained in sufficient quantities for propagation so as to minimise or eliminate the need for augmentation from the wild, with such augmentation occurring only as an exception and limited to the amount necessary to maintain the vigour and productivity of the cultivated parental stock;

6. ***'hunting trophy'*** means a whole animal, or a readily recognizable part or derivative of an animal, specified on any accompanying CITES permit or certificate that fulfils the following conditions:
   is raw, processed or manufactured;
   was legally obtained by the hunter through hunting for the hunter's personal use;
   is being imported, exported or re-exported by or on behalf of the hunter, as part of the transfer from its country of origin, ultimately to the hunter's State of usual residence;

7. ***'a person normally residing in the EU'*** means a person who lives in the EU for at least 185 days in each calendar year because of occupational ties, or, in the case of a person with no occupational ties, because of personal ties which show close links between that person and the place where he/she is living;

8. ***'pre-Convention specimen'*** means a specimen acquired before the species was first included in the Appendices to the Convention;

9. ***'sample collection'*** means a collection of legally acquired dead specimens, parts and derivatives thereof, that are transported across borders for presentation purposes;

10. ***'travelling exhibition'*** means a sample collection, circus, menagerie, plant exhibition, orchestra or museums exhibition that is used for commercial display for the public;

11. ***'transaction-specific certificates'*** means certificates issued in accordance with Article 48 that are valid for one or more specified transactions;.

12. ***'specimen-specific certificates'*** means certificates other than transaction-specific certificates that are issued in accordance with Article 48.

Annex IV

Definitions of the Opinions issued by the Scientific Review Group

Positive Opinion – given current or anticipated levels of trade, introduction into the EU would not have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species.

Negative Opinion – the information available is insufficient to form a Positive Opinion on an application and/or the given current or anticipated levels of trade, introduction into the EU might have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species.

Referral to the SRG – The species is not currently/only rarely in trade, but is of sufficient conservation concern that the SRG has determined that any application must be referred to the SRG for a decision before a permit is issued or refused.

Regime applied

When an import application is on the table, or when reviewing species / country combinations, the SRG can agree on one of the following:

1. **Positive Opinion** – opinion remains valid for subsequent import permit requests as long as the conservation and trade status have not changed significantly. To ensure that adequate monitoring takes place and that trade into the EU does not contribute to the decline of any species in the wild, Management Authorities are encouraged to consult their Scientific Authorities (SA) on every application or, at least, to keep their SAs informed of permits issued so that the SA can determine when circumstances have changed or a 'non-detriment finding' is in need of review;
2. **Negative Opinion** – opinion remains valid for subsequent import permit requests and Member States are expected to follow this decision, unless new information becomes available indicating the opinion needs to be reviewed by the SRG, or one of the exemptions in Article 71(4) of *Regulation (EC) No 865/2006* applies. After consultation with the SRG, the Commission may establish a formal import prohibition for species/ country combination subject to a Negative Opinion.
3. **SRG Referral** – the species is of sufficient conservation concern that the SRG has determined that any application must be referred to the SRG for a decision before a permit is issued or refused. Before submitting a proposed decision to the Commission, the SA of the importing country may consult the SA of the exporting country. The advice of the MS SA will be relayed to members of the SRG by the Commission (formal written procedure) and the result of the consultation (negative or positive) will be confirmed by the Commission after a deadline of 10 working days. In case of disagreement by one SA of an EU Member State, the issue will be discussed at the following SRG. In this case a formal note by the Commission will be sent to MAs and SAs of the EU Member States with the request to refrain from issuing any permit for the concerned species / country combination pending the advice of the SRG. In cases where an application is referred to the following SRG meeting, the SRG should strive to form a Positive or Negative Opinion for this species / country combination. If this is not possible, then the "SRG Referral" is maintained.

In Consultation

Where there is insufficient information on which to issue a confident Positive or Negative Opinion, for a specific species/country combination, the SRG may decide to consult with countries or taxonomic experts to address information gaps. The EU will consult the relevant country/expert to request information. To allow time for a response, the SRG will re-consider the case after 12 months and not more than 24 months. It should be noted that "In consultation" is not a formal opinion of the SRG and can made alongside other formal SRG opinions. It replaces the SRG "no opinion ii)" and is recorded in Species+.

In these cases, MAs can still process applications by systematically consulting the national SA for a 'non-detriment finding' before granting an import permit. In case a positive opinion is given by SA at the national level, notification to the SRG by the SA via the CIRCABC Newsgroup "positive opinions" is encouraged.

Discussed by the SRG, but no opinion formed

Where a species/country combination is discussed by the SRG but a formal SRG opinion has not been adopted, a record to note that the discussion took place will be recorded in the short and detailed Summary of Conclusions of SRG meetings, and it will also be recorded in Species+.

Annex V

Application of CITES in the European Union: Status of dependent and other territories

	Party to CITES	EU territory (EU Treaty applies)	EU CITES legislation applies[9]	Import and (re-)export documents required for trade with EU Member States	EU customs territory	Customs checks required for intra-EU trade
French Overseas Departments (La Réunion, Martinique, Guadeloupe, Guyane, Mayotte) (FR)	X	X	X		X	
Saint Martin (FR)	X	X	X		X	
Canary Islands (ES)	X	X	X		X	
Madeira (PT)	X	X	X		X	
Açores (PT)	X	X	X		X	
Island of Helgoland (DE)	X	X	X			X
Territory of Büsingen (DE)	X	X	X			X
Ceuta and Melilla (ES)	X	X	X			X
Aland Islands (FI)	X	X	X		X	
Livigno (IT)	X	X	X			X
Monaco[10]	X			X	X	
San Marino[11]	X	(see note 3)	X		(see note 3)	

9. Trade with these areas should be handled as intra-EU trade, i.e. Articles 8 and 9 of *Council Regulation (EC) No 338/97* apply. Import and (re-)export permits are not required.
10. As Monaco has neither an airport nor a commercial port (only for pleasure craft), in practice all (commercial) imports go through Border Inspection Posts of the EU and are regulated accordingly. Therefore Monaco is effectively treated like a Member State.
11. San Marino applies EU Customs legislation and the EU Wildlife Trade Regulations *mutatis mutandis* as part of *'Omnibus' Decision No. 1/2010 of the EU-San Marino Cooperation Committee of 29 March 2010 establishing various implementing measures for the Agreement on Cooperation and Customs Union between the European Economic Community and the Republic of San Marino* (OJ L 156, 23.6.2010, p.13). In order to apply this legislation, the Customs territory of the EU and the Customs territory of the Republic of San Marino are to be considered a single Customs territory (Article 3 of the Omnibus Decision).

* Note that territories/countries forming a Customs union with the EU (e.g. Andorra, Turkey) are subject to the usual Customs formalities.

All other dependent territories of the EU Member States are not part of the EU Territory or the EU customs territory and permits are therefore required for trade with the EU Member States. These include the Overseas Countries and Territories (OCT) (listed below), which have constitutional ties with Denmark*, France, or the Netherlands. Although the nationals of OCT are in principle EU citizens, these territories are not part of the EU and not directly subject to EU law.

* Although not classed as an OCT, the Faroe Islands are also under the sovereignty of Denmark and do not form part of the EU. As they are also a non-Party to CITES, imports into the EU from the Faroe Islands follow the rules of import from non-Parties.

Overseas countries and territories

	Curacao (NL)	**Saba (NL)**
Aruba (NL)		Saint Barthélemy (FR)
French Polynesia (FR)		
Bonaire (NL)	French Southern and Antarctic Territories (FR)	Sint Eustatius (NL)
	Greenland (DK)	Sint Maarten (NL)
	New Caledonia and Dependencies (FR)	Saint Pierre and Miquelon (FR)
Wallis and Futuna Islands (FR)		

Annex VI

Codes to be included in the description of specimens and units of measurement to be used in permits and certificates pursuant to Articles 5(1) and (2) of Regulation (EC) No 865/2006[12]

12. This corresponds to Annex VII to Regulation (EC) No 865/2006, the latest version of which should be checked for any recent amendments.

Description	Trade term code	Preferred unit	Alternative unit	Explanation
baleen	BAL	kg	no.	elastic sheets of keratin that hang from the upper jaw of baleen whales (Mysticeti) and allow them to feed
bark	BAR	kg		tree bark (raw, dried or powdered; unprocessed)
body	BOD	no.	kg	substantially whole dead animals, including whole fish, stuffed turtles, preserved butterflies, reptiles in alcohol, whole stuffed hunting trophies, etc. If referring to specimens of sharks and rays (Elasmobranchii spp.), the preferred unit is kg.
bone	BON	kg	no.	bones, including jaws
calipee	CAL	kg		calipee or calipash (turtle cartilage for soup)
carapace	CAP	no.	kg	raw or unworked whole shells of Testudines species.
carving	CAR	kg	no.	carved products other than ivory, bone or horn – for example coral and wood (including handicrafts). N.B: Ivory carvings should be specified as such (see below – 'IVC'). Also, for species from which more than one type of product may be carved (e.g. horn and bone), the trade term code should indicate the type of product in trade (e.g. bone carving 'BOC' or horn carving – 'HOC'), where possible.
carving - bone	BOC	kg	no.	bone carving
carving - horn	HOC	kg	no.	horn carving
carving – ivory (worked ivory)	IVC	kg	no.	ivory carvings, including e.g. smaller worked pieces of ivory (knife handles, chess sets, mahjong sets etc). N.B. Whole carved tusk should be reported as carving – ivory (IVC) not as tusks (see 'TUS' below). Jewellery made from carved ivory should be reported as 'jewellery – ivory' (see IJW below).
caviar	CAV	kg		unfertilized dead processed eggs from all species of Acipenseriformes; also known as roe.
chips (woodchips)	CHP	kg		chips of timber, especially *Aquilaria* spp., *Gyrinops* spp. and *Pterocarpus santalinus*

Description	Trade term code	Preferred unit	Alternative unit	Explanation
claw	CLA	no.	kg	claws – e.g. of Felidae, Ursidae or Crocodylia (NB: 'turtle claws' are usually scales and not real claws)
cloth	CLO	m2	kg	cloth – if the cloth is not made entirely from the hair of a CITES species, the weight of hair of the species concerned should instead, if possible, be recorded under 'HAI'
coral (raw)	COR	no.	kg	raw or unworked coral and coral rock (also live rock and substrate) [as defined in Resolution Conf. 11.10 (Rev. CoP15)]. Coral rock should be recorded as '*Scleractinia* spp.' NB: the trade should be recorded by number of pieces only if the coral specimens are transported in water. Live rock (transported moist in boxes) should be reported in kg; coral substrate should be reported as number of pieces (since these are transported in water as the substrate to which non-CITES corals are attached).
cosmetics	COS	g	ml	*Any product or mixture of products which is applied to an external part of the body only (e.g. skin, hair, nails, genitals, lips or teeth or the mucous membranes of the oral cavity) with the intent to clean, odorise, change the appearance or protect. Cosmetics may include the following: make-up, perfume, skin cream, nail polish, hair colourants, soap, shampoo, shaving cream, deodorant, sunscreens, toothpaste.* Cosmetics which include extracts of CITES-listed species. The quantity should reflect the amount of CITES-listed species present.
culture	CUL	no. of flasks, etc.		cultures of artificially propagated plants
derivatives	DER	kg/l		derivatives (other than those included elsewhere in this table)
dried plant	DPL	no.		dried plants – e.g. herbarium specimens
ear	EAR	no.		ears – usually elephant
egg	EGG	no.	kg	whole dead or blown eggs (see also 'caviar')
egg (live)	EGL	no.	kg	live fertilized eggs – usually birds and reptiles but includes fish and invertebrates

Description	Trade term code	Preferred unit	Alternative unit	Explanation
eggshell	ESH	g/kg		raw or unworked eggshell except whole eggs
extract	EXT	kg	l	extract – usually plant extracts
feather	FEA	kg/ no. of wings	no.	feathers – in the case of objects (e.g. pictures) made of feathers, record the number of objects
fibre	FIB	kg	m	natural fibre: generic term for several types of material of natural (i.e. plant or animal) origin. Animal fibre can usually be spun and woven and is usually very fine and has good flexibility. – e.g. fibre coming from the shearing of live vicunas. It also includes fibres from animal intestines used to make strings for tennis rackets
fin (dried)	DFN	kg		dried fins and parts of fins (including flippers)
fin (wet)	FFN	kg		fresh, chilled of frozen fins and parts of fins (including flippers)
fingerlings	FIG	kg	no.	live juvenile fish for the aquarium trade, aquaculture, hatcheries, consumption or for release, including live European eels (*Anguilla anguilla*) up to 12cm in length
flower	FLO	kg		flowers
flower pot	FPT	no.		flower pots made from parts of a plant – e.g. treefern fibres (NB: live plants traded in so- called ‘community pots’ should be recorded as ‘live plants’, not as flower pots)
frog legs	LEG	kg		frog legs
fruit	FRU	kg		fruit
foot	FOO	no.		feet – e.g. of elephant, rhinoceros, hippopotamus, lion, crocodile, etc.
fur products (large)	FPL	no.		large manufactured products of fur – e.g. bear or lynx fur blankets or other fur products of a substantial size.
fur product (small)	FPS	no.		small manufactured products of fur– including handbags, key fobs, purses, pillows, trim, etc.
gall	GAL	kg		gall

Description	Trade term code	Preferred unit	Alternative unit	Explanation
gall bladder	GAB	no.	kg	gall bladder
garment	GAR	no.		garments – including gloves and hats but not shoes. Includes trimming or decoration on garments
genitalia	GEN	kg	no.	castrates and dried penes
gill plates	GIL	kg	no.	gill plates (e.g. for sharks)
graft rootstock	GRS	no.		graft rootstocks (without the grafts)
hair	HAI	kg	g	includes all unprocessed animal hair, e.g. of elephant, yak, guanaco, wolf, bear, panther, etc.
hair products	HAP	no.	g	products made of hair (e.g. elephant hair bracelets)
horn	HOR	no.	kg	horns – includes antlers
jewellery	JWL	no.	g	jewellery – including bracelets, necklaces, and other items of jewellery from products other than ivory (e.g. wood, coral, etc.)
jewellery – ivory (worked ivory)	IJW	no.	g	jewellery made of ivory – includes ekipas
kernel	KNL	kg		also known as ‘endosperm’, ‘pulp’ or ‘copra’
leather product (large)	LPL	no.		large manufactured products of leather – e.g. briefcases, furniture, suitcases, travel trunks
leather product (small)	LPS	no.		small manufactured products of leather – e.g. belts, braces, bicycle saddles, cheque book or credit card holders, handbags, key fobs, notebooks, purses, shoes, tobacco pouches, wallets, watch-straps and trim
live	LIV	no.	kg	live animals and plants, excluding live fingerling fish – see FIG
leaf	LVS	kg	no.	leaves
logs	LOG	m3		all wood in the rough, whether or not stripped of bark or sapwood, or roughly squared, for processing notably into sawn wood, pulpwood or veneer sheets. NB: trade in logs of special

Description	Trade term code	Preferred unit	Alternative unit	Explanation
				purpose timbers traded by weight (e.g. lignum vitae, *Guaiacum* spp.) should be recorded in kg
meat	MEA	kg		meat, including flesh of fish if not whole (see 'body'), fresh or unprocessed meat as well as processed meat (e.g. smoked, raw, dried, frozen or tinned) The code for meat (MEA) should be used in preference for trade in eels for human consumption.
medicine	MED	kg/l		medicine
musk	MUS	g		musk
oil	OIL	kg	l	oil – e.g. from turtles, seals, whales, fish, various plants
pearl	PRL	no.		pearl (e.g. for *Strombus gigas*)
piano keys (worked ivory)	KEY	no.		ivory piano keys (e.g. one standard piano would be 52 ivory piano keys)
piece – bone	BOP	kg		pieces of bone, not manufactured
piece – horn	HOP	kg		pieces of horn, not manufactured – includes scrap
piece – ivory (raw ivory)	IVP	kg		ivory pieces, not manufactured – includes scrap
plate	PLA	m2		plates of multiple skins – includes rugs if made of several skins
plywood	PLY	m2	m3	material consisting of three or more sheets of wood glued and pressed one on the other and generally disposed so that the grains of successive layers are at an angle
powder	POW	kg		a dry, solid substance in the form of fine or coarse particles
pupae	PUP	no.		butterfly pupae
root	ROO	no.	kg	roots, bulbs, corms or tubers NB: For the agarwood-producing taxa *Aquilaria* spp. and *Gyrinops* spp., the preferred unit is 'kilograms'. The alternative unit is 'number'.
rug	RUG	no.		rugs

Description	Trade term code	Preferred unit	Alternative unit	Explanation
sawfish rostrum	ROS	no.	kg	sawfish rostrum
sawn wood	SAW	m3		wood simply sawn lengthwise or produced by a profile-chipping process; normally exceeds 6mm in thickness. NB: trade in sawn wood of special purpose timbers traded by weight (e.g. lignum vitae, *Guaiacum* spp.) should be recorded in kg
scale	SCA	kg		scales – e.g. of turtle, other reptiles, fish, pangolin
seed	SEE	kg		seeds
shell	SHE	no.	kg	raw or unworked shell of molluscs
side	SID	no.		sides or flanks of skins; does not include crocodilian Tinga frames (see under ‘skin’)
skeleton	SKE	no.		substantially whole skeletons
skin	SKI	no.		substantially whole skins, raw or tanned, including hides, crocodilian Tinga frames, external body lining, with or without scales
skin piece	SKP	kg	no.	skin pieces – including scraps, raw or tanned
skull	SKU	no.		skulls
soup	SOU	kg	l	soup – e.g. of turtle
specimen (scientific)	SPE	kg/l/ml/ no.		scientific specimens – includes blood, tissue (e.g. kidney, spleen, etc.), histological preparations, preserved museum specimens, etc.
stem	STE	no.	kg	plant stems NB: For the agarwood-producing taxa *Aquilaria* spp. and *Gyrinops* spp., the preferred unit is ‘kilograms’. The alternative unit is ’number’.
swim bladder	SWI	kg		hydrostatic organ, including isinglass / sturgeon glue
tail	TAI	no.	kg	tails – e.g. of caiman (for leather) or fox (for garment trimming, collars, boas, etc.), also includes flukes of cetaceans.
thread	THD	kg		

Description	Trade term code	Preferred unit	Alternative unit	Explanation
				thread – a processed long strand of multiple hairs or fibres of natural (e.g. plant or animal) origin, e.g. vicuna, guanaco
tooth	TEE	no.	kg	teeth – e.g. of whale, lion, hippopotamus, crocodile, etc.
timber	TIM	m3	kg	raw timber except saw-logs, sawn wood and transformed wood
transformed wood	TRW	m3	kg	defined by Harmonized System code 44.09: Wood (including strips, friezes for parquet flooring, not assembled), continuously shaped (tongued, grooved, v-jointed, beaded or the like) along any edges, ends or faces, whether or not planed, sanded or end-jointed.
trophy	TRO	no.		trophy – all the trophy parts of one animal if they are exported together: e.g. horns (2), skull, cape, backskin, tail and feet (i.e. ten specimens) constitute one trophy. But if, for example, the skull and horns are the only specimens of an animal that are exported, then these items together should be recorded as one trophy. Otherwise the items should be recorded separately. A whole stuffed body is recorded under ‘BOD’. A skin alone is recorded under ‘SKI’. Trade in ‘full mount’, ‘shoulder mount’ and ‘half mount’, along with any corresponding parts of the same animal exported together on the same permit, should be reported as ‘1 TRO’
trunk	TRU	no.	kg	elephant trunk. N.B.: An elephant trunk exported with other trophy items from the same animal on the same permit as part of a hunting trophy should be reported as ‘TRO’.
tusk (raw ivory)	TUS	no.	kg	substantially whole tusks, not worked. Includes tusks of elephant, hippopotamus, walrus, narwhal, but not other teeth - N.B. Whole carved tusks should be reported as carving – ivory (see ‘IVC’ above).
veneer sheets — rotary veneer — sliced veneer	VEN VEN	m3 m2	kg kg	thin layers or sheets of wood of uniform thickness, usually 6mm or less in thickness, usually peeled (rotary veneer) or sliced (sliced veneer), for use in making plywood, for veneering furniture, veneer containers, etc.

Description	Trade term code	Preferred unit	Alternative unit	Explanation
wax	WAX	kg		wax
wood product	WPR	no.	kg	manufactured wood products, including finished wood products such as furniture and musical instruments.

Unit of measure	Unit code
grams	g
kilograms	kg
liters	l
cubic centimeters	cm3
milliliters	ml
meters	m
square meters	m2
cubic meters	m3
number of specimens	no.
NB.: If no unit of measure is specified, the unit will be assumed to be number (e.g. of live animals).	

Annex VII

Standard references for nomenclature to be used pursuant to Article 5(4) of Regulation (EC) No 865/2006 to indicate scientific names of species in permits and certificates (as contained in Annex VIII Regulation (EC) No 865/2006, as amended by Regulation (EU) No 2023/966)[13]

FAUNA

13. This corresponds to Annex VIII to Regulation (EC) No 865/2006, the latest version of which should be checked for any recent amendments.

Order	Family	Taxon concerned	Taxonomic reference
MAMMALIA			
		All MAMMALIA taxa	Wilson, D. E. & Reeder, D. M. (ed.) (200 *Taxonomic and Geographic Reference*. T Baltimore (John Hopkins University Pres
		— with the exception of the recognition of the following names for wild forms of species (in preference to names for domestic forms): *Bos gaurus*, *Bos mutus*, *Bubalus arnee*, *Equus africanus*, *Equus przewalskii*, and	
		— with the exception of the taxa noted under the different Mammalia orders below	
ARTIODACTYLA	Bovidae	*Ovis* spp.	Valdez, R. & Weinberg, P.J. (2011). Spec pp. 727-739 in Wilson, D.E., & Mittermei *of the World. Vol.2. Hoofed Mammals.* Ly 978-84-96553-77-4.
	Camelidae	*Lama guanicoe*	Wilson, D. E. & Reeder, D. M. (1993): *Ma* *and Geographic Reference*. Second editi (Smithsonian Institution Press).
CARNIVORA	Felidae	Felidae spp.,	Kitchener A. C., Breitenmoser-Würsten C Wilting A., Yamaguchi N., Abramov A. V., W., Johnson W., Luo S.-J., Meijaard E., C Bruford M., Groves C., Hoffmann M., Nov revised taxonomy of the Felidae. The fina Force of the IUCN/SSC Cat Specialist Gr
	Mustelidae: Lutrinae	*Aonyx cinereus*	Larivière, S., & Jennings, A.P. 2009. Spe Otter *Aonyx cinereus*, p. 647 in Wilson, D *of the Mammals of the World. Vol.1. Carn* 978-84-96553-49-1.
CETACEA	Balaenopteridae	*Balaenoptera omurai*	Wada, S., Oishi, M. & Yamada, T. K. (200 baleen whales. – *Nature*, **426**: 278-281.
	Delphinidae	*Orcaella heinsohni*	Beasly, I., Robertson, K. M. & Arnold, P. W the Australian Snubfin Dolphin, *Orcaella* *Marine Mammal Science*, **21** (3): 365-40
		Sotalia fluviatilis	Caballero, S., Trujillo, F., Vianna, J. A., B Pedreros, S., Marmontel, M., Santos, M. (2007). Taxonomic status of the genus *S* (*Sotalia fluviatilis*) and "costero" (*Sotalia* *Science*, **23**: 358-386.
		Sotalia guianensis	

Order	Family	Taxon concerned	Taxonomic reference
		Sousa plumbea	Jefferson, T. A.& Rosenbaum, H. C. (201 dolphins (*Sousa* spp.), and description o *Mammal Science*, **30** (4): 1494-1541.
		Sousa sahulensis	
		Tursiops australis	Charlton-Robb, K., Gershwin, L.-A., Thor McKechnie, S. (2011). A new dolphin spe *australis* sp. nov., endemic to southern A e24047.
	Iniidae	*Inia araguaiaensis*	Hrbek, T., da Silva, V. M. F., Dutra, N., G (2014): A new species of river dolphin fro biodiversity. *PLoS ONE* **83623**: 1-12.
	Phocoenidae	*Neophocaena asiaeorientalis*	Jefferson, T. A. & Wang, J. Y. (2011). Rev (genus *Neophocaena*): The existence of *and their Ecology*, **4** (1): 3-16.
	Physeteridae	*Physeter macrocephalus*	Rice, D. W. (1998). Marine Mammals of t *Society of Marine Mammalogy* Special P Marine Mammalogy, Lawrence, Kansas.
	Platanistidae	*Platanista gangetica*	Rice, D. W. (1998). Marine Mammals of t *Society of Marine Mammalogy* Special P Marine Mammalogy, Lawrence, Kansas.
	Ziphiidae	*Mesoplodon hotaula*	Dalebout, M. L., Scott Baker, C., Steel, D Chivers, S. J., Perrin, W. F., Goonatilake C. W., Thompson, L., Jupiter, D. & Yama of *Mesoplodon hotaula* Deraniyagala 196 tropical Indo-Pacific. *Marine Mammal Sc*
PRIMATES	Aotidae	*Aotus jorgehernandezi*	Defler, T. R. & Bueno, M. L. (2007). *Aotu Primate Conservation*, **22**: 55-70.
		Aotus lemurinus (incl. *A. hershkovitzi*)	Mittermeier, R.A., Rylands, A.B., & Wilso *of the World: Volume 3. Primates.* Lynx E
	Atelidae	*Alouatta palliata* (incl. *A. coibensis*)	Ruiz-García, M., Cerrón, Á., Sánchez-Ca Castro, M., Gutierrez-Espeleta, G. & Sho Mantled Howler Monkey (*Alouatta palliat* geographical range by means of mitocho about the phylogeny of *Alouatta*. *Folia Pr*
		Ateles geoffroyi	Rylands, A. B., Groves, C. P., Mittermeie (2006). Taxonomy and distributions of Me Garber, M. Pavelka and L. Luecke (eds), *Mesoamerican Primates: Distribution, Ec* 79. Springer, New York, USA.
	Cebidae	*Callithrix manicorensis*	

Order	Family	Taxon concerned	Taxonomic reference
			Garbino, T. & Siniciato, G. (2014). The ta 1993) and *Mico manicorensis* (van Roos from Southwestern Brazilian Amazonia. 529-546. (for *Mico marcai* lumped with *M manicorensis* under CITES]
		Cebus flavius	Oliveira, M. M. de & Langguth, A. (2006) Monkey and designation of a neotype for Cebidae). – Boletim do Museu Nacional 1-16.
		Mico rondoni	Ferrari, S. F., Sena, L., Schneider, M. P. Marmoset, *Mico rondoni* sp. n., from sou *Journal of Primatology*, **31**: 693-714.
		Saguinus ursulus	Gregorin, R. & de Vivo, M. (2013). Reval (Primates: Cebidae: Callitrichinae). *Zoota*
		Saimiri collinsi	Merces, M. P., Alfaro, J. W. L., Ferreira, (2015). Morphology and mitochondrial ph separates two eastern squirrel monkey s *collinsi*. *Molecular Phylogenetics and Evo*
	Cercopithecidae	*Allochrocebus lhoesti*	Mittermeier, R.A., Rylands, A.B., & Wilso *of the World: Volume 3. Primates.* Lynx E
		Allochrocebus preussi	
		Allochrocebus solatus	
		Cercopithecus lomamiensis	Hart, J.A., Detwiler, K.M., Gilbert, C.C., E T.B., Vosper, A., Sargis, E.J. & Tosi, A.J. of *Cercopithecus* monkey endemic to the implications for conservation of Congo's
		Macaca leucogenys	Li, C., Zhao, C., & Fan, P.F. (2015). White A new macaque species from Modog, so *Primatology,* 77:753-766.
		Macaca munzala	Sinha, A., Datta, A., Madhusudan, M. D. new species from western Arunachal Pra *Journal of Primatology*, **26** (4): 977-989:
		Piliocolobus bouvieri	Mittermeier, R.A., Rylands, A.B., & Wilso *of the World: Volume 3. Primates.* Lynx E
		Piliocolobus epieni	
		Piliocolobus temminckii	
		Piliocolobus waldronae	
		Rhinopithecus strykeri	

Order	Family	Taxon concerned	Taxonomic reference
			Geismann, T., Lwin, N., Aung, S. S., Aun M. & Momberg, F. (2011). A new species genus *Rhinopithecus* Milne-Edwards, 18 Kachin State, Northeastern Myanmar. – 96-107.
		Rungwecebus kipunji	Davenport, T. R. B., Stanley, W. T., Sargi Machaga, S. J. & Olson, L. E. (2006). A r monkey, *Rungwecebus*: Morphology, eco phylogenetics. *Science*, **312**: 1378-1381.
		Trachypithecus villosus	Brandon- Jones, D., Eudey, A. A., Geissn Morales J. C., Shekelle, M. & Steward, C classification. *International Journal of Pri*
	Cheirogaleidae	*Cheirogaleus andysabini*	Lei, R., McLain, A.T., Frasier, C.L., Taylor A.L., Nash, S.D., Randriamampionona, F Jr., E.E. (2015): A new species in the genus *Cheirogaleus* (Cheirogaleidae). *Pr*
		Cheirogaleus lavasoensis	Thiele, D., Razafimahatratra, E. & Hapke genetic diversity in mouse lemurs and dw bias? *Molecular Phylogenetics and Evolu*
		Cheirogaleus chethi	Frasier, C.L., Lei, R., McLain, A.T., Taylor S.D., Randriamampionona, R., Groves, C (2016). A New Species ofDwarf Lemur (C *medius* Group) from the Ankarana and A Madagascar. *Primate Conservation* (30):
		Microcebus ganzhorni	Hotaling, S., Foley, M.E., Lawrence, N.M Rasoloarison, R. Kappeler, P.M., Barrett, (2016). Species discovery and validation primates: coalescent-based species delir lemurs". *Molecular Ecology*. 25 (9): 2029
		Microcebus manitatra	
		Microcebus gerpi	Radespiel, U., Ratsimbazafy, J. H., Raso Andriaholinirina, N., Rakotondravony, R., Randrianambinina, B. (2012). First indica mouse lemurs (*Microcebus* spp.) and evi from eastern Madagascar. *Primates*, **53**:
		Microcebus marohita	Rasoloarison, R. M., Weisrock, D. W., Yo P. M. [2013]. Two new species of mouse Eastern Madagascar. - *International Jour*
		Microcebus tanosi	
	Galagidae	*Paragalago cocos*	Masters, J.C., Génin, F., Couette, S., Gro Pozzi, L. (2017). A new genus for the eas - Zoological Journal of the Linnean Socie 10.1093/zoolinnean/zlw028
		Paragalago granti	

Order	Family	Taxon concerned	Taxonomic reference
		Paragalago orinus	
		Paragalago rondoensis	
		Paragalago zanzibaricus	
		Galagoides kumbirensis	Svensson, M.S., Bersacola,, E., Mills, M. Masters, J.C., Couette, S., Nekaris, K.A. dwarfs: a new species of galago (Primate *Phys. Anthropol*. 163 (1): 30-43. doi: 10.1
	Hominidae	*Pongo tapanuliensis*	Nater, A. Greminger, M.P., Nurcahyo, A., Desai, T., Groves, C.P., Pybus, M., Sona S.A., Askew, J., Davila-Ross, M., Fredrik Prado-Martinez, J., Goossens, B., Versch Marques, D.A., Pamungkas, J., Perwitas I.G., Gut, M., Orozco-Ter Wengel, P., Van M., Scally, A., Marques-Bonet, T., Meijaa behavioural, and genomic evidence for a *Biology* 27: DOI: 10.1016/j.cub.2017.09.0
	Hylobatidae	*Hylobates abbotti*	Mittermeier, R.A., Rylands, A.B., & Wilso *of the World: Volume 3. Primates.* Lynx E
		Hylobates funereus	
		Nomascus annamensis	Van Ngoc Thinh, Mootnick, A. R., Vu Ngo new species of crested gibbon from the c Vietnamese Journal of Primatology, **4**: 1-
	Indriidae	*Propithecus candidus*	Mittermeier, R.A., Rylands, A.B., & Wilso *of the World: Volume 3. Primates.* Lynx E
		Propithecus coronatus	
	Lemuriidae	*Eulemur flavifrons*	Mittermeier, R.A., Rylands, A.B., & Wilso *of the World: Volume 3. Primates.* Lynx E
	Lorisidae	*Nycticebus javanicus*	Mittermeier, R.A., Rylands, A.B., & Wilso *of the World: Volume 3. Primates.* Lynx E
		Nycticebus kayan	Munds, R.A., Nekaris, K.A.I. & Ford, S.M loris, with new species *Nycticebus kayan Primatology*, **75**: 46-56.
	Pitheciidae	*Cacajao melanocephalus*	Ferrari, S. F., Guedes, P. G., Figueiredo- Reconsidering the taxonomy of the Black *melanocephalus* group (Mammalia: Pithe Basin. *Zootaxa*, **3866** (3): 353-370.
		Cacajao oukary	
		Cheracebus spp.	Byrne, H, Rylands, A.B., Cameiro, J.C., A Messias, M., Groves, C.P., Mittermeier, F Sampaio, I. & Boubli, J.P. (2016). Phylog

Order	Family	Taxon concerned	Taxonomic reference
			monkeys (Callicebus): first appraisal of ta
		Plecturocebus spp.	evidence. *Frontiers in Zoology* 13 (10): 1 s12983-016-0142-4
		Pithecia cazuzai	Marsh, L.K. (2014). A taxonomic revision
		Pithecia chrysocephala	1804. *Neotropical Primates*, **21**: 1-163.
		Pithecia hirsuta	
		Pithecia inusta	
		Pithecia isabela	
		Pithecia milleri	
		Pithecia mittermeieri	
		Pithecia napensis	
		Pithecia pissinattii	
		Pithecia rylandsi	
		Pithecia vanzolinii	
		Plecturocebus grovesi	Boubli, J.P., Byrne, H., Da Silva, M.N.F., Goncalves, J., De Melo, F.R., Rylands, A S.D., Canale, G., Alencar, R De M., Ross I.P., Schneider, H & Hrbek, T. (2018). On (Primates: *Plecturocebus* Byrne et al., 20 Brazil. *Molecular Phylogenetics and Evo*
	Tarsiidae	*Tarsius lariang*	Merker, S. & Groves, C.P. (2006). *Tarsius* Western Central Sulawesi. *International*
		Tarsius spectrumgurskyae	Shekelle, M., Groves, C.P., Maryanto, I. &
		Tarsius supriatnai	species (Tarsiidae, Primates) and the bio *Conservation* 31: 61-70.
		Tarsius tumpara	Shekelle, M., Groves, C., Merker, S. & S tarsier species from Siau Island, North S
PROBOSCIDEA	Elephantidae	*Loxodonta africana*	Wilson, D. E. & Reeder, D. M. (1993). *Ma and Geographic Reference*. Second editi (Smithsonian Institution Press).
SCANDENTIA	Tupaiidae	*Tupaia everetti*	Roberts, T. E., Lanier, H. C., Sargis, E. J. phylogeny of treeshrews (Mammalia: Sca diversification in Southeast Asia. *Molecul* 358-372.

Order	Family	Taxon concerned	Taxonomic reference
		Tupaia palawanensis	Sargis, E. J., Campbell, K. K. & Olson, L craniometric variation in the treeshrews (faunal region. *Journal of Mammalian Evo*
AVES			
		Order- and family-level names for birds	Morony, J. J., Bock, W. J. & Farrand, J., *the World.* American Museum of Natural
		All bird species – with the exception of the taxa mentioned below	Dickinson, E.C. (ed.) (2003). The Howard Birds of the World. Revised and enlarged (Christopher Helm). in combination with (02.06.2005) to Howard & Moore Edition
APODIFORMES	Trochilidae	*Amazilia hoffmanni*	Jiménez, R.A. & Ornelas, J.F. (2016). His Mesoamerican hummingbird species con 2016; 4: e1556. doi:10.7717/peerj.1556.
		Amazilia saucerottei	
		Anthracothorax nigricollis iridescens	Del Hoyo, J. & Collar, N.J. (2014). *HBW Checklist of the Birds of the World. Volur* Barcelona. ISBN 978-84-96553-94-1.
		Phaethornis longirostris	
		Phaethornis mexicanus	
		Selasphorus calliope	
		Hylocharis leucotis	Dickinson, E.C. & Remsen, J.V. (eds.) (2 *checklist of the birds of the world. 4th ed* Eastbourne, UK. ISBN 978-0-9568611-0-
		Hylocharis xantusii	
		Campylopterus curvipennis	
		Campylopterus excellens	
		Phaeochroa cuvierii	
		Chlorostilbon lucidus	Pacheco, J. F. & Whitney, B. M. (2006). M of three Neotropical birds *Bull. Brit. Orn.*
		Eriocnemis isabellae	Cortés-Diago, A., Ortega, L. A., Mazarieg new species of *Eriocnemis* (Trochilidae) *Neotropical,* **18**:161-170.
		Oreotrochilus cyanolaemus	Sornoza-Molina, F., Freile, J.F., Nilsson, striking, critically endangered, new speci from the southwestern Andes of Ecuador 135(4), 1146-1171. https://doi.org/10.164
		Phaethornis aethopyga	Piacentini, V. Q., Aleixo, A. & Silveira, L. The validity and taxonomic status of *Pha* 1950 (Trochilidae). *Auk*,**126**: 604-612.

Order	Family	Taxon concerned	Taxonomic reference
CICONIIFORMES	Phoenicopteridae	*Phoenicopterus roseus*	Del Hoyo, J. & Collar, N.J. (2014). *HBW* *Checklist of the Birds of the World. Volu* Barcelona. ISBN 978-84-96553-94-1.
		Phoenicopterus ruber	
FALCONIFORMES	Accipitridae	*Accipiter hiogaster*	Del Hoyo, J. & Collar, N.J. (2014). *HBW* *Checklist of the Birds of the World. Volu* Barcelona. ISBN 978-84-96553-94-1.
		Accipiter novaehollandiae	
		Buteo nitidus	
		Buteo plagiatus	
		Buteogallus anthracinus	
		Buteogallus gundlachii	
		Buteogallus solitarius	
		Chondrohierax uncinatus	
		Chondrohierax wilsonii	
		Circus cyaneus	
		Circus hudsonius	
		Leptodon cayanensis	
		Leptodon forbesi	
		Pseudastur albicollis	
		Rupornis magnirostris	
		Spizaetus melanoleucus	
		Aquila hastata	Parry, S. J., Clark, W. S. & Prakash, V. (2 Indian Spotted Eagle *Aquila hastata*. *Ibis*
		Buteo socotraensis	Porter, R. F. & Kirwan, G. M. (2010). Stu status of the Socotra Buzzard. *Bulletin o* 116–131.
		Geranoaetus albicaudatus	Dickinson, E.C. & Remsen, J.V. (eds.) (2 *checklist of the birds of the world. 4th ed* Eastbourne, UK. ISBN 978-0-9568611-0
	Falconidae	*Falco peregrinus* (incl. *Falco pelegrinoides*)	Del Hoyo, J. & Collar, N.J. (2014). *HBW* *Checklist of the Birds of the World. Volu* Barcelona. ISBN 978-84-96553-94-1.

Order	Family	Taxon concerned	Taxonomic reference
		Micrastur mintoni	Whittaker, A. (2002). A new species of fo southeastern Amazonia and the Atlantic 421-445.
GRUIFORMES	Gruidae	*Antigone antigone*	Del Hoyo, J. & Collar, N.J. (2014). *HBW Checklist of the Birds of the World. Volur* Barcelona. ISBN 978-84-96553-94-1.
		Antigone canadensis	
		Antigone rubicunda	
		Antigone vipio	
		Leucogeranus leucogeranus	
	Rallidae	*Hypotaenidia sylvestris*	Del Hoyo, J. & Collar, N.J. (2014). *HBW Checklist of the Birds of the World. Volur* Barcelona. ISBN 978-84-96553-94-1.
PASSERIFORMES	Muscicapidae	*Garrulax taewanus*	Collar, N. J. (2006). A partial revision of t 85-112.
	Paradisaeidae	*Lophorina niedda*	Scholes, E. & Laman, T.G. (2018). Distin Superb Bird-of-Paradise *Lophorina niedd* status. *PeerJ* 6:e4621 https://doi.org/10.7
		Lophorina minor	
		Lophorina superba	
PSITTACIFORMES	Cacatuidae	*Cacatua goffiniana*	Roselaar, C. S. & Michels, J. P. (2004). N the naming of the formally undescribed C Indonesia (Psittaciformes: Cacatuidae). Z 183-196.
		Zanda baudinii	Del Hoyo, J. & Collar, N.J. (2014). *HBW Checklist of the Birds of the World. Volur* Barcelona. ISBN 978-84-96553-94-1.
		Zanda latirostris	
	Loriidae	*Trichoglossus haematodus*	Collar, N. J. (1997). Family Psittacidae (P Sargatal, J. (eds.), *Handbook of the Birds* 280-477. Barcelona (Lynx Edicions).
	Psittacidae	*Aratinga maculata*	Nemesio, A. & Rasmussen, C. (2009). Th 'Perriche jaune': two senior synonyms of 2005 (Aves: Psittaciformes). *Zootaxa*, **20**
		Eupsittula canicularis	Del Hoyo, J. & Collar, N.J. (2014). *HBW Checklist of the Birds of the World. Volur* Barcelona. ISBN 978-84-96553-94-1.
		Eupsittula nana	
		Myiopsitta luchsi	
		Myiopsitta monachus	

Order	Family	Taxon concerned	Taxonomic reference
		Psephotellus chrysopterygius	
		Psephotellus dissimilis	
		Psephotellus pulcherrimus	
		Psephotellus varius	
		Psittacara holochlorus	
		Pyrilia haematotis	
		Forpus modestus	Pacheco, J. F. & Whitney, B. M. (2006). M of three Neotropical birds. *Bulletin of the*
		Pionopsitta aurantiocephala	Gaban-Lima, R., Raposo, M. A. & Hofling of *Pionopsitta* (Aves: Psittacidae) endem
		Poicephalus robustus	Coetzer, W.G., Downs, C.T., Perrin, M.R. Systematics of the Cape Parrot (*Poicepha* and Conservation. *PLoS ONE*, 10(8): e0 journal.pone.0133376.
		Poicephalus fuscicollis	
		Psittacara strenuus	Dickinson, E.C. & Remsen, J.V. (eds.) (2 *checklist of the birds of the world. 4th edi* Eastbourne, UK. ISBN 978-0-9568611-0-
		Pezoporus flaviventris	
		Pezoporus wallicus	
		Psittacula intermedia	Collar, N. J. (1997) Family Psittacidae (P Sargatal, J. (eds.), *Handbook of the Birds* 280-477. Barcelona (Lynx Edicions).
		Pyrrhura griseipectus	Olmos, F., Silva, W. A. G. & Albano, C. (2 *griseipectus*, an overlooked endangered
		Pyrrhura parvifrons	Arndt, T. (2008). Anmerkungen zu einige einer neuen Art und zweier neuer Untera
STRIGIFORMES	Strigidae	*Ciccaba virgata*	Del Hoyo, J. & Collar, N.J. (2014). *HBW* *Checklist of the Birds of the World. Volum* Barcelona. ISBN 978-84-96553-94-1.
		Megascops asio	
		Megascops barbarus	
		Megascops guatemalae	
		Megascops kennicottii	
		Megascops seductus	

Order	Family	Taxon concerned	Taxonomic reference
		Megascops trichopsis	
		Psiloscops flammeolus	
		Glaucidium mooreorum	da Silva, J. M. C., Coelho, G. & Gonzaga extinction: a new species of pygmy owl (of northeastern Brazil. *Ararajuba*, **10**(2):
		Megascops gilesi	Krabbe, N.K. (2017). A new species of *M* Nevada de Santa Marta, Colombia, with owls. *Ornitología Colombiana* **16**: 1–27.
		Ninox burhani	Indrawan, M. & Somadikarta, S. (2004). *A* Gulf of Tomini, central Sulawesi, Indones *Club*, **124**: 160-171.
		Otus thilohoffmanni	Warakagoda, D. H. & Rasmussen, P. C. Sri Lanka. *Bulletin of the British Ornitholo*
		Strix butleri	Kirwan, G.M., Schweizer, M. & Copete, J
		Strix hadorami	confirm that Hume's Owl *Strix butleri* (A. description of an unnamed species (Aves *Zootaxa.* ***3904*** *(1): 28–50.*
REPTILIA			
CROCODYLIA &		Crocodylia & Rhynchocephalia except for the taxa listed below	Wermuth, H. & Mertens, R. (1996) (repri xvii + 506 pp. Jena (Gustav Fischer Verla
RHYNCHOCEPHALIA			
	Crocodylidae	*Crocodylus johnstoni*	Tucker, A. D. (2010). The correct name t crocodile, *Crocodylus johnstoni* [Krefft, 1
	Sphenodontidae	*Sphenodon* spp.	Hay, J. M., Sarre, S. D., Lambert, D. M., Genetic diversity and taxonomy: a reasse (*Sphenodon*: Reptilia). *Conservation Ge*
SAURIA		For delimitation of families within the Sauria	Pough, F. H., Andrews, R. M., Cadle, J. E D. (1998). *Herpetology.* Upper Saddle Ri
	Agamidae	*Ceratophora* spp.	Uetz, P., Freed, P., Aguilar, R. & Hosek, J
		Cophotis spp.	of Reptile taxa included in the Appendice the Parties (Geneva, August 2019). Spec
		Lyriocephalus spp.	Database: an online Reference, version species in the Families Agamidae, Gekk default/files/eng/resources/checklists/Ch pdf
		Saara spp.	Wilms, T. M., Böhme, W., Wagner, P., Lu phylogeny and taxonomy of the genus *U*

Order	Family	Taxon concerned	Taxonomic reference
			Squamata: Agamidae: Uromastycinae) –
		Uromastyx spp.	1845. *Bonner zool. Beiträge*, **56** (1-2): 55
	Anguidae	*Abronia* spp.	UETZ, P., FREED, P. & HŎSEK, J. (eds. species of the genus *Abronia.* Species in Database', version of 15 August 2016, ac AC29 Doc.35. at https://cites.org/sites/de A2.pdf
		Abronia morenica	Clause, A.G., Luna-Reyes, R. & Nieto-M of *Abronia* (Squamata: Anguidae) from a Mexico. *Herpetologica* 76(3): 330-343. ht D-19-00047
	Chamaeleonidae	Chamaleonidae spp. except the taxa mentioned below	Glaw, F. (2015). Taxonomic checklist of c Chamaeleonidae). *Vertebrate Zoology*, 6 www.senckenberg.de/files/content/forsch vz65-2/01_vertebrate_zoology_65-2_gla
		Brookesia antakarana (incl. *B . ambreensis*)	SCHERZ, M. D., GLAW, F., RAKOTOAR (2018): Polymorphism and synonymy of leaf chameleons from Montagne d'Ambre 259-268
		Calumma gehringi	PRÖTZEL, D., VENCES, M., SCHERZ, M Splitting and lumping: An integrative taxo chameleons in the *Calumma guibei* comp *gehringi* sp. nov. - *Vertebrate Zoology* 67
		Calumma juliae	PRÖTZEL, D., HAWLITSCHEK, O., SCH F. (2018): Endangered beauties: micro-C and external morphology reveal three ne *boettgeri* complex (Squamata: Chamaele *Society* zlx112, DOI: 10.1093/zoolinnean
		Calumma lefona	
		Calumma uetzi	
		Calumma roaloko	PRÖTZEL, D., LAMBERT, S. M., ANDRI K. A., SCHERZ, M. D. & GLAW, F. (2018 Madagascar: a new, distinctly colored sp (Squamata, Chamaeleonidae). - *Zoosyst*
		Kinyongia itombwensis	HUGHES, D. F., KUSAMBA, C., BEHAN Integrative taxonomy of the Central Africa *adolfifriderici* (Sauria: Chamaeleonidae), in the Albertine Rift. - *Zoological Journal*
		Kinyongia rugegensis	
		Kinyongia tolleyae	
		Kinyongia msuyae	MENEGON, M., LOADER, S. P., DAVEN C. R., MACHAGA, S. & TOLLEY, K.A. (2 Chamaeleonidae: *Kinyongia*) highlights t

Order	Family	Taxon concerned	Taxonomic reference
			Southern Highlands and Eastern Arc Mo *Herpetologica* 10 (2): 111-120.
	Cordylidae	Cordylidae spp. except the taxa mentioned below	Stanley, E. L., Bauer, A. M., Jackman, T. Between a rock and a hard polytomy: rap lizards (Squamata: Cordylidae). *Molecul* 53-70.
		Cordylus marunguensis	Greenbaum, E., Stanley, E. L., Kusamba Cha (2012). A new species of *Cordylus* (Plateau of south-eastern Democratic Re *Herpetology*, **61** (1): 14-39.
		Cordylus namakuiyus	STANLEY, E. L., CERÍACO, L. M. P., BA BRANCH, W. R. (2016): A review of *Cor* southwestern Angola, with the descriptio desert. - *Zootaxa* 4061 (3): 201–226.
	Eublepharidae	*Goniurosaurus* spp.	UETZ, P., FREED, P., AGUILAR, R., & H Checklist of Reptile taxa included in the Conference of the Parties (Geneva, Augu from The Reptile Database: an online Re accessed 5 May 2022 for species in the sites/default/files/eng/resources/checklis Checklist_Reptiles_Added_CoP18Ir_CIT
	Gekkonidae	*Cnemaspis psychedelica*	Grismer, L. L., Ngo, V. T. & Grismer, J. L. rock gecko (*Cnemaspis* Strauch 1887) fr
		Dactylonemis spp.	Nielsen, S. V., Bauer, A. M., Jackman, T. (2011). New Zealand geckos (Diplodacty Gondwanan lineage with trans-Tasman a *Evolution*, **59** (1): 1-22.
		Hoplodactylus spp.	
		Mokopirirakau spp.	
		Gekko gecko (incl. *Gekko reevesii*)	UETZ, P., FREED, P., AGUILAR, R., & H Checklist of Reptile taxa included in the Conference of the Parties (Geneva, Augu from The Reptile Database: an online Re 5 May 2020 for species in the Families A https://cites.org/sites/default/files/eng/res Checklist_Reptiles_Added_CoP18Ir_CIT
		Gonatodes daudini	POWELL, R., & R.W. HENDERSON. 20 of *Gonatodes* (Squamata: Gekkonidae) f 709-715
		Lygodactylus williamsi	Species information extracted from UETZ (2016). The Reptile Database, version of

Order	Family	Taxon concerned	Taxonomic reference
			See Annex 2 of AC29 Doc.35 at https://ci AC29-35-A2.pdf
		Nactus serpensinsula	Kluge, A.G. (1983). Cladistic relationship 465-475.
		Naultinus spp.	Nielsen, S. V., Bauer, A. M., Jackman, T. (2011). New Zealand geckos (Diplodacty Gondwanan lineage with trans-Tasman a *Evolution*, **59** (1): 1-22.
		Paroedura androyensis	UETZ, P., FREED, P., AGUILAR, R., & H Checklist of Reptile taxa included in the A Conference of the Parties (Geneva, Augu from The Reptile Database: an online Re 5 May 2020 for species in the Families A https://cites.org/sites/default/files/eng/res Checklist_Reptiles_Added_CoP18lr_CIT
		Paroedura masobe	Nussbaum, R.A. & Raxworthy, C.J. (1994 genus *Paroedura* Günther from Madagas 43-49.
		Phelsuma spp.	Glaw, F. & Rösler, H. (2015). Taxonomic genera *Phelsuma* Gray, 1825 and *Rhopt* Gekkonidae). *Vertebrate Zoology*, **65** (2)
		Rhoptropella spp.	
		Toropuku spp.	Nielsen, S. V., Bauer, A. M., Jackman, T. (2011). New Zealand geckos (Diplodacty Gondwanan lineage with trans-Tasman a *Evolution*, **59** (1): 1-22.
		Tukutuku spp.	
		Woodworthia spp.	
		Uroplatus spp. except for the taxa mentioned below	Raxworthy, C.J. (2003). Introduction to th Bernstead, J.P. (eds.), *The natural histor*
		Uroplatus fiera	RATSOAVINA, F. M., RANJANAHARISO P., MIRALLES, A. & VENCES, M. (2015) *ebenaui* group (Squamata: Gekkonidae) rainforests. – *Zootaxa* 4006 (1): 143-160
		Uroplatus fotsivava	RATSOAVINA, F. M., GEHRING, P.-S., S & VENCES, M. (2017): Two new species Tsaratanana mountain massif in northern
		Uroplatus kelirambo	
		Uroplatus finiavana	Ratsoavina, F. M., Louis jr., E. E., Crottin Vences, M. (2011). A new leaf tailed geck a preliminary assessment of molecular a the *Uroplatus ebenaui* group. *Zootaxa*, **3**
		Uroplatus giganteus	

Order	Family	Taxon concerned	Taxonomic reference
			Glaw, F., Kosuch, J., Henkel, W. F., Sour morphological variation of the leaf-tailed Madagascar, with description of a new gi
		Uroplatus pietschmanni	Böhle, A. & Schönecker, P. (2003). Eine 1805 aus Ost-Madagaskar (Reptilia: Squ Gekkonidae). *Salamandra*, **39** (3/4): 129
		Uroplatus sameiti	Raxworthy, C. J., Pearson, R. G., Zimkus R. A. & Ingram, C. M. (2008). Continenta biogeographic patterns of divergence in t Madagascar. *Journal of Zoology*, **275**: 42
	Iguanidae	Iguanidae spp. except for the taxa mentioned below	Hollingsworth, B. D. (2004). The Evolutio Relationships and a Checklist of Species *Conservation* (Alberts, A. C., Carter, R. L 19-44.. Berkeley (University of California
		Brachylophus bulabula	Keogh, J. S., Edwards, D. L., Fisher, R. N morphological analysis of the critically en diversity and a complex biogeographic hi *Royal Society B*, **363** (1508): 3413-3426.
		Brachylophus gau	FISHER, R. N., NIUKULA, J., WATLING, species of iguana *Brachylophus* Cuvier 1 Island, Fiji Islands. *Zootaxa* 4273(3): 407
		Conolophus marthae	Gentile, G. & Snell, H. (2009). *Conolophu* Iguanidae), a new species of land iguana archipelago. *Zootaxa*, **2201**: 1-10.
		Ctenosaura spp.	Iguana Taxonomy Working Group (2016) (Iguanidae; Iguaninae). In: *Iguanas: Biolo* Iverson, T.D. Grant, C .R. Knapp, and S. Conservation and Biology 11(Monograph
		Cyclura lewisi	Burton, F. J. (2004). Revision to Species Blue Iguana. *Caribbean Journal of Scien*
		Phrynosoma blainvillii	Montanucci, R.R. (2004). Geographic va *coronatum* (Lacertilia, Phrynosomatidae) archipelago. *Herpetologica*, **60**: 117.
		Phrynosoma cerroense	
		Phrynosoma wigginsi	
	Lanthanotidae	Lanthanotidae spp.	UETZ, P., FREED, P. & HŎSEK, J. (eds. information extracted from the Integrated online reference; and species information version of 15 August 2016, accessed 11 https://cites.org/sites/default/files/eng/co

Order	Family	Taxon concerned	Taxonomic reference
	Teiidae	Teiidae spp. except for the taxa mentioned below	Harvey, M. B., Ugueto, G. N. & Gutberlet morphology with a revised taxonomy and Squamata). *Zootaxa*, **3459**: 1–156.
		Tupinambis cryptus	MURPHY, J.C., JOWERS, M.J., LEHTIN PERES, A.K. JR, HENDRY, C.R. & PYR diversity in tegu lizards of the *Tupinambi* Teiidae) and the description of three new e0158542.doi:10.1371/journal.pone.0158
		Tupinambis cuzcoensis	
		Tupinambis zuliensis	
	Varanidae	Varanidae spp. except for the taxa mentioned below	Böhme, W. (2003). Checklist of the living Varanidae) *Zoologische Verhandelingen*, Koch, A., Auliya, M. & Ziegler, T. (2010.: lizards of the world (Squamata: Varanida 127-136.
		Varanus bangonorum	Welton, L. J., Travers, S. L., Siler, C. D. & taxonomy and phylogeny-based species lizards (*Varanus salvator* complex) with c species. *Zootaxa*, **3881** (3): 201–227.
		Varanus dalubhasa	
		Varanus samarensis	
		Varanus douarrha	WEIJOLA, V., KRAUS, F., VAHTERA, V., (2017): Reinstatement of *Varanus douar* comments on the zoogeography of monit Bismarck Archipelago, Papua New Guine 10.1071/ZO16038.
		Varanus indicus	
		Varanus semotus	WEIJOLA, V., DONNELLAN, S.C. & LIND monitor lizard (Reptilia, Squamata, *Varar* Mussau Island, Papua New Guinea. - Zo zookeys.568.6872.
		Varanus hamersleyensis	Maryan, B., Oliver, P. M., Fitch, A. J. & O morphological assessment of *Varanus pi* description of a new species from the so Australia. *Zootaxa*, **3768** (2): 139–158.
		Varanus nesterovi	Böhme, W., Ehrlich, K., Milto, K. D., Orlo desert monitor lizard (Varanidae: *Varanu* Zagros region (Iraq, Iran). *Russian Journ*
		Varanus sparnus	Doughty, P., Kealley, L., Fitch, A. & Donn species of *Varanus* from the Dampier Pe Western Australia. *Records of the Weste*
SERPENTES		Loxocemidae spp.	McDiarmid, R. W., Campbell, J. A. & Tou *World. A Taxonomic and Geographic Ref* Herpetologists' League).
		Pythonidae spp.	

Order	Family	Taxon concerned	Taxonomic reference
		Boidae spp.	
		Bolyeriidae spp.	
		Tropidophiidae spp.	
		Viperidae spp.	
		except for the retention of the genera *Acrantophis, Sanzinia, Calabaria, Lichanura,*	
		and except for the species mentioned below	
	Boidae	*Candoia paulsoni*	Smith, H. M., Chiszar, D., Tepedelen, K. the bevelnosed boas (*Candoia carinata* Serpentes). *Hamadryad*, **26** (2): 283-315
		Candoia superciliosa	
		Corallus batesii	Henderson, R. W., Passos, P. & Feitosa, Emerald Treeboa, *Corallus caninus* (Squ 572-582.
		Epicrates crassus	Passos, P. & Fernandes, R. (2008). Revi (Serpentes: Boidae). *Herpetological Mon*
		Epicrates assisi	
		Epicrates alvarezi	
		Epicrates cenchria	REYNOLDS, R.G., NIEMILLER, M.L., HE ROLÓN, A.R., & REVELL, L.J. (2013): M biogeography of West Indian boid snakes *and Evolution* 68(3):461-470. doi:10.101
		Epicrates maurus	
		Chilabothrus spp.	
		Eryx borrii	Lanza, B. & Nistri, A. (2005). Somali Boid Pythonidae (genus *Python* Daudin 1803) *Zoology*, **18** (1): 67-136.
		Eunectes beniensis	Dirksen, L. (2002). *Anakondas*. NTV Wis
	Colubridae	*Xenochrophis piscator*	Vogel, G. & David, P. (2012). A revision o *piscator* (Schneider, 1799) (Squamata: N
		Xenochrophis schnurrenbergeri	
		Xenochrophis tytleri	
	Elapidae	*Micrurus ruatanus*	McCranie, J. R. (2015). A checklist of the additions, comments on taxonomy, some further studies needed. *Zootaxa*, **3931** (3

Order	Family	Taxon concerned	Taxonomic reference
		Naja atra	Wüster, W. (1996). Taxonomic change ar Asiatic cobras (*Naja naja* species comple
		Naja kaouthia	
		Naja mandalayensis	Slowinski, J. B. & Wüster, W. (2000). A n (Burma). *Herpetologica*, **56**: 257-270.
		Naja oxiana	Wüster, W. (1996). Taxonomic change ar Asiatic cobras (*Naja naja* species comple
		Naja philippinensis	
		Naja sagittifera	
		Naja samarensis	
		Naja siamensis	
		Naja sputatrix	
		Naja sumatrana	
	Pythonidae	*Leiopython bennettorum*	Schleip, W. D. (2008). Revision of the ge Pythonidae) with the redescription of taxa the description of new species. *Journal o*
		Leiopython biakensis	
		Leiopython fredparkeri	
		Leiopython huonensis	
		Leiopython hoserae	
		Malayopython reticulatus	REYNOLDS, R.G., NIEMILLER, M.L, AN Life for the boas and pythons: Multilocus unprecedented taxon sampling. *Molecula* 213.
		Malayopython timoriensis	
		Morelia clastolepis	Harvey, M. B., Barker, D. B., Ammerman Systematics of pythons of the *Morelia an* with the description of three new species
		Morelia kinghorni	
		Morelia nauta	
		Morelia tracyae	
		Python bivittatus	Jacobs, H. J., Auliya, M. & Böhme, W. (2 Tigerpythons, *Python molurus bivittatus* Sulawesi. *Sauria*, **31**: 5-16.
		Python molurus	
		Python breitensteini	Keogh, J. S., Barker, D. G. & Shine, R. (2 systematics and biogeography of comme

Order	Family	Taxon concerned	Taxonomic reference
			curtus group) in Southeast Asia. *Biologic*
		Python brongersmai	113-129.
		Python kyaiktiyo	Zug, G.R., Grotte, S. W. & Jacobs, J. F. (python (Reptilia: Squamata). *Proceeding* *Washington*, **124** (2): 112-136.
		Python natalensis	Broadley, D. G. (1999). The southern Afri 1840, is a valid species. *African Herp Ne*
	Tropidophiidae	*Tropidophis* spp. except for the taxa mentioned below	Hedges, S.B. (2002). Morphological varia snake genus *Tropidophis* (Serpentes, Tro *History Museum, London (Zoology)*, **68** (
		Tropidophis celiae	Hedges, B. S., Estrada, A. R. & Diaz, L. western Cuba. *Copeia*, **1999** (2): 376-38
		Tropidophis grapiuna	Curcio, F. F., Sales Nunes, P. M., Suzart (2012). Taxonomy of the South American genus *Tropidophis* Bibron, 1840, with the Atlantic forest (Serpentes: Tropidophiidae 80-121.
		Tropidophis hendersoni	Hedges, B. S. & Garrido, O. (2002). A ne genus *Tropidophis* (Tropidophiidae) from *Herpetology*, **36**:157-161.
		Tropidophis morenoi	Hedges, B. S., Garrido, O. & Diaz, L. M. genus *Tropidophis* (Tropidophiidae) from *Herpetology*, **35**: 615-617.
		Tropidophis preciosus	Curcio, F. F., Sales Nunes, P. M., Suzart (2012). Taxonomy of the South American genus *Tropidophis* Bibron, 1840, with the Atlantic forest (Serpentes: Tropidophiidae 80-121.
		Tropidophis spiritus	Hedges, B. S. & Garrido, O. (1999). A ne genus *Tropidophis* (Tropidophiidae) from 436-441.
		Tropidophis xanthogaster	Domínguez, M., Moreno, L. V. & Hedges genus *Tropidophis* (Tropidophiidae) from Western Cuba. *Amphibia-Reptilia*, **27** (3)
	Viperidae	*Atheris desaixi*	UETZ, P., FREED, P. & HŎSEK, J. (eds. from *The Reptile Database*, version of 15 See Annex 2 of AC29 Doc.35 at https://c AC29-35-A2.pdf
		Bitis worthingtoni	

Order	Family	Taxon concerned	Taxonomic reference
		Montivipera wagneri	GARRIGUES, T., DAUGA, C., FERQUEL FAILLOUX, A-B. (2005): Molecular phylo related genera *Macrovipera* (Reuss, 192 comments about neurotoxic *Vipera aspis* *Phylogenetics and Evolution* 35(1): 35-47
		Protobothrops mangshanensis	SNETKOV, P.B. & ORLOV, N.L. (2017) F Snakes (Serpentes, Viperidae) Based on *Herpetology*, 24(1):22-34.
		Pseudocerastes urarachnoides	UETZ, P., FREED, P., AGUILAR, R., & H Checklist of Reptile taxa included in the A Conference of the Parties (Geneva, Augu from The Reptile Database. https://cites.o checklists/Checklist_Reptiles_Added_Co
TESTUDINES		Testudines order names	Wermuth, H. & Mertens, R. (1996) (repri xvii + 506 pp. Jena (Gustav Fischer Verla
		Species and family names – with the exception of the retention of the following names *Mauremys iversoni, Mauremys pritchardi, Ocadia glyphistoma, Ocadia philippeni, Sacalia pseudocellata*, and except for the taxa mentioned below	Fritz, U. & Havaš, P. (2007): Checklist of *Zoology*, **57** (2): 149-368. Dresden. ISSN
	Emydidae	*Graptemys pearlensis*	Ennen, J. R., Lovich, J. E., Kreiser, B. R. Genetic and morphological variation betw Turtle (*Graptemys gibbonsi*) in the Pearl a new species. *Chelonian Conservation*
	Geoemydidae	*Batagur affinis*	Praschag, P., Sommer, R. S., Mccarthy, one of the world's rarest chelonians, the
		Batagur borneoensis	Praschag, P., Hundsdörfer, A. K. & Fritz, endangered South and South-east Asian sequence variation (Testudines: Geoemy *Kachuga, Pangshura*). *Zoologica Scripta*
		Batagur dhongoka	
		Batagur kachuga	
		Batagur trivittata	
		Cuora bourreti	Spinks, P. Q., Thomson, R. C., Zhang, Y. Species boundaries and phylogenetic rel Asian box turtle genus *Cuora*. *Molecular* doi:10.1016/j.ympev.2012.02.014.
		Cuora picturata	
		Cyclemys enigmatica	

Order	Family	Taxon concerned	Taxonomic reference
			Fritz, U., Guicking, D., Auer, M., Sommer (2008). Diversity of the Southeast Asian leaves on its tree of life? *Zoologica Scrip*
		Cyclemys fusca	
		Cyclemys gemeli	
		Cyclemys oldhamii	
		Malayemys khoratensis	IHLOW, F., VAMBERGER, M., FLECKS, S., MEEWATTANA, P., DAWSON, J.E., K (2016). Integrative taxonomy of Southeas (Geoemydidae: *Malayemys*) reveals a ne introgression. *PLoS ONE* 11(4): e01531
		Mauremys reevesii	Barth, D., Bernhard, D., Fritzsch, G. & U. genus *Mauremys* (Testudines, Geoemyd disjunction or a taxonomic misconcept?
	Testudinidae	*Centrochelys sulcata*	Turtle Taxonomy Working Group [van Dij Shaffer, H. B. & Bour, R.]. (2014): Turtles checklist of taxonomy, synonymy, distribu 000.v7. *Chelonian Research Monograph* crm.5.000.checklist.v7.2014.
		Chelonoidis carbonarius	Olson, S .L. & David, N. (2014). The gen genus *Chelonoidis* Fitzinger, 1835 (Testu Biological Society of Washington, **126**(4)
		Chelonoidis denticulatus	
		Chelonoidis niger	
		Chersobius spp.	HOFMEYR, M.D., & BRANCH, W.R. (20 (Chelonia: Testudinidae): Two genera, no 2018:1-15. https://doi.org/10.1080/21564
		Gopherus evgoodei	Murphy, R. W., Berry, K. H., Edwards, T., (2011). The dazed and confused identity *agassizii* (Testudines, Testudinidae) with consequences for conservation. *Zookeys*
		Gopherus morafkai	
		Kinixys nogueyi	Kindler, C., Branch, W. R., Hofmeyr, M. D Harvey, J., Hauswaldt, J. S., Schleicher, Molecular phylogeny of African hinge-bac phylogeography and taxonomy (Testudin *Systematics and Evolutionary Research*
		Kinixys zombensis	
	Trionychidae	*Lissemys ceylonensis*	Praschag, P., Stuckas, H., Päckert, M., M DNA sequences suggest a revised taxon (*Lissemys* Smith, 1931) and the validity o (Testudines: Trionychidae). *Vertebrate Zo*
		Nilssonia gangeticus	Praschag, P., Hundsdörfer, A.K., Reza, A evidence for wild-living *Aspideretes nigri*

Order	Family	Taxon concerned	Taxonomic reference
			Asian softshell turtles (Reptilia: Trionychi
		Nilssonia hurum	*Scripta*, **36**:301-310.
		Nilssonia leithii	
		Nilssonia nigricans	
AMPHIBIA			
		Amphibia spp. except for the taxa listed below	Frost, D. R. (ed.) (2015). Taxonomic Che CITES Appendices and the Annexes of E extracted from *Amphibian Species of the reference*, an online reference, version 6 comments by the Nomenclature Speciali Annex 5 of CoP17 Doc. 81.1 at https://cit WorkingDocs/E-CoP17-81-01-A5.pdf
		Anura: Microhylidae:	FROST, D. R. (ed.) (2017). Species infor
		Dyscophus spp. and *Scaphiophryne* spp.;	*of the World: a taxonomic and geographi* 6.0, accessed 12 May 2017. See Annex default/files/eng/com/ac/29/E-AC29-35-A
		Telmatobiidae:	
		Telmatobius culeus	
	Bufonidae	*Sclerophrys channingi*	OHLER, A., & DUBOIS, A. (2016): The id toad *Sclerophrys capensis* Tschudi, 1838
		Sclerophrys superciliaris	
	Dendrobatidae	*Ameerega munduruku*	NEVES, M.DE O., DA SILVA, L.A., AKIE SANTANA, D.J. (2017): A new species o Dendrobatidae), from the southern Amaz 493.
		Ameerega shihuemoy	Serrano-Rojas, S.J., Whitworth, A., Villac R.C., Padial, J.M., & CHAPARRO, J.C. ((Anura: Dendrobatidae) from Manu provi with notes on its natural history, bioacous conservation status. *Zootaxa* 4221(1): 71
		Andinobates victimatus	Márquez, R., Mejía-Vargas, D., Palacios- Amézquita, A. (2017): A new species of *A* the Urabá region of Colombia. *Zootaxa* 4
		Epipedobates maculatus	GRANT, T., RADA, M., ANGANOY-CRIO P.H., JECKEL, A.M., MACHADO, D.J., & Phylogenetic systematics of dart-poison Dendrobatoidea). *South American Journa*
		Paruwrobates andinus	
		Paruwrobates erythromos	

Order	Family	Taxon concerned	Taxonomic reference
		Oophaga anchicayensis	POSSO-TERRANOVA, A. & ANDRÉS, J and conservation of harlequin poison frog DOI: 10.1111/mec.14803.
		Oophaga andresi	
		Oophaga solanensis	
	Hylidae	*Agalychnis lemur*	FROST, D.R. (2021): Amphibian Species Version 6.1. doi.org/10.5531/db.vz.0001
		Agalychnis terranova	RIVERA-CORREA, M., DUARTE-CUBID DAZA-R., J.M. (2013): A new red-eyed tr Phyllomedusinae) from middle Magdalen on its phylogenetic position. *Zootaxa* 363
CAUDATA	Salamandridae	*Echinotriton* spp.	FROST, D. R. (ed.) (2022). Taxonomic C Appendices at the 18th Meeting of the C 2019). Species information extracted fro online Reference, Version 6.1, accessed genera *Echinotriton* and 5 May 2022 for cites.org/sites/default/files/eng/resources Checklist_Amphibian_Added_CoP18_Cl
		Paramesotriton spp.	
		Tylototriton spp.	
ELASMOBRANCHII, ACTINOPTERI, COELACANTHI, and DIPNEUSTI			
		All fish species, except the taxa listed below	Eschmeyer, W.N. & Fricke, R. (eds.) (201 listed in the CITES Appendices and the A (Elasmobranchii, Actinopteri, Coelacanth genus *Hippocampus*). Information extrac reference, version update from 3 Februa at https://cites.org/sites/default/files/eng/ A6.pdf
		Elasmobranchii: Carcharhiniformes: Carcharhinidae: *Carcharhinus falciformis;*	ESCHMEYER, W. N., FRICKE, R., & VA extracted from *Catalog of Fishes: Genera* reference, version of 28 April 2017, acce Doc.35 at https://cites.org/sites/default/fil
		Lamniformes*: Alopiidae: Alopias* spp.;	
		Myliobatiformes: Myliobatidae: *Mobula* spp. except the taxa mentioned below;	
		Potamotrygonidae:	
		Potamotrygon spp.;	
		Actinopteri: Perciformes: Pomacanthidae: *Holacanthus clarionensis*	

Order	Family	Taxon concerned	Taxonomic reference
		Elasmobranchii: Lamniformes: Lamnidae: *Isurus* spp.;	ESCHMEYER, W.N., R. FRICKE, & R. V Checklist of Fish taxa included in the App Conference of the Parties. Species inform Genera, Species, References, an online accessed 5 May 2020. See Annex 3 of A default/files/eng/com/ac/31/Docs/E-AC31
		Rhinopristiformes: Glaucostegidae: *Glaucostegus* spp.;	
		Rhinidae spp.	
	Mobulidae	*Mobula alfredi*	WHITE, W. T. & P. R. LAST. (2016). DEV 741-749 IN LAST, P. R., W. T. WHITE, M STEHMANN & G. J. P. NAYLOR (EDS.). Comstock Publishing Associates. i-ix + 1
		Mobula birostris	
		Mobula hypostoma (incl. *M. rochebrunei*)	
	Rhinobatidae	Rhinobatidae spp.	LAST, P. R., SERET, B., & NAYLOR, G. J guitarfish, *Rhinobatos borneensis* sp. no classification in the order Rhinopristiform 4117(4), 451-475. DOI 10.11646/zootaxa
		Acroteriobatus andysabini	WEIGMANN, S., EBERT, D. A., & SÉRET the *Acroteriobatus leucospilus* species co *leucospilus* (Norman, 1926) and descript species of *Acroteriobatus* (Rhinopristiform 1-30.
		Acroteropbatus stehmanni	
		Acroteriobatus omanensis	LAST, P. R., HENDERSON, A. C., & NAY *omanensis* (Batoidea: Rhinobatidae), a n Zootaxa, 4144(2): 276-286.
		Pseudobatos buthi	RUTLEDGE, K. M. (2019): A new guitarfi Rhinobatidae) with key to the guitarfishes 451-463.
		Rhinobatos austini	EBERT, D. A., & GON, O. (2017): *Rhinob* guitarfish (Rhinopristiformes: Rhinobatida Zootaxa, 4276(2), 204-214.
		Rhinobatos manai	WHITE, W. T., LAST, P. R., & NAYLOR, G new species of guitarfish (Rhinopristiform Papua New Guinea. Zootaxa, 4175(6), 5
		Rhinobatos ranongensis	LAST, P.R., SERET, B., & NAYLOR, G.J. *ranongensis* sp. nov. (Rhinopristiformes: Bay of Bengal with a review of its northe 4576(2), 257–287.
SYNGNATHIFORMES	Syngnathidae	*Hippocampus* spp. except the taxa listed below	Lourie, S. A., Pollom, R. A. and Foster, S Seahorses *Hippocampus* Rafinesque 18

Order	Family	Taxon concerned	Taxonomic reference
			Taxonomy and biogeography with recom 4146 (1): 1-066.
		Hippocampus casscsio	ZHANG, Y-H., QIN, G., WANG, X., & LIN (Teleostei: Syngnathidae) from the South http://doi.org/10.11646/zootaxa.4170.2.1
		Hippocampus haema	HAN, S-Y., KIM, J-K., KAI, Y., & SENOU, *coronatus* complex: taxonomic revision, new species from Korea and Japan (Tele 139. doi: 10.3897/zookeys.712.14955
		Hippocampus japapigu	SHORT, G., SMITH, R., MOTOMURA, H (2018): *Hippocampus japapigu*, a new sp a redescription of *H. pontohi* (Teleostei, S 10.3897/zookeys.779.24799
ARACHNIDA			
ARANEAE	Theraphosidae	*Aphonopelma pallidum*	Platnick, N. (2006). Taxonomic Checklist Information extracted from *The World Sp* 6.5 as of 7 April 2006. [available at http:// spider_checklist.pdf]
		Brachypelma spp. except for the taxa mentioned below	
		Brachypelma albiceps	MENDOZA, J. & FRANCKE, O. (2019): S tarantulas *Brachypelma* (Araneae: Thera description of a new genus, and implicati *Journal of the Linnean Society*, 2019, XX zoobank.orgurn:lsid:zoobank.org:pub:E4
		Brachypelma smithi	
		Tliltocatl albopilosum	
		Tliltocatl epicureanum	
		Tliltocatl kahlenbergi	
		Tliltocatl sabulosum	
		Tliltocatl schroederi	
		Tliltocatl vagans	
		Tliltocatl verdezi	
		Poecilotheria spp., except the taxa mentioned below	WORLD SPIDER CATALOG. (2020). Tax in the Appendices at the 18th Meeting of information extracted from the World Spi History Museum Bern, online at http://ws 10.24436/2. See Annex 4 of AC31 Doc. 3 com/ac/31/Docs/E-AC31-37-A4.pdf
		Poecilotheria srilankensis	NANAYAKKARA, R. P., GANEHIARACH VISHVANATH, N., KARUNARATNE, M. I

Order	Family	Taxon concerned	Taxonomic reference
			spider in the genus *Poecilotheria* Pocock Belihuloya, Sri Lanka. *Journal of the Brit*
		Poecilotheria tigrinawesseli	SHERWOOD, D. (2019): Revised taxono *chaojii* Mirza, Sanap & Bhosale, 2014 (A Theraphosidae). *Arachnology* 18(1): 19-2
		Sericopelma angustum	GABRIEL, R., & LONGHORN, S.J. 2015
		Sericopelma embrithes	of *Brachypelma embrithes* (Chamberlin & *angustum* Valerio, 1980, with definition o female *Sericopelma* Ausserer, 1875 (Ara 104.
SCORPIONES	Scorpionidae	*Pandinus* spp. except for the taxa mentioned below	Lourenço, W. R. & Cloudsley-Thompson of the scorpions of the genus Pandinus T Washington Convention. *Biogeographica*
		Pandinus camerounensis	Lourenço, W. R. (2014). Further conside
		Pandinus roeseli	of *Pandinus imperator* (C. L. Koch, 1841) Cameroon (Scorpiones: Scorpionidae). *E Zoologischen Museum Hamburg*, **17** (19
INSECTA			
COLEOPTERA	Lucanidae	*Colophon* spp. except the taxa mentioned below	Bartolozzi, L. (2005). Description of two n (Coleoptera: Lucanidae). *African Entomo*
		Colophon deschodti	JACOBS, C.T., SCHOLTZ, C.H., & STRÜ
		Colophon eastmani	Colophon Gray (Coleoptera: Lucanidae): change. *Zootaxa* 4057(1): 135–142. Doi
		Colophon nagaii	
		Colophon switalae	
		Colophon struempheri	
LEPIDOPTERA	Papilionidae	*Achillides* spp. [only the species of the Philippines]	Page, M. G. P. & Treadaway, C. G. (2004 E. Bauer, and T. Frankenbach, Eds.). *Bu* Goecke & Evers, Keltern. 58 pp.
		Ornithoptera spp.	Matsuka, H. (2001). *Natural History of Bi*
		Trogonoptera spp.	Shuppan).(ISBN 4-9900697-0-6).
		Troides spp.	
HIRUDINOIDEA			
ARHYNCHOBDELLIDA	Hirudinidae	*Hirudo medicinalis*	

Order	Family	Taxon concerned	Taxonomic reference
		Hirudo verbana	Nesemann, H. & Neubert, E. (1999). Ann Acanthobdellea, Hirudine.. *Süßwasserfa* (Spektrum Akad. Verlag). ISBN 3-8274-0
BIVALVIA			
VENEROIDA	Tridacnidae	*Tridacna lorenzi*	WoRMS Editorial Board. 2018. Genus *Tr*
		Tridacna mbalavuana (incl. *T. tevoroa*)	
		Tridacna noae (incl. *T. ningaloo*)	
		Tridacna squamosina	
CEPHALOPODA			
	Nautilidae	Nautilidae spp.	Family, genus and species information ex Information Service (ITIS), an online refe https://cites.org/sites/default/files/eng/cor
ANTHOZOA & HYDROZOA		All CITES listed species	Taxonomic Checklist of all CITES listed C compiled by UNEP-WCMC 2012.

FLORA

Family	Taxon concerned	Taxonomic reference
AMARYLLIDACEAE, PRIMULACEAE	*Cyclamen,* *Galanthus* and *Sternbergia*	Davis, A.P. *et al*. (1999). *CITES Bulb Checklist*, compiled by the Royal Botanic Gardens, Kew, United Kingdom of Great Britain and Northern Ireland) as a guideline when making reference to the names of species of *Cyclamen* and *Galanthus* and *Sternbergia*
APOCYNACEAE	*Pachypodium* spp.	*CITES* Aloe *and* Pachypodium *Checklist* (U. Eggli *et al.,* 2001, compiled by Städtische Sukkulenten-Sammlung, Zurich, Switzerland, in collaboration with the Royal Botanic Gardens, Kew, United Kingdom of Great Britain and Northern Ireland) and its update: *An Update and Supplement to the* *CITES* Aloe *&* Pachypodium *Checklist* [J. M. Lüthy (2007), CITES Management Authority of Switzerland, Bern, Switzerland] as a guideline when making reference to the names of species of *Aloe* and *Pachypodium.*
	Hoodia spp.	*Plants of Southern Africa: an annotated checklist.* Germishuizen, G. & Meyer N. L. (eds.) (2003). Strelitzia 14: 150-151. National Botanical Institute, Pretoria, South Africa as a guideline when making reference to the names of species of *Hoodia.*
CACTACEAE	All *Cactaceae*, except *Aztekium valdezii*	*CITES Cactaceae Checklist* third edition (2016, compiled by D. Hunt) as a guideline when making reference to names of species of Cactaceae, and the amendments and updates outlined in *A Supplement to the CITES Cactaceae Checklist* Third Edition 2016 (Hunt, D. 2018). The checklist and its supplement can be found on the website of the Royal Botanic Gardens, Kew, UK at 'goo.gl/M26yL8'.
	Aztekium valdezii	Marcía, C.G.V., Vázquez, M.A.A. & Montes, S.A. (2013). A new species of *Aztekium* (Cactaceae) from Nuevo León, Mexico. *Xerophilia*, Special Issue 2: 3–25. Accessible at: https://cites.org/sites/default/files/eng/com/nc/flora/Aztekium-valdezii_Xerophilia-Special-Issue-No.-2-2013.pdf
CYCADACEAE, STANGERIACEAE and ZAMIACEAE	All Cycadaceae, Stangeriaceae and Zamiaceae.	The World List of Cycads: CITES and Cycads: Checklist 2013 (Roy Osborne, Michael A. Calonje, Ken D. Hill, Leonie Stanberg and Dennis Wm. Stevenson) in *CITES and Cycads a user's guide* (Rutherford, C. *et al.,* Royal Botanic Gardens, Kew. UK 2013), as a guideline when making reference to names of species of Cycadaceae, Stangeriaceae and Zamiaceae.
DICKSONIACEAE	*Dicksonia* species of the Americas.	*Dicksonia species of the Americas* (2003, compiled by Bonn Botanic Garden and the Federal Agency for Nature Conservation, Bonn, Germany) as a guideline when making reference to the names of species of *Dicksonia*.
DROSERACEAE, NEPENTHACEAE, SARRACENIACEAE	*Dionaea,* *Nepenthes* and *Sarracenia.*	*CITES Carnivorous Plant Checklist* (B. von Arx *et al*., 2001, Royal Botanic Gardens, Kew, UK) as a guideline when making reference to names of species of *Dionaea, Nepenthes* and *Sarracenia*.

Family	Taxon concerned	Taxonomic reference
EBENACEAE	*Diospyros* spp. – populations of Madagascar. (large tree species)	Lowry et al. 2022. *Large tree species of Diospyros from Madagascar*. Catalogue of Plants of Madagascar. http://legacy.tropicos.org/ProjectWebPortal.aspx?pagename=Diospyros_LT&projectid=17. Accessible at: https://cites.org/sites/default/files/eng/prog/timber/Ebenaceae_Diospyros_spp_populations_of_Madagascar_052022.pdf
EUPHORBIACEAE	Succulent species of *Euphorbia.*	*The CITES Checklist of Succulent* Euphorbia *Taxa (Euphorbiaceae),* Second edition (S. Carter and U. Eggli, 2003, published by the Federal Agency for Nature Conservation, Bonn, Germany) as a guideline when making reference to the names of species of succulent euphorbias.
LEGUMINOSAE	*Dalbergia* spp.	Cowell C., Williams E., Bullough L.-A., Grey J., Klitgaard B., Govaerts R., Andriambololonera S., Cervantes A., Crameri S., Lima, H.C., Lachenaud O., Li S.-J., Linares J.L., Phillipson P., Rakotonirina N., Wilding N., van der Burgt X., Vatanparast M., Barker A., Barstow M., Beentje H., and Plummer J. 2022. *CITES Dalbergia Checklist*. Commissioned by the CITES Secretariat. Royal Botanic Gardens, Kew, Surrey. Accessible in English, French and Spanish at: https://www.kew.org/science/our-science/science-services/UK-CITES/cites-resources
	Dipteryx spp.	Carvalho, C.S., de Fraga, N.C., Cardoso, D.B.O.S. and Lima, H.C. 2020. Tonka, baru and cumaru: Nomenclatural overview, typification and updated checklist of Dipteryx (Leguminosae). Taxon. 69(3), pp.582-592
	Guibourtia pellegriniana	Leonard, J. (1949). Notulae Systematicae IV (Caesalpiniaceae-Amherstieae africanae americanaeque). *Bulletin du Jardin Botanique de l'État a Bruxelles* 19(4): 383–408. [*Guibourtia pellegriniana* treated on p. 405]. https://doi.org/10.2307/3666831
	Paubrasilia echinata	Gagnon, E., Bruneau, A., Hughes, C.E., de Queiroz, L. P. & Lewis, G.P. (2016). *A new generic system for the pantropical* Caesalpinia *group (Leguminosae)* as a guideline making reference to the name of this taxon. This reference can be found on 'https://phytokeys.pensoft.net/articles.php?id=9203', with free access, and additional information on the taxon can be found at 'http://floradobrasil.jbrj.gov.br/reflora/listaBrasil'
	Platymiscium pleiostachyum	Bente B. Klitgraard (2005). *Platymiscium* (*Leguminosae*: *Dalbergieae*); biogeography, systematics, morphology, taxonomy and uses. Kew Bulletin. Vol. 60, No. 3 (2005), pp. 321 – 400 be used as a guideline when making reference to the name of this taxon. This reference is available online at "https://www.jstor.org/stable/4111062?seq=1#page_scan_tab_contents". Free access is possible to this reference.

Family	Taxon concerned	Taxonomic reference
	Pterocarpus spp.	Royal Botanical Gardens Kew, *Plants of the World Online*, (POWO, 2022) Accessible at: https://cites.org/sites/default/files/common/docs/Res/12_11/Pterocarpus_POWO_19-1-2023.pdf
LILIACEAE	*Aloe* spp.	*CITES* Aloe *and* Pachypodium *Checklist* (U. Eggli *et al.,* 2001, compiled by Städtische Sukkulenten-Sammlung, Zurich, Switzerland, in collaboration with the Royal Botanic Gardens, Kew, United Kingdom of Great Britain and Northern Ireland) and its update: *An Update and Supplement to the CITES* Aloe *&* Pachypodium *Checklist* [J. M. Lüthy (2007), CITES Management Authority of Switzerland, Bern, Switzerland] as a guideline when making reference to the names of species of *Aloe* and *Pachypodium.*
	Aloe spp. — supplement to existing standard reference	Klopper, R.R. 2021. *Supplement of aloe spp. names and synonyms*. Compiled by Dr. Ronell R Klopper, with input from the PC25 Nomenclature Working Group, 10 June 2021. PC25 Com. 5, Annex. Accessible at: https://cites.org/sites/default/files/eng/com/pc/25/com/E-PC25-Com-005.pdf
MELIACEAE	*Khaya* spp.	Royal Botanical Gardens Kew, *Plants of the World Online*, (POWO, 2022) Accessible at: https://cites.org/sites/default/files/common/docs/Res/12_11/Khaya_POWO_19-1-2023.pdf
ORCHIDACEAE	Orchidaceae - Appendix I listed orchids*:* *Paphiopedilum* spp.*, Phragmipedium* spp.*, Aerangis ellisii, Cattleya jongheana, Cattleya lobata, Dendrobium cruentum, Mexipedium xerophyticum, Peristeria elata* and *Renanthera imschootiana*	Govaerts, R., Caromel, A., Dhanda, S., Davis, F., Pavitt, A., Sinovas, P., & Vaglica, V. (2019). *CITES Appendix I Orchid Checklist*. Second Version, Royal Botanic Gardens, Kew, Surrey, and UNEP-WCMC, Cambridge. This reference should be used as a guideline when making reference to the names of *Paphiopedilum* spp.*, Phragmipedium* spp.*, Aerangis ellisii, Cattleya jongheana, Cattleya lobata, Dendrobium cruentum, Mexipedium xerophyticum, Peristeria elata* and *Renanthera imschootiana*. This reference can be found on the website of the Royal Botanic Gardens, Kew, UK at 'goo.gl/M26yL8'.
	Orchidaceae — Appendix II listed orchids: genera *Aerangis* (not *A. ellisii*), *Aerides*, *Angraecum, Bletilla, Brassavola, Bulbophyllum, Calanthe, Catasetum, Cattleya* (not *C. jongheana* or *C. lobata*), *Coelogyne, Comparettia, Cymbidium, Cypripedium, Dendrobium* (not *D. cruentum*), *Disa, Dracula, Encyclia, Laelia,*	Dhanda, S., Caromel A., Govaerts R., Pavitt A., Bullough, L.-A. & Hartley, H. 2022. *CITES Appendix II Orchid Checklist*. Royal Botanic Gardens, Kew, Surrey, and UNEP-WCMC, Cambridge. Accessible at: https://www.kew.org/science/our-science/science-services/UK-CITES/cites-resources

Family	Taxon concerned	Taxonomic reference
	Masdevallia, Miltonia, Miltoniopsis, Phalaenopsis, Pleione, Renanthera, Rhynchostylis, Rossioglossum, Vanda, and *Vandopsis*	
PALMAE	*Dypsis decipiens* and *Dypsis decaryi.*	Proposed Standard Reference for two CITES-listed palms endemic to Madagascar (CVPM 2016) based on the Catalogue of the Vascular Plants of Madagascar can be found as a pdf on the US Fish & Wildlife Service website. This is to be used as a guideline when making reference to *Dypsis decipiens* and *Dypsis decaryi*. See: http://www.fws.gov/international/
TAXACEAE	*Taxus* spp.	*World Checklist and Bibliography of Conifers* (A. Farjon, 2001) as a guideline when making reference to the names of species of *Taxus*.
ZYGOPHYLLACEAE	*Guaiacum* spp.	*Lista de especies, nomenclatura y distribución en el genero* Guaiacum. Davila Aranda. P. & Schippmann, U. (2006): Medicinal Plant Conservation 12:50 as a guideline when making reference to the names of species of *Guaiacum*.

Annex VIII

Codes for the indication in permits and certificates of the purpose of a transaction, referred to in Article 5(5) of Regulation (EC) No 865/2006 as amended by Regulation (EU) No 2015/870[14]

B Breeding in captivity or artificial propagation

E Educational. Where the transaction is for the purpose of use in educational and training programs or for display in an institution with a primarily educational remit.

G Botanical gardens

H Hunting trophies

L Law enforcement/judicial/forensic. Where the transaction is for the purpose of transfer of specimens between, or in support of, government agencies for law enforcement, judicial or forensic purposes.

M Medical (including bio-medical research). Where the transaction is for the purpose of medical or veterinary testing, diagnosis, treatment or research, including biomedical research.

N Reintroduction or introduction into the wild. Where the transaction is for the purpose of reinforcement and reintroduction within a species' natural and historical range, and for conservation introductions, comprising assisted colonization and ecological replacement, outside the species' natural and historical range.

14. This corresponds to point 1 of Annex IX to Regulation (EC) No 865/2006, the latest version of which should be checked for any recent amendments.

P Personal

Q Travelling exhibitions (sample collection, circus, menagerie, plant exhibition, orchestra or museums exhibition that is used for commercial display for the public).

S Scientific

T Commercial

Z Zoos. Where the transaction is for the purpose of movement of a specimen to a zoo and/or aquarium or by a zoo and/or aquarium for public display, care, reproduction, public education and awareness, scientific research, rescue, rehabilitation, or conservation.

Annex IX

Codes for the indication in permits and certificates of the source of specimens, referred to in Article 5(6) of Regulation (EC) No 865/2006 as amended by Regulation (EU) No 791/2012 and Regulation (EU) No 2015/870[15]

1. Codes for the indication in permits and certificates of the purpose of a transaction, referred to in Article 5(5)	
B	Breeding in captivity or artificial propagation
E	Educational. Where the transaction is for the purpose of use in educational and training programs or for display in an institution with a primarily educational remit.
G	Botanical gardens
H	Hunting trophies
L	Law enforcement/judicial/forensic. Where the transaction is for the purpose of transfer of specimens between, or in support of, government agencies for law enforcement, judicial or forensic purposes.
M	Medical (including bio-medical research). Where the transaction is for the purpose of medical or veterinary testing, diagnosis, treatment or research, including biomedical research.
N	Reintroduction or introduction into the wild. Where the transaction is for the purpose of reinforcement and reintroduction within a species' natural and historical range, and for conservation introductions, comprising assisted colonization and ecological replacement, outside the species' natural and historical range.
P	Personal
Q	Travelling exhibitions (sample collection, circus, menagerie, plant exhibition, orchestra or museums exhibition that is used for commercial display for the public).
S	Scientific
T	Commercial
Z	Zoos. Where the transaction is for the purpose of movement of a specimen to a zoo and/or aquarium or by a zoo and/or aquarium for public display, care, reproduction, public education and awareness, scientific research, rescue, rehabilitation, or conservation.

15. This corresponds to point 2 of Annex IX to Regulation (EC) No 865/2006, the latest version of which should be checked for any recent amendments.

2. Codes for the indication in permits and certificates of the source of specimens, referred to in Article 5(6)	
W	Specimens taken from the wild
R	Specimens of animals reared in a controlled environment, taken as eggs or juveniles from the wild, where they would otherwise have had a very low probability of surviving to adulthood
D	Specimens of animal species listed in Appendix I to the Convention that are bred in captivity for commercial purposes in operations included in the register of operations that breed Appendix I animal species for commercial purposes, which is maintained by the Secretariat of the Convention, as well as parts and derivatives thereof, and specimens of plant species listed in Appendix I to the Convention that are artificially propagated for commercial purposes in accordance with Chapter XIII of Regulation (EC) No 865/2006, as well as parts and derivatives thereof
A	Plants artificially propagated in accordance with Chapter XIII of Regulation (EC) No 865/2006, as well as parts and derivatives thereof
C	Animals bred in captivity in accordance with Chapter XIII of Regulation (EC) No 865/2006, as well as parts and derivatives thereof
F	Animals born in captivity, but for which the criteria of Chapter XIII of Regulation (EC) No 865/2006 are not met, as well as parts and derivatives thereof
I	Confiscated or seized specimens (4)
O	Pre-Convention
U	Source unknown (must be justified)
X	Specimens taken in the marine environment not under the jurisdiction of any State
Y	Plant specimens obtained from assisted production, which are considered not to be ‘artificially propagated’ as set out in Article 56, and also not considered to be taken from the wild because they are propagated or planted in an environment with some level of human intervention for the purpose of plant production

Annex X

Animal species referred to in Article 62(1) of Regulation (EC) No 865/2006[16]

Aves

ANSERIFORMES

Anatidae

Anas laysanensis

16. This corresponds to Annex X to Regulation (EC) No 865/2006, the latest version of which should be checked for any recent amendments.

Anas querquedula

Aythya nyroca

Branta ruficollis

Branta sandvicensis

Oxyura leucocephala

COLUMBIFORMES

Columbidae

Columba livia

GALLIFORMES

Phasianidae

Catreus wallichii

Colinus virginianus ridgwayi

Crossoptilon crossoptilon

Crossoptilon mantchuricum

Lophophorus impejanus

Lophura edwardsi

Lophura swinhoii

Polyplectron napoleonis

Syrmaticus ellioti

Syrmaticus humiae

Syrmaticus mikado

PASSERIFORMES

Fringillidae

Carduelis cucullata

PSITTACIFORMES

Psittacidae

Cyanoramphus novaezelandiae

Psephotellus dissimilis

Annex XI

Species and populations referred to in Article 57(3a) of Regulation (EC) No 865/2006 as inserted by Regulation (EU) No 2015/870

- *Ceratotherium simum simum*
- *Hippopotamus amphibius*
- *Loxodonta africana*
- *Ovis ammon*
- *Panthera leo*
- *Ursus maritimus*

Annex XII

Scientific Authorities and Scientific Review Group - Guidelines on their designation, duties and tasks under Regulation (EC) No 338/97 and Regulation (EC) No 865/2006[17]

1. Establishment and mandate

REGULATION (EC) No 338/97	
ESTABLISHMENT	
Article	**Duty**
Article 13.2	Each Member State shall designate of one or more SA with appropriate qualifications whose duties are separate from those of any designated management authority.
Article 17.1	SRG established consisting of representatives of each Member State's scientific authority or authorities and chaired by the Commission.
Article 17.2 (a)	SRG shall examine any scientific question relating to the application of the Regulation - in particular Arts 4.1(a), 4.2(a) and 4.6 - raised by the chairman either on his own initiative or at the request of the members of the SRG or the Committee.
Article 17.2(b)	Commission to convey the opinions of the SRG to the Committee.

17. Agreed on 22 May 2025

2. Import and export permit criteria

IMPORT/EXPORT PERMITS		
Article	**Duty**	**Relevant considerations**
ANNEX A-IMPORTS		
Article 4.1(a)(i)	The competent SA, after considering any opinion by the SRG, has advised that the introduction into the Community would not have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species.	Attachment A
Article 4.1(a)(ii)	The competent SA, after considering any opinion of the SRG, has advised that the introduction into the EU is taking place for: - the advancement of science, where the species proves to be the only one suitable and where no captive-bred specimens are available. - breeding or propagation purposes from which conservation benefits will accrue to the species. - research or education aimed at the preservation or conservation of the species. - other purposes which are not detrimental to the conservation of the species.	Attachment B
Article 4.1(c)	The competent SA is satisfied that the intended accommodation for a live specimen at the place of destination is adequately equipped to conserve and care for it properly.	Attachment C
Article 4.1(e)	The management authority (MA) is satisfied, following consultation with the competent SA, that there are no other factors relating to the conservation of the species which militate against issuance of the import permit.	Attachment D
Article 6	When a Member State rejects an application for a permit or certificate referred to in Articles 4, 5 and 10, in a case of significance in respect of the objectives of Regulation (EC) No 338/97, it shall immediately inform the Commission of the rejection and of the reasons for it.	Attachment A
ANNEX B-IMPORTS		
Article 4.2(a)	The competent SA, after examining available data and considering any opinions from the SRG, is of the opinion that the introduction into the EU would not have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species, taking account of current or expected levels of trade.	Attachment A
Article 4.2 (c)	The competent SA is satisfied that there are no other factors relating to the conservation of the species which militate against issuance of the import permit.	Attachment D
Article 6	When a Member State rejects an application for a permit or certificate referred to in Articles 4, 5 and 10, in a case of significance in respect of the objectives of Regulation (EC) No 338/97, it shall immediately inform the Commission of the rejection and of the reasons for it.	Attachment A

IMPORT/EXPORT PERMITS		
ANNEX A-EXPORTS		
Article 5.2 (a)	The competent SA has advised, in writing, that the capture or collection of the specimens in the wild or their export will not have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species.	Attachment A
Article 5.2 (d)	The MA is satisfied, following consultation with the competent SA that there are no other factors relating to the conservation of the species which militate against issuance of the export permit.	Attachment D
Article 6	When a Member State rejects an application for a permit or certificate referred to in Articles 4, 5 and 10, in a case of significance in respect of the objectives of Regulation (EC) No 338/97, it shall immediately inform the Commission of the rejection and of the reasons for it.	Attachment A
ANNEX B-EXPORTS		
Article 5.4	The competent SA has advised, in writing, that the capture or collection of the specimens in the wild or their export will not have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species.	Attachment A
Article 5.3	The MA is satisfied, following consultation with the competent SA that there are no other factors relating to the conservation of the species which militate against issuance of the export permit.	Attachment D
Article 6	When a Member State rejects an application for a permit or certificate referred to in Articles 4, 5 and 10, in a case of significance in respect of the objectives of Regulation (EC) No 338/97, it shall immediately inform the Commission of the rejection and of the reasons for it.	Attachment A
ANNEX C-EXPORTS		
Article 5.4	The MA is satisfied, following consultation with the competent SA, that the capture or collection of the specimens in the wild or their export will not have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species.	Attachment A
Article 5.3	The MA is satisfied, following consultation with the competent SA that there are no other factors relating to the conservation of the species which militate against issuance of the export permit.	Attachment D
ANNEX A-RE-EXPORT		
Article 5.3	The MA is satisfied, following consultation with the competent SA that there are no other factors relating to the conservation of the species which militate against issuance of the export certificate.	Attachment D
ANNEX B-RE-EXPORT		

IMPORT/EXPORT PERMITS		
Article 5.4	The MA is satisfied, following consultation with the competent SA that there are no other factors relating to the conservation of the species which militate against issuance of the export certificate.	Attachment D
ANNEX C-RE-EXPORT		
Article 5.4	The MA is satisfied, following consultation with the competent SA that there are no other factors relating to the conservation of the species which militate against issuance of the export certificate.	Attachment D

INTRA-EU MOVEMENT OF ANNEX A LIVE SPECIMENS		
Article 9.2 (b)	The competent SA at the place of destination shall be satisfied that the intended accommodation for a live specimen (of animal or plant) of: - a species listed in Annex A - source other than A, C, or D - moved within the Community from the location indicated in the import permit or in any certificate issued in compliance with this Regulation. is adequately equipped to conserve and care for it properly. An opinion is given to the Management Authority of the Member State in which the specimen is located before the movement (i.e. the authority that received the application for issuing a certificate for movement of live specimen).	Derogation of article 7.1 (a) of Regulation 338/97; Criteria in Article 54 and 56 of Regulation 865/2006; Attachment C

3. Confiscations

CONFISCATIONS		
Article	**Duty**	**Relevant considerations**
Article 16.3 (a)	The competent authority of the Member state of confiscation, following consultation with a SA shall place or otherwise dispose of the specimen under conditions which it deems to be appropriate and consistent with the purposes and provisions of the Convention and this Regulation	Attachment J

4. Commission import restrictions (Article 4.6)

SRG VIEW ON PROPOSED COMMISSION IMPORT RESTRICTIONS		
ANNEX A-IMPORTS		
Article 4.6 (a)	In consultation with the countries of origin concerned, and taking account of any opinion from the SRG, the Commission may establish general restrictions, or restrictions relating to certain countries of origin, because the introduction into the EU would have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species.	Attachment A
Article 4.6 (a)	In consultation with the countries of origin concerned, and taking account of any opinion from the SRG, the Commission may establish general restrictions, or restrictions relating to certain countries of origin, because there are other factors relating to the conservation of the species which militate against issuance of the import permit.	Attachment D
ANNEX B-IMPORTS		
Article 4.6 (b)	In consultation with the countries of origin concerned, and taking account of any opinion from the SRG, the Commission may establish general restrictions, or restrictions relating to certain countries of origin, because the introduction into the EU would have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species, taking account of current or expected levels of trade.	Attachment A
Article 4.6 (b)	In consultation with the countries of origin concerned, and taking account of any opinion from the SRG, the Commission may establish general restrictions, or restrictions relating to certain countries of origin, because there are other factors relating to the conservation of the species which militate against issuance of the import permit.	Attachment D
Article 4.6 (c)	In consultation with the countries of origin concerned, and taking account of any opinion from the SRG, the Commission may establish general restrictions, or restrictions relating to certain countries of origin, on live specimens because the species concerned has a high mortality rate during shipment or for which it has been established that they are unlikely to survive in captivity for a considerable proportion of their potential life span.	Attachment E
ANY SPECIES-IMPORTS		
Article 4.6 (d)	In consultation with the countries of origin concerned, and taking account of any opinion from the SRG, the Commission may establish general restrictions, or restrictions relating to certain countries of origin, on live specimens because it has been established that their introduction into the EU presents an ecological threat to wild species of fauna and flora.	Attachment F
Article 6	When a Member State rejects an application for a permit or certificate referred to in Articles 4, 5 and 10, in a case of significance in respect of the objectives of Regulation (EC) No 338/97, it shall immediately inform the Commission of the rejection and of the reasons for it.	Attachment A

5. Other provisions under Regulation (EC) No 865/2006

Provisions under Commission Regulation (EC) No 865/2006		
Article	**Duty**	**Relevant considerations**
Article 11.3	The MA of the Member State in which a specimen is located may, in consultation with the relevant SA, decide to issue transaction-specific certificates where it is considered that there are other factors relating to the conservation of the species that militate against the issuance of a specimen-specific certificate., specifically in relation to: - Certificates provided for in Article 8.3 of Regulation 338/97	Attachment I
Article 54	The SA should advise the MA that a specimen of an animal species is born and bred in captivity, specifically in relation to: - import of Annex A and B specimens (Article 4.1(a)(i) and (e), Art. 4.2(a) and (c), Art. 7.1 of Regulation 338/97). - export of Annex A and B specimens (Article 5.2(d) and Art. 5.4) - certificates (Art. 8.3 (d) of Regulation 338/97, Art. 48.1 (c)(d) and 59.2 of Regulation 865/2006).	Criteria in Article 54 of Regulation 865/2006. Attachment G
Article 56	The SA should advise the MA that a given specimen is artificially propagated, specifically in relation to: - import of Annex A species (Art. 7.1 of Regulation 338/97).	Criteria in Article 56 of Regulation 865/2006
Article 59.2	The exemption for specimens referred to in Article 8(3)(d) of Regulation (EC) No 338/97 shall be granted only if the applicant has satisfied the competent MA, the latter having consulted a competent SA, specifically in relation to: - exemption certificates issued to captive-bred and artificially propagated specimens (Article 54, 55 and 56 of EC Regulation 865/2006)	Criteria in Articles 54, 55 and 56 of Regulation 865/2006
Article 59.3	The exemption for specimens referred to in Article 8(3)(e), (f) and (g) of Regulation (EC) No 338/97 shall be granted only if the applicant has satisfied the competent MA, the latter having consulted with a competent SA, specifically in relation to: - imports of Annex A specimens (Article 4.1(a)(ii) - certificates issued to Annex A specimens under Article 10 of Council Regulation 338/97 to allow commercial use imports of Annex B specimens subject to an Article 4(6) import restriction (Article 71.4(b) EC Regulation 865/2006	Attachment B
Article 60	A derogation from the prohibition laid down in Article 8(1) thereof may be granted to scientific institutions, approved by a MA in consultation with a SA, by the issue of a certificate covering all specimens in their collection of species listed in Annex A to that Regulation, that are intended for captive breeding or artificial propagation from which conservation benefits will accrue to the species, or for research or education aimed at the preservation or conservation of the species.	Attachment H
Article 70	Any draft amendments to Annexes B or D to Regulation (EC) No 338/97 pursuant to Article 3(2)(c) or (d), or Article 3(4)(a) of that Regulation shall be submitted by the Commission to the SRG, referred to in Article 17 of that Regulation, for advice before they are submitted to the Committee.	Criteria in Article 3 of Regulation 338/97

6. Attachment A — Non-detriment findings / SRG opinions

CONTEXT

Advise that introduction into, or export from, the EU would not have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species.
Article 4.1(a)(i) - Annex A imports
Article 4.2(a) - Annex B imports
Article 5.2 (a) - Annex A exports
Article 5.4 - Annex B exports
Article 4.6 (a) - Annex A Commission import restrictions
Article 4.6 (b) - Annex B Commission import restrictions

In accordance with Articles III and IV of the Convention, export permits for specimens of species included in Appendices I and II shall be granted only when a SA of the State of export has advised that such export will not be detrimental to the survival of the species (following a determination known as a 'non-detriment finding').

Article III.3.a *The import of any specimen of a species included in Appendix I shall require.. a SA of the State of import has advised that the import will be for purposes which are not detrimental to the survival of the species involved.*

IV.3 "*a SA in each Party shall monitor both the export permits granted by that State for specimens of species included in Appendix II and the actual exports of such specimens. Whenever a SA determines that the export of specimens of any such species should be limited in order to maintain that species throughout its range at a level consistent with its role in the ecosystems in which it occurs and well above the level at which that species might become eligible for inclusion in Appendix I, the SA shall advise the appropriate MA of suitable measures to be taken to limit the grant of export permits for specimens of that species.*"

IV.4. *The import of any specimen of a species included in Appendix II shall require the prior presentation of either an export permit or a re-export certificate.*

Resolution Conf. 16.7 (Rev. CoP17) on Non-detriment findings recommends that a NDF for an Appendix-I or -II species is the result of a science-based assessment that verifies whether a proposed export is detrimental to the survival of that species or not. NDFs should consider whether the species would be maintained throughout its range at a level consistent with its role in the ecosystems in which it occurs.

When making an NDF, SA's should consider the volume of trade (legal and illegal) relative to the vulnerability of the species (intrinsic and extrinsic factors that increase the risk of extinction of the species) as well as the origin of the species (source code W, X and Y warrant a different approach than source code C, D, A, F or R).

Where Article 8 applies, specimens of species listed in Annex A that have been born and bred in captivity or artificially propagated shall be treated in accordance with the provisions applicable to specimens of species listed in Annex B. (Art 7.1).

The non-detriment finding should be based on proportionate resource assessment methodologies outlined in Resolution Conf. 16.7 (Rev CoP17), which may include, but are not limited to, consideration of:

Species characteristics

- life history characteristics
- habitat adaptability

- migratory/shared populations
- risk of mortality after capture and before export (for species where the trade is primarily in live specimens)

Biological and conservation status

- abundance
- present/past distribution
- population structure, status and trend (in harvest area, nationally and internationally)
- conservation status (in harvest area, nationally and internationally)

quality of data

genetic status/diversity

Harvest characteristics

types

volumes

segment of population (e.g. age, sex)

trends (historical and current levels and patterns)

data quality

conversion characteristics

(irreversible) effects of the harvest on the habitat

Management regime

- aims of management regime
- measures currently in place / proposed
- adaptive management strategies
- levels of compliance
- tenure
- effectiveness
- % harvested vs. effectively protected

Conservation benefits

- species/habitat
- other conservation benefits
- local benefits
- other benefits

Threats

intrinsic and extrinsic factors

Monitoring programmes

- population, including monitoring of proxy indicators
- off take (including market make-up and demand)
- feedback (results are being used to inform and adapt management)

Current or expected anticipated trade levels (imports of Annex B species only)

- past trade history
- volume of legal and illegal trade (known, inferred, projected, estimated)
- existence of any voluntary export quotas set by exporting countries and compliance with these.
- predicted or perceived demand in the EU
- level of demand for replacement specimens of those species with a poor survival rate in captivity

The sources of information that may be considered when making a non-detriment finding include, but are not limited to:

1. relevant scientific literature concerning species biology, life history, distribution and population trends.
2. details of any ecological risk assessments conducted.
3. scientific surveys conducted at harvest locations and at sites protected from harvest and other impacts.
4. management plans of the species for respective harvest areas.
5. relevant knowledge and expertise of local and indigenous communities.
6. consultations with relevant local, regional and international experts.
7. national and international trade information such as that available via the CITES trade database maintained by UNEP-WCMC, publications on trade, local knowledge on trade and investigations of sales at markets or through the Internet for example.

Further reference material is available, but is not limited to:

- Scientific Authorities are recommended to consider the information included in the Annex to document AC26/PC20 Doc. 8.4 and any subsequent updates available on the CITES websiteas reference material when making NDF's.
- International Expert Workshop on CITES Non-Detriment Findings, Cancun, Mexico,November 2008
- Workshop on Non-Detriment Findings (NDFs), 04-08 December 2023, Nairobi, Kenia
- Referenceguideproduced by the European Commission and TRAFFIC to the *Wildlife Trade Regulations.*

- Resolution Conf 16.7 encourages Parties to share their non-detriment findings and the methodology that they use. Member States already share documentation to support their opinions and may wish to consider whether they have further material that could be provided to non-EU Parties in support of capacity development.
- Wolf, Daniel; Oldfield, Thomasina E.E.; McGough, Noel (2024): A nine-step process to support CITES Scientific Authorities making science-based non-detriment findings (NDFs) for timber/tree species listed in CITES Appendix II: Version 4.0. BfN-Schriften 706. https://doi.org/10.19217/skr706.
- Wolf, Daniel; Oldfield, Thomasina E.E.; Schippmann, Uwe; McGough, Noel; Leamann, Danna J. (2025): A nine-step process to support CITES Scientific Authorities making science-based non-detriment findings (NDFs) for species listed

in CITES Appendix II: Version 4.0. BfN-Schriften 716. https://doi.org/10.19217/skr716.

CITES electronic Non-Detriment finding portals for sharks and rays (e-NDF) and for sea cucumbers (e-NDF).

SRG opinions and consultation process

The introduction into the EU of Annex A or B species requires that any opinions formed by the SRG are taken into consideration by individual EU Member States (MS) when assessing import applications, unless new information has become available to be taken into consideration, as per **Article 4** of Council Regulation (EC) No. 338/97.

For **Annex A** species, *the import permit may be issued only when the competent scientific authority, after considering any opinion by the Scientific Review Group, has advised that the introduction into the Community:*

"(i) would not have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species.

(ii) is taking place:

— for one of the purposes referred to in Article 8(3)

1. *are required under exceptional circumstances for the advancement of science or for essential biomedical purposes),*
2. *are intended for breeding or propagation purposes from which conservation benefits will accrue to the species concerned and*
3. *are intended for research or education aimed at the preservation or conservation of the species, or*

— for other purposes which are not detrimental to the survival of the species concerned."

For **Annex B** species, *the import permit may be issued only when the competent scientific authority, after examining available data and considering any opinion from the Scientific Review Group, is of the opinion that the introduction into the Community would not have a harmful effect on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species, taking account of the current or anticipated level of trade.* ***This opinion shall be valid for subsequent imports as long as the abovementioned aspects have not changed significantly.***

During regular monitoring of species/country combinations or when advising on a particular application, it is the task of the respective SA to decide whether these aspects have significantly changed or not.

There are **three formalised types of SRG opinions**:

Positive: Based on the available information and given current or anticipated levels of trade, introduction into the EU **would not have a harmful effect** on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species.

Negative: Based on the available information and given current or anticipated levels of trade, introduction into the EU **is likely to have a harmful effect** on the conservation status of the species or on the extent of the territory occupied by the relevant population of the species. This type of opinion may be formalized as an **import suspension** after consultation with the SRG and in line with the appropriate adoption procedure (Suspensions Regulations). A consultation with the relevant range State is undertaken to inform the range state about the reasons of the negative opinion so that the range state has the possibility to take remedial action, which may result in a change of opinion.

SRG Referral: The SRG sees the necessity for a careful and coordinated consideration of import applications among MS as the species is of conservation concern but there is insufficient information for the SRG to be able to form a general positive or negative opinion for this species/country combination, or insufficient clarity among the MS how to evaluate the import concerned with the level of information available. The SRG will assess applications for species under SRG referral received by MS on a case-by-case basis and recommend a specific opinion for each application. The use of this type of opinions should be limited, as far as possible, to species which are **only rarely in trade**.

SRG opinions generally apply to imports of specimens of a species from a given country or introduction from the sea as specified by that particular opinion. Opinions on imports of specimens of a species from a given country may include specific conditions such as the origin from a specific population, ecosystem, concession, forest management units, etc. and/or further specific conditions such as size or harvest quota restrictions. Therefore, different opinions may apply for imports of specimens of a species from a given country.

If the SRG has not previously formed or is not able to form an opinion (**no SRG opinion is in place**), the assessment under Article 4 must be exclusively carried out by the SA of the importing MS in the exercise of their legal duties under Council Regulation (EC) 338/97.

The SA may wish to consult with or inform the SRG during the advice process on import applications for a given species / country.

In addition, *“when a Member State rejects an application for a permit or certificate in a case of significance in respect of the objectives of this Regulation, it shall immediately inform the Commission of the rejection and of the reasons for rejection.”* (Article 6 of Council Regulation (EC) 338/97).

Where no SRG opinion is in place and the Scientific Authority of the Member State that has reviewed an application issued a **negative advice,** the latter will share this information with the Commission.

To ensure a uniform application of the EU Wildlife Trade Regulations, the following options are possible, depending on the case-by-case assessment by the SA and may also include deviations from current opinions (i.e. the SA of the MS gives a positive advice for a case where a negative opinion is in place or the SA of the MS gives a negative advice for a case where a positive opinion is in place). They apply to cases presented at an SRG meeting as well as to written procedures:

1. SA informs the Commission about its assessment and the decision on a specific application and the Commission informs the SRG, or
2. SA informs the Commission about its assessment **and** asks for a consultation of the SRG on a suggested SRG opinion for a given species country combination

3. SA asks the Commission to consult the SRG for its view on the SA advice on the specific application prior to decision on the application,
4. SA asks the Commission to consult the SRG for its view on the SA advice on the specific application **and** at the same time asks for a consultation on a suggested SRG opinion.

Even if a SA does not request an SRG opinion for a given species/ country combination, another member of the SRG or the Commission can suggest such an opinion, either at an SRG meeting or in writing.

Where no SRG opinion is in place and the SA of a MS that has reviewed an application issued a **positive advice**, the SA may wish to share their assessment according to the same scenarios as described above.

Whilst decisions on imports for source code F (**captive-born**), C (**captive-bred**) or R (**Ranched**) specimens may require a case-by-case assessment based on the relevant facility, it may be appropriate to form a country-level opinion based on whether the following criteria are met:

1. there is a published quota (source code F, C or R),
2. details of all the breeding operations contributing to that quota have been provided,
3. the off-take level of wild specimens that are introduced into breeding facilities are determined not to be detrimental,
4. production levels overall are biologically feasible,
5. the founder stock for the facilities concerned were acquired without detriment to the wild population.

The SRG can also issue opinions based on the **review of its own opinions** (for instance, long standing import suspensions or cases in consultation) or based on CITES recommendations, such as results from *Review of Significant Trade in Specimens of Appendix-II species,* Resolution Conf. 12.8 (Rev. CoP18). Opinions formed, confirmed, or removed by the SRG are indicated in the **short summary of conclusions (SoC) of the SRG**.

Tracking

For species/country combinations that are of particular conservation concern but for which there is insufficient information for the SRG to be able to form a positive or negative opinion and where the SRG referral is not feasible due to a high volume of trade, the SRG can decide to track the advices issued by individual Scientific Authorities in support of its role in developing opinions to ensure that the trade level does not have a harmful effect on the conservation of the species or on the extent of the territory occupied by the relevant population of the species. The SAs will include relevant details of the applications and the advice given in a central database/ file that is accessible to SRG Members. Such cases are referred to as “**Under tracking”** in the short summary of conclusions (SoC) of the SRG and in Species +. The information included in the central database/file will be periodically reviewed by the SRG to assess whether any other SRG decision may be appropriate.

Consultations with range States

In some cases, the SRG might require additional information or confirmation from range states to adopt, confirm or change a general opinion. Such cases are referred to as “**in consultation**” in the short summary of conclusions (SoC) of the SRG and in Species +. In such cases, pending the response from range states, a **current positive, or negative or SRG referral opinion for the species/ country combination remains applicable**, where appropriate.

If the SRG has not previously formed an opinion (**no opinion** in place) for a species/country combination “in consultation”, the assessment of respective imports under Article 4 is to be carried out by the SA of the importing MS in the exercise of their legal duties under the Council Regulation (EC) 338/97.

If no sufficient response is received from the range state **after one year from the start of the consultation process**, the SRG should maintain or proceed with the adoption, the change or the removal of an opinion, considering the precautionary principle.

“In consultation” can also be used for cases where additional information is requested which may not be essential for the current SRG opinion.

Discussed in the SRG

The SRG also keeps record of those taxon / country combinations, which have been discussed, but no opinion has been formed or in case an opinion was in place before and it has neither been confirmed nor was it withdrawn.

Such cases are referred to as “**Further taxon / country combinations discussed by the SRG**” in the SoC and as “**discussed in the SRG**” in Species +.

Verification of current opinions

General opinions formed through written procedures are initially communicated by the Commission to the MAs and SAs of all Member States. They are also included in the list of opinions formed at the following SRG meetings and circulated in summary of conclusions after each meeting.

These documents are also available on CIRCABCand in the database maintained by UNEPWCMC: www.speciesplus.net.

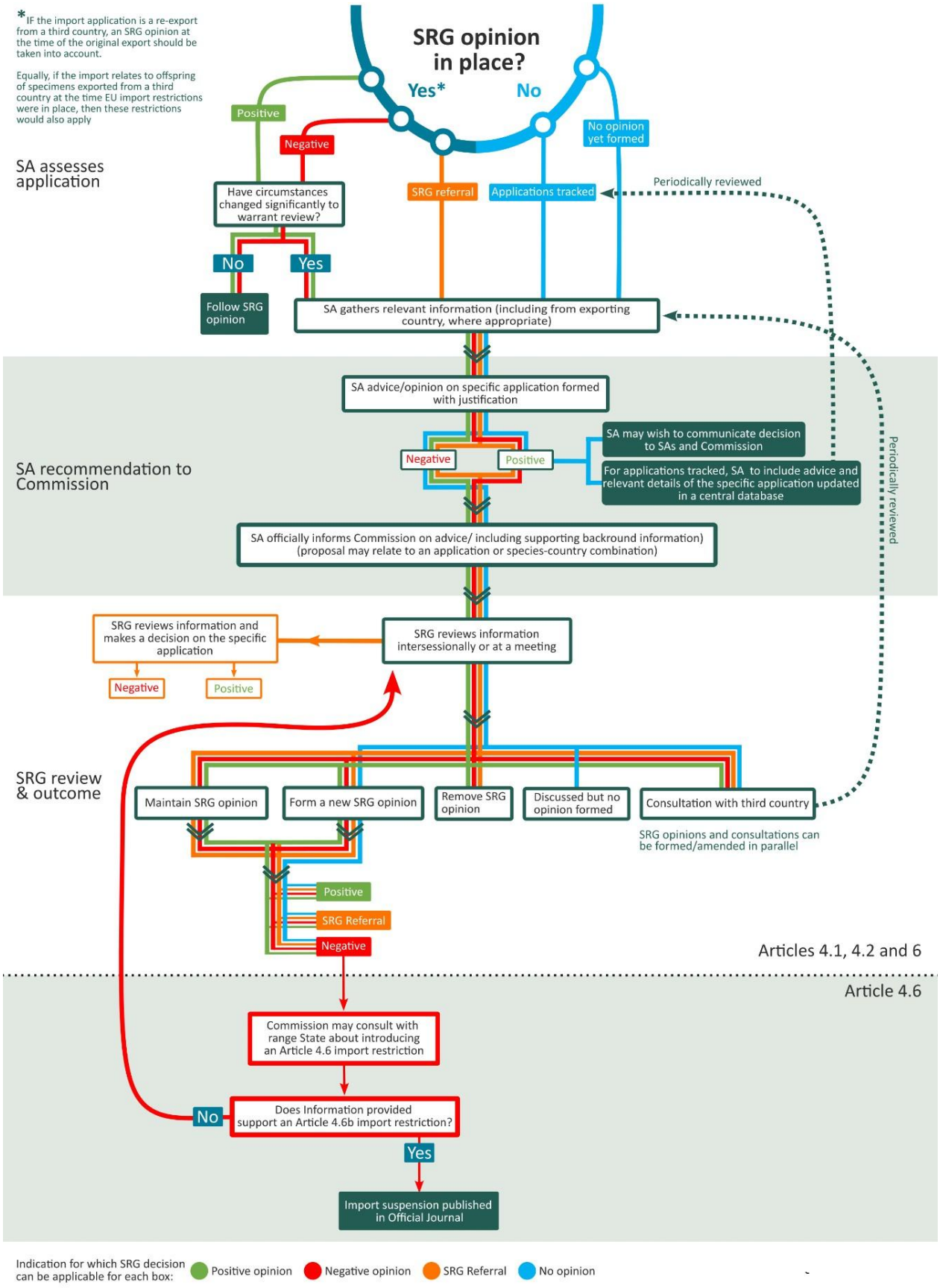
Applicability of opinions

Even if a negative opinion or an SRG referral is in place, imports are possible under certain circumstances: the same applies to suspensions:

- Article 7 of Council Regulation (EC) No. 338/97 introduces derogation for cases such as specimens in transit, personal and household goods, and specific transactions between scientific institutions.
- Articles 71.2 and 71.4 of Commission Regulation (EC) No. 865/2006 define the circumstances under which import restrictions put in place by the Commission in accordance with the relevant procedure and after taking into account of any opinion from the SRG may not apply.

Further, when it comes to re-exports to the EU, the responsible SA may take into account whether the original export of the specimen concerned to a third country took place before the SRG opinion was adopted and if imports of the same species-country combination were allowable to the EU at that time. In that case, a current negative opinion, or SRG Referral may not apply.

Figure 17: Import permit requests – process for Annex A and B taxa



7. Attachment B — Purpose codes

CONTEXT

Advise on the purposes of the introduction into the EU to ensure that they are either one of those specified in Council Regulation 338/97 or another which is not detrimental to the survival of the species concerned. *Article 4.1(a)(ii) - Annex A imports (source code W)*

The purposes of introduction into the EU must be in line with agreed purposes (see **Table 17**). Under Article 4.1(a)(ii) first indent, the purposes of introduction into the EU must be:

1. The advancement of science, where the species proves to be the only one suitable and where no captive-bred specimens are available (purpose code S or M); or

The following factors should be considered:

- The importance of the science concerned, as endorsed (or not) in the scientific field concerned.
- The possibility of using alternative species for the objective sought.
- The availability of captive bred specimens elsewhere in the world [applicability of this possibility for plants was apparently not considered in Regulation 338/97].

2. Breeding or propagation purposes from which conservation benefits will accrue to the species (purpose code B or G); or

The following factors should be considered as appropriate:

- The conservation needs for a captive breeding/artificial propagation project, taking account of similar activities elsewhere in the world and *in situ* conservation efforts or lack thereof.
- The existence of captive/nursery specimens elsewhere in the world which could be used in place of wild-taken ones.
- The views of the exporting countries' Scientific Authority.
- The views of the relevant international and national studbook keeper or botanical gardens co-ordinator, where such exists.
- The views of the relevant IUCN Species Survival Specialists Group or other experts where such exist and are independent of the applicant.
- The presentation of the case in terms of identification of objectives, planning and research prior to importation.
- The output of the project in terms of co-operation with others in the field and published material on propagation, breeding, husbandry, and biology.
- The applicant's track record of captive breeding/artificial propagation generally and with the species in question and the long-term viability of the project. Official/institutional support for the project.

- Photographic evidence of the breeding/propagation facility, where possible, to back up essential written information.
- Existence of any spin-off benefits from removal of specimens from the wild in the range State.

These factors are neither an exhaustive list nor presented in any order of priority and the degree to which any one of them will need to be considered will vary from case to case.

3. Research or education aimed at the preservation or conservation of the species (purpose code S or E); or

The following factors should be considered as appropriate:

- The conservation needs for a research or education project, taking account of similar activities elsewhere.
- The existence of captive/nursery specimens elsewhere which could be used in place of wild-taken ones.
- The views of the exporting countries' Scientific Authority.
- The views of relevant research or education authorities, where such exists.
- The views of the relevant IUCN Species Survival Specialists Group or other experts where such exist and are independent of the applicant.
- The presentation of the case in terms of identification of objectives and planning.
- The output of the project in terms of co-operation with others in the field and published material on research or education.
- The applicant's track record of research or education generally and with the species in question and the long-term viability of the project. Official/institutional support for the project.
- Existence of any spin-off benefits from removal of specimens from the wild in the range State.

These factors are neither an exhaustive list nor presented in any order of priority and the degree to which any one of them will need to be considered will vary from case to case.

4. Other purposes which are not detrimental to the conservation of the species

Article 4.1(a)(ii) was not intended to undermine the fundamental principle that trade in specimens of Annex A species must only be authorized in exceptional circumstances. The task of the Scientific Authority is to determine whether the purpose of an import, other than those which are obviously primarily commercial, is detrimental to the survival of the species or not. There are no specific resolutions on the subject and no specific guidance within the Regulation. The import of specimens which form part of personal or household effects as part of a change in residence may also be acceptable in exceptional circumstances (art.7.3).

Some examples of purposes that might meet these conditions are:

a) Hunting trophies (purpose code H)

Trophy hunting is subject to sustainable management that, as appropriate:

- Demonstrates the sustainability of harvest levels.

- Is based on information on the biology, distribution, status, and trends of the target population(s)
- Reviews the sustainability of harvest levels considering illegal activities affecting the target population(s)
- Is accompanied by a monitoring system to effectively monitor population status and trends.
- Can be adapted according to the needs of the specific population in order to maintain the conservation aims.
- Is subject to a robust regulatory framework to the harvesting of trophies.
- Produces conservation benefits for the species concerned.
- Provides benefits and incentives to local communities who share the area with or are affected by the species concerned.

b) Re-introductions (purpose code N)

The translocation of 'surplus' specimens from one wild population to re-stock a population in another country or to restore a species, by re-introduction, to a part of its range from which it has been extirpated. Such programmes should be assessed against the IUCN re-introduction guidelines (http://www.iucnsscrsg.org/images/English.pdf).)

c) Educational (purpose code E)

When no alternatives (e.g., captive bred specimens or similar species) can be used and in exceptional circumstances where such importation produces wider benefits to society (if not covered by paragraph 3 above). For example, an import by a museum for a temporary display on the culture of the Inuit which includes a narwhal carving, or a travelling exhibit of native American Indian artefacts that include headdresses with feathers from Appendix I parrots.

d) Law enforcement (purpose code L)

If such importation produces demonstrable conservation benefits or in exceptional circumstances where such importation produces wider benefits to society, for example, where the nature of the offence or enforcement activity is not directly related to an offence under CITES, e.g. tax evasion or fraud case.

The transaction is for the purpose of transfer of specimens between, or in support of, government agencies for law enforcement, judicial or forensic purposes.

e) Personal (purpose code P)

In exceptional circumstances, e. g. where household effects are being imported under a change of residence regarding a long-term pet that was legally acquired in the country of origin.

Table 17: Treatment of purposes of Annex A import applications (except of captive-bred and artificially propagated specimens)

Purpose	Treatment	Justification
B	Breeding in captivity or artificial propagation	Yes, under 1st indent – 8.3.f (conservation benefit required)
E	Educational	Yes, under 1st indent – 8.3.g (conservation benefit required) OR under 2nd indent in exceptional circumstances
G	Botanical gardens	Yes, under 1st indent – 8.3.f or 8.3.g (conservation benefit required)
H	Hunting trophies	Yes, under 2nd indent - if conservation benefit
L	Law enforcement/judicial/ forensic	Yes, under 2nd indent - if conservation benefit OR in exceptional circumstances
M	Medical (including bio-medical research)	Yes, under 1st indent – 8.3.e (exceptional circumstances etc)
N	Reintroduction or introduction into the wild	Yes, under 2nd indent - if conservation benefit
P	Personal	No, unless under 2nd indent OR in exceptional circumstances where household effects imported under change of residence
Q	Circuses and travelling exhibitions	No (Art. 4.1.(d))
S	Scientific	Yes, under 1st indent - 8.3.e (exceptional circumstances etc.), or 8.3.g (conservation benefit required)
T	Commercial	No (Art. 4.1.(d))
Z	Zoos	Yes, under 1st indent – 8.3.f or 8.3.g (conservation benefit required)

8. Attachment C — Accommodation for a live specimen

CONTEXT

Be satisfied that the intended accommodation for a live specimen at the place of destination is adequately equipped to conserve and care for it properly.
Article 4.1(c) - Annex A imports

To be considered:

- environmental, nutritional, and behavioural needs of the species

- size, design, arrangement, and equipment of the intended accommodation for a live specimen

9. Attachment D — Other factors relating to the conservation

CONTEXT

Be satisfied that there are no other factors relating to the conservation of the species which militate against issuance of the import permit.
Article 4.1(e) - Annex A imports
Article 4.2 (c) - Annex B imports
Article 5.2 (d) - Annex A exports
Article 5.4 - Annexes B and C exports
Article 5.3 - Annex A re-exports
Article 5.4 - Annexes B and C re-exports
Article 4.6 (a) - proposed Commission restrictions on Annex A imports
Article 4.6 (b) - proposed Commission restrictions on Annex B imports

A full list of all conceivable factors would be impossible to compile, but examples are:

- recommendations from the CITES Animals-, Plants Committee or CITES Standing Committee
- serious concerns about the veracity of statements on the export permit
- unbelievable claims relating to the length of time that the specimens are said to have been in a third country prior to re-export.
- unrealistic captive-breeding claims and/or discrepancies in details of captive breeding.

10. Attachment E — Restrictions for imports of live specimens

CONTEXT

Comment on Commission proposals to restrict imports of live specimens because the species concerned has a high mortality rate during shipment or for which it has been established that they are unlikely to survive in captivity for a considerable proportion of their potential life span.
Article 4.6 (c) - Annex B imports

In consultation with the countries of origin concerned, in accordance with the regulatory procedure referred to in Article 18(2) and taking account of any opinion from the Scientific Review Group, the Commission may establish general restrictions, or restrictions relating to certain countries of origin, on the introduction into the Community:

(c) of live specimens of species listed in Annex B which have a high mortality rate during shipment or for which it has been established that they are unlikely to survive in captivity for a considerable proportion of their potential life span

Live specimens subject to high mortality during shipment.

Comment on Commission import restriction proposals to respond to and implement recommendations arising from Conference Resolution 10.21 (Transport of live specimens) on 3 d): to examine, when appropriate, any high mortality shipments of live specimens and make recommendations to relevant Parties, exporters, importers and transport companies on how to avoid this in the future.

Evaluate information collected under Article 69.3 of Regulation 865/2006 *(With regard to imports of shipments containing live animals, Member States shall, where possible, maintain records of the percentage of specimens of species listed in Annexes A and B to Regulation (EC) No 338/97 which were dead at the time of introduction into the Community.)*

Live specimens for which it has been established that they are unlikely to survive in captivity for a considerable proportion of their potential life span.

Comment on Commission import restriction proposals to be made based on:

- determination of the potential life span of the species concerned – where this information is available.
- comparison of rates of mortality between captive and wild specimens at different stages of their life history – where this information is available.
- examination of any available evidence that the species is unlikely to survive in captivity for a considerable proportion of its potential lifespan – if known.

11. Attachment F — Ecological threats

CONTEXT

Comment on Commission proposals for import restrictions on live specimens because it has been established that their introduction into the EU presents an ecological threat to wild species of fauna and flora.
Article 4.6 (d) - species from any Annex

Comment on Commission proposals to be based on examination of the evidence of ecological threat to other native wild species of fauna and flora such as:

- evidence about invasive species from other sources e.g., Global Invasive Species Programme (GISP), Bern Convention studies
- interactions with native species through predation, competition, parasitisation, hybridisation or as a vector of disease etc.
- likelihood of escape or deliberate release
- risk of establishment of specimens in the wild and geographical extent of the threat within the EU
- impact on animal and plant species of EU interest/species to be subject to special conservation measures (Directive 92/43/EEC, Annexes II and IV and Directive 79/409/EEC Annex I).
- likely efficacy of any restrictions adopted.
- possible knock-on effects of restrictions established (e.g., replacement species in trade).

12. Attachment G — Specimen born and bred in captivity

CONTEXT

Be satisfied that a specimen of an animal species is born and bred in captivity in accordance with Article 54 of Regulation (EC) No 865/2006 as well as the Commission Guidance document on live animals bred in captivity under the EU Wildlife Trade Regulations (2022/C 306/02)[18]. Also, Resolution Conf. 12.10 on Registration of operations that breed Appendix-I animal species in captivity for commercial purposes[19] should be taken in consideration.

A specimen[20] of an animal species shall only be born and bred in captivity when a competent MA in consultation with a competent SA of the Member State concerned is satisfied that:

1. It is, or is derived from, the offspring, born or otherwise produced in a controlled either of parents that mated or had gametes otherwise transferred in a environment controlled environment[21], if reproduction is sexual, or of parents that were in a controlled environment when development of the offspring began, if reproduction is asexual.
2. The breeding stock[22] was established in accordance with the legal provisions applicable to it at the time of acquisition and in a manner not detrimental to the survival of the species concerned in the wild.
3. The breeding stock is maintained without the introduction of specimens from the wild, except for the occasional addition of animals, eggs, or gametes in accordance with the legal provisions applicable and in a manner not detrimental to the survival of the species concerned in the wild, for the following purpose[23] only:

to prevent or alleviate deleterious inbreeding, the magnitude of such addition being determined by the need for new genetic material.

to dispose of confiscated animals in accordance with Article 16(3) of Regulation (EC) No. 338/97; or

exceptionally, for use as breeding stock.

The breeding stock has itself produced second (F2) or subsequent generation offspring in a controlled environment or is managed in a manner[24] that has been demonstrated to be capable of reliably producing second generation offspring in a controlled environment.

18. Commission Notice - Guidance document on live animals bred in captivity under the EU Wildlife Trade Regulations 2022/C 306/02: https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:52022XC0811(01)
19. https://cites.org/sites/default/files/documents/COP/19/resolution/E-Res-12-10-R15.pdf
20. It is not necessary for a breeder to actually produce second-generation offspring himself but must demonstrate that they are using a breeding method that is known to lead to the production of second-generation offspring. Each application needs to be assessed on its own merits on a case-by-case basis, taking into account the number of individuals in the breeding stock, access to unrelated F1 specimens, genetic management, previous breeding success, sex ratio, age at sexual maturity, species rarity in captivity, etc.
21. “A controlled environment” is an environment that is manipulated for the purpose of producing animals of a particular species, that has boundaries designed to prevent animals, eggs or gametes of the species from entering or leaving the controlled environment, and the general characteristics of which may include but are not limited to: artificial housing; waste removal; health care; protection from predators; and artificially supplied food (Res. 10.16)
22. “breeding stock” means all the animals in a breeding operation that are used for reproduction.
23. It should not be possible for a commercial captive breeding operation to import wild-taken specimens of Annex A species as these cannot be imported for primarily commercial purposes.
24. It is not necessary for a breeder to actually produce second-generation offspring himself but must demonstrate that they are using a breeding method that is known to lead to the production of second-generation offspring. Each application needs to be assessed on its own merits on a case-by-case basis, taking into account the number of individuals in the breeding stock, access to unrelated F1 specimens, genetic management, previous breeding success, sex ratio, age at sexual maturity, species rarity in captivity, etc.

Captive breeding can have considerable negative impact on the conservation of natural populations in cases where founder breeding stocks have been acquired in an unsustainable, uncontrolled way, or where wild specimens are laundered as captive-bred (and breeding claims are not genuine). Where there are concerns relating to captive breeding, the SRG scrutinizes such claims, and takes appropriate action. Consultations with the Management/Scientific Authority of the country of export relating to captive breeding claims are conducted on two levels:

- the Scientific Authority of the Member State of import usually consults on specific cases of import of captive-bred specimens, which may include consideration of specific captive-breeding facilities.[25]
- the European Commission, on behalf of the SRG usually consults on general concerns about the management and monitoring of breeding facilities in the country of export.

Below is a **checklist of questions** that may be directed to the CITES Authorities of the country of export during consultations relating to captive breeding claims. The checklist should be adapted on a case-by-case basis, and not every question may be applicable in all cases:

1. Name, address, (website) and founding year of the captive breeding facility / breeder.
2. Date of first captive breeding and first production of F2 specimens.
3. Current (breeding) stock (adult males, adult females, and (unsexed) juveniles listed by the month and year of birth).
4. Clarification on whether wild specimens are regularly added to the breeding stock (how many and how often).
5. Description of husbandry conditions, breeding and rearing methods, and stock management (clutch/litter size, studbook numbers, individual recognition, separation of adults and juveniles, depending on the taxa concerned, for example also incubation conditions and duration, food, husbandry conditions.)
6. Details of juveniles born/hatched in the previous five years and annual breeding capacity.
7. Details of specimens traded in the previous five years listed by year of birth.
8. Photographs showing aspects of the stock, facility, and reproduction.
9. Details of mortality rates.

Details of any recent inspections by CITES Authorities (including the date and outcomes)

13. Attachment H — Scientific institutions

CONTEXT

Be satisfied that scientific institutions applying for a certificate exempting Annex A specimens held in their collection from the prohibitions of Article 8(1) are intended for captive breeding or artificial propagation from which conservation benefits will accrue to the species, or for research or education aimed at the preservation or conservation of the species.
Article 60 certificate – Regulation (EC) No 865/2006

25. Guidance for the inspection of captive-breeding and ranching facilities as submitted by the CITES Secretariat can be found in AC30 Inf. 25

The minimum standards expected of scientific institutions holding an article 60 certificate are as follows (based on Res. Conf. 11.15 Rev.CoP18):

- collections of animal or plant specimens, and records ancillary to them, permanently housed and professionally curated.
- all accessions properly and permanently recorded.
- permanent records maintained for loans and transfers to other institutions holding an article 60 certificate.
- specimens acquired primarily for purposes of captive-breeding or artificial propagation from which conservation benefits will accrue to the species, or for research aimed at the preservation or conservation of the species that is to be reported in scientific publication, or for purposes of education aimed at the conservation of the species.
- live specimens must be housed in accommodation that is adequately equipped to conserve and care for them properly.
- museum and herbarium specimens must be prepared, and collections arranged in a manner that ensure their utility.

All live Annex A animal specimens covered by the Article 60 certificate should be permanently marked by means of a uniquely numbered microchip, closed ring, tag tattoo, or be made identifiable by any other reliable measures of identification such as genetics or photo identification, which have been proven reliable in many cases unless this is against veterinary advice, in accordance with Chapter XVI of Regulation (EC) No.865/2006.

- acquisition and possession of specimens accord with the laws of the State in which the scientific institution is located; and
- the certificate only covers those specimens of species included in Annex A centrally housed under the direct control of the scientific institution and managed in a manner to preclude the use of such specimens for decoration, trophies, or other purposes incompatible with the principles of Article 60.

14. Attachment I — Transaction-specific certificate

CONTEXT

Be satisfied that there are no other factors relating to the conservation of the species that militate against issuance of a specimen-specific certificate, specifically in relation to:
Certificates provided for in Article 8.3 of Regulation (EC) No 338/97 (certificate for commercial use).

The SRG considers the purpose of a transaction-specific certificate (TSC) to assist in enforcement of CITES [and domestic wildlife] legislation, allowing greater scrutiny of commercial activities involving Annex A species of European or global conservation concern. TSC are broadly used in cases where there are no suitable marking methods. TSCs are considered by the Enforcement Group to be a practical tool to assist officers address compliance issues, by offering an audit trail and a starting point for investigations, as well as being a crime prevention measure, deterring the laundering of wild specimens into the system.

The following factors should be taken into consideration in determining which species are likely to benefit from the stricter regulation that a TSC provides:

abundance of a species in captivity. [One interpretation of the above is that a species might not require a TSC if it is so readily available in captivity, due to captive breeding, that the likelihood of specimens being taken illegally from the wild are very small.]

Market demand/value: the level of demand for specimens for a particular species by falconers, breeders, zoological institutions or private keepers and others – some rare species command high prices which may drive illegal trade.

Take from the wild/Trade status (illegal): levels of actual or potential illegal take and/or trade and whether it is having a detrimental impact on the conservation status of the species. [If there is no evidence to suggest that a species has been, or is likely to be, affected by illegal take and/or trade, or there is no evidence to demonstrate that the EU or Member State has been involved (directly or indirectly) in illegal take/trade then there is no obvious benefit from restricting to a TSC. Equally, some level of illegal take may occur which may be inconsequential when set against the size of the population.]

Other domestic controls: e.g., whether the species is a registerable species.

15. Attachment J — Placement or disposal of specimens

CONTEXT

Provide advice to the competent authority on the placement or disposal of confiscated specimens: *Article 16.3 – Regulation (EC) No 338/97*

Confiscated specimens shall be placed or otherwise disposed of under conditions which are deemed to be appropriate and consistent with the purposes and provisions of the CITES Convention and Regulation (EC) No 338/97.

Section 7 of the Commission Guidance document on live animals bred in captivity under the EU Wildlife Trade Regulations (2022/C 306/02) provides guidance on handling confiscated specimens and on whether such specimens can be used in a captive-breeding facility[26].

The MA is to consult with the competent SA and the decision must achieve the following (based on Resolution Res. Conf. 17.8 (Rev. CoP19)) Disposal of illegally traded and confiscatedspecimens of CITES-listed species[27] to:

1. maximize conservation value of the specimens without in any way endangering the health, behavioural repertoire, or conservation status of wild or captive populations of the species.
2. discourage further illegal or irregular trade in the species; and
3. provide a humane solution, whether this involves maintaining the animals in captivity, returning them to the wild, or employing euthanasia to destroy them.

Factors to be considered:

- conservation status (endangered or threatened species: evaluate whether and how these animals might contribute to a conservation programme for the species); and

26. Commission Notice - Guidance document on live animals bred in captivity under the EU Wildlife Trade Regulations 2022/C 306/02: https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:52022XC0811(01)
27. CITES Resolution Conf. 17.8: Disposal of illegally traded and confiscated specimens of CITES-listed species Resolutions (cites.org)

- legal, social, economic, and biological factors.

For the placement or disposal of dead specimens of part and derivatives thereof, the SA may recommend *bona fide* scientific, educational, enforcement or identification purposes, or the saving in storage, sale, or destruction of specimens whose disposal for these purposes is not practicable.

For live specimens of animals and plants, the SA may recommend one of the following options:

A. Maintenance of the individuals in captivity

- Zoos: placement at a zoo can contribute to the captive-bred population of the species included in various breeding programmes and/or to educate the public on the conservation needs of the species.
- Rescue centres: established specifically to treat injured or confiscated animals.
- Lifetime-care facilities: devoted to the care of confiscated animals.
- Specialist societies or clubs: devoted to the study and care of single taxa.
- Humane societies: placement with private individuals who can provide humane lifetime care and may contribute to captive-breeding.
- Universities and research laboratories: maintain collections of exotic animals for many kinds of research. Transfer to an establishment that conducts research under humane conditions may offer an option, and one which may eventually contribute information relevant to the species' conservation. In many cases, the lack of known provenance, and the potential that the animal has been exposed to unknown pathogens will make transfer to a research institution an unlikely option.
- (High)schools that offer education programs for animal keepers (e.g., to become a zookeeper)
- Sale (Annex B, C and D only): parties involved in commercial activities can help offset the costs of confiscation. However, sale should only be considered in certain circumstances, such as where such trade in the species in question does not threaten wild populations of the species and not subject to a legal prohibition on trade and there is no risk of stimulating further illegal trade. Sale to commercial captive breeders may contribute to reducing the demand for wild-caught individuals.

Maintenance of the individuals in captivity[28]	
Benefits	**Disadvantages**
educational value potential for captive breeding for eventual reintroduction and/ or for establishment of reserve population possibility for the confiscating authority to recover, from sale, the costs of confiscation. genetic variability contribution to knowledge on species biology/ ecology	Potential to stimulate further illegal and unsustainable trade12. Cost of placement transmission of diseases to native fauna or within captive population

B. Returning the individuals in question to some form of life in the wild

- Reintroduction: attempt to establish a population in an area that was once part of the range of the species but where it has become extinct.

28. "Non-exhaustive list of potential factors to be considered depending on the individual case."

- Reinforcement of an existing population: the addition of individuals to an existing population of the same taxon.

Reinforcement can be a powerful conservation tool when natural populations are diminished by a process which, at least in theory, can be reversed and cannot / will unlikely recover on their own. Such activities are common in many western countries, and specific programmes exist. Reinforcement carries with it the very grave risk that individuals held in captivity, even temporarily, are potential vectors for disease back into a wild population. Reintroduction of specimens for reinforcement purposes also have varying degrees of success and survival of released specimens depending on the locality, species concerned and quality of the programme, which should be taken into consideration before making a decision. Reinforcement should therefore only be employed in instances where there is a direct and measurable conservation benefit (demographically or genetically), as when reinforcement is critical for the viability of the wild population into which an individual is being placed and there is a reasonable likelihood that the released specimens will survive in the wild.

Returning the individuals in question to some form of life in the wild[29]	
Benefits	**Concerns**
Reinforcement of an existing population or reintroduction in parts of the range where the species became extinct may promote conservation of the species. strong political/ educational statement - promote local conservation values. tracking rereleased wildlife monitoring human wildlife interactions	survivability conservation value and cost source of individuals needs to be carefully assessed (risk of genetic pollution) risk of disease transfer risk of recapture animal welfare risk of human-wildlife conflicts

Any reintroduction or reinforcement activities should be undertaken in line with the relevant IUCN guidelines.

Any return to wild are to be considered by the SA of the country of origin, in case the specimens are confiscated by authorities of the importing or re-exporting country.

C. Euthanasia

In certain cases, authorities confiscating live animals will encounter the following situations:

- Return to the wild will not add to the conservation of the species (e.g. very common species), is impossible, or prohibitively expensive.
- There are serious concerns that sale will be problematic or controversial, or
- During transport, or while held in captivity, the animals have contracted a chronic disease that is incurable and, therefore, a risk to any captive or wild population.

Euthanasia[30]	
Benefits	**Concerns**
- Carries fewer risk to wild and captive populations in terms of disease transfer	Potential loss of genetic variability Specimens lost for conservation and/ or research activities

29. “Non-exhaustive list of potential factors to be considered depending on the individual case.”
30. “Non-exhaustive list of potential factors to be considered depending on the individual case.”

Further information is available through:

- IUCN-Species Survival Commission Specialist Groups
- http://ec.europa.eu/environment/cites/pdf/studies/enforcement_trade.pdf(Managing confiscated specimens)

Annex XIII

Types of biological samples referred to in Article 18 of Regulation (EC) No 865/2006 and their use[31]

This Annex lists the types of biological samples for which certain procedures which are less strict may apply.

31. This corresponds to Annex XI to Regulation (EC) No 865/2006, the latest version of which should be checked for any recent amendments.

Type of sample	Typical size of sample	Use of sample
blood and its derivative components	5 ml maximum for liquid samples or dry blood sample on a microscope slide, filter paper or swab	biomedical research; species identification; determination of geographic origin; sex determination; individual identification; parentage testing; toxicology analysis; disease testing/ diagnosis, including serology
internal tissues (botanical or zoological), fixed	tissues (5 mm3-25 mm3) in a fixative or histological glass slide containing a +/-5um section of fixed tissue	Histology and electron microscopy to detect organisms and poisons; taxonomic research; biomedical research; species identification; determination of geographic origin; sex determination; individual identification; parentage testing; toxicology analysis; disease testing/ diagnosis
internal tissues (botanical or zoological), frozen	pieces of tissues (5 mm3-25 mm3)	biomedical research; species identification; determination of geographic origin; sex determination; individual identification; parentage testing; toxicology analysis; disease testing/ diagnosis
internal tissues (botanical or zoological), fresh (excluding ova, sperm and embryos)	pieces of tissues (5 mm3-25 mm3)	biomedical research; species identification; determination of geographic origin; sex determination; individual identification; parentage testing; toxicology analysis; disease testing/ diagnosis
external tissues including hair, skin, feathers, scales, bone, egg shell, teeth, ivory, horn, leaves, bark, seeds, fruit or flowers	Individual samples with or without fixative. For ivory: pieces of ivory approximately 3 cm x 3 cm and 1 cm thick or less depending on analysis method, in accordance with ICCWC Guidelines on methods and procedures for ivory and laboratory analysis[32]. For rhino horn: small amounts of powder/shavings sealed in a tamper proof sample bottle, in accordance with the Procedure for Rhino horn DNA Sampling[33].	species identification; determination of geographic origin; sex determination; individual identification; parentage testing; toxicology analysis; disease testing/diagnosis; age analysis; biomedical research

32. https://www.unodc.org/documents/Wildlife/Guidelines_Ivory.pdf
33. Republic of South Africa, Department of Environmental Affairs, Procedures for Rhino horn DNA Sampling.

Type of sample	Typical size of sample	Use of sample
buccal/cloacal/mucus/nasal/ urinary tract/rectal swabs	small amounts of tissue or cells on a swab in a tube	species identification; determination of geographic origin; sex determination; individual identification; parentage testing; toxicology analysis; disease testing/diagnosis, including serology; biomedical research
cell lines and tissue cultures	no limitation of sample size	biomedical research; species identification; determination of geographic origin; sex determination; individual identification; parentage testing; toxicology analysis; disease testing/ diagnosis; age analysis
DNA or RNA (purified)	up to 0.5 ml volumes per individual specimen of purified DNA or RNA	biomedical research; species identification; determination of geographic origin; sex determination; individual identification; parentage testing; toxicology analysis; disease testing/ diagnosis; age analysis
secretions (saliva, venom, milk, plant secretions)	1-5 ml in vials	production of anti-venom; biomedical research; species identification; determination of geographic origin; sex determination; individual identification; parentage testing; toxicology analysis; disease testing/diagnosis, including serology; age analysis

Annex XIV

Summary of provisions relating to caviar of sturgeons and paddlefish (Acipenseriformes spp.), according to Regulation (EC) No 865/2006 (as amended)

In April 1998, the decisions to list all species of sturgeon and paddlefish (Acipenseriformes spp.) in the CITES Appendices entered into effect, covering all live specimens, as well as any parts and products derived from these species (such as caviar, meat, leather, fertilised eggs, cartilage, etc.). These specimens may only be traded in accordance with the provisions of CITES and the EU Wildlife Trade Regulations.

Imports and exports from shared stocks

Member States are obliged to **reject** applications for **import and export permits** for caviar and meat of sturgeon and paddlefish species (Acipenseriformes spp.) from **shared stocks**[34] unless **export quotas** have been established for the species in question in accordance with the procedure laid down by the Conference of the Parties. Details of current quotas may be found on the Secretariat's website (http://www.cites.org/eng/resources/quotas/index.php).

Time validity of import and export permits

34. See Annex 3 of *Resolution Conf. 12.7 (Rev. CoP17)* (https://cites.org/sites/default/files/document/E-Res-12-07-R17.pdf)

In the case of **caviar** of **sturgeon** and paddlefish species (Acipenseriformes spp.) that originated form **shared stocks** that are subject to **export quotas**:

Import permits cease to be valid on **the last day of the year** to which the quota applies (i.e. the year, starting on 1 March and ending on the last day of February, in which the caviar was harvested and processed) **– if this is earlier than the normal maximum 12-month period of validity applicable to import permits, and**

Export permits cease to be valid on **the last day of the year** to which the quota applies (i.e. the year in which the caviar was harvested and processed) – **if this is earlier than the normal maximum six-month period of validity applicable to export permits**.

Labelling requirements

In April 2000, CITES Parties agreed on a universal labelling system for the identification of caviar that came into effect in the EU on 1 January 2002. The labelling system was revised in November 2002 (CITES CoP 12), October 2004 (CITES CoP 13), June 2007 (CITES CoP 14) and in March 2013 (CITES CoP 16) in order to improve the traceability of the product (see *Resolution Conf. 12.7 (Rev. CoP17) – Conservation of and trade in sturgeons and paddlefish*, which may be viewed at https://cites.org/sites/default/files/document/E-Res-12-07-R17.pdf). In the EU, the labelling requirements for the identification of caviar are detailed in Article 66(6) of *Regulation (EC) No 865/2006* as amended by Article 18 of *Regulation (EC) No 100/2008*. **All primary containers** (tin, box, jar, or other container into which caviar is **directly packed**), irrespective of size and including containers of repackaged caviar, must be affixed with a non-reusable label that includes a unique code. The label must either **seal the container** or the caviar must be packaged in such a way that it becomes **evident** if the **container has been opened.** The uniform labelling system applies to **all caviar** produced for commercial and non-commercial purposes, from the wild or farmed, and **includes re-packaged caviar** and all caviar sold on **domestic markets**.

It is noted that the **mixing of caviar** from different Acipenseriformes species into a **primary container** is **not permitted**, except in the case of pressed caviar (i.e. caviar composed of unfertilised eggs (roe) of one or more sturgeon or paddlefish species, remaining after the processing and preparation of higher quality caviar)[35].

For the purposes of facilitating the marking requirements for caviar, the Management Authority must **license facilities** (or plants) that process, package or repackage caviar (including caviar producing aquaculture operations) and must attribute **a unique registration number** to these facilities[36]. The facilities must also maintain **adequate records** of the quantities of caviar imported, exported, re-exported, produced *in-situ* or stored that must be available for inspection by the Management Authority in the relevant Member State. The **list of facilities** licensed in this way must be notified to the **CITES Secretariat** and to the **European Commission** and is available at http://cites.org/eng/taxonomy/term/152.

Caviar packaged in countries of origin

All containers of caviar produced by the countries of origin, must have a **non-reusable** label. It must **seal the container** unless there is some other means of packaging whereby tampering/opening becomes evident. This condition applies **regardless** of the **size** of the container or its intended **destination**, whether domestic on international. The non-reusable label affixed by the processing or packaging plant in the country of origin (first country of export) must include the information as shown in the example below using the codes agreed in Annexes 1 and 2 of the CITES *Resolution Conf. 12.7 (Rev. CoP17)* (see https://cites.org/sites/default/files/document/E-Res-12-07-R17.pdf). Import and export permits and re-export certificates may only be issued when the Management Authority is satisfied that the caviar container is marked in accordance with these conditions[37].

35. Article 66(6) *Regulation (EC) No 865/2006*
36. Article 66(7) *Regulation (EC) No 865/2006*
37. Article 64(1)(g), 64(2) and 65(3) *Regulation (EC) No 865/2006*

Description of label to be affixed in the country of origin on all primary caviar containers

HUS: Standard species code, here "*Huso huso"*

W: Source code of the caviar, here "wild"

RU: ISO code of the country of origin, here "Russian Federation"

2000: Year of harvest, here 2000

xxxx: Number for the processing plant

yyyy: Lot identification number

Example: HUS/W/RU/2000/xxxx/yyyy

Re-packaged caviar

All containers in which caviar is **repackaged** must also be affixed with a new **non-reusable label** that seals the container (if the packaging is not already done in such a way as to reveal tampering) regardless of its size and destination, whether it is destined for re-export or the domestic market. As required for the label affixed in the country of origin, the new label should allow authorities **to trace the origin** of the caviar. It must therefore contain the information shown below using the codes agreed in Annexes 1 and 2 of CITES *Resolution Conf. 12.7 (Rev. CoP17)* (see https://cites.org/sites/default/files/document/E-Res-12-07-R17.pdf).

Description of label to be affixed in the country of re-packing on all secondary containers

PER: Standard species code, here "*Acipenser persicus"*

W: Source code of the caviar, here "wild"

IR: ISO code of the country of origin, here "Islamic Republic of Iran"

2001: Year of repackaging, here 2001

IT-wwww: The official registration code of the repackaging plant, which incorporates the two-letter ISO code of the country of repackaging if different from the country of origin

zzzz: Lot identification number, or CITES export permit number, or re-export certificate number

Annex XV

Date of EC/EU Membership and CITES Accession for the EU Member States

EU Member State	Year of EC/EU Membership	Year of CITES Accession
Austria	1995	1982
Belgium	1958	1984
Bulgaria	2007	1991
Croatia	2013	2000
Cyprus	2004	1975
Czechia	2004	1993*
Denmark	1973	1977
Estonia	2004	1992
Finland	1995	1976
France	1958	1978
Germany	1958	1976
Greece	1981	1993
Hungary	2004	1985
Ireland	1973	2002
Italy	1958	1979
Latvia	2004	1997
Lithuania	2004	2002
Luxembourg	1958	1984
Malta	2004	1989
The Netherlands	1958	1984
Poland	2004	1990
Portugal	1986	1981
Romania	2007	1994
Slovakia	2004	1993*
Slovenia	2004	2000
Spain	1986	1986

EU Member State	Year of EC/EU Membership	Year of CITES Accession
Sweden	1995	1975
European Union		2015

* Year of succession. Previously Party to CITES as part of the former Czechoslovakia since 28/05/1992.

Annex XVI

Articles in Regulation (EC) No 338/97 and in Regulation (EC) No 865/2006

Regulation (EC) No 338/97 as amended	
ARTICLE	**CONTENT**
Article 1	Object
Article 2	Definitions
Article 3	Scope
Article 4	Introduction into the EU
Article 5	Export or re-export from the EU
Article 6	Rejection of applications for permits and certificates referred to in Articles 4, 5 and 10
Article 7	Derogation
Article 8	Provisions relating the control of commercial activities
Article 9	Movement of live specimens
Article 10	Certificates to be issued
Article 11	Validity of and special conditions for permits and certificates
Article 12	Places of introduction and export
Article 13	Management of scientific authorities and other competent authorities
Article 14	Monitoring of compliance and investigation of infringements
Article 15	Communication of information
Article 16	Sanctions
Article 17	The Scientific Review Group
Articles 18 and 19	The Committee
Articles 20-22	Final provisions
Annex	Annexes A, B, C and D with notes on their interpretation

Regulation (EC) No 865/2006 as amended		
CHAPTER	**ARTICLE**	**CONTENT**
CHAPTER I	Definitions	
	Article 1	Definitions
CHAPTER II	Forms and technical requirements	
	Article 2	Forms
	Article 3	Technical specifications with regard to forms
	Article 4	Completion of forms
	Article 5	Contents of permits, certificates and applications for the issue of such documents
	Article 5a	Specific content of permits, certificates and applications for plant specimens
	Article 5b	Specific content of permits and certificates for live rhinoceros and live elephants
	Article 6 Regulation (EU) No 791/2012)	Annexes to forms
	Article 7	Permits and certificates issued by third countries
CHAPTER III	Issue, use and validity of documents	
	Article 8	Issue and use of documents
	Article 9	Shipments of specimens
	Article 10	Validity of import and export permits, re-export certificates, travelling exhibition certificates, and personal ownership certificates
	Article 11	Validity of used import permits and of the certificates referred to in Articles 47, 48, 49, 60 and 63
	Article 12	Replacement of documents
	Article 13	Time of application for import and export permits and re-export certificates
	Article 14	Validity of documents from third countries

Regulation (EC) No 865/2006 as amended		
CHAPTER	**ARTICLE**	**CONTENT**
	Article 15	Retrospective issuance of certain documents
	Article 16	Specimens in transit through the EU
	Article 17	Issuance of phytosanitary certificates
	Article 18	Pre-issued permits and certificates with regard to certain trade in biological samples
	Article 19	Pre-issued permits and certificates with regard to export or re-export of dead specimens
CHAPTER IV	Import permits	
	Article 20	Applications for import permits
	Article 20a (inserted by paragraph 10 of *Regulation (EC) No 100/2008*)	Rejection of applications for import permits
	Article 21	Import permits issued for specimens of species included in Appendix I to the Convention and listed in Annex A to *Regulation (EC) No. 338/97*
	Article 22	Documents to be surrendered by the importer to the Customs office
	Article 23	Handling by the Customs office
CHAPTER V	**Import notifications**	
	Article 24	Documents to be surrendered by the importer to the Customs office
	Article 25	Handling by the Customs office
CHAPTER VI	**Export permits and re-export certificates**	
	Article 26	Applications for export permits and re-export certificates
	Article 26a	Applications for export permits and re-export certificates
	Article 27	Documents to be surrendered by the (re-) exporter to the Customs office

Regulation (EC) No 865/2006 as amended		
CHAPTER	**ARTICLE**	**CONTENT**
	Article 28	Handling by the Customs office
	Article 29	Pre-issued permits for nurseries
CHAPTER VII	Travelling exhibition certificates	
	Article 30	Issuance of travelling exhibition certificates
	Article 31	Use of travelling exhibition certificates
	Article 32	Issuing authority for travelling exhibition certificates
	Article 33	Conditions for travelling exhibition certificates
	Article 34	Application for travelling exhibition certificates
	Article 35	Documents to be surrendered by the holder of the travelling exhibition certificate to the Customs office
	Article 36	Replacement of travelling exhibition certificates
CHAPTER VIII	Personal ownership certificate	
	Article 37	Issuance of personal ownership certificates
	Article 38	Use of personal ownership certificates
	Article 39	Issuing authority for personal ownership certificates
	Article 40	Conditions for a personal ownership certificate
	Article 41	Application for personal ownership certificates
	Article 42	Documents to be surrendered by the holder of personal ownership certificate to Customs office
	Article 43	Sales of specimens covered by personal ownership certificates
	Article 44	Replacement of personal ownership certificates
CHAPTER VIIIa	Sample collection certificates	
	Article 44a	Issue

Regulation (EC) No 865/2006 as amended		
CHAPTER	**ARTICLE**	**CONTENT**
	Article 44b	Use
	Article 44c	Issuing authority
	Article 44d	Requirements
	Article 44e	Applications
	Article 44f	Documents to be surrendered by the holder to the Customs office
	Article 44g	Replacement
CHAPTER VIIIb	Musical instrument certificates	
	Article 44h	Issue
	Article 44i	Use
	Article 44j	Issuing authority
	Article 44k	Requirements for specimens
	Article 44l	Applications
	Article 44m	Documents to be surrendered by the holder to the customs office
	Article 44n	Sale of specimens covered
	Article 44o	Replacement
	Article 44p	Introduction of musical instruments into the Union with certificates issued by third countries
CHAPTER IX	Customs procedure	
	Article 45	Forwarding of documents presented to Customs offices
CHAPTER X	Certificates provided for in Article 5(2)(b), (3) and (4), Article 8(3) and Article 9(2)(b) of *Regulation*	

Regulation (EC) No 865/2006 as amended		
CHAPTER	**ARTICLE**	**CONTENT**
	(EC) No 338/97	
	Article 46	Issuing authority
	Article 47	Certificates provided for in Article 5(2)(b), (3) and (4) of Regulation (EC) No 338/97 (certificates required for export or re-export)
	Article 48	Certificate provided for in Article 8(3) of Regulation (EC) No 338/97 (certificate for commercial use)
	Article 49	Certificate provided for in Article 9(2)(b) of Regulation (EC) No 338/97 (certificate for movement of live specimens)
	Article 50	Application for the certificates provided for in Article 5(2)(b), (3) and (4), Article 8(3) and Article 9(2)(b) of Regulation (EC) No 338/97
	Article 51	Amendments to permits, notifications and certificates
CHAPTER XI	**Labels**	
	Article 52	Use of labels
CHAPTER XII	Derogations from Customs procedures referred to in Article 4(7) of *Regulation (EC) No 338/97*	
	Article 53	Customs offices other than the border Customs office at the point of introduction
CHAPTER XIII	Specimens born and bred in captivity and artificially propagated specimens	
	Article 54	Specimens born and bred in captivity of animal species
	Article 55	Establishment of ancestry
	Article 56	Artificially propagated specimens of plant species

Regulation (EC) No 865/2006 as amended		
CHAPTER	**ARTICLE**	**CONTENT**
CHAPTER XIV	Personal and household effects	
	Article 57	Introduction and reintroduction into the Community of personal and household effects
	Article 58	Export and re-export from the EU of personal and household effects
	Article 58a	Commercial use of personal and household effects within the EU
CHAPTER XV	**Exemptions and derogations**	
	Article 59	Exemptions from Article 8(1) of Regulation (EC) No 338/97 laid down in Article 8(3) thereof
	Article 60	Derogation from Article 8(1) of Regulation (EC) No 338/97 for the benefit of scientific institutions
	Article 61	Exemptions from Article 8(1) and (3) of Regulation (EC) No 338/97
	Article 62	General exemptions from Article 8(1) and (3) of Regulation (EC) No 338/97
	Article 63	Pre-issued certificates under Article 8(3) of Regulation (EC) No 338/97
CHAPTER XVI	**Marking requirements**	
	Article 64	Marking of specimens for the purpose of imports
	Article 65	Marking of specimens for the purpose of export and re-export
	Article 66	Marking methods
	Article 67	Humane marking methods
	Article 68	Mutual recognition of marking methods
CHAPTER XVII	Reports and information	
	Article 69	Reports on imports, exports and re-exports
	Article 70	Amendments to the Annexes to Regulation (EC) No 338/97
CHAPTER XVIII	**Final provisions**	

Regulation (EC) No 865/2006 as amended		
CHAPTER	**ARTICLE**	**CONTENT**
	Article 71	Rejection of applications for import permits
	Article 72	Transitional measures
	Article 73	Notification of implementing provisions
	Article 74	Repeal
	Article 75	Entry into force
	Annex I	Model form for import/ export/ re-export and “other” certificate
	Annex II	Model import notification
	Annex III	Model travelling exhibition certificate
	Annex IV	Model continuation sheet
	Annex V	Model internal trade certificate
	Annex VI	Model label for scientific exchanges
	Annex VII	Description codes
	Annex VIII	Standard nomenclature references
	Annex IX	Source and purpose codes
	Annex X	Animal species referred to in Article 62(1)
	Annex XI	Types of biological samples referred to in Article 18 and their use
	Annex XII	**Correlation Table (corresponding articles of current version of Regulation (EC) No 865/2006 and the previous version of this legislation)**
	Annex XIII	Species and populations referred to in Article 57(3a)

Annex XVII

Measuring reptiles

In some cases, it may be necessary to set size limits for the import of certain reptile species from specific countries and for specific source codes as tool to ensure the sustainability of harvesting and trade. To ease the enforcement, it is recommended to follow these scientifically standardized measurements:

- In the case of **lizards** (suborder Lacertilia) the snout-vent-length (SVL) is the most commonly used measure. The reason for this is that lizards often lose parts of their tails in the course of their lives or “sacrifice” them as a defensive measure (caudal autotomy). In most cases, although tail regrowth occurs, the regenerated tail is shorter and is internally supported by a solid rod of cartilage rather than bony vertebrae. From below, the SVL can be measured from the tip of snout to the cloaca (see **Figure 18** and **Figure 19**). If living lizards do not keep their tail still, are restless or wiggling around the snout-vent-length can be determined from “above” (= dorsal) by measuring in a straight line from the tip of snout to the caudal (towards the tail) insertion of hind limbs (see **Figure 18** and **Figure 19**). Depending on the size of the animal a calliper or measure tape can be used.
- In the case of **turtles and tortoises**, the most suitable standard measure is the straight carapace length, extending in a straight line from the anterior margin of the nuchal plate to the posterior margin of the supracaudal plate. See **Figure 20**. This measure can be done from above by placing the calliper or measure tape laterally to the animal.
- In the case of **snakes and crocodiles**, using the total length (TL), the straight-line distance measured from the tip of the snout to the tip of the tail, is recommended. Measures can be done from above with a measure tape (Fig. 4 and 5), with a small rope that is placed along the animal’s body and measured afterwards, in a long tube, or with the help of paper with quadrats of known size that is placed below the animal and can be counted. Alternatively, the snout-vent-length can be used for crocodiles.

Figure 18: A) Measuring snout-vent-length from below from tip of snout to cloaca; B) Measuring SVL from above from tip of snout to caudal insertion of hind limbs. Photo M. van Schingen-Khan.

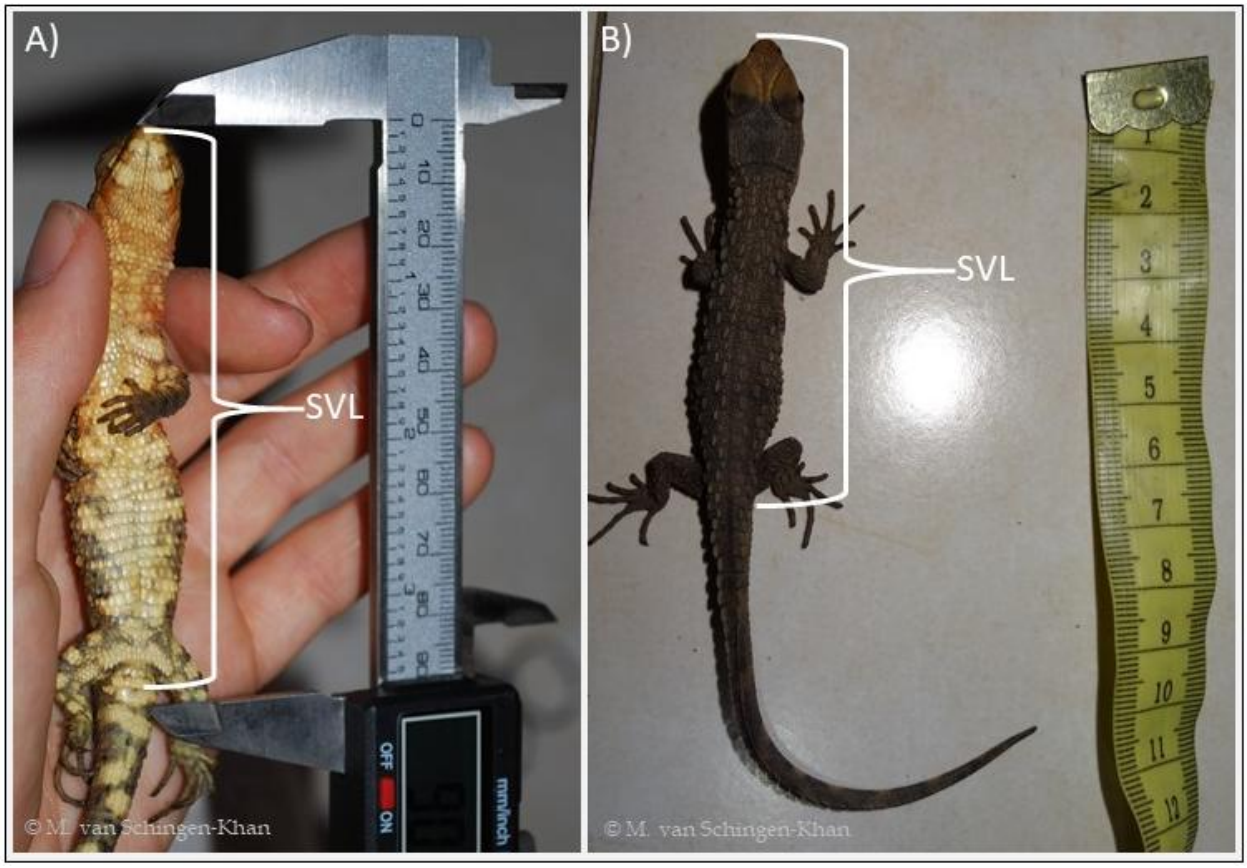


Figure 19: SVL of a lizard from above, from tip of snout to insertion of caudal hind limbs. Drawing by U. Schepp.

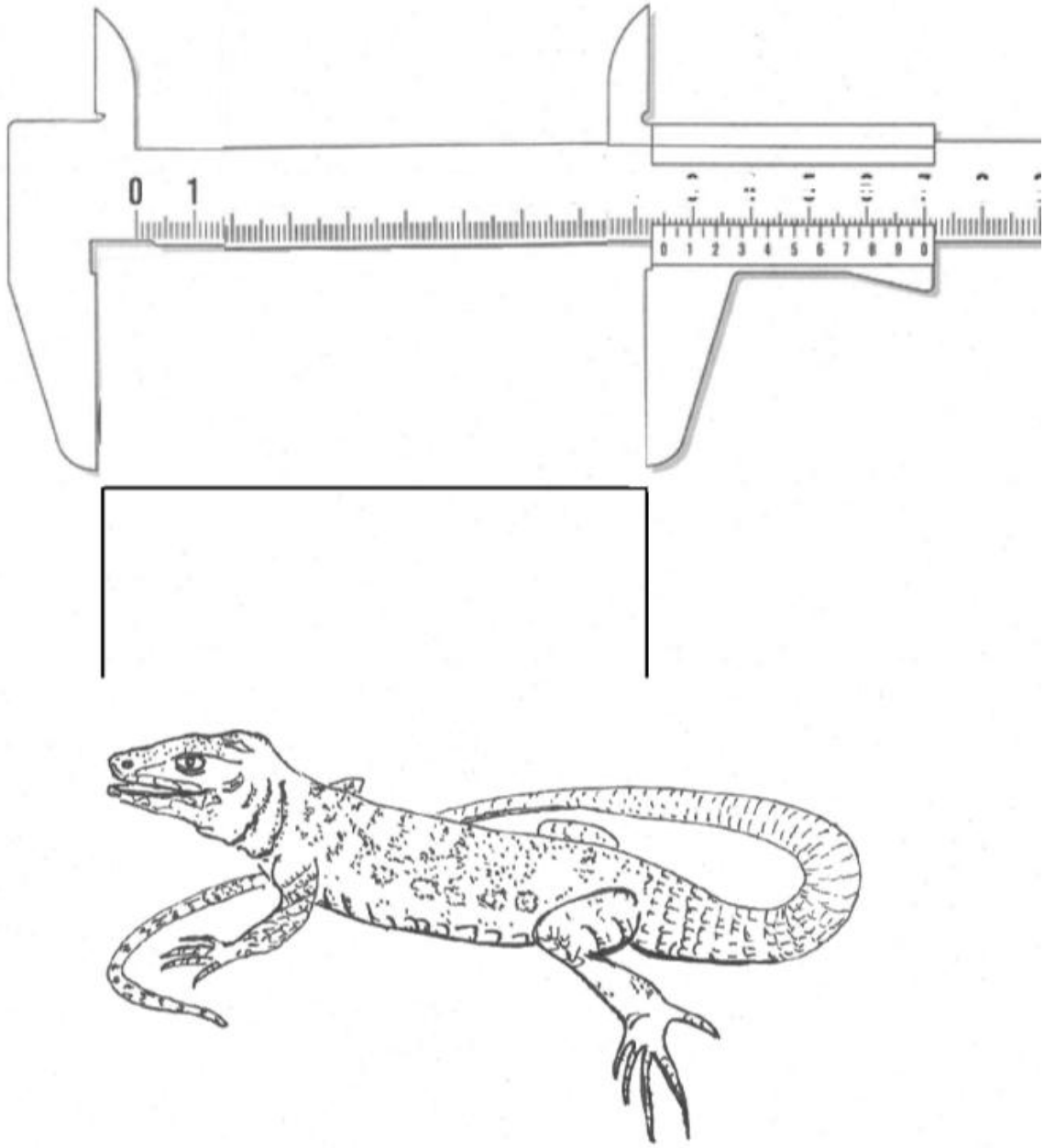
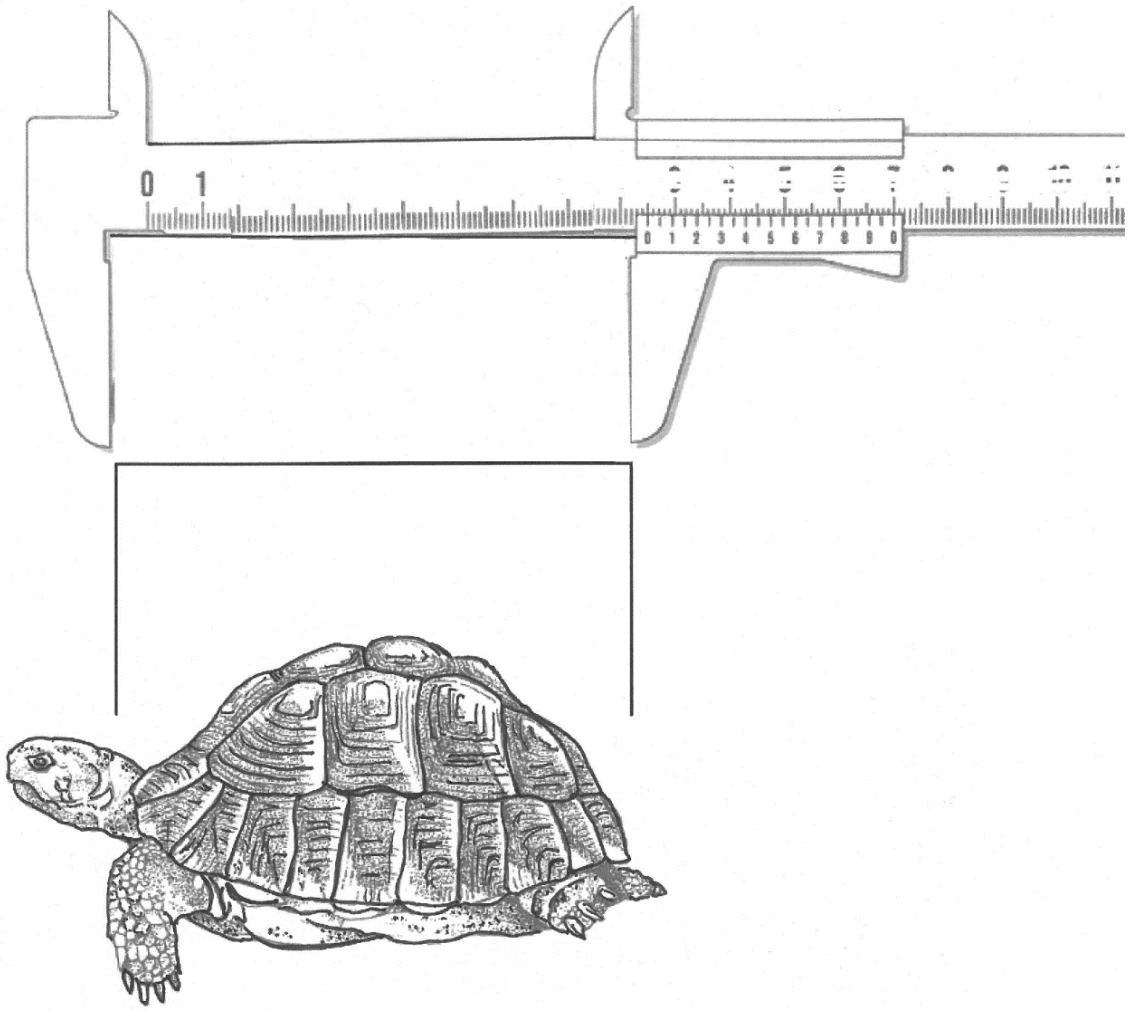


Figure 20: Straight carapace length in turtles and tortoises. Drawing by U. Schepp after a pattern from Mertens & Wermuth (1961).



Annex XVIII

Guidance on handover of EU certificates in case of transfer of ownership of the certified specimen(s)

Introduction

Traceability of specimens and proof of legal acquisition are important to facilitate enforcement of EU Wildlife Trade Regulations. For that purpose, original documents should, if possible, accompany the specimens which are certified in those documents.

Article 8 of Regulation (EC) No. 338/97 (in the following denoted as BR 338/97) regulates commercial activities regarding specimens of the species listed in Annex A whereby in most cases a certificate for commercial use (see Article 48 Regulation (EC) No. 865/2006 - in the following denoted as IR 865/2006 –; model set out in Annex V Regulation (EU) No. 792/2012) is required. Both, the seller and the purchaser/acquirer are obliged to prove compliance with Article 8.

According to Article 8 (3) BR 338/97 there are two different reasons for the exemption:

a) the specimens fulfil specific conditions like being legally taken from the wild or being legally bred in captivity or being legally acquired prior to specific dates (Art. 8 (3) a), b), d) and h) or

b) the specimens may be used for specific privileged purposes (Art. 8 (3) c), e), f) and g), independent of their source.

This is also reflected in Article 48 (1) a) to c) and Art. 48 (1) d) IR 865/2006.

There are two kinds of EU certificates for commercial use, a 'Specimen-Specific Certificate' (SSC) or a 'Transaction-Specific Certificate'[38] (TSC). In general, original EU certificates, especially SSCs, are handed over to the purchaser/acquirer/new owner of the certified specimen. The EU certificate must stay with the certified specimen. That enables the new owner to provide evidence for legal acquisition by an original document.

However, in view of the following regulation misunderstanding could arise when a certificate ceases to be valid after the transfer of ownership.

Article 11 of Implementing Regulation 865/2006 deals with the validity of used import permits and certificates. Paragraph 5[39] of this regulation is:

"5. Documents that cease to be valid in accordance with this Article shall, without undue delay, be returned to the issuing management authority which, where appropriate, may issue a certificate reflecting the required changes in accordance with Article 51."

This guidance deals with the interpretation of Article 11 (5) IR 865/2006 and how the holder of a certificate, the owner of certified specimens and relevant authorities should proceed, especially when a certificate ceases to be valid.

Proposed guidance

Original documents shall accompany the specimens certified in those documents.

Specimen-Specific Certificate (SSC)[40]

Original certificates shall accompany the specimens certified in those certificates and shall be handed over from the seller to the new owner.

A specimen-specific certificate is to be passed on to the purchaser along with the specimen at the time of the sale and is valid throughout the EU.

Specimen-specific certificates are valid for the first and subsequent sales of the certified specimen (example: a live peregrine falcon marked with a seamlessly closed leg-ring), provided that the description of the specimen in box 4 of the certificate has not changed.
If the description in box 4 changes (example: the live falcon is dead, but shall be stuffed), the certificate will cease to be valid according to Article 11 (2) IR 865/2006 and may not be used for further commercial activities. For any further commercial activities, a new certificate is needed and the owner must apply for a new certificate. After checking the prerequisites, the competent authority shall issue the new certificate reflecting the required changes (example: description code: BOD for stuffed animal) and take away the invalid certificate from the holder in accordance with Article 51.

38. Article 1 lit. 7 and 8 IR 865/2006.
39. After amendment in 2021 that regulation will be in paragraph 6 of Article 11.
40. Defined under Article 1 (7) and 8 IR 865/2006

If the certified specimen has been lost or stolen or does not exist anymore, the certificate ceases to be valid and the holder shall return that certificate to the issuing authority via the holder's actual competent authority in order to avoid misuse of the certificate.

For multiple use (transaction) box "*No*" to „*Certificate only valid for holder named in box 1*" between box 19 and 20 on the certificate shall be ticked. For additional information, also in English, depending on space, box 20 may be used, f.e.:

"This certificate is only valid if the specimen is equivalent to the description in box 4."
or
"This certificate is only valid for the specimen/s described in box 4. In case of sale of all certified specimens, the original certificate shall be surrendered to every new owner of the certified specimen for further commercial use. Each subsequent owner of the specimen is not required to obtain a new certificate for commercial use unless the description in box 4 of the certificate has changed."

or any other specific information.

There may be cases where the holder is entitled to further use the original certificate (example: it covers more than one specimen) regarding the purpose for other certified specimens and therefore it cannot be handed over to the new owner. In these cases the original document shall be split. In order to enable the new owner to provide evidence for legal acquisition by an original document, a new certificate covering only the sold specimen(s) shall be issued. In addition, the existing certificate shall be corrected or replaced by a new one reflecting the required changes in accordance with Article 51 IR 865/2006.

Transaction-Specific Certificate -TSC-[41]

Two different types of TSC are in use:

1. 'holder specific certificates'/'certificates for privileged purposes' issued in accordance with Article 8 (3) lit. c), e), f) or g) BR 338/97 (Article 11 (4) IR 865/2006) if the specimen is allowed to be used for privileged purposes (see the specific information on the certificate between boxes 19 and 20: yes/no boxes) or

2. TSC, usually valid for one transaction only[42].

In both types - save the TSC exemption mentioned in footnote 5: valid for several transactions restricted to the territory of the issuing Member State - the yes-box is used to restrict the use of the document to the holder mentioned in box 1.

Article 11 (5) IR 865/2006 shall be interpreted as follows: The original certificate shall accompany the certified specimen(s) also in cases when it ceases to be valid after the transfer of ownership.

Such certificates that cease to be valid may not be used for the purpose for which the certificate gave admission/allowance. However, the original TSC may serve as evidence for legal acquisition when ownership/ possession of the specimen concerned is transferred. Evidence may be accepted by the competent authority when it is satisfied that the specimen concerned can be (clearly) linked to the TSC.

Certificates mentioned under a) above may allow the transfer from the holder mentioned in box 1 to a new holder who should be mentioned in box 2 or 20 of the certificate, too.

41. Defined under Article 1 (7) and 8 IR 865/2006
42. If stated on the certificate, also for several transactions restricted to the territory of the issuing Member State, see Article 1 (7) and Article 11 (3) IR 865/2006. Such certificates are issued, f.e. for animals made identifiable by photo documentation in some member states (f.e. by the statement "valid only in [member state]")

Certificates mentioned under b) above (example: TSC for animals made identifiable by photo documentation) are valid for multiple transactions in the issuing member states and may be used for the single transfer to a new owner in another member state.

Article 11.5 IR 865/2006 shall be interpreted that as a general rule the holder shall hand over the original certificate to the buyer/consignee whereby the new holder/owner shall be responsible to present the original certificate to the competent authority in his/her Member State.
The new owner has to observe additional national legislation (see below under “without undue delay”: registration or reporting obligations) which may oblige him/her to inform the competent authority about the transfer. The new owner may keep the original certificate as evidence for legal acquisition or as basis for applying a new certificate.

The competent authority in the Member State where the certified specimen is kept by the new owner decides whether that invalid (concerning commercial use) certificate is returned to the issuing authority, which shall take place when a new certificate is issued for the new owner.

This procedure enables the new owner of the certified specimen(s) to give evidence about the transfer and of the legal acquisition of the specimen(s) concerned by an original TSC.[43]

For single use (transaction)[44] box “*Yes*” to „*Certificate only valid for holder named in box 1*“ between box 19 and 20 on the certificate shall be ticked. For additional information box 20 of the TSC may be used, for example:
“The holder” or “authorized person” must surrender the original to the next owner of the certified specimens. After that transaction, when the certificate is no longer valid for further commercial activities, this certificate may be used as proof of legal acquisition. The new owner has to apply for a new certificate if the specimen shall be used for commercial activities.”
or any other information depending on space.

Interpretation of ´without undue delay´ in Article 11 (5) IR 865/2006

What means “without undue delay” in Article 11 (5) IR 865/2006?

Invalid certificates shall be returned to the issuing authority “without undue delay”, in practice via the holder’s competent authority.

As pointed out above in case of a TSC Article 11.5 IR 865/2006 obliges the seller to surrender the original certificate to the new owner as proof of legal acquisition. In theory, we expect the new owner to return the TSC (not valid for further commercial use) via his/her competent authority to the issuing authority. However, the original certificate may serve as evidence for legal acquisition and will therefore be kept until the specimen does not exist anymore or a new certificate is required.

Competent authorities will be informed about the transfer or the new ownership when there is national legislation (registration or reporting obligations) that obliges the new owner to give information to that effect. In Member States where additional national legislation does not exist, it is practice that the new owner will not turn to the competent authority until this is needed for issuing a new document (certificate for commercial use, personal ownership certificate, export document, etc.). Hence, the original certificate is further kept by the new owner; the competent authority is not aware of that new ownership and consequently is not enabled to enforce Article 11 (5) IR 865/2006.

In general, this practice shall be accepted.

43. With that, the new holder satisfies also national obligations regarding registration, book-keeping, marking or reporting.
44. See footnote 5: the TSC may be used for multiple transactions in one member state.

The original certificate serves as evidence for legal acquisition, even though it may not be used for commercial use of the certified specimen. The certificate ceases to be valid in respect of the authorization it gave for the commercial use of the specimen(s) involved. Despite that, such an invalid certificate can be kept until this certificate is replaced by another document.

Another matter is when the certified specimen has been lost or stolen or does not exist anymore. In these cases, there is no need to keep the original any longer; in order to avoid misuse the holder shall return that certificate to the issuing authority via the holder's actual competent authority.

Annex XIX

Rules on trade in protected species of wild fauna and flora following the withdrawal of the United Kingdom from the EU

Practical information

Since 1 February 2020, the United Kingdom has withdrawn from the EU and has become a "third country"[45]. The Withdrawal Agreement[46] provided for a transition period which ended on 31 December 2020. As of 1 January 2021, Regulation (EC) No 338/97 on the protection of species of wild fauna and flora by regulating trade therein[47] no longer applies to the United Kingdom[48]. The information below outlines the legal situation following this transition period (part A), and the rules applicable in Northern Ireland after the end of the transition period (part B).

A. LEGAL SITUATION AFTER THE END OF THE TRANSITION PERIOD

1. IMPORT, EXPORT AND RE-EXPORT OF PROTECTED SPECIES BETWEEN THE EU AND THE UNITED KINGDOM

According to Article 4 of Regulation (EC) No 338/97, the **introduction into the EU** of specimens of species included in Annexes A and B to that Regulation is subject to the prior presentation, at the customs office of entry, of an import permit issued by a management authority of the EU Member State of destination. Article 4 of Regulation (EC) No 338/97 also lays down the conditions determining the issuance of this import permit.

According to Article 5(1) and (2) of Regulation (EC) No 338/97, the **export from the EU** to a third country of specimens of protected species is subject to the prior presentation, at the customs office at which the export formalities are completed, of an export permit issued by a management authority of the EU Member State in which the specimens are located. Article 5(1) and (2) of Regulation (EC) No 338/97 also lays down the conditions determining the issuance of these export permits.

According to Article 5(1) and (3) of Regulation (EC) No 338/97, the **re-export** from the EU to a third country is subject to a re-export certificate issued by a management authority of the EU Member State where the specimen is located.

45. A third country is a country not member of the EU.
46. Agreement on the withdrawal of the United Kingdom of Great Britain and Northern Ireland from the European Union and the European Atomic Energy Community, OJ L 29, 31.1.2020, p. 7 ("Withdrawal Agreement").
47. OJ L 61, 3.3.1997, p. 1.
48. Regarding the applicability of Regulation (EC) No 338/97 to Northern Ireland, see Part B of Annex XX

Following the UK's withdrawal from the EU, Article 4 and Article 5(1), (2) and (3) of Regulation (EC) No 338/97 apply to the introduction and (re-)export of specimens of protected species **between the United Kingdom and the EU**.

More specifically, this means inter alia the following:

- An export permit will have to be issued by the exporting EU Member State when specimens of protected species are moved to the United Kingdom.
- An import permit will have to be issued by the importing EU Member State when specimens of protected species are moved from the United Kingdom.
- A re-export certificate will have to be issued by the re-exporting EU Member State when specimens of protected species are moved to the United Kingdom.
- The same principles apply to the movement of specimens of species listed in Annex C and D of Regulation (EC) No 338/97, with regard to the respective CITES documents required for such movements.
- The UK will continue to accept phytosanitary certificates in lieu of CITES export permits as long as all the relevant conditions are met. The UK will continue to require a CITES import permit to accompany the phytosanitary certificate (serving as CITES export permit). The UK CITES MA will expedite applications for CITES import permits where a phytosanitary certificate is being used in lieu of a CITES export permit[49].

2. DEROGATIONS - PERSONAL AND HOUSEHOLD EFFECTS

Article 7(3) of Regulation (EC) No 338/97 provides for derogations for introduction and (re-) export of certain specimens being personal or household effects. Where the relevant conditions are met, these derogations will apply to movements of personal and household effects between the United Kingdom and the EU.

3. TRAVELLING-EXHIBITION CERTIFICATE, PERSONAL OWNERSHIP CERTIFICATE, SAMPLE COLLECTION CERTIFICATE, MUSICAL INSTRUMENT CERTIFICATE

Chapters VII (travelling-exhibition certificate), VIII (personal ownership certificate), VIII a (sample collection certificate) and VIII b (musical instrument certificate) of Commission Regulation (EC) No 865/2006 provide for certificates to facilitate cross-border movements of certain specimens of protected species.

These certificates can be used as import permit, export permit, or re-export certificate[50].

These certificates are mutually recognised amongst Member States according to Article 11(1) of Regulation (EC) No 338/97.

Certificates issued by the CITES authority of the United Kingdom before the end of the transition period can be used on the basis of CITES, to which the United Kingdom continues to be a Party[51].

4. DESIGNATED CUSTOMS OFFICES FOR THE INTRODUCTION INTO AND EXPORT FROM THE EU

49. See Annex XX for details on the rules on trade in protected species of wild fauna and flora following the withdrawal of the United Kingdom and EU.
50. Articles 31, 38, 44b and 44i of Regulation (EC) No 865/2006.
51. See, with regard to travelling-exhibition certificates and certificate standard forms, Resolution Conf. 12.3 (Rev. CoP19) on Permits and certificates, https://cites.org/sites/default/files/document/ERes-12-03-R17.pdf; with regard to personal ownership certificates, Resolution Conf. 10.20 on Frequent cross-border movements of personally owned live animals, https://cites.org/sites/default/files/document/E-Res-10-20.pdf; with regard to musical instrument certificates, Resolution Conf. 16.8 (Rev. CoP17) on Frequent cross-border non-commercial movements of musical instruments, https://cites.org/sites/default/files/document/E-Res-16-08-R17.pdf.

According to Article 4 of Regulation (EC) No 338/97, the introduction of specimens protected under it is subject to the necessary checks and the prior presentation of an import permit at the border customs office at the point of introduction.

According to Article 5 of Regulation (EC) No 338/97, the (re-)export of certain specimens is subject to the necessary checks and the prior presentation of an export permit or re-export certificate at the customs office at which the export formalities are completed.

Member States have to designate these customs offices and notify them to the Commission, which publishes their list in the *Official Journal of the European Union*[52].

Where specimens of protected species leave or enter the EU customs territory, the permit or certificate required under Regulation (EC) No 338/97 has to be presented to the customs offices.

B. APPLICABLE RULES IN NORTHERN IRELAND

1. OVERVIEW

The Protocol on Ireland/Northern Ireland ("IE/NI Protocol") is applicable for trade between the EU and the UK[53]. The IE/NI Protocol is subject to periodic consent of the Northern Ireland Legislative Assembly, the initial period of application extending to 4 years after the end of the transition period[54]. The end of the transition period is 31 December 2024[55].

The IE/NI Protocol makes certain provisions of EU law applicable also to and in the United Kingdom in respect of Northern Ireland. In the IE/NI Protocol, the EU and the United Kingdom have furthermore agreed that insofar as EU rules apply to and in the United Kingdom in respect of Northern Ireland, Northern Ireland is treated as if it were a Member State[56].

The IE/NI Protocol provides that Regulation (EC) No 338/97 applies to and in the United Kingdom in respect of Northern Ireland[57].

This means that references to the EU in part A of this guidance have to be understood as including Northern Ireland, whereas references to the United Kingdom have to be understood as referring only to Great Britain.

Where EU rules provide for Member States to issue import or export permits or re-export certificates, the United Kingdom in respect of Northern Ireland is responsible for issuing those permits or certificates.

More specifically, this means *inter alia* the following:

- The movement of specimens of protected species from Northern Ireland to the EU and *vice-versa* is not an import but an intra-EU movement for the purposes of Regulation (EC) No 338/97;
- The movement of specimens of protected species from Great Britain or from a third country to Northern Ireland is an import for the purposes of Regulation (EC) No 338/97.
- The movement of specimens of protected species from Northern Ireland to a third country is an export for the purposes of Regulation (EC) No 338/97.

52. Article 12 of Regulation (EC) No 338/97. and OJ C 72, 18.3.2008, p. 52. See also the list published by the Commission at https://ec.europa.eu/environment/cites/pdf/list*points*of_entry.pdf
53. Article 185 of the Withdrawal Agreement.
54. Article 18 of the IE/NI Protocol
55. The UK left the EU on 31 January 2020 at 11.00 pm (UK time) (exit day) but with a transition period (also known as the implementation period) that will end on 31 December 2020, as the UK has chosen not to extend the transition period beyond that date.
56. Article 7(1) of the Withdrawal Agreement in conjunction with Article 13(1) of the IE/NI Protocol
57. Article 5(4) of the IE/NI Protocol and section 26 of annex 2 to that Protocol

Table 16: Summary table of procedures and applicable rules for the Northern Ireland protocol.

EU to NI / NI to EU (e.g. Brussels to Belfast or vice versa)	GB to NI (e.g. London to Belfast)	EU to GB (e.g. Brussels to London)	GB to EU(e.g. London to Brussels)
Considered as intra-EU trade	UK-GB issues export permit	EU-MS (e.g., Belgium) issues export permit	UK-GB issues export permit
Normal intra-EU rules apply (certificate for Annex A-listed species, proof of legal acquisition for Annex B-listed species)	UK-NI issues import permit (according to EU rules)	UK-GB issues import permit (if required)	EU-MS (e.g., Belgium) issues import permit
	Border controls done by UK authorities at exit and entry point.	Border controls at normal exit and entry point	Border controls at normal exit and entry points

According to Article 6(1) of the IE/NI protocol, provisions of Union law made applicable by the Protocol which prohibit or restrict the exportation of goods[58] are only to be applied to trade between Northern Ireland and other parts of the United Kingdom to the extent strictly required by any international obligations of the Union.

More specifically, this means *inter alia* the following:

- Movements from Northern Ireland to Great Britain are subject to the requirements set out in Regulation (EC) No 338/97, including any decisions taken by bodies established by Regulation (EC) No 338/97 (e.g., an opinion by the Scientific Review Group), as well as recommendations contained in a Commission Guidance document, where these requirements flow from CITES provisions.
- If the EU has listed a species that is not listed in CITES in Annex A or B to the Regulation and there is an EU export ban established for that species, then the export of such specimens would be possible from Northern Ireland to Great Britain, because such an export ban would not be strictly required by an international obligation of the EU[59].
- The IE/NI Protocol excludes the possibility for the United Kingdom in respect of Northern Ireland to participate in the decision-making and decision-shaping of the Union[60],[61].

2. ISSUANCE OF PERMITS AND REPORTING OF LEGAL TRADE

58. This includes any prohibitions and restrictions on imports and exports resulting from Regulation (EC) No 338/97, incl. decisions taken by bodies established by Regulation (EC) No 338/97 (e.g., an opinion by the Scientific Review Group), as well as recommendations contained in a Commission Guidance document.
59. Normally, under EU law, one cannot export wild specimens of Annex A species for commercial purposes (Art. 5.2.(c) (ii) of Regulation (EC) No 338/97), whereas the same species listed under CITES Appendix II can be commercially traded under the CITES Convention. Therefore, for example, a wild caught barn owl (Tyto alba, App. II) could be commercially exported from Northern Ireland to the United Kingdom but not to a third country.
60. Where an information exchange or mutual consultation is necessary, this will take place in the joint consultative working group established by Article 15 of the IE/NI Protocol
61. For example, United Kingdom, in respect of Northern Ireland, cannot participate in the Committee (Article 18 of Regulation (EC) No 338/97) or the Scientific Review Group (Article 17 of Regulation (EC) No 338/97), and consequently also not propose or object to any decisions made or opinions issued by those bodies

Permits for Northern Ireland will be issued by UK authorities under the EU Wildlife Trade Regulations as per the requirements/format in Regulation 792/2012. The UK will state the country of issuance as “United Kingdom (Northern Ireland)”. Permits for Great Britain will be issued under UK’s retained EU law applicable in GB, and the format of the permit is defined in their national legislation (essentially the same permit template but with EU references amended to UK/GB ones). UK will state the country of issuance as “United Kingdom (Great Britain)”.

The UK’s ISO code for UK (both GB and NI) will remain ‘GB’. The UK has explained that “where there aren’t accompanying import permits this would indicate NI origin and as import permit numbers are needed for re-export this should be identifiable in reporting. The Animal and Plant Health Agency (APHA), as UK Management Authority, will be able to confirm whether the UK have issued any permits for the movements in question. UK’s reporting (to the CITES Secretariat and to the Commission with regard to NI permits) will also make it clear where permits have been issued.” We understand this to mean that in the future EU CITES Trade Database, one will have to deduct from the different parts of information whether or not the transaction was in relation to “UK-GB” or “UK-NI”. On a permit, the difference should be clear on the basis of the information contained in the box 7 “Issuing authority’s country”, which details whether the permit was issued by “United Kingdom (Northern Ireland)” or “United Kingdom (Great Britain)”.